

STATE OF NEW YORK

S. 9005--A

A. 10005--A

SENATE - ASSEMBLY

January 21, 2026

IN SENATE -- A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

IN ASSEMBLY -- A BUDGET BILL, submitted by the Governor pursuant to article seven of the Constitution -- read once and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 268 of the laws of 1996 amending the education law and the state finance law relating to providing a recruitment incentive and retention program for certain active members of the New York army national guard, New York air national guard, and New York naval militia, in relation to making such chapter permanent (Part A); to amend the tax law, in relation to extending the suspension of the subsidy to state emergency services revolving loan fund from the public safety communications surcharge (Part B); to amend the penal law and the criminal procedure law, in relation to convertible pistols and three-dimensional printed guns (Subpart A); and to amend the executive law and the general business law, in relation to firearm prevention technology requirements for three-dimensional printers (Subpart B)(Part C); to amend the penal law and the executive law, in relation to establishing a comprehensive drone plan (Part D); to amend the public health law, in relation to sexual offense evidence collection kit procedures (Part E); to amend the penal law, in relation to fraud offenses (Part F); to amend the executive law and the state finance law, in relation to the motor vehicle theft and insurance fraud prevention board (Part G); to amend the criminal procedure law and the family court act, in relation to extending orders of protection (Part H); to amend the criminal procedure law, in relation to grand jury procedure (Part I); to amend the executive law, in relation to authorities and responsibilities during disaster emergencies and in relation to establishing the international emergency management assistance compact (Part J); to amend the penal law, in relation to certain crimes of interference with health care services or religious worship (Part K); to amend the civil rights law, in

EXPLANATION--Matter in *italics* (underscored) is new; matter in brackets [] is old law to be omitted.

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relation to establishing the sensitive location protection act (Part L); to amend the civil rights law, in relation to enacting the "New York state Bivens act" (Part M); to amend chapter 396 of the laws of 2010 amending the alcoholic beverage control law relating to liquidator's permits and temporary retail permits, in relation to the effectiveness thereof (Part N); to amend the alcoholic beverage control law, in relation to allowing temporary retail permit holders to purchase stock on credit (Subpart A); to amend the alcoholic beverage control law, relating to banning alcoholic beverage brand labels designed to appeal to children (Subpart B); to amend the alcoholic beverage control law, in relation to authorizing the liquor authority to change the duration of certain licenses (Subpart C); to amend the alcoholic beverage control law, in relation to authorizing channel pricing for liquor and wine pursuant to the alcoholic beverage control law (Subpart D); to amend the alcoholic beverage control law, in relation to direct shipment enforcement (Subpart E); to amend part CC of chapter 55 of the laws of 2024 amending the alcoholic beverage control law, relating to alcohol in certain motion picture theatres, in relation to making motion picture theater licenses permanent (Subpart F); to repeal subdivision 9 of section 106 of the alcoholic beverage control law, in relation to access to a licensed premises (Subpart G); to amend the alcoholic beverage control law, in relation to lowering the food requirements at bona-fide hotels (Subpart H); to amend the alcoholic beverage control law, in relation to expanding privileges for certain manufacturers (Subpart I); to amend the alcoholic beverage control law, in relation to banning wholesalers from assessing certain fees on retailers (Subpart J); and to amend the alcoholic beverage control law, in relation to authorizing manufacturers to have up to three retail licenses under the same name as the manufacturer (Subpart K) (Part O); to amend the alcoholic beverage control law, in relation to establishing an adult care facility on-premises license (Subpart A); to amend the alcoholic beverage control law, in relation to establishing an airline lounge license (Subpart B); to amend the alcoholic beverage control law, in relation to establishing a cafe license (Subpart C); to amend the alcoholic beverage control law, in relation to establishing a higher education on-premises license (Subpart D); to amend the alcoholic beverage control law, in relation to establishing a hotel concessionaire license and permit (Subpart E); to amend the alcoholic beverage control law, in relation to establishing an early morning sports bar permit (Subpart F); to amend the alcoholic beverage control law, in relation to reissuing new wholesale beer licenses with retail privileges (Subpart G); and to amend the alcoholic beverage control law, in relation to making conforming changes (Subpart H) (Part P); to amend the alcoholic beverage control law, in relation to establishing a restaurant dine and dance license (Part Q); to amend the election law, in relation to preventing voter suppression and deception in elections (Part R); to amend the election law, in relation to the use of non-consensual materially deceptive media prior to an election (Part S); to amend the financial services law, in relation to dispute resolution for emergency services and surprise bills (Part T); to amend the executive law and the legislative law, in relation to education and training in ethics and lobbying (Part U); to amend the public officers law, in relation to the annual statement of financial disclosure; and to amend the tax law and the administrative code of the city of New York, in relation to making conforming technical changes (Part V); to amend

the workers' compensation law, in relation to establishing dedicated workers' compensation fraud units within New York state district attorneys' offices (Part W); to amend the workers' compensation law, in relation to specifying which providers are authorized to render certain medical care; and to repeal certain provisions of such law related thereto (Part X); to amend the state finance law and the economic development law, in relation to purchasing and advertising thresholds (Part Y); to amend the legislative law, in relation to lobbyist and client registration fees (Part Z); to amend the executive law, in relation to requiring the superintendent of state police to develop, maintain, and disseminate to all members of the division of state police a critical incident paid leave policy (Part AA); to amend chapter 1 of the laws of 2005 amending the state finance law relating to restricting contacts in the procurement process and the recording of contacts relating thereto, in relation to extending the effectiveness thereof; and to amend the state finance law, in relation to the definition of procurement contracts (Part BB); to amend chapter 83 of the laws of 1995 amending the state finance law and other laws relating to bonds, notes and revenues, in relation to the effectiveness of certain provisions thereof (Part CC); to amend the civil practice law and rules and the state finance law, in relation to the rate of interest to be paid on judgment and accrued claims (Part DD); to amend the civil service law, in relation to reimbursement for medicare premium charges (Part EE); and in relation to providing for the administration of certain funds and accounts related to the 2026--2027 budget, authorizing certain payments and transfers; to amend the state finance law, in relation to the school tax relief fund; to amend the private housing finance law, in relation to housing program bonds and notes; to amend part D of chapter 389 of the laws of 1997, relating to the financing of the correctional facilities improvement fund and the youth facility improvement fund, in relation to the issuance of bonds and notes for the youth facilities improvement fund; to amend the public authorities law, in relation to the issuance of bonds and notes for city university facilities; to amend the public authorities law, in relation to the issuance of bonds for library construction projects; to amend the public authorities law, in relation to the issuance of bonds for state university educational facilities; to amend the public authorities law, in relation to the issuance of bonds and notes for locally sponsored community colleges; to amend chapter 392 of the laws of 1973 constituting the New York state medical care facilities finance agency act, in relation to the issuance of mental health services facilities improvement bonds and notes; to amend part K of chapter 81 of the laws of 2002, relating to providing for the administration of certain funds and accounts related to the 2002-2003 budget, in relation to the issuance of bonds and notes to finance capital costs related to homeland security; to amend chapter 174 of the laws of 1968 constituting the urban development corporation act, in relation to financing project costs for the office of information technology services and department of law; to amend chapter 329 of the laws of 1991, amending the state finance law and other laws relating to the establishment of the dedicated highway and bridge trust fund, in relation to the issuance of funds to the thruway authority; to amend chapter 174 of the laws of 1968 constituting the urban development corporation act, in relation to the issuance of bonds and notes to fund costs for statewide equipment; to amend the public authorities law, in relation to the issuance of bonds for purposes of financing

environmental infrastructure projects; to amend part D of chapter 389 of the laws of 1997, relating to the financing of the correctional facilities improvement fund and the youth facility improvement fund, in relation to the issuance of bonds and notes for the youth facilities improvement fund; to amend the public authorities law, in relation to the issuance of bonds and notes for the purpose of financing peace bridge projects and capital costs of state and local highways; to amend chapter 174 of the laws of 1968 constituting the urban development corporation act, in relation to the issuance of bonds for economic development initiatives; to amend part Y of chapter 61 of the laws of 2005, relating to providing for the administration of certain funds and accounts related to the 2005-2006 budget, in relation to the issuance of bonds and notes for the purpose of financing capital projects for the division of military and naval affairs; to amend chapter 174 of the laws of 1968 constituting the urban development corporation act, in relation to issuance of bonds for project costs undertaken by or on behalf of the state education department, special act school districts, state-supported schools for the blind and deaf, approved private special education schools, non-public schools, community centers, day care facilities, residential camps, day camps, Native American Indian Nation schools; to amend the public authorities law, in relation to the issuance of bonds and notes for the purpose of financing the construction of the New York state agriculture and markets food laboratory; to amend the public authorities law, in relation to authorization for the issuance of bonds for the capital restructuring financing program, the health care facility transformation programs, and the essential health care provider program; to amend part Y of chapter 61 of the laws of 2005, relating to providing for the administration of certain funds and accounts related to the 2005-2006 budget, in relation to the issuance of bonds and notes for the purpose of financing capital projects for initiatives of the state police; to amend chapter 174 of the laws of 1968 constituting the urban development corporation act, in relation to personal income tax revenue anticipation notes; to amend the state finance law, in relation to the calculation of total outstanding principal amount of debt; and providing for the repeal of certain provisions upon expiration thereof (Part FF)

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act enacts into law major components of legislation
2 necessary to implement the state public protection and general govern-
3 ment budget for the 2026-2027 state fiscal year. Each component is whol-
4 ly contained within a Part identified as Parts A through FF. The effec-
5 tive date for each particular provision contained within such Part is
6 set forth in the last section of such Part. Any provision in any section
7 contained within a Part, including the effective date of the Part, which
8 makes a reference to a section "of this act", when used in connection
9 with that particular component, shall be deemed to mean and refer to the
10 corresponding section of the Part in which it is found. Section three of
11 this act sets forth the general effective date of this act.

12

PART A

Section 1. Section 5 of chapter 268 of the laws of 1996 amending the education law and the state finance law relating to providing a recruitment incentive and retention program for certain active members of the New York army national guard, New York air national guard, and New York naval militia, as amended by section 1 of part P of chapter 55 of the laws of 2021, is amended to read as follows:

§ 5. This act shall take effect January 1, 1997 [~~and shall expire and be deemed repealed September 1, 2026; provided that any person who has begun to receive the benefits of this act prior to its expiration and repeal shall be entitled to continue to receive the benefits of this act after its expiration and repeal until completion of a baccalaureate degree or cessation of status as an active member, whichever occurs first~~].

§ 2. This act shall take effect immediately.

PART B

Section 1. Paragraph (b) of subdivision 6 of section 186-f of the tax law, as amended by section 1 of part E of chapter 55 of the laws of 2024, is amended to read as follows:

(b) The sum of one million five hundred thousand dollars must be deposited into the New York state emergency services revolving loan fund annually; provided, however, that such sums shall not be deposited for any state fiscal [~~years~~] year between two thousand eleven--two thousand twelve, [~~two thousand twelve--two thousand thirteen, two thousand fourteen--two thousand fifteen, two thousand fifteen--two thousand sixteen, two thousand sixteen--two thousand seventeen, two thousand seventeen--two thousand eighteen, two thousand eighteen--two thousand nineteen, two thousand nineteen--two thousand twenty, two thousand twenty--two thousand twenty-one, two thousand twenty-one--two thousand twenty-two, two thousand twenty-two--two thousand twenty-three, two thousand twenty-three--two thousand twenty-four, two thousand twenty-four--two thousand twenty-five,~~] and [~~two thousand twenty-five--two thousand twenty-six~~] two thousand twenty-nine--two thousand thirty;

§ 2. This act shall take effect April 1, 2026; provided, however, if this act shall become a law after such date it shall take effect immediately and shall be deemed to have been in full force and effect on and after April 1, 2026.

PART C

Section 1. This Part enacts into law components of legislation relating to three-dimensional printed guns and pistol converters. Each component is wholly contained within a Subpart identified as Subparts A through B. The effective date for each particular provision contained within such Subpart is set forth in the last section of such Subpart. Any provision in any section contained within a Subpart, including the effective date of the Subpart, which makes reference to a section "of this act", when used in connection with that particular component, shall be deemed to mean and refer to the corresponding section of the Subpart in which it is found. Section three of this Part sets forth the general effective date of this Part.

SUBPART A

Section 1. Subdivisions 1, 3-a and 36 of section 265.00 of the penal law, subdivision 3-a as added by chapter 134 of the laws of 2019 and subdivision 36 as added by chapter 429 of the laws of 2024, are amended and four new subdivisions 37, 38, 39 and 40 are added to read as follows:

1. "Machine-gun" means a weapon of any description, irrespective of size, by whatever name known, loaded or unloaded, from which a number of shots or bullets may be rapidly or automatically discharged from a magazine with one continuous pull of the trigger and includes a sub-machine gun, and also includes any convertible pistol that is equipped with a pistol converter.

3-a. "Major component of a firearm, rifle or shotgun" means the barrel, the slide or cylinder, the frame, or receiver of the firearm, rifle, or shotgun, regardless of whether such component is privately or publicly manufactured.

36. "Pistol converter" means any device or instrument that, when installed in or attached to the rear of the slide of a semi-automatic pistol, replaces the backplate and interferes with the trigger mechanism and thereby enables the pistol to discharge a number of shots or bullets rapidly or automatically with one continuous pull of the trigger.

37. "Convertible pistol" means any semi-automatic pistol with a cruciform trigger bar that can be readily altered by hand or with common household tools so that it can be converted into a machine-gun by the installation or attachment of a pistol converter. As used in this subdivision, "common household tools" means screwdrivers, pipe wrenches, pliers, hacksaws, crowbars, electric drills or rotary tools, hammers, chisels, files, and crescent wrenches. "Convertible pistol" does not include hammer-fired semi-automatic pistols or any striker-fired semi-automatic pistol lacking a cruciform trigger bar, which instead has a trigger bar that is shielded from interference by a pistol converter. A notch or other piece of polymer molded into the rear of a pistol frame does not prevent ready conversion into a machine-gun and will not prevent such pistol from qualifying as a convertible pistol under this subdivision.

38. "Three-dimensional printer" means:

(a) any machine capable of rendering a three-dimensional object from a digital design file using additive manufacturing; or

(b) any machine capable of making three-dimensional modifications to an object from a digital design file using subtractive manufacturing.

39. "Digital firearm manufacturing code" means any digital instructions in the form of computer-aided design files or other code or instructions stored and displayed in electronic format as a digital model that may be used to program a three-dimensional printer or a computer numerical control (CNC) milling machine to manufacture or produce any firearm, rifle, shotgun, ghost gun, unfinished frame or receiver, firearm silencer, rapid-fire modification device or major component of a firearm.

40. "Cruciform trigger bar" means a component in a semi-automatic pistol that serves as a linkage between the trigger and the firing pin and has its sear incorporated in a cross-shaped surface.

§ 2. Subdivisions 1 and 2 of section 265.10 of the penal law, as amended by chapter 481 of the laws of 2024, are amended and three new subdivisions 10, 11 and 12 are added to read as follows:

1. Any person who manufactures or causes to be manufactured any machine-gun, pistol converter, ghost gun, unfinished frame or receiver, firearm silencer, major component of a firearm, assault weapon, large

1 capacity ammunition feeding device or disguised gun is guilty of a class
2 D felony. Any person who manufactures or causes to be manufactured any
3 rapid-fire modification device is guilty of a class E felony. Any person
4 who manufactures or causes to be manufactured any switchblade knife,
5 pilum ballistic knife, metal knuckle knife, undetectable knife, billy,
6 blackjack, bludgeon, plastic knuckles, metal knuckles, throwing star,
7 chuka stick, sandbag, sandclub or slungshot is guilty of a class A
8 misdemeanor.

9 2. Any person who transports or ships any machine-gun, pistol convert-
10 er, ghost gun, firearm silencer, assault weapon or large capacity ammu-
11 nition feeding device or disguised gun, or who transports or ships as
12 merchandise five or more firearms, is guilty of a class D felony. Any
13 person who transports or ships any rapid-fire modification device is
14 guilty of a class E felony. Any person who transports or ships as
15 merchandise any firearm, other than an assault weapon, switchblade
16 knife, pilum ballistic knife, undetectable knife, billy, blackjack,
17 bludgeon, plastic knuckles, metal knuckles, throwing star, chuka stick,
18 sandbag or slungshot is guilty of a class A misdemeanor.

19 10. Any person, dealer, firm, partnership, or corporation who disposes
20 of or transports or ships as merchandise a convertible pistol is guilty
21 of a class D felony.

22 11. Any person who sells, offers to sell, transfers, distributes, or
23 otherwise disposes of a digital firearm manufacturing code to any person
24 who does not hold both (a) a gunsmith license as provided in section
25 400.00 of this chapter and (b) a valid type seven federal firearms
26 license, is guilty of a class E felony.

27 12. Any person who possesses digital firearm manufacturing code with
28 the intent to (a) illegally manufacture any item described in section
29 265.00 of this article; (b) distribute to a person in the state of New
30 York for whom the sender has reason to believe would be prohibited from
31 possessing the manufactured or produced product under section 265.02 of
32 this chapter or subsection (G) of section 922 of title 18 of the United
33 States Code; or (c) distribute to a person in the state of New York who
34 does not hold both (i) a gunsmith license as provided in section 400.00
35 of this chapter and (ii) a valid type seven federal firearms license, is
36 guilty of a class E felony.

37 § 3. Section 265.20 of the penal law is amended by adding a new subdi-
38 vision f to read as follows:

39 f. Subdivision ten of section 265.10 of this article shall not apply
40 to the disposition of a convertible pistol or the transport or shipping
41 as merchandise of a convertible pistol for disposition to the following:

42 1. persons in the military service of the state of New York or the
43 United States when duly authorized by law or regulation to possess the
44 same; or

45 2. police officers as defined in subdivision thirty-four of section
46 1.20 of the criminal procedure law; or

47 3. peace officers as defined by section 2.10 of the criminal procedure
48 law when they are authorized to possess the same; or

49 4. persons engaging in the business of gunsmith or dealer in firearms
50 to whom a valid license therefor has been issued pursuant to section
51 400.00 of this chapter.

52 § 4. Paragraph (b) of subdivision 8 of section 700.05 of the criminal
53 procedure law, as amended by chapter 23 of the laws of 2024, is amended
54 to read as follows:

55 (b) Any of the following felonies: assault in the second degree as
56 defined in section 120.05 of the penal law, assault in the first degree

1 as defined in section 120.10 of the penal law, reckless endangerment in
2 the first degree as defined in section 120.25 of the penal law, promot-
3 ing a suicide attempt as defined in section 120.30 of the penal law,
4 strangulation in the second degree as defined in section 121.12 of the
5 penal law, strangulation in the first degree as defined in section
6 121.13 of the penal law, criminally negligent homicide as defined in
7 section 125.10 of the penal law, manslaughter in the second degree as
8 defined in section 125.15 of the penal law, manslaughter in the first
9 degree as defined in section 125.20 of the penal law, murder in the
10 second degree as defined in section 125.25 of the penal law, murder in
11 the first degree as defined in section 125.27 of the penal law, rape in
12 the third degree as defined in section 130.25 of the penal law, rape in
13 the second degree as defined in section 130.30 of the penal law, rape in
14 the first degree as defined in section 130.35 of the penal law, a crime
15 formerly defined in section 130.40 of the penal law, a crime formerly
16 defined in section 130.45 of the penal law, a crime formerly defined in
17 section 130.50 of the penal law, sexual abuse in the first degree as
18 defined in section 130.65 of the penal law, unlawful imprisonment in the
19 first degree as defined in section 135.10 of the penal law, kidnapping
20 in the second degree as defined in section 135.20 of the penal law,
21 kidnapping in the first degree as defined in section 135.25 of the penal
22 law, labor trafficking as defined in section 135.35 of the penal law,
23 aggravated labor trafficking as defined in section 135.37 of the penal
24 law, custodial interference in the first degree as defined in section
25 135.50 of the penal law, coercion in the first degree as defined in
26 section 135.65 of the penal law, criminal trespass in the first degree
27 as defined in section 140.17 of the penal law, burglary in the third
28 degree as defined in section 140.20 of the penal law, burglary in the
29 second degree as defined in section 140.25 of the penal law, burglary in
30 the first degree as defined in section 140.30 of the penal law, criminal
31 mischief in the third degree as defined in section 145.05 of the penal
32 law, criminal mischief in the second degree as defined in section 145.10
33 of the penal law, criminal mischief in the first degree as defined in
34 section 145.12 of the penal law, criminal tampering in the first degree
35 as defined in section 145.20 of the penal law, arson in the fourth
36 degree as defined in section 150.05 of the penal law, arson in the third
37 degree as defined in section 150.10 of the penal law, arson in the
38 second degree as defined in section 150.15 of the penal law, arson in
39 the first degree as defined in section 150.20 of the penal law, grand
40 larceny in the fourth degree as defined in section 155.30 of the penal
41 law, grand larceny in the third degree as defined in section 155.35 of
42 the penal law, grand larceny in the second degree as defined in section
43 155.40 of the penal law, grand larceny in the first degree as defined in
44 section 155.42 of the penal law, health care fraud in the fourth degree
45 as defined in section 177.10 of the penal law, health care fraud in the
46 third degree as defined in section 177.15 of the penal law, health care
47 fraud in the second degree as defined in section 177.20 of the penal
48 law, health care fraud in the first degree as defined in section 177.25
49 of the penal law, robbery in the third degree as defined in section
50 160.05 of the penal law, robbery in the second degree as defined in
51 section 160.10 of the penal law, robbery in the first degree as defined
52 in section 160.15 of the penal law, unlawful use of secret scientific
53 material as defined in section 165.07 of the penal law, criminal
54 possession of stolen property in the fourth degree as defined in section
55 165.45 of the penal law, criminal possession of stolen property in the
56 third degree as defined in section 165.50 of the penal law, criminal

1 possession of stolen property in the second degree as defined by section
2 165.52 of the penal law, criminal possession of stolen property in the
3 first degree as defined by section 165.54 of the penal law, trademark
4 counterfeiting in the second degree as defined in section 165.72 of the
5 penal law, trademark counterfeiting in the first degree as defined in
6 section 165.73 of the penal law, forgery in the second degree as defined
7 in section 170.10 of the penal law, forgery in the first degree as
8 defined in section 170.15 of the penal law, criminal possession of a
9 forged instrument in the second degree as defined in section 170.25 of
10 the penal law, criminal possession of a forged instrument in the first
11 degree as defined in section 170.30 of the penal law, criminal
12 possession of forgery devices as defined in section 170.40 of the penal
13 law, falsifying business records in the first degree as defined in
14 section 175.10 of the penal law, tampering with public records in the
15 first degree as defined in section 175.25 of the penal law, offering a
16 false instrument for filing in the first degree as defined in section
17 175.35 of the penal law, issuing a false certificate as defined in
18 section 175.40 of the penal law, criminal diversion of prescription
19 medications and prescriptions in the second degree as defined in section
20 178.20 of the penal law, criminal diversion of prescription medications
21 and prescriptions in the first degree as defined in section 178.25 of
22 the penal law, residential mortgage fraud in the fourth degree as
23 defined in section 187.10 of the penal law, residential mortgage fraud
24 in the third degree as defined in section 187.15 of the penal law, resi-
25 dential mortgage fraud in the second degree as defined in section 187.20
26 of the penal law, residential mortgage fraud in the first degree as
27 defined in section 187.25 of the penal law, escape in the second degree
28 as defined in section 205.10 of the penal law, escape in the first
29 degree as defined in section 205.15 of the penal law, absconding from
30 temporary release in the first degree as defined in section 205.17 of
31 the penal law, promoting prison contraband in the first degree as
32 defined in section 205.25 of the penal law, hindering prosecution in the
33 second degree as defined in section 205.60 of the penal law, hindering
34 prosecution in the first degree as defined in section 205.65 of the
35 penal law, sex trafficking as defined in section 230.34 of the penal
36 law, sex trafficking of a child as defined in section 230.34-a of the
37 penal law, criminal possession of a weapon in the third degree as
38 defined in subdivisions two, three and five of section 265.02 of the
39 penal law, criminal possession of a weapon in the second degree as
40 defined in section 265.03 of the penal law, criminal possession of a
41 weapon in the first degree as defined in section 265.04 of the penal
42 law, manufacture, transport, disposition and defacement of weapons and
43 dangerous instruments and appliances defined as felonies in subdivisions
44 one, two, ~~and~~ three, eleven, and twelve of section 265.10 of the penal
45 law, sections 265.11, 265.12 and 265.13 of the penal law, or prohibited
46 use of weapons as defined in subdivision two of section 265.35 of the
47 penal law, relating to firearms and other dangerous weapons, criminal
48 manufacture, sale or transport of an undetectable firearm, rifle or
49 shotgun as defined in section 265.50 of the penal law, or failure to
50 disclose the origin of a recording in the first degree as defined in
51 section 275.40 of the penal law;

52 § 5. The superintendent of the division of state police is authorized
53 to promulgate rules, regulations, and policies necessary to effectuate
54 the provisions of this act. Such superintendent shall, prior to the
55 effective date of this act and annually thereafter, publish a list of

1 pistols that the superintendent has determined to be convertible
2 pistols, as defined in section 265.00 of the penal law.
3 § 6. This act shall take effect on the ninetieth day after it shall
4 have become a law. Effective immediately, the addition, amendment and/or
5 repeal of any rule or regulation necessary for the implementation of
6 this act on its effective date are authorized to be made and completed
7 on or before such effective date.

8 SUBPART B

9 Section 1. The executive law is amended by adding a new section 837-aa
10 to read as follows:

11 § 837-aa. Firearm prevention technology requirements for three-dimen-
12 sional printers. 1. As used in this section, the following terms shall
13 have the following meanings:

14 (a) "Three-dimensional printer" means:

15 (i) any machine capable of rendering a three-dimensional object from a
16 digital design file using additive manufacturing; or

17 (ii) any machine capable of making three-dimensional modifications to
18 an object from a digital design file using subtractive manufacturing.

19 (b) "Blocking technology" means hardware, software, firmware, or other
20 integrated technological measures capable of ensuring a three-dimension-
21 al printer will not proceed to print any print job unless the underlying
22 three-dimensional printing file has been evaluated by a firearms blue-
23 print detection algorithm and determined not to be a printing file that
24 would produce a firearm or illegal firearm parts.

25 (c) "Firearms blueprint detection algorithm" means a software service
26 that evaluates three-dimensional printing files, whether in the form of
27 stereolithography (STL) files or other computer aided design files or
28 geometric code, to determine if they can be used to program a three-di-
29 mensional printer to produce a firearm or illegal firearm parts, and
30 flag any such files to prevent their use to manufacture said firearm or
31 illegal firearm parts.

32 (d) "Illegal firearm parts" means an unfinished frame or receiver, a
33 major component of a firearm, or any part designed and intended for use
34 in converting a semi-automatic weapon into a machine gun, including, but
35 not limited to, a pistol converter.

36 (e) All other terms shall have the same meaning given to such terms in
37 section 265.00 of the penal law.

38 2. Within ninety days of the effective date of this section, the divi-
39 sion, the department of state, and the state university of New York
40 shall convene a working group which shall include experts in additive
41 manufacturing technology, artificial intelligence and digital security,
42 firearms regulation, public safety, consumer product safety, and any
43 other relevant disciplines determined by the division to be necessary to
44 perform the functions prescribed herein. No later than one year after
45 the working group convenes, the working group shall make recommendations
46 regarding the minimum safety standards a three-dimensional printer's
47 blocking technology must meet in order to comply with the requirements
48 of section three hundred ninety-six-eeee of the general business law.
49 Such recommendations shall address, at a minimum, available and appro-
50 priate types of blocking technology, including minimum performance stan-
51 dards for those technologies and for firearms blueprint detection algo-
52 rithms, necessary safeguards to reduce the risk of circumvention of
53 blocking technology, and alignment with existing state and federal law.
54 Provided, however, that if the working group determines that it is not

1 technologically feasible to require three-dimensional printers sold in
2 the state of New York to include blocking technology, the working group
3 shall so report, and no regulations shall be required to be promulgated
4 pursuant to this section, until such time as the working group deter-
5 mines that it is technologically feasible.

6 3. The division shall:

7 (a) within nine months of receiving the recommendations from the work-
8 ing group pursuant to subdivision two of this section, unless the work-
9 ing group reports that it is not technologically feasible to require
10 three-dimensional printers sold in New York to include blocking technol-
11 ogy, in consultation with the department of state, promulgate and
12 publish rules or regulations establishing performance standards for
13 blocking technology and any other rules and regulations as may be neces-
14 sary to carry out the provisions of this section and section three
15 hundred ninety-six-eeee of the general business law; and

16 (b) be authorized to create and maintain a library of firearms blue-
17 print files and illegal firearm parts blueprint files, and maintain and
18 update the library, including by adding new files that enable the three-
19 dimensional printing of firearms or illegal firearm parts. In further-
20 ance of this authorization, the division may designate another govern-
21 ment agency or an academic or research institution in this state to
22 assist with the creation and maintenance of the file library. The
23 library shall be made available to three-dimensional printer manufactur-
24 ers, vendors with demonstrated expertise in software development, or
25 experts in computational design or public safety, for the development or
26 improvement of blocking technology and firearm blueprint detection algo-
27 rithms. The division shall establish safeguards to prevent unauthorized
28 access to and misuse of the library and shall prohibit all persons who
29 are granted access to the library from misusing, selling, disseminating,
30 or otherwise publishing its contents.

31 § 2. The general business law is amended by adding a new section 396-
32 eeee to read as follows:

33 § 396-eeee. Three-dimensional printers. 1. No person, firm or corpo-
34 ration shall sell or deliver any three-dimensional printer in the state
35 of New York unless such printer is equipped with blocking technology,
36 and except as provided in subdivision two of this section, no such sale
37 or delivery shall be permitted unless the transferee meets in person
38 with the transferor to accomplish such sale or delivery. As used in this
39 section, the terms "three-dimensional printer" and "blocking technology"
40 shall have the same meaning as such terms are defined in subdivision one
41 of section eight hundred thirty-seven-aa of the executive law.

42 2. The provisions of subdivision one of this section regarding in
43 person sale or delivery shall not apply to purchases made by federal,
44 state, or local government agencies for the purpose of furnishing such
45 three-dimensional printers to employees in eligible professions.

46 3. Whenever the attorney general shall believe from evidence satisfac-
47 tory to them that any person, firm, corporation or association or agent
48 or employee thereof has engaged in or is about to engage in conduct
49 prohibited by this chapter they may bring an action in the name and on
50 behalf of the people of the state of New York to enjoin such unlawful
51 acts or practices and to obtain restitution of any moneys or property
52 obtained directly or indirectly by any such unlawful acts or practices.
53 In such action preliminary relief may be granted under article sixty-
54 three of the civil practice law and rules.

55 4. Any person, firm or corporation that violates the provisions of
56 this section shall be guilty of a violation punishable by a fine in an

amount not to exceed five thousand dollars for the first offense and in an amount not to exceed ten thousand dollars for any subsequent offense.
5. Any person, firm, corporation or association that has been damaged as a result of any person, firm or corporation whose acts or omissions that violate the provisions of this section shall be entitled to bring an action for recovery of damages or to enforce this article.

§ 3. This act shall take effect immediately; provided, however, that section two of this act shall take effect one year after the promulgation of rules as provided for in subdivision 3 of section 837-aa of the executive law, as added by section one of this act; provided further, that the commissioner of the division of criminal justice services shall notify the legislative bill drafting commission upon the promulgation of such rules in order that the commission may maintain an accurate and timely effective database of the official text of the laws of the state of New York in furtherance of effectuating the provisions of section 44 of the legislative law and section 70-b of the public officers law.

§ 2. Severability. If any clause, sentence, paragraph, section or subpart of this act shall be adjudged by any court of competent jurisdiction to be invalid and after exhaustion of all further judicial review, the judgment shall not affect, impair, or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, section or subpart of this act directly involved in the controversy in which the judgment shall have been rendered.

§ 3. This act shall take effect immediately provided, however, that the applicable effective date of Subparts A through B of this Part shall be as specifically set forth in the last section of such Subparts.

PART D

Section 1. The penal law is amended by adding a new article 280 to read as follows:

ARTICLE 280

OFFENSES RELATING TO UNLAWFUL USE OF A DRONE

Section 280.00 Definitions.

280.05 Unlawful use of a drone in the second degree.

280.10 Unlawful use of a drone in the first degree.

280.15 Aggravated unlawful use of a drone.

§ 280.00 Definitions.

As used in this article, the following terms shall have the following meanings:

1. "Drone" shall mean an unmanned aerial aircraft that is operated without the possibility of direct human intervention from within or on the aircraft.

2. "Drone operating system" shall mean the hardware and software that manages flight control, navigation, and sensors for autonomous flight of a drone.

3. "Nefarious manner" means engaging in conduct that violates or facilitates a violation of any provision of the penal law; constitutes intentional and unauthorized surveillance of a prohibited space; interferes with emergency operations; facilitates criminal activity; or creates a significant risk of physical injury to a person or damage to property.

4. "Prohibited space" means any area within five hundred feet of: an airport; state or federal military installation; state, local, or federal correctional facility; police station; fire department station; emergency services dispatch station; large public gathering, such as a

concert, festival, or sporting event; any critical infrastructure, as defined in subdivision five of section eighty-six of the public officers law; and any school as defined in subdivision ten of section eleven hundred twenty-five of the education law.

§ 280.05 Unlawful use of a drone in the second degree.

A person commits unlawful use of a drone in the second degree when such person:

1. operates a drone in a nefarious manner;

2. operates a drone over prohibited space without express prior approval from someone the person reasonably believes has the authority to grant such approval; or

3. a governmental employee acting in a manner consistent with such employee's governmental duties shall not be deemed to be committing unlawful use of a drone.

Unlawful use of a drone in the second degree is a class A misdemeanor.

§ 280.10 Unlawful use of a drone in the first degree.

A person commits unlawful use of a drone in the first degree when such person:

1. commits the crime of unlawful use of a drone in the second degree after having been previously convicted of that crime; or

2. commits the crime of unlawful use of a drone in the second degree in furtherance of another crime.

Unlawful use of a drone in the first degree is a class E felony.

§ 280.15 Aggravated unlawful use of a drone.

A person commits aggravated unlawful use of a drone when such person commits the crime of unlawful use of a drone in the first degree after having been previously convicted of such crime.

Aggravated unlawful use of a drone is a class D felony.

§ 2. The executive law is amended by adding a new section 236 to read as follows:

§ 236. Drones. 1. The terms used in this section shall have the same meaning as given in section 280.00 of the penal law.

2. A police officer as defined by subdivision thirty-four of section 1.20 of the criminal procedure law, or a peace officer as defined by section 2.10 of the criminal procedure law, acting within such peace officer's geographical jurisdiction, may take reasonable and necessary mitigation measures against a credible threat that a drone poses to the safety or security of people and/or prohibited spaces. Such measures may include but not be limited to any of the following:

(a) The use of detection, tracking, and identification methods of a drone and/or drone operating system.

(b) The interception or disabling of a drone and/or drone operating system through legal and safe methods, including but not limited to both kinetic and non-kinetic mitigation measures.

(c) A law enforcement officer or agency may only use kinetic measures when non-kinetic measures have or would reasonably be expected to fail.

3. (a) A qualifying police officer or peace officer shall act pursuant to subdivision two of this section only if: (i) the officer has completed the training required by the superintendent or the superintendent's designee; and (ii) there is reasonable suspicion that the drone is operating in a nefarious manner, within prohibited space, or is about to operate in a nefarious manner and/or within a prohibited space.

(b) Within forty-eight hours of utilizing any mitigation measures authorized by this section, the agency employing the officer who utilized such measures shall report such utilization to the superintendent or the superintendent's designee, in the form and manner

prescribed by the superintendent, in addition to any reporting required by federal law.

4. The superintendent may designate one or more areas of the state as a space to test kinetic and non-kinetic mitigation measures.

5. The superintendent shall establish a registry known as "the New York state blue list." Such registry shall include vetted and approved vendors that comply with applicable federal requirements. Upon publication of the registry, the state, its agencies, and any political subdivisions of the state may only buy or lease drones and drone mitigation technology from vendors listed on such registry.

§ 3. Severability. If any clause, sentence, paragraph, section, or part of this act shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, section, or part thereof directly involved in the controversy in which such judgment shall have been rendered.

§ 4. This act shall take effect on the ninetieth day after it shall have become a law.

PART E

Section 1. Subdivision 2 of section 2805-i of the public health law, as amended by section 1 of part II of chapter 56 of the laws of 2021, paragraph (j) as amended by chapter 646 of the laws of 2025, is amended to read as follows:

2. Sexual offense evidence shall be collected and maintained as follows:

(a) All sexual offense evidence shall be kept in a locked, separate and secure area for twenty years from the date of collection or until the victim's fortieth birthday, whichever is later; provided that such evidence shall be transferred to a new location(s) pursuant to this subdivision.

(b) Sexual offense evidence shall include, but not be limited to, slides, cotton swabs, clothing and other items. Where appropriate, such items shall be refrigerated and the clothes and swabs shall be dried, stored in paper bags, and labeled. Each item of evidence shall be marked and logged with a code number corresponding to the alleged sexual offense victim's medical record.

(c) Upon collection, the hospital shall notify the alleged sexual offense victim that, after twenty years or until the victim's fortieth birthday, whichever is later, the sexual offense evidence will be discarded in compliance with state and local health codes and that the alleged sexual offense victim's clothes or personal effects will be returned to the alleged sexual offense victim at any time upon request. The alleged sexual offense victim shall be given the option of providing contact information for purposes of receiving notice of the planned destruction of such evidence after the expiration of the twenty-year period or until the victim's fortieth birthday, whichever is later.

(d) Until September thirtieth, two thousand twenty-two, or earlier if determined feasible by the director of budget, hospitals shall be responsible for securing long-term sexual offense evidence pursuant to this section, after which such storage shall be the responsibility of the office of victim services. Hospitals may enter into contracts with other entities that will ensure appropriate and secure long-term storage of sexual offense evidence pursuant to this section until September thirtieth, two thousand twenty-two.

(e) Beginning April first, two thousand eighteen, the department, the office of victim services, the division of criminal justice services and the division of state police shall jointly study, evaluate and make recommendations concerning the storage and monitoring of sexual offense evidence for twenty years, including studying options for the use of: state-owned or operated facilities; facilities owned or operated by local government or law enforcement agencies; and facilities owned or operated by private entities.

(f) Between thirty and ten days prior to the transfer of sexual offense evidence to the office of victim services, hospitals shall make diligent efforts to notify the alleged sexual offense victim of the transfer of custody for the remainder of the twenty-year storage period or until the victim's fortieth birthday, whichever is later.

(g) On September thirtieth, two thousand twenty-two, or earlier if determined feasible by the director of budget, responsibility for long-term storage of sexual offense evidence shall transfer to the office of victim services.

(h) After September thirtieth, two thousand twenty-two, or earlier if determined feasible by the director of budget, hospitals shall ensure transfer of sexual offense evidence collected pursuant to this section to the office of victim services within ten days of collection of such evidence, while maintaining chain of custody.

(i) At least ninety days prior to the expiration of the twenty-year storage period for any sexual offense evidence or until the victim's fortieth birthday, whichever is later, the office of victim services shall make diligent efforts to contact the alleged sexual offense victim to notify the alleged sexual offense victim that the sexual offense evidence will be discarded in compliance with state and local health codes and that the alleged sexual offense victim's clothes and personal effects will be returned to the alleged sexual offense victim upon request.

(j) (1) Notwithstanding any other provision in this section, sexual offense evidence shall not continue to be stored where:

(i) such evidence is not privileged and law enforcement requests its release, in which case the custodian or custodians shall comply with such request; or

(ii) such evidence is privileged and either (A) the alleged sexual offense victim gives permission to release the evidence to law enforcement, upon which law enforcement must retrieve the evidence within seven days of such permission and report such evidence in the statewide electronic tracking system pursuant to subdivision eight of this section, or (B) the alleged sexual offense victim signs a statement directing the custodian or custodians to dispose of the evidence, in which case the sexual offense evidence will be discarded in compliance with state and local health codes. Where the alleged sexual offense victim is under the age of eighteen, a vulnerable elderly person, or an incompetent or physically disabled person as defined in section 260.31 of the penal law, the office of victim services shall not destroy sexual offense evidence at the direction of a parent, guardian, conservator, or other party.

(2) Where the alleged sexual offense victim is under the age of eighteen and had capacity to independently consent to a forensic rape exam, such victim may independently request the destruction of sexual offense evidence or may independently make decisions impacting the status of their kit as "reported" or "unreported" as defined in subparagraphs three and four of paragraph (g) of subdivision eight of this section.

(k) Where the alleged sexual offense victim was under the age of eighteen at the time of the alleged sexual offense, the office of victim services shall, upon the victim's eighteenth birthday, make diligent efforts to contact the alleged sexual offense victim and provide information described in section six hundred forty-one of the executive law and subparagraphs one, five, six, seven and eight of paragraph (a) of subdivision six of this section.

§ 2. Subparagraph 6 of paragraph (a) of subdivision 6 of section 2805-i of the public health law, as added by chapter 407 of the laws of 2018, is amended to read as follows:

(6) be notified between thirty and ten days prior to the transfer of a sexual offense evidence kit from the hospital to another storage facility in accordance with paragraph (h) of subdivision two of this section, the right to have a sexual offense evidence kit maintained at an appropriate storage facility for twenty years from the date of collection or until the victim's fortieth birthday, whichever is later, the right, if not previously consented to, to consent to release the evidence to law enforcement at any time during the twenty years from collection, and the right to be notified by such facility at least ninety days prior to the expiration of the twenty-year storage period in accordance with paragraph (k) of subdivision two of this section; and

§ 3. Subdivision 7 of section 2805-i of the public health law, as added by chapter 1 of the laws of 2000 and as renumbered by chapter 407 of the laws of 2018, is amended to read as follows:

~~7. [On or before November thirtieth, two thousand two, the commissioner shall make a report to the governor, the temporary president of the senate and the speaker of the assembly concerning the sexual assault forensic examiner program established under subdivision four b of this section. Such report shall include an evaluation of the efficacy of such program in obtaining useful forensic evidence in sexual offense cases and assuring quality treatment to sex offense victims. Such report shall also recommend whether this program should be expanded and shall estimate the financial cost, if any, of such expansion.]~~ (a) The division of criminal justice services and the office of victim services, in consultation with the division of state police forensic investigations center and the department, shall convene a working group to:

(1) address the creation of a coordinated tracking system for sexual offense evidence kits;

(2) assess and make recommendations related to the forensic testing of sexual offense evidence collection kits when a survivor declines to report to law enforcement; and

(3) make recommendations to strengthen existing sexual offense evidence collection and testing for all sexual offense evidence kits.

(b) The working group shall report its findings and recommendations to the governor, the temporary president of the senate, and the speaker of the assembly on or before November thirtieth, two thousand twenty-six.

§ 4. Subdivision 8 of section 2805-i of the public health law, as amended by chapter 646 of the laws of 2025, is amended to read as follows:

8. (a) The division of criminal justice services in consultation with the department, the office of victim services, the division of state police, and the New York State Coalition Against Sexual Assault shall develop a statewide electronic tracking system for reported evidence collection kits used to collect and preserve evidence of a sexual assault or other sex offense. ~~[Such statewide electronic tracking system shall not include unreported evidence collection kits, provided, howev-~~

~~er, that any unreported evidence collection kits released by the office of victim services to law enforcement pursuant to clause (A) of subparagraph (ii) of paragraph j of subdivision two of this section shall be designated as reported evidence collection kits subject to the tracking requirements set forth in this subdivision.]~~

(b) The division of criminal justice services shall promulgate rules and guidelines to ensure that sexual assault evidence collection kits are trackable on a statewide electronic tracking system developed pursuant to this subdivision, and that survivors are given notice of how they may track their own reported evidence collection kit. Such rules and guidelines shall require that (i) hospitals collecting evidence collection kits record the collection of any reported evidence collection kits in the electronic tracking system and notify the appropriate law enforcement agency within forty-eight hours of such collection, and (ii) law enforcement retrieve any reported evidence collection kit from a hospital within seven days of being notified by a hospital that a reported evidence collection kit has been collected. Any hospital, law enforcement agency, forensic laboratory, or prosecutor that has taken custody of an evidence collection kit used for a forensic medical examination shall comply with the established protocols, rules and guidelines established by the division of criminal justice services pursuant to this paragraph.

(c) The statewide electronic tracking system shall:

(1) Track the location and status of each reported evidence collection kit from collection to final disposition;

(2) Allow a hospital, law enforcement agency, accredited crime laboratory, prosecutor, employees of the long-term sexual offense evidence storage facility, or any other entity providing a chain of custody for a reported evidence collection kit, to update and track the status and location of the reported evidence collection kits; ~~and~~

(3) Allow a survivor to anonymously track or receive updates regarding the status and location of such survivor's reported evidence collection kit~~[-]; and~~

(4) Incorporate any relevant findings from the working group referenced in subdivision seven of this section.

(d) No later than ~~January~~ December first, two thousand ~~twenty-five~~ twenty-seven, any hospital, law enforcement agency, accredited crime laboratory, prosecutor, employee of the long-term sexual offense evidence storage facility, or any other entity providing a chain of custody for a reported evidence collection kit to update and track the status and location of such kit, shall participate in the tracking system and comply with all established protocols, rules and guidelines. A participating entity shall be permitted to access the entity's tracking information through the statewide electronic tracking system.

(e) Records entered into the tracking system are confidential. Records relating to a reported evidence collection kit shall be accessed only by the survivor for whom the reported evidence collection kit was completed.

(f) The provisions of this subdivision shall apply to all reported evidence collection kits submitted prior to, on, or after the effective date of this subdivision.

(g) For purposes of this section:

(1) "evidence collection kit" shall mean a human biological specimen or specimens collected by a healthcare provider during a forensic medical examination from the victim of a sexual assault or other sex offense;

(2) "survivor" shall mean an individual who is the victim of a sexual offense from whom a human biological specimen or specimens were collected by a healthcare provider during a forensic medical examination;

(3) "reported evidence collection kit" means a sexual assault evidence kit in which the survivor has consented to evidence collection and ~~[reporting the sexual assault or other sex offense to law enforcement]~~ forensic testing; and

(4) "unreported evidence collection kit" means ~~[evidence collection kits controlled by the office of victims services pursuant to paragraph (d) of subdivision two of this section]~~ a sexual offense evidence collection kit for which the survivor has not consented or has withdrawn consent to either forensic testing or reporting to law enforcement.

§ 5. This act shall take effect immediately; provided, however, that sections one and two of this act shall take effect on the five hundred forty-fifth day after it shall have become a law.

PART F

Section 1. Section 176.05 of the penal law, as amended by chapter 211 of the laws of 2011 and the closing paragraph as further amended by section 104 of part A of chapter 62 of the laws of 2011, is amended to read as follows:

§ 176.05 Insurance fraud; defined.

1. A fraudulent insurance act is committed by any person who, knowingly and with intent to defraud presents, causes to be presented, or prepares with knowledge or belief that it will be presented to or by an insurer, self insurer, or purported insurer, or purported self insurer, or any agent thereof:

~~[1-]~~ (a) any written statement as part of, or in support of, an application for the issuance of, or the rating of a commercial insurance policy, or certificate or evidence of self insurance for commercial insurance or commercial self insurance, or a claim for payment or other benefit pursuant to an insurance policy or self insurance program for commercial or personal insurance that ~~[he or she]~~ such person knows to:

~~[(a)]~~ (i) contain materially false information concerning any fact material thereto; or

~~[(b)]~~ (ii) conceal, for the purpose of misleading, information concerning any fact material thereto; or

~~[2-]~~ (b) any written statement or other physical evidence as part of, or in support of, an application for the issuance of a health insurance policy, or a policy or contract or other authorization that provides or allows coverage for, membership or enrollment in, or other services of a public or private health plan, or a claim for payment, services or other benefit pursuant to such policy, contract or plan that ~~[he or she]~~ such person knows to:

~~[(a)]~~ (i) contain materially false information concerning any material fact thereto; or

~~[(b)]~~ (ii) conceal, for the purpose of misleading, information concerning any fact material thereto.

Such policy or contract or plan or authorization shall include, but not be limited to, those issued or operating pursuant to any public or governmentally-sponsored or supported plan for health care coverage or services or those otherwise issued or operated by entities authorized pursuant to the public health law. For purposes of this subdivision an "application for the issuance of a health insurance policy" shall not

1 include (i) any application for a health insurance policy or contract
2 approved by the superintendent of financial services pursuant to the
3 provisions of sections three thousand two hundred sixteen, four thousand
4 three hundred four, four thousand three hundred twenty-one or four thou-
5 sand three hundred twenty-two of the insurance law or any other applica-
6 tion for a health insurance policy or contract approved by the super-
7 intendent of financial services in the individual or direct payment
8 market; or (ii) any application for a certificate evidencing coverage
9 under a self-insured plan or under a group contract approved by the
10 superintendent of financial services.

11 2. A person who hires, requests, encourages, orchestrates, or invites
12 another individual to stage a motor vehicle accident, as that term is
13 defined in section 176.75 of this article, commits a fraudulent insur-
14 ance act, and the person who hired, requested, encouraged, orchestrated,
15 or invited the other to stage a motor vehicle accident shall be deemed
16 to have wrongfully taken, obtained, or withheld the full amount of loss
17 to the victim or victims of the fraudulent insurance act.

18 § 2. Section 176.15 of the penal law, as amended by chapter 515 of the
19 laws of 1986, is amended to read as follows:

20 § 176.15 Insurance fraud in the fourth degree.

21 A person is guilty of insurance fraud in the fourth degree when [~~he~~]
22 such person commits a fraudulent insurance act and thereby wrongfully
23 takes, obtains or withholds, or attempts to wrongfully take, obtain or
24 withhold property [~~with a value in excess of one thousand dollars~~].

25 Insurance fraud in the fourth degree is a class E felony.

26 § 3. Section 176.20 of the penal law, as amended by chapter 515 of the
27 laws of 1986, is amended to read as follows:

28 § 176.20 Insurance fraud in the third degree.

29 A person is guilty of insurance fraud in the third degree when [~~he~~]
30 such person commits [~~a~~] one or more fraudulent insurance [~~act~~] acts and
31 thereby wrongfully takes, obtains or withholds, or attempts to wrongfull-
32 ly take, obtain or withhold property from a single insurer with a value
33 in excess of [~~three~~] one thousand dollars.

34 Insurance fraud in the third degree is a class D felony.

35 § 4. Section 176.25 of the penal law, as added by chapter 515 of the
36 laws of 1986, is amended to read as follows:

37 § 176.25 Insurance fraud in the second degree.

38 A person is guilty of insurance fraud in the second degree when [~~he~~]
39 such person commits [~~a~~] one or more fraudulent insurance [~~act~~] acts and
40 thereby wrongfully takes, obtains or withholds, or attempts to wrongfull-
41 ly take, obtain or withhold property from a single insurer with a value
42 in excess of [~~fifty~~] three thousand dollars.

43 Insurance fraud in the second degree is a class C felony.

44 § 5. Section 176.30 of the penal law, as added by chapter 515 of the
45 laws of 1986, is amended to read as follows:

46 § 176.30 Insurance fraud in the first degree.

47 A person is guilty of insurance fraud in the first degree when [~~he~~]
48 such person commits [~~a~~] one or more fraudulent insurance [~~act~~] acts and
49 thereby wrongfully takes, obtains or withholds, or attempts to wrongfull-
50 ly take, obtain or withhold property from a single insurer with a value
51 in excess of [~~one million~~] fifty thousand dollars.

52 Insurance fraud in the first degree is a class B felony.

53 § 6. Section 177.10 of the penal law, as added by chapter 442 of the
54 laws of 2006, is amended to read as follows:

55 § 177.10 Health care fraud in the fourth degree.

1 A person is guilty of health care fraud in the fourth degree when such
2 person, on one or more occasions, commits the crime of health care fraud
3 in the fifth degree and the payment or portion of the payment wrongfully
4 received, as the case may be, from a single health plan, [~~in a period of~~
5 ~~not more than one year,~~] exceeds [~~three~~] one thousand dollars in the
6 aggregate.

7 Health care fraud in the fourth degree is a class E felony.

8 § 7. Section 177.15 of the penal law, as added by chapter 442 of the
9 laws of 2006, is amended to read as follows:

10 § 177.15 Health care fraud in the third degree.

11 A person is guilty of health care fraud in the third degree when such
12 person, on one or more occasions, commits the crime of health care fraud
13 in the fifth degree and the payment or portion of the payment wrongfully
14 received, as the case may be, from a single health plan, [~~in a period of~~
15 ~~not more than one year,~~] exceeds [~~ten~~] three thousand dollars in the
16 aggregate.

17 Health care fraud in the third degree is a class D felony.

18 § 8. Section 177.20 of the penal law, as added by chapter 442 of the
19 laws of 2006, is amended to read as follows:

20 § 177.20 Health care fraud in the second degree.

21 A person is guilty of health care fraud in the second degree when such
22 person, on one or more occasions, commits the crime of health care fraud
23 in the fifth degree and the payment or portion of the payment wrongfully
24 received, as the case may be, from a single health plan, [~~in a period of~~
25 ~~not more than one year,~~] exceeds fifty thousand dollars in the aggre-
26 gate.

27 Health care fraud in the second degree is a class C felony.

28 § 9. Section 177.25 of the penal law, as added by chapter 442 of the
29 laws of 2006, is amended to read as follows:

30 § 177.25 Health care fraud in the first degree.

31 A person is guilty of health care fraud in the first degree when such
32 person, on one or more occasions, commits the crime of health care fraud
33 in the fifth degree and the payment or portion of the payment wrongfully
34 received, as the case may be, from a single health plan, [~~in a period of~~
35 ~~not more than one year,~~] exceeds one [~~million~~] hundred thousand dollars
36 in the aggregate.

37 Health care fraud in the first degree is a class B felony.

38 § 10. This act shall take effect immediately.

39 PART G

40 Section 1. Section 846-l of the executive law, as added by chapter 170
41 of the laws of 1994, subdivision 2 as amended by section 3, paragraph
42 (e) of subdivision 3 as amended by section 4, paragraph (h) of subdivi-
43 sion 3 as amended by section 5 of part T of chapter 57 of the laws of
44 2000, and paragraphs (e) and (g) of subdivision 3 as further amended by
45 section 104 of part A of chapter 62 of the laws of 2011, is amended to
46 read as follows:

47 § 846-l. New York motor vehicle theft and insurance fraud prevention
48 board. 1. There is hereby created in the division of criminal justice
49 services the New York motor vehicle theft and insurance fraud prevention
50 board (hereinafter "board"), which shall consist of the following
51 members:

52 (a) The commissioner of criminal justice services (hereinafter
53 "commissioner"), or [~~his~~] their designee, who shall serve as the voting
54 chairperson of the board;

(b) The commissioner of the department of motor vehicles, or their designee;

(c) The chief judge of the court of appeals, or their designee;

(d) The superintendent of the state police, or their designee;

(e) Three [~~voting~~] members appointed by the governor on the recommendation of the speaker of the assembly provided, however, that no more than two such appointments made pursuant to this paragraph shall be from the same category of members as provided for in subdivision two of this section.

~~[(c)]~~ (f) Three [~~voting~~] members appointed by the governor on the recommendation of the temporary president of the senate provided, however, that no more than two such appointments made pursuant to this paragraph shall be from the same category of members as provided for in subdivision two of this section; and

~~[(d)]~~ (g) Five [~~voting~~] members appointed by the governor provided, however, that no more than two such appointments made pursuant to this paragraph shall be from the same category of members as provided for in subdivision two of this section.

2. The members of the board appointed on the recommendation of the speaker of the assembly and the temporary president of the senate, and the members of the board appointed by the governor pursuant to paragraph ~~[(d)]~~ (g) of subdivision one of this section, shall be representative of consumers of motor vehicle insurance, motor vehicle insurance companies, law enforcement agencies and the judicial system. The appointments shall be made not later than one hundred eighty days after the date on which this section shall have become law. ~~[Members of the board who are not public officials shall serve for a term of four years.]~~ Members of the board shall serve without compensation, except that members of the board who are not public officials shall be entitled to receive reasonable reimbursement for expenses incurred by them in performance of their duties as members of the board. ~~[A majority of the members of the board shall constitute a quorum for the transaction of business at a meeting. Action may be taken by the board at a meeting upon a vote of the majority of its members present. Every member of the board shall be entitled to designate a representative to attend, in his or her place, a meeting of the board and to vote or otherwise act in his or her behalf, provided, however, that a member may not designate such a representative more than once each year. Written notice of such designation shall be furnished to the board by the designating member prior to any meeting attended by his or her representative. Any such representative shall serve at the pleasure of the designating member. No such representative shall be authorized to delegate any of his or her duties or functions to any other person.]~~ The board shall meet at ~~[least four times each year, and at other times at]~~ the call of the chairperson ~~[or upon the written request of two-thirds of the members of the board]~~ and may establish its own rules and procedures concerning the conduct of its meetings and other affairs not inconsistent with law.

3. The board shall make recommendations for improving the quality and effectiveness of the program.

4. The commissioner or their designee shall~~[, pursuant to the recommendation of the board,]~~ have the power and duty to:

(a) Make, execute, and deliver contracts, conveyances, and other instruments necessary to effect the purposes and objectives of the program;

(b) Accept any grant, including federal grants, or any other contributions for the purposes of the program. Any moneys so received shall be

1 expended by the commissioner for the program's purposes, pursuant to
2 appropriation and subject to the applicable provisions of the state
3 finance law;

4 (c) Make grants pursuant to a request for proposals process;

5 (d) Appoint such employees and agents as the commissioner may deem
6 necessary, fix their compensation within the limitations provided by
7 law, and prescribe their duties;

8 (e) Request from the division of state police, from county or municipi-
9 pal police departments and agencies, from the department of financial
10 services, from the department of motor vehicles, from the office of
11 court administration, from any other state department or agency or
12 public authority, or from any insurer which offers motor vehicle insur-
13 ance such assistance and data as are useful for the purposes and objec-
14 tives of the program;

15 (f) Cooperate with and assist political subdivisions of the state in
16 the development of local programs to prevent motor vehicle theft and
17 insurance fraud;

18 (g) Advise and assist the superintendent of financial services pursu-
19 ant to section two thousand three hundred forty-eight of the insurance
20 law; and

21 (h) Submit, no later than ~~February~~ September fifteenth of each year
22 to the governor and the chairperson of the senate finance committee and
23 the chairperson of the assembly ways and means committee, a ~~written~~
24 report on the board's activities, the activities of grant recipients,
25 the results achieved by the grant recipients in improving the detection,
26 prevention or reduction of motor vehicle theft and insurance fraud and
27 the impact such efforts may have on motor vehicle insurance rates.

28 (i) Nothing shall prohibit the commissioner from exercising any powers
29 provided in this article should the board fail to make any recommenda-
30 tions.

31 § 2. Subdivision 1 of section 846-m of the executive law, as amended
32 by section 6 of part T of chapter 57 of the laws of 2000, is amended to
33 read as follows:

34 1. In accordance with the legislative intent of this article, the
35 ~~[board shall develop and recommend to the]~~ commissioner shall develop a
36 plan of operation which shall provide for a coordinated approach to
37 curtailing motor vehicle theft and motor vehicle insurance fraud
38 throughout the state. The plan shall provide an integrated means to
39 detect, prevent, deter and reduce motor vehicle theft and motor vehicle
40 insurance fraud by providing funds, ~~[upon the recommendation of the~~
41 ~~board and]~~ approved by the commissioner, to meet these objectives. The
42 plan of operation ~~shall~~ may include but not be limited to: an assess-
43 ment of the scope of the problem of motor vehicle theft and motor vehi-
44 cle insurance fraud, including a regional analysis of the incidence of
45 motor vehicle theft and motor vehicle insurance fraud and related activ-
46 ities; an analysis of various methods of combating the problem; and the
47 development of a request for proposals process, consistent with the
48 plan, for applications from provider agencies to receive grants from the
49 fund.

50 § 3. Paragraphs (c) and (d) of subdivision 2 of section 846-m of the
51 executive law, paragraph (c) as amended by section 6 of part T of chap-
52 ter 57 of the laws of 2000 and paragraph (d) as amended by section 9 of
53 part T of chapter 56 of the laws of 2009, are amended to read as
54 follows:

55 (c) In allocating the moneys for the program, the commissioner~~[,~~ ~~upon~~
56 ~~recommendation of the board,~~ shall, to the greatest extent possible,

1 take into account the geographic incidence of motor vehicle theft and
2 insurance fraud, whereby localities with the greatest incidence of motor
3 vehicle theft and insurance fraud shall be targeted for the purposes of
4 this program.

5 (d) The state comptroller [~~shall~~] may conduct an audit of all moneys
6 received and expended by the fund as well as all other funds expended
7 from any other source for the purposes of this program, and shall submit
8 a written report detailing such audit to the governor and legislature on
9 or before [~~March~~] September first of each year.

10 § 4. Subdivision 4 of section 89-d of the state finance law, as
11 amended by chapter 170 of the laws of 1994, is amended to read as
12 follows:

13 4. The moneys received by such fund shall be expended pursuant to
14 appropriation only to fund provider agencies which have been awarded
15 grants by the [~~motor vehicle theft and insurance fraud prevention board~~
16 ~~established~~] commissioner of the division of criminal justice services
17 pursuant to section eight hundred forty-six-l of the executive law. All
18 moneys expended pursuant to this subdivision shall be for the reimburse-
19 ment of costs incurred by provider agencies.

20 § 5. This act shall take effect immediately.

21 PART H

22 Section 1. Subdivision 4 of section 530.12 of the criminal procedure
23 law, as amended by chapter 589 of the laws of 1997, is amended to read
24 as follows:

25 4. The court may issue or extend a temporary order of protection ex
26 parte or on notice simultaneously with the issuance of a warrant for the
27 arrest of defendant. Such temporary order of protection [~~may~~] shall
28 continue in effect until the day the defendant subsequently appears in
29 court pursuant to such warrant or voluntarily or otherwise, and the
30 court shall so inform the defendant when issuing the order of
31 protection.

32 § 2. Subdivision 3 of section 530.13 of the criminal procedure law, as
33 amended by chapter 589 of the laws of 1997, is amended to read as
34 follows:

35 3. The court may issue or extend a temporary order of protection under
36 this section ex parte simultaneously with the issuance of a warrant for
37 the arrest of the defendant. Such temporary order of protection [~~may~~]
38 shall continue in effect until the day the defendant subsequently
39 appears in court pursuant to such warrant or voluntarily or otherwise,
40 and the court shall so inform the defendant when issuing the order of
41 protection.

42 § 3. Subdivision 3 of section 828 of the family court act, as amended
43 by chapter 530 of the laws of 1980, is amended to read as follows:

44 3. The court may issue or extend a temporary order of protection ex
45 parte or on notice simultaneously with the issuance of a warrant,
46 directing that the respondent be arrested and brought before the court,
47 pursuant to section eight hundred twenty-seven of this article. When
48 the respondent first appears in court, the court shall inform the
49 respondent that such temporary order of protection shall continue in
50 effect until the respondent subsequently appears in court.

51 § 4. This act shall take effect on the ninetieth day after it shall
52 have become a law.

53 PART I

Section 1. Paragraph (a) of subdivision 8 of section 190.30 of the criminal procedure law, as added by chapter 279 of the laws of 2008, is amended to read as follows:

(a) A business record as defined in rule forty-five hundred eighteen of the civil practice law and rules generated by a business entity may be received in such grand jury proceedings as evidence ~~[of the following facts and similar facts stated therein:~~

~~(i) a person's use of, subscription to and charges and payments for communication equipment and services including but not limited to equipment or services provided by telephone companies and internet service providers, but not including recorded conversations or images communicated thereby; and~~

~~(ii) financial transactions, and a person's ownership or possessory interest in any account, at a bank, insurance company, brokerage, exchange or banking organization as defined in section two of the banking law].~~

§ 2. Paragraph (c) of subdivision 8 of section 190.30 of the criminal procedure law, as added by chapter 279 of the laws of 2008, is amended to read as follows:

(c) Any business record offered to a grand jury pursuant to paragraph (a) of this subdivision that includes material ~~[beyond that described in such paragraph (a)]~~ outside the scope of the business record as regularly generated shall be redacted to exclude such additional material, or received subject to a limiting instruction that the grand jury shall not consider such additional material in support of any criminal charge.

§ 3. Subparagraph (ii) of paragraph (b) of subdivision 1 of section 190.32 of the criminal procedure law, as amended by chapter 320 of the laws of 2006, is amended and a new subparagraph (iii) is added to read as follows:

(ii) More than twelve years old and who is likely to suffer very severe emotional or mental stress if required to testify in person concerning any crime defined in article one hundred thirty or two hundred sixty or section 255.25, 255.26 or 255.27 of the penal law to which the person was a witness or of which the person was a victim~~[-];~~
or

(iii) A witness, other than any witness who has waived immunity pursuant to section 190.40 of this article, including a defendant, located more than one hundred miles from the grand jury proceeding.

§ 4. Subdivision 5 of section 190.32 of the criminal procedure law is amended by adding a new paragraph (h) to read as follows:

(h) When a witness is designated a special witness pursuant to subparagraph (iii) of paragraph (b) of subdivision one of this section, the testimony of that witness shall be taken using remote videoconferencing technology with the prosecutor conducting the questioning in the presence of the grand jury. The witness must swear or affirm (i) the witness is not using notes or other material and (ii) that no other persons are present except the witness. If a translator is necessary, the translator shall translate from the grand jury room as if the witness was physically present. The technology used pursuant to this section shall seek to ensure that the communication be reasonably secure from interception or eavesdropping by anyone other than the persons communicating, and must ensure that the witness may be clearly heard, seen, and examined, and that the witness can, at a minimum, clearly hear the prosecutor.

§ 5. This act shall take effect immediately.

1 Section 1. Subdivision 1 of section 29-b of the executive law, as
2 amended by section 7 of part B of chapter 56 of the laws of 2010, is
3 amended to read as follows:

4 1. State use of disaster emergency response personnel and non-state
5 resource providers. a. The governor may, in [~~his or her~~] their
6 discretion, direct the state disaster preparedness commission to conduct
7 an emergency exercise or drill, under its direction, in which all or any
8 of the personnel and resources of the agencies of the commission of the
9 state may be utilized to perform the duties assigned to them in a disaster,
10 for the purpose of protecting and preserving human life or property
11 in a disaster. During a disaster or such drill or exercise, disaster
12 emergency response personnel in the state shall operate under the direction
13 and command of the chair of such commission, and shall possess the
14 same powers, duties, rights, privileges and immunities as are applicable
15 in a civil defense drill held at the direction of the state civil
16 defense commission under the provisions of the New York state defense
17 emergency act.

18 b. The governor may deploy non-state resource providers to another
19 compact member jurisdiction under any compact in this article. When
20 authorized to provide assistance and deployed by the legally designated
21 state official or officials, non-state resource providers shall be
22 deemed agents of the state for purposes of the deployment and shall be
23 entitled to the rights and benefits provided to state resource providers
24 by the compact, subject to any terms and conditions of the requesting
25 state. Non-state resource providers shall not offer assistance to, or
26 request assistance from, another compact member jurisdiction. The division
27 of homeland security and emergency services shall serve as the
28 coordinator for offers and requests for assistance and facilitator of
29 the reimbursement of non-state resource providers by the requesting
30 state. The division of homeland security and emergency services shall
31 not be responsible for reimbursement until the division receives payment
32 from the requesting compact member jurisdiction.

33 § 2. The executive law is amended by adding a new section 29-k to read
34 as follows:

35 § 29-k. Northern emergency management assistance compact. Notwith-
36 standing any other law, the state, through the governor, may enter the
37 northern emergency management assistance compact (P.L. 112-282, ratified
38 by Congress on January fourteenth, two thousand thirteen). Such compact
39 shall be deemed ratified by the legislature upon the governor's certification
40 to the temporary president of the senate, the speaker of the
41 assembly, and the secretary of state, that New York has entered into the
42 compact.

43 § 3. The executive law is amended by adding a new section 29-l to read
44 as follows:

45 § 29-l. International Emergency Management Assistance Compact.
46 Notwithstanding any other law, the state, through the governor, may
47 enter the compact established by the emergency management assistance
48 memorandum of understanding (executed on July eighteenth, two thousand
49 by the states of Connecticut, Maine, Massachusetts, New Hampshire, Rhode
50 Island, and Vermont and the Canadian provinces of New Brunswick,
51 Newfoundland, Nova Scotia, Prince Edward Island, and Quebec) at the
52 twenty-fifth conference of New England Governors and Eastern Canadian
53 Premiers, as authorized by Article II(j) of the Agreement between the
54 Government of the United States and the Government of Canada on Cooper-
55 ation in Comprehensive Emergency Planning and Management renewed on
56 December second, nineteen ninety-eight. Such compact shall be deemed

ratified by the legislature upon the governor's certification to the temporary president of the senate, the speaker of the assembly, and the secretary of state, that New York has entered into the compact.

§ 4. This act shall take effect immediately.

PART K

Section 1. The section heading, subdivision 1 and subdivision 3 of section 240.70 of the penal law, as added by chapter 635 of the laws of 1999, are amended to read as follows:

Criminal interference with health care services or access to a place of religious worship in the second degree.

1. A person is guilty of criminal interference with health services or access to a place of religious worship in the second degree when:

(a) by force or threat of force or by physical obstruction, ~~[he or she]~~ such person intentionally injures, intimidates or interferes with, or attempts to injure, intimidate or interfere with, another person because such other person was or is obtaining or providing reproductive health services; or

(b) by force or threat of force or by physical obstruction, ~~[he or she]~~ such person intentionally injures, intimidates or interferes with, or attempts to injure, intimidate or interfere with, another person in order to discourage such other person or any other person or persons from obtaining or providing reproductive health services; or

(c) by force or threat of force or by physical obstruction, ~~[he or she]~~ such person intentionally injures, intimidates or interferes with, or attempts to injure, intimidate or interfere with, another person ~~[because]~~ when such person ~~[was or is seeking to exercise the right of religious freedom at]~~ seeks to enter or exit a place of religious worship, or to exercise the right of religious freedom therein; or

(d) ~~[he or she]~~ such person intentionally damages the property of a health care facility, or attempts to do so, because such facility provides reproductive health services, or intentionally damages the property of a place of religious worship~~[-]~~; or

(e) with intent to alarm and annoy anyone who seeks to enter, exit, work inside of, or use the services of either a reproductive health care clinic or a house of worship, such person demonstrates or prepares to demonstrate within twenty-five feet of distance from such facility, including its parking lot, parking lot entrances, driveway and driveway entrances of such facilities.

3. For purposes of this section:

(a) the term "health care facility" means a hospital, clinic, physician's office or other facility that provides reproductive health services, and includes the building or structure in which the facility is located and shall include the drive, entrance, entryway, or exit and any public way or sidewalk that touches such building or structure;

(b) the term "interferes with" means to restrict a person's freedom of movement;

(c) the term "intimidates" means to place a person in reasonable apprehension of physical injury to ~~[himself or herself]~~ themselves or to another person;

(d) the term "physical obstruction" means rendering impassable ingress to or egress from a facility that provides reproductive health services or to or from a place of religious worship, or rendering passage to or from such a facility or place of religious worship unreasonably difficult or hazardous; ~~[and]~~

(e) the term "reproductive health services" means health care services provided in a hospital, clinic, physician's office or other facility and includes medical, surgical, counseling or referral services relating to the human reproductive system, including services relating to pregnancy or the termination of a pregnancy~~[-]; and~~

(f) the term "place of religious worship" shall mean any building or structure that a reasonable person would know that religious adherents collectively recognize as a place to regularly gather for or to hold religious worship activities or provide religious education or instruction. A "place of religious worship" shall include any drive, entryway, or exit and any public way or sidewalk that touches such building or structure.

§ 2. Section 240.71 of the penal law, as amended by chapter 493 of the laws of 2009, is amended to read as follows:

§ 240.71 Criminal interference with health care services or access to a place of religious worship in the first degree.

A person is guilty of criminal interference with health care services or access to a place of religious worship in the first degree when [~~he or she~~]:

1. Such person commits the crime of criminal interference with health care services or access to a place of religious worship in the second degree and has been previously convicted of the crime of criminal interference with health care services or access to a place of religious worship in the first or second degree or aggravated interference with health care services in the first or second degree~~[-]; or~~

2. With intent to alarm and annoy anyone who seeks to enter, exit, work inside of, or use the services of a reproductive health care facility or place of religious worship, such person demonstrates or prepares to demonstrate either: (a) inside of a reproductive health care facility or place of religious worship; or (b) with at least one other person, outside of a reproductive health care facility or place of religious worship within twenty-five feet of distance from such facility, including its parking lot, parking lot entrances, driveway and driveway entrances of such facilities.

Criminal interference with health care services or access to a place of religious worship in the first degree is a class E felony.

§ 3. Section 240.72 of the penal law, as added by chapter 493 of the laws of 2009, is amended to read as follows:

§ 240.72 Aggravated interference with health care services or access to a place of religious worship in the second degree.

A person is guilty of the crime of aggravated interference with health care services or access to a place of religious worship in the second degree when [~~he or she~~] such person commits the crime of criminal interference with health care services or access to a place of religious worship in violation of [~~paragraph (a) of~~] subdivision one of section 240.70 of this article and thereby causes physical injury to such other person who was obtaining or providing, or was assisting another person to obtain or provide reproductive health services, or to a person who was entering, exiting, seeking to enter or exit, or inside of a place of religious worship.

Aggravated interference with health care services or access to a place of religious worship in the second degree is a class E felony.

§ 4. Section 240.73 of the penal law, as added by chapter 493 of the laws of 2009, is amended to read as follows:

§ 240.73 Aggravated interference with health care services or access to a place of religious worship in the first degree.

1 A person is guilty of the crime of aggravated interference with health
2 care services or access to a place of religious worship in the first
3 degree when ~~[he or she]~~ such person commits the crime of criminal inter-
4 ference with health care services or access to a place of religious
5 worship in violation of ~~[paragraph (a) of]~~ subdivision one of section
6 240.70 of this article and thereby causes serious physical injury to
7 such other person who was obtaining or providing, or who was assisting
8 another person to obtain or provide reproductive health services, or to
9 a person who was entering, exiting, seeking to enter or exit, or inside
10 of a place of religious worship.

11 Aggravated interference with health care services or access to a place
12 of religious worship in the first degree is a class C felony.

13 § 5. This act shall take effect on the sixtieth day after it shall
14 have become a law.

15 PART L

16 Section 1. This act shall be known and may be cited as the "sensitive
17 location protection act".

18 § 2. The civil rights law is amended by adding a new section 29 to
19 read as follows:

20 § 29. Sensitive locations. 1. Definitions. For purposes of this
21 section, the following terms shall have the following meanings:

22 (a) "Sensitive location" shall mean:

23 (i) a public school, non-public school, or any state-operated or
24 state-supported schools;

25 (ii) an institution of higher education;

26 (iii) the location of any program licensed, regulated, certified,
27 funded, or approved by the office of children and family services that
28 provides services to children, youth, or young adults, any legally
29 exempt childcare provider, a childcare program for which a permit to
30 operate such program has been issued by the New York city department of
31 health and mental hygiene pursuant to the health code of the city of New
32 York, nursery schools, preschools, and summer camps;

33 (iv) a health care facility, including a doctor's office, hospital, or
34 any location providing health or behavioral health services; or

35 (v) a house of worship, which shall mean any building or structure
36 that a reasonable person would know that religious adherents collective-
37 ly recognize as a place to regularly gather for or to hold religious
38 worship activities or provide religious education or instruction, such
39 as a church, synagogue, temple, or mosque.

40 (b) "Civil immigration enforcement" shall mean any immigration
41 enforcement actions other than enforcement of federal criminal law.

42 (c) "Deny access" shall mean declining to grant permission to enter
43 and declining to facilitate the entry of an individual to a sensitive
44 location.

45 2. Sensitive locations for civil immigration enforcement. (a) A sensi-
46 tive location that is owned or operated by a state or local governmental
47 entity or public authority, or a unit of the executive branch of the
48 state or of a local government in New York state that operates at a
49 sensitive location, shall deny access to any portion of the sensitive
50 location that is not accessible to the general public to any individual
51 seeking access for the purposes of civil immigration enforcement unless
52 the individual presents a valid warrant issued by a federal court estab-
53 lished under article III of the United States constitution or a judicial
54 order by a federal court established under article III of the United

1 States constitution authorizing them to take into custody the person who
2 is the subject of such warrant.

3 (b) A sensitive location that is privately owned or operated is
4 empowered to adopt policies and/or procedures, to the maximum extent
5 allowable under law, to deny access to any portion of the sensitive
6 location that is not accessible to the general public to any individual
7 seeking access for the purposes of civil immigration enforcement. Any
8 such policy or procedure shall not overcome any circumstance in which
9 the individual seeking access for the purposes of civil immigration
10 enforcement presents a valid warrant issued by a federal court estab-
11 lished under article III of the United States constitution or a judicial
12 order by a federal court established under article III of the United
13 States constitution authorizing them to take into custody the person who
14 is the subject of such warrant.

15 (c) A sensitive location that is privately owned or operated shall not
16 be liable under state law if it adopts any policy or practice of deny-
17 ing, or chooses to deny, access to any portion of a sensitive location
18 that is not accessible to the general public to any individual seeking
19 access for the purposes of civil immigration enforcement without
20 presenting a valid warrant issued by a federal court established under
21 article III of the United States constitution or a judicial order by a
22 federal court established under article III of the United States consti-
23 tution authorizing them to take into custody the person who is the
24 subject of such warrant.

25 3. Enforcement. The attorney general, an individual, or the owner or
26 operator of the sensitive location, including a local or state govern-
27 mental entity that operates out of a sensitive location, may apply for
28 an order to the supreme court of the state of New York to obtain appro-
29 priate equitable and declaratory relief with respect to any violation of
30 this section.

31 § 3. Severability. If any clause, sentence, paragraph, subdivision,
32 section or part of this act shall be adjudged by any court of competent
33 jurisdiction to be invalid, such judgment shall not affect, impair, or
34 invalidate the remainder thereof, but shall be confined in its operation
35 to the clause, sentence, paragraph, subdivision, section or part thereof
36 directly involved in the controversy in which such judgment shall have
37 been rendered. It is hereby declared to be the intent of the legislature
38 that this act would have been enacted even if such invalid provisions
39 had not been included herein.

40 § 4. This act shall take effect immediately.

41 PART M

42 Section 1. Short title. This act shall be known and may be cited as
43 the "New York state Bivens act".

44 § 2. The civil rights law is amended by adding a new article 8-A to
45 read as follows:

46 ARTICLE 8-A

47 NEW YORK STATE BIVENS ACT

48 Section 85. Legislative Intent.

49 86. Action for deprivation of constitutional rights by federal
50 officials acting under color of law.

51 87. Applicability to state and local officials.

52 88. Rule of construction.

53 89. Severability.

1 § 85. Legislative intent. 1. The people of the state of New York must
2 be guaranteed meaningful remedies, including but not limited to those
3 provided through the courts, when their constitutional rights are
4 violated by federal officials. Recent United States Supreme Court deci-
5 sions have curtailed the availability of such remedies against federal
6 officials under Bivens v. Six Unknown Named Agents, 408 U.S. 388 (1971).
7 The Supreme Court has repeatedly declined to extend damages actions to
8 new contexts and thereby left many victims of constitutional violations
9 without recourse.

10 2. a. Federal civil rights law, 42 U.S.C. § 1983, provides a private
11 right of action to recover damages and seek injunctive relief against
12 state and/or local officials when they violate an individual's constitu-
13 tional right while acting under color of law subject to available
14 defenses including qualified immunity. With respect to federal officers,
15 the Federal Tort Claims Act (FTCA), as amended by the Westfall Act,
16 provides the exclusive avenue for many common law damages actions
17 against federal officers acting within the scope of their employment.
18 The Westfall Act explicitly carves out from the FTCA's exclusive purview
19 "a civil action against an employee of the government which is brought
20 for a violation of the constitution of the United States." 28 U.S.C. §
21 2679(b)(2)(a). The plain text of this provision contains no limitation
22 on the scope of constitutional violations carved out from the FTCA's
23 exclusive purview, recognizing the well-established principle that
24 government agents act outside of the scope of their offices when they
25 violate the constitution.

26 b. While New Yorkers can seek remedies against state and local offi-
27 cial for constitutional violations, there remains a significant remedi-
28 al void for New Yorkers injured by unconstitutional conduct by federal
29 officials. Therefore, the legislature finds it necessary to provide an
30 avenue for claims for damages against any federal official, who, acting
31 under color of any law, statute, ordinance, regulation, custom, or
32 usage, deprives a person of rights secured by the United States Consti-
33 tution. The legislature intends for this statute to fall squarely with-
34 in the provision of the Westfall Act that carves out FTCA claims against
35 federal officials for violations of constitutional rights.

36 c. This article does not, nor is intended to, usurp federal authority,
37 nor does it discriminate against federal officials. This statute under-
38 scores the supremacy of the federal constitution by ensuring that its
39 guarantees remain enforceable for all New Yorkers against all persons
40 acting under color of any law. From the founding era through the nine-
41 teenth century, courts regularly adjudicated state lawsuits against
42 federal officers who exceeded lawful authority. Nothing in the constitu-
43 tion, federal statutes, or United States Supreme Court precedent fore-
44 closes such actions today. The legislature thus finds that New York
45 state may properly act to safeguard its residents' constitutional
46 rights.

47 3. The intent of this statute is to restore a meaningful avenue of
48 accountability consistent with federal supremacy, sovereignty, and the
49 long-standing principle that rights must be paired with remedies, as
50 such remedies already exist for unconstitutional actions taken by state
51 and local officials.

52 4. Accordingly, it is the intent of the legislature that this article
53 should be construed to provide parity between federal officials and
54 state and local officials such that claims brought under this article
55 against federal officials shall be subject to the exact same legal stan-

dards, legal defenses, and immunities that are provided to state and local officials for causes of actions brought under 42 U.S.C. § 1983.

§ 86. Action for deprivation of constitutional rights by federal officials acting under color of law. 1. Any federal official who, under color of any law, statute, ordinance, regulation, custom, or usage, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the constitution of the United States, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress.

2. A defendant in an action under this section may assert any immunity defense to the same extent as a defendant may raise in response to a claim brought under 42 U.S.C. § 1983.

3. In any action brought under this section, the court may award:

a. Compensatory damages, including damages for emotional distress, pain and suffering, and other non-economic damages;

b. Punitive damages where the violation is found to be malicious, wanton, willful, or in reckless disregard of the plaintiff's rights;

c. Injunctive and declaratory relief;

d. Reasonable attorneys' fees and costs to a prevailing plaintiff; and

e. Expert fees as part of the reasonable attorneys' fees.

§ 87. Applicability to state and local officials. In the event that 42 U.S.C. § 1983 is repealed or amended such that it removes or otherwise further limits liability against state and/or local officials for constitutional violations, this article shall automatically apply to state and local officials in the same manner in which it applies to federal officials.

§ 88. Rule of construction. This article shall be construed so that any legal standard, including a standard relating to liability, defense, or immunity, that is applicable in a case brought against a state or local official under 42 U.S.C. 1983 applies in a like action brought against a federal official under this article.

§ 89. Severability. If any clause, sentence, paragraph, section or part of this act shall be adjudged by any court of competent jurisdiction to be invalid and after exhaustion of all further judicial review, the judgment shall not affect, impair or invalidate the remainder thereof, but shall be confined in its operation to the clause, sentence, paragraph, section or part of this act directly involved in the controversy in which the judgment shall have been rendered.

§ 3. This act shall take effect immediately.

PART N

Section 1. Section 5 of chapter 396 of the laws of 2010 amending the alcoholic beverage control law relating to liquidator's permits and temporary retail permits, as amended by section 1 of part Q of chapter 55 of the laws of 2025, is amended to read as follows:

§ 5. This act shall take effect on the sixtieth day after it shall have become a law, provided that paragraph (b) of subdivision 1 of section 97-a of the alcoholic beverage control law as added by section two of this act shall expire and be deemed repealed October 12, ~~2026~~ 2027.

§ 2. This act shall take effect immediately.

PART O

1 Section 1. This act enacts into law components of legislation relating
2 to alcoholic beverage control licenses. Each component is wholly
3 contained within a Subpart identified as Subparts A through K. The
4 effective date for each particular provision contained within such
5 Subpart is set forth in the last section of such Subpart. Any provision
6 in any section contained within a Subpart, including the effective date
7 of the Subpart, which makes a reference to a section "of this act", when
8 used in connection with that particular component, shall be deemed to
9 mean and refer to the corresponding section of the Subpart in which it
10 is found. Section three of this part sets forth the general effective
11 date of this act.

12 SUBPART A

13 Section 1. Subdivision 6 of section 97-a of the alcoholic beverage
14 control law, as added by chapter 396 of the laws of 2010, is amended to
15 read as follows:

16 6. The holder of a temporary retail permit shall ~~[purchase alcoholic~~
17 ~~beverages only by payment in currency or check for such alcoholic beverages~~
18 ~~on or before the day such alcoholic beverages are delivered,~~
19 ~~provided, however, that the holder of a temporary permit issued pursuant~~
20 ~~to this section who also holds one or more retail licenses and is oper-~~
21 ~~ating under such retail license or licenses in addition to the temporary~~
22 ~~retail permit, and who is not delinquent under the provisions of section~~
23 ~~one hundred one-aa of this chapter as to any retail license under which~~
24 ~~he operates, may purchase alcoholic beverages on credit under the tempo-~~
25 ~~rary permit]~~ be subject to sections one hundred one-aa and one hundred
26 one-aaa of this chapter.

27 § 2. This act shall take effect immediately.

28 SUBPART B

29 Section 1. Paragraph (c) of subdivision 5 of section 107-a of the
30 alcoholic beverage control law, as added by chapter 354 of the laws of
31 2013, is amended to read as follows:

32 (c) No brand or trade name label, or any separate label on the front
33 or back of the container shall contain:

34 (i) any statement that is false or untrue in any particular manner;

35 (ii) any statement that is disparaging of a competitor's product;

36 (iii) any statement, design, device or representation that is likely
37 to mislead the consumer; ~~[or]~~

38 (iv) any statement or claim of health benefits to be derived from
39 consumption by the consumer~~[-]; or~~

40 (v) any statement, design, device, or representation that in the opin-
41 ion of the authority is intended to appeal to children and/or persons
42 under twenty-one years of age.

43 § 2. This act shall take effect immediately.

44 SUBPART C

45 Section 1. Section 57-a of the alcoholic beverage control law, as
46 amended by chapter 523 of the laws of 2023, is amended to read as
47 follows:

48 § 57-a. Change in duration of licenses. The liquor authority is
49 authorized to change the periods during which the licenses authorized by
50 sections fifty-one, fifty-one-a, fifty-three, fifty-three-a, fifty-four,

1 fifty-four-a, fifty-five and fifty-five-a of this article shall be
2 effective and to establish the commencement dates, duration and expira-
3 tion dates thereof, provided that no such license shall be effective for
4 a period in excess of three years. When any change or changes are made
5 in the duration of any such license, the license fee shall be equal to
6 the annual license fee specified in this article multiplied by the
7 number of years for which such license is issued. The liquor authority
8 may make such rules as shall be appropriate to carry out the purpose of
9 this section.

10 § 2. This act shall take effect immediately.

11 SUBPART D

12 Section 1. Paragraph (a) of subdivision 2 of section 101-b of the
13 alcoholic beverage control law, as amended by chapter 669 of the laws of
14 1989, is amended to read as follows:

15 (a) to discriminate, directly or indirectly, in price, in discounts
16 for time of payment or in discounts on quantity of merchandise sold,
17 between one wholesaler and another wholesaler, or between one retailer
18 and another retailer purchasing liquor or wine bearing the same brand or
19 trade name and of like age and quality, except that manufacturers and
20 wholesalers may utilize "channel pricing" by filing different prices
21 and/or quantity discounts for on-premises retailers and off-premises
22 retailers;

23 § 2. Section 101-b of the alcoholic beverage control law is amended by
24 adding a new subdivision 1-a to read as follows:

25 1-a. "Channel pricing" is allowed for manufacturers and wholesalers
26 when determining prices for sales of the same liquor and/or wine to
27 retailers in different channels. For purposes of this section, manufac-
28 turers and wholesalers can utilize different prices for retail licensees
29 who hold:

30 (a) an on-premises retail license issued pursuant to sections sixty-
31 four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d, sixty-
32 four-e, sixty-four-f or eighty-one of this chapter; or

33 (b) an off-premises retail license issued pursuant to sections sixty-
34 three or seventy-nine of this chapter.

35 § 3. Subdivision 7-a of section 3 of the alcoholic beverage control
36 law is amended by adding a new paragraph (c) to read as follows:

37 (c) "Channel pricing" shall mean the sale of liquor or wine at differ-
38 ent prices based solely upon whether the retail licensee holds:

39 (i) an on-premises retail license; or

40 (ii) an off-premises retail license. If a manufacturer or wholesaler
41 employs channel pricing, such pricing and quantity discounts shall be
42 made equally available to all similarly situated on-premises and off-
43 premises retail licensees within the same calendar month. Retailers who
44 own multiple licensed premises must continue to ensure that all alcohol-
45 ic beverage purchases are made individually by each retail licensed
46 premises except for retail-to-retail purchases made pursuant to subdivi-
47 sion two-b of section one hundred six of this chapter, or centralized
48 bookkeeping authorized purchases pursuant to subdivision twelve of
49 section one hundred six of this chapter.

50 § 4. Paragraph (b) of subdivision 3 of paragraph 101-b of the alcohol-
51 ic beverage control law, as amended by section 1 of part E of chapter 56
52 of the laws of 2006, is amended to read as follows:

53 (b) No brand of liquor or wine shall be sold to or purchased by a
54 retailer unless a schedule, as provided by this section, is transmitted

1 to and received by the liquor authority, and is then in effect. Such
2 schedule shall be transmitted to the authority in such form, manner,
3 medium and format as the authority may direct; shall be deemed duly
4 verified by the person submitting such schedule upon its transmission to
5 the authority; and shall contain, with respect to each item, the exact
6 brand or trade name, capacity of package, nature of contents, age and
7 proof where stated on the label, the number of bottles contained in each
8 case, the bottle and case price to retailers, the net bottle and case
9 price paid by the seller, which prices, in each instance, shall be indi-
10 vidual for each item and not in "combination" with any other item, the
11 discounts for quantity, if any, and the discounts for time of payment,
12 if any, except that mix and match quantity discounts may be price posted
13 to liquor and/or wine to retailers for multiple fanciful names, varie-
14 tals, vintages, years, and/or ages of liquor and/or wine manufactured by
15 the same manufacturer and featuring the same brand name on the front
16 label and are posted at the same front line case or bottle price, enabl-
17 ing retailers to choose from multiple cases or bottles of said multiple
18 fanciful names, varietals, vintages, years, and/or ages of liquor and/or
19 wine featuring the same brand name on the front label to add up to a
20 combined quantity discount level so long as all such brand items are
21 price posted with the same quantity discount level available in that
22 given month. Such brand of liquor or wine shall not be sold to retailers
23 except at the price and discounts then in effect unless prior written
24 permission of the authority is granted for good cause shown and for
25 reasons not inconsistent with the purpose of this chapter. Such schedule
26 shall be transmitted by each manufacturer selling such brand to retail-
27 ers and by each wholesaler selling such brand to retailers.

28 § 5. This act shall take effect on the one hundred eightieth day after
29 it shall have become a law and shall apply to all price postings
30 required to be filed on or after the effective date of this act. Effec-
31 tive immediately, the addition, amendment and/or repeal of any rule or
32 regulation necessary for the implementation of this act on its effective
33 date are authorized to be made and completed on or before such effective
34 date.

35 SUBPART E

36 Section 1. Subdivision 1 of section 102 of the alcoholic beverage
37 control law, as amended by chapter 242 of the laws of 1970, paragraphs
38 (a), (b) and (c) as amended and paragraph (d) as relettered by chapter
39 210 of the laws of 2005, is amended to read as follows:

40 1. (a) Except as provided in [~~section~~] sections thirty-five, fifty-
41 nine-b, sixty-eight, seventy-nine-c, ninety-four or ninety-six of this
42 chapter, no alcoholic beverages shall be shipped into the state unless
43 the same shall be consigned to a person duly licensed hereunder to traf-
44 fic in alcoholic beverages. This prohibition shall apply to all ship-
45 ments of alcoholic beverages into New York state and includes importa-
46 tion or distribution for commercial purposes, for personal use, or
47 otherwise, and irrespective of whether such alcoholic beverages were
48 purchased within or without the state, provided, however, this prohibi-
49 tion shall not apply to any shipment consigned to a New York resident
50 who has personally purchased alcoholic beverages for [~~his~~] personal use
51 while outside the United States for a minimum period of forty-eight
52 consecutive hours and which [~~he~~] such person has shipped as consignor to
53 [~~himself~~] themselves as consignee. Purchases made outside the United
54 States by persons other than the purchaser [~~himself~~] themselves, regard-

1 less whether made as [~~his~~] such person's agent, or by [~~his~~] their
2 authorization or on [~~his~~] their behalf, are deemed not to have been
3 personally purchased within the meaning of this paragraph. Violations of
4 this subdivision are punishable as a class E felony.

5 (b) Except as provided in [~~section~~] sections thirty-five,
6 fifty-nine-b, sixty-eight, seventy-nine-c, ninety-four or ninety-six of
7 this chapter, no common carrier or other person shall bring or carry
8 into the state any alcoholic beverages, unless the same shall be
9 consigned to a person duly licensed hereunder to traffic in alcoholic
10 beverages, provided, however, that alcoholic beverages may be delivered
11 by a trucking permittee from a steamship or railroad station or terminal
12 to a New York resident who has personally purchased alcoholic beverages
13 for [~~his~~] personal use while outside the United States for a minimum
14 period of forty-eight consecutive hours, and which [~~he~~] such person has
15 shipped as consignor to [~~himself~~] themselves as consignee, and except as
16 so stated, no trucking permittee shall accept for delivery, deliver or
17 transport from a steamship or railroad station or terminal any shipment
18 of alcoholic beverages consigned to a non-licensed person having [~~his~~]
19 their home or business in New York state. Purchases of alcoholic beverages made outside the United States by persons other than the purchaser
20 [~~himself~~] themselves, regardless whether made as [~~his~~] their agent, or by
21 [~~his~~] their authorization or on [~~his~~] their behalf, are deemed not to
22 have been personally purchased within the meaning of this paragraph.

23 (c) Paragraphs (a) and (b) of this subdivision shall apply to alcoholic
24 beverages, either in the original package or otherwise, whether
25 intended for commercial or personal use, as well as otherwise, and to
26 foreign, interstate, as well as intrastate, shipments or carriage, irrespective of whether such alcoholic beverages were purchased within or
27 without the state.

28 (d) Nothing in this chapter shall be deemed to exempt from taxation
29 the sale or use of any alcoholic beverages subject to any tax imposed
30 under or pursuant to the authority of the tax law or to grant any other
31 exemption from the provisions of such law.

32 § 2. Section 94 of the alcoholic beverage control law is amended by
33 adding six new subdivisions 4, 5, 6, 7, 8 and 9 to read as follows:

34 4. No trucking permittee shall make deliveries of alcoholic beverages
35 to a non-licensed person in New York state except as provided for in
36 sections thirty-five, thirty-six, fifty-nine-b, fifty-nine-c, sixty-
37 eight, sixty-nine, seventy-nine-c, seventy-nine-d or ninety-six of this
38 chapter, or on behalf of a retail licensee licensed pursuant to this
39 chapter.

40 5. No trucking permittee shall make deliveries of alcoholic beverages
41 to a non-licensed person unless the driver and/or delivery staff shall
42 have successfully completed alcohol training and awareness program
43 (ATAP) training and hold a valid certificate issued by an approved ATAP
44 school pursuant to subdivision twelve of section seventeen or subdivi-
45 sion ten of section eighteen of this chapter.

46 6. Trucking permittees shall in connection with the acceptance of any
47 order for a delivery of alcoholic beverages to a non-licensed person in
48 New York;

49 (a) require the non-licensed person to represent that they have
50 attained the age of twenty-one years or more by providing a valid form
51 of photographic identification authorized by section sixty-five-b of
52 this chapter; and

1 (b) require the non-licensed person to sign an electronic or paper
2 form or other acknowledgement of receipt as approved by the authority;
3 and

4 (c) certify that the alcoholic beverages being purchased will not be
5 resold or introduced back into the stream of commerce; and

6 (d) refuse delivery when the proposed recipient appears to be under
7 twenty-one years of age and/or refuses to present valid identification
8 as required by subparagraph (a) of this paragraph.

9 7. Trucking permittees shall report twice annually to the authority in
10 such manner and form as the authority may direct, the total amount of
11 alcoholic beverages shipped to non-licensed persons in New York during
12 the reporting period, the names and addresses of the non-licensed
13 persons to whom the alcoholic beverages were shipped, the date of deliv-
14 ery, the name and license number of the licensee on whose behalf the
15 alcoholic beverages were delivered, and the quantity and value of each
16 shipment.

17 8. The authority and the department of taxation and finance may
18 promulgate rules and regulations necessary to effectuate the purposes
19 of this section.

20 9. The authority may enforce the requirements of this section by
21 administrative proceedings to suspend or revoke a trucking permit and
22 the authority may accept payment of an administrative fine in lieu of
23 suspension. In addition, the authority or the attorney general of the
24 state of New York shall report violations of this section, where appro-
25 priate, to the department of taxation and finance, to other state
26 licensing authorities, and/or the United States department of treas-
27 ury, tax and trade bureau, for administrative action to suspend or
28 revoke the federal basic permit.

29 § 3. Section 96 of the alcoholic beverage control law is amended by
30 adding three new subdivisions 4, 5 and 6 to read as follows:

31 4. Any person holding a valid warehouse permit pursuant to this
32 section may apply to the authority for an additional permit to operate
33 as a fulfillment warehouse. The fulfillment warehouse permit holder may
34 package and ship alcoholic beverages sold by licensed New York retailers
35 and/or New York manufacturers and/or direct shipper licensees to non-li-
36 censed persons within this state. The fee for a fulfillment warehouse
37 permit shall be two thousand one hundred dollars for three years.

38 (a) Fulfillment warehouses shall report twice annually to the New York
39 State liquor authority in such manner and form as the authority may
40 direct:

41 (i) a current list of all licensed retailers, licensed manufacturers,
42 licensed wholesalers, and direct shipper licensees on whose behalf the
43 fulfillment warehouse ships or allows to be shipped alcoholic beverages
44 to non-licensed persons in this state; and

45 (ii) the total gallons of each type of alcoholic beverages shipped to
46 non-licensed persons from the fulfillment warehouse during the reporting
47 period, categorized in accordance with the state's tax classification
48 for alcoholic beverages; and

49 (iii) the name, business address, and license number of each licensed
50 retailer and direct shipper on whose behalf the fulfillment warehouse
51 packages or ships or allows to be shipped alcoholic beverages to non-li-
52 censed persons in this state, with each licensee's name stated as it
53 appears on the retailer's or direct shipper's license; and

54 (iv) the names and addresses of the non-licensed persons to whom the
55 alcoholic beverages were shipped, the date of delivery, the name and
56 license number of the retailer or direct shipper licensee on whose

1 behalf the alcoholic beverages were delivered, and the quantity and
2 value of each shipment.

3 (b) A fulfillment warehouse may ship alcoholic beverages to a non-li-
4 censed person within this state only if the package containing the alco-
5 holic beverages is conspicuously labeled with the words "CONTAINS ALCO-
6 HOLIC BEVERAGES - SIGNATURE OF PERSON AGE 21 OR OLDER REQUIRED FOR
7 DELIVERY - NOT FOR RESALE", or with other language specifically approved
8 by the New York State liquor authority, and clearly indicates on the
9 shipping label the name and address of the fulfillment warehouse as well
10 as the name and address of the non-licensed person within this state as
11 the intended recipient; and the name and license number of the licensed
12 retailer or direct shipper licensee that provided the alcoholic beverag-
13 es to the fulfillment warehouse; and the shipment is authorized under
14 this chapter.

15 5. The authority and the department of taxation and finance may
16 promulgate rules and regulations to effectuate the purposes of this
17 section.

18 6. The authority may enforce the requirements of this section, by
19 administrative proceedings to suspend or revoke a warehouse permit or
20 fulfillment warehouse permit and the authority may accept payment of an
21 administrative fine in lieu of suspension. In addition, the authority or
22 the attorney general of the state of New York shall report violations of
23 this section, where appropriate, to the New York State department of
24 taxation and finance, to other state licensing authorities, and/or the
25 United States department of treasury, tax and trade bureau, for
26 administrative action to suspend or revoke the federal basic permit.

27 § 4. Paragraph (d) of subdivision 3 of section 35 of the alcoholic
28 beverage control law, as added by chapter 226 of the laws of 2024, is
29 amended to read as follows:

30 (d) shall ~~[maintain records]~~ report twice annually to the New York
31 State liquor authority in such manner and form as the authority may
32 direct, showing the total amount of mead and/or braggot shipped into the
33 state each calendar year; the names and addresses of the purchasers to
34 whom the mead and/or braggot was shipped, the date purchased, the name
35 of the common carrier used to deliver the mead and/or braggot, and the
36 quantity and value of each shipment;

37 § 5. Paragraph (d) of subdivision 3 of section 59-b of the alcoholic
38 beverage control law, as added by chapter 226 of the laws of 2024, is
39 amended to read as follows:

40 (d) shall ~~[maintain records]~~ report twice annually to the New York
41 State liquor authority in such manner and form as the authority may
42 direct, showing the total amount of cider shipped into the state each
43 calendar year; the names and addresses of the purchasers to whom the
44 cider was shipped, the date purchased, the name of the common carrier
45 used to deliver the cider, and the quantity and value of each shipment;

46 § 6. Paragraph (d) of subdivision 3 of section 68 of the alcoholic
47 beverage control law, as added by chapter 226 of the laws of 2024, is
48 amended to read as follows:

49 (d) shall ~~[maintain records]~~ report twice annually to the New York
50 State liquor authority in such manner and form as the authority may
51 direct, showing the total amount of liquor shipped into the state each
52 calendar year; the names and addresses of the purchasers to whom the
53 liquor was shipped, the date purchased, the name of the common carrier
54 used to deliver the liquor, and the quantity and value of each shipment;

§ 7. Paragraph (d) of subdivision 3 of section 79-c of the alcoholic beverage control law, as amended by chapter 226 of the laws of 2024, is amended to read as follows:

(d) shall ~~[maintain records]~~ report twice annually to the New York State liquor authority in such manner and form as the authority may direct, showing the total amount of wine shipped into the state each calendar year; the names and addresses of the purchasers to whom the wine was shipped, the date purchased, the name of the common carrier used to deliver the wine, and the quantity and value of each shipment;

§ 8. This act shall take effect on the one hundred eightieth day after it shall have become a law.

SUBPART F

Section 1. Section 5 of part CC of chapter 55 of the laws of 2024 amending the alcoholic beverage control law, relating to alcohol in certain motion picture theatres, is amended to read as follows:

§ 5. This act shall take effect immediately ~~[and shall expire and be deemed repealed 3 years after such date]~~.

§ 2. This act shall take effect immediately.

SUBPART G

Section 1. Subdivision 9 of section 106 of the alcoholic beverage control law is REPEALED.

§ 2. This act shall take effect immediately.

SUBPART H

Section 1. Subdivision 6 of section 64-a of the alcoholic beverage control law, as amended by section 2 of part CC of chapter 55 of the laws of 2024, is amended to read as follows:

6. No special on-premises license shall be granted except for premises in which the principal business shall be (a) the sale of food or beverages at retail for consumption on the premises ~~[or]~~, (b) the operation of a legitimate theatre, including a motion picture theatre that is a building or facility which is regularly used and kept open primarily for the exhibition of motion pictures for at least five out of seven days a week, or on a regular seasonal basis of no less than six contiguous weeks, to the general public where all auditorium seating is permanently affixed to the floor and at least sixty-five percent of the motion picture theatre's annual gross revenues is the combined result of admission revenue for the showing of motion pictures and the sale of food and non-alcoholic beverages, (c) a bona-fide hotel, or such other lawful adult entertainment or recreational facility as the liquor authority, giving due regard to the convenience of the public and the strict avoidance of sales prohibited by this chapter, shall by regulation classify for eligibility.

§ 2. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

SUBPART I

1 Section 1. Section 51 of the alcoholic beverage control law is amended
2 by adding a new subdivision 5-b to read as follows:

3 5-b. (a) A brewer licensed pursuant to this section that qualifies for
4 the micro-brewery fee pursuant to section fifty-six of this article may,
5 at the licensed premises, sell at retail for consumption on or off the
6 licensed premises:

7 (i) beer manufactured by the licensee;

8 (ii) New York state labeled beer, wine, cider, spirits and mead manu-
9 factured by a person licensed to manufacture such product under this
10 chapter.

11 (b) A micro-brewery licensee may conduct tastings of alcoholic bever-
12 ages and sell alcoholic beverages at retail for consumption on or off
13 the licensed premises pursuant to this subdivision; provided, however,
14 that for tastings and sales for on-premises consumption, the licensee
15 shall regularly keep food available for sale or service to its retail
16 customers for consumption on the premises. A licensee providing the
17 following shall be deemed in compliance with this provision: (i) sand-
18 wiches, soups or other such foods, whether fresh, processed, pre-cooked
19 or frozen; and/or (ii) food items intended to complement the tasting of
20 alcoholic beverages, which shall mean a diversified selection of food
21 that is ordinarily consumed without the use of tableware and can be
22 conveniently consumed while standing or walking, including but not
23 limited to: cheeses, fruits, vegetables, chocolates, breads, mustards
24 and crackers.

25 (c) A micro-brewery licensee may sell beer manufactured by the licen-
26 see or any other brewer licensed pursuant to this chapter at retail for
27 consumption off the premises at the state fair, at recognized county
28 fairs and at farmers markets operated on a not-for-profit basis, subject
29 to such rules and regulations as the authority may prescribe.

30 (d) A micro-brewery license shall authorize the holder thereof to
31 manufacture, bottle and sell food condiments and products such as
32 mustards, sauces, hop seasonings, beer nuts, and other hops and beer
33 related foods in addition to beer and to store and sell gift items in a
34 tax-paid room upon the licensed premises incidental to the sale of beer.
35 Such gift items shall be limited to the categories authorized for a farm
36 brewery pursuant to subdivision seven of section fifty-one-a of this
37 chapter.

38 (e) The holder of a license authorized by this subdivision may operate
39 up to five branch offices located away from the licensed premises. Such
40 locations shall be considered part of the licensed premises and all
41 activities allowed at and limited to the micro-brewery may be conducted
42 at the branch offices. Such branch offices shall not be located within,
43 share a common entrance and exit with, or have any interior access to
44 any other business, including premises licensed to sell alcoholic bever-
45 ages at retail. Prior to commencing operation of any such branch office,
46 the licensee shall notify the authority of the location of such branch
47 office and the authority may issue a permit for the operation of same.

48 § 2. Subdivision 1-a of section 61 of the alcoholic beverage control
49 law, as amended by chapter 431 of the laws of 2014, is amended to read
50 as follows:

51 1-a. (a) A class A-1 distiller's license shall authorize the holder
52 thereof to operate a distillery which has a production capacity of no
53 more than seventy-five thousand gallons per year for the manufacture of
54 liquors by distillation or redistillation at the premises specifically
55 designated in the license. Such a license shall also authorize the sale
56 in bulk by such licensee from the licensed premises of the products

1 manufactured under such license to any person holding a winery license,
2 farm winery license, distiller's class A license, a distiller's class B
3 license or a permittee engaged in the manufacture of products which are
4 unfit for beverage use. It shall also authorize the sale from the
5 licensed premises and from one other location in the state of New York
6 of liquors manufactured by such licensee to a wholesale or retail liquor
7 licensee or permittee in sealed containers of not more than one quart
8 each. In addition, it shall authorize such licensee to sell from the
9 licensed premises New York state labelled liquors to licensed farm
10 wineries, farm breweries, farm distilleries and farm cideries in sealed
11 containers of not more than one quart for retail sale for off-premises
12 consumption. Such license shall also include the privilege to operate a
13 rectifying plant under the same terms and conditions as the holder of a
14 class B-1 distiller's license without the payment of any additional fee.

15 (b) A distiller licensed pursuant to this subdivision that qualifies
16 for the micro-distillery fee pursuant to section sixty-six of this arti-
17 cle may, at the licensed premises, sell at retail for consumption on or
18 off the licensed premises:

19 (i) liquor manufactured by the licensee;

20 (ii) New York state labeled beer, wine, cider, spirits and mead manu-
21 factured by a person licensed to manufacture such product under this
22 chapter.

23 (c) A micro-distillery licensee may conduct tastings of alcoholic
24 beverages and sell alcoholic beverages at retail for consumption on or
25 off the licensed premises pursuant to this subdivision; provided, howev-
26 er, that for tastings and sales for on-premises consumption, the licen-
27 see shall regularly keep food available for sale or service to its
28 retail customers for consumption on the premises. A licensee providing
29 the following shall be deemed in compliance with this provision: (i)
30 sandwiches, soups or other such foods, whether fresh, processed, pre-
31 cooked or frozen; and/or (ii) food items intended to complement the
32 tasting of alcoholic beverages, which shall mean a diversified selection
33 of food that is ordinarily consumed without the use of tableware and can
34 be conveniently consumed while standing or walking, including but not
35 limited to: cheeses, fruits, vegetables, chocolates, breads, mustards
36 and crackers.

37 (d) A micro-distillery licensee may sell liquor manufactured by the
38 licensee or any other distiller licensed pursuant to this chapter at
39 retail for consumption off the premises at the state fair, at recognized
40 county fairs and at farmers markets operated on a not-for-profit basis,
41 subject to such rules and regulations as the authority may prescribe.

42 (e) A micro-distillery license shall authorize the holder thereof to
43 manufacture, bottle and sell food condiments and products such as nuts,
44 popcorn, mulling spices and other spirits related food in addition to
45 other such food and crafts on and from the licensed premises. Such
46 license shall authorize the holder thereof to store and sell gift items
47 in a tax-paid room upon the licensed premises incidental to the sale of
48 liquor. These gift items shall be limited to the following categories:

49 (i) non-alcoholic beverages for consumption on or off premises,
50 including but not limited to bottled water, juice and soda beverages;

51 (ii) food items for the purpose of complementing liquor tastings,
52 which shall mean a diversified selection of food that is ordinarily
53 consumed without the use of tableware and can be conveniently consumed
54 while standing or walking. Such food items shall include but not be
55 limited to: cheeses, fruits, vegetables, chocolates, breads, mustards
56 and crackers;

1 (iii) food items, which shall include locally produced farm products
2 and any food or food product not specifically prepared for immediate
3 consumption upon the premises. Such food items may be combined into a
4 package containing liquor related products;

5 (iv) liquor supplies and accessories, which shall include any item
6 utilized for the storage, serving or consumption of liquor or for deco-
7 rative purposes. These supplies may be sold as single items or may be
8 combined into a package containing liquor;

9 (v) liquor-making equipment and supplies including, but not limited
10 to, filters, bottling equipment, and books or other written material to
11 assist spirits makers to produce and bottle liquor; and

12 (vi) souvenir items, which shall include, but not be limited to
13 artwork, crafts, clothing, agricultural products and any other articles
14 which can be construed to propagate tourism within the region.

15 (vii) Notwithstanding any provision of law to the contrary, another
16 business or other businesses may operate on the licensed premises
17 subject to such rules and regulations as the liquor authority may
18 prescribe. Such rules and regulations shall determine which businesses
19 will be compatible with the policy and purposes of this chapter and
20 shall consider the effect of particular businesses on the community and
21 area in the vicinity of the micro-distillery premises, provided however
22 that a retailer business licensed under this chapter shall not be
23 permitted to operate at a licensed manufacturing premises.

24 (f) The holder of a license authorized by this subdivision may operate
25 up to five branch offices located away from the licensed premises. Such
26 locations shall be considered part of the licensed premises and all
27 activities allowed at and limited to the micro-distillery may be
28 conducted at the branch offices. Such branch offices shall not be
29 located within, share a common entrance and exit with, or have any inte-
30 rior access to any other business, including premises licensed to sell
31 alcoholic beverages at retail. Prior to commencing operation of any such
32 branch office, the licensee shall notify the authority of the location
33 of such branch office and the authority may issue a permit for the oper-
34 ation of same.

35 § 3. Subdivision 2-b of section 61 of the alcoholic beverage control
36 law, as amended by chapter 431 of the laws of 2014, is amended to read
37 as follows:

38 2-b. (a) A class B-1 distiller's license shall authorize the holder
39 thereof to operate a rectifying plant which has a production capacity of
40 no more than seventy-five thousand gallons per year for the manufacture
41 of the products of rectification by purifying or combining alcohol,
42 spirits, wine, or beer and the manufacture of cordials by the redistil-
43 lation of alcohol or spirits over or with any materials. Such a license
44 shall also authorize the holder thereof to blend, reduce proof and
45 bottle on [his] licensed premises or in a United States customs bonded
46 warehouse for which a warehouse permit has been issued under this chap-
47 ter for wholesale liquor licensees or for persons authorized to sell
48 liquor at wholesale pursuant to the laws and regulation of any other
49 state, territorial possession of the United States or foreign country
50 liquor received in bulk by such wholesalers from other states, territo-
51 rial possessions of the United States or a foreign country, and to
52 rebottle or recondition for wholesale liquor or wine licensees or for
53 persons authorized to sell liquor or wine at wholesale pursuant to the
54 laws and regulations of any other state, territorial possession of the
55 United States or foreign country, liquor or wine manufactured outside
56 the state, which was purchased and received by such wholesalers in

1 sealed containers not exceeding one quart each of liquor or fifteen
2 gallons each of wine. Such a license shall also authorize the sale from
3 the licensed premises of the products manufactured by such licensee to a
4 wholesale or retail licensee in sealed containers of not more than one
5 quart each. In addition, it shall authorize such licensee to sell from
6 the licensed premises New York state labelled liquors to a farm winery
7 licensee in sealed containers of not more than one quart for retail sale
8 for off-premises consumption.

9 (b) A distiller licensed pursuant to this subdivision that qualifies
10 for the micro-rectifier fee pursuant to section sixty-six of this arti-
11 cle may, at the licensed premises, sell at retail for consumption on or
12 off the licensed premises:

13 (i) liquor manufactured by the licensee;

14 (ii) New York state labeled beer, wine, cider, spirits and mead manu-
15 factured by a person licensed to manufacture such product under this
16 chapter.

17 (c) A micro-rectifier licensee may conduct tastings of alcoholic
18 beverages and sell alcoholic beverages at retail for consumption on or
19 off the licensed premises pursuant to this subdivision; provided, howev-
20 er, that for tastings and sales for on-premises consumption, the licen-
21 see shall regularly keep food available for sale or service to its
22 retail customers for consumption on the premises. A licensee providing
23 the following shall be deemed in compliance with this provision: (i)
24 sandwiches, soups or other such foods, whether fresh, processed, pre-
25 cooked or frozen; and/or (ii) food items intended to complement the
26 tasting of alcoholic beverages, which shall mean a diversified selection
27 of food that is ordinarily consumed without the use of tableware and can
28 be conveniently consumed while standing or walking, including but not
29 limited to: cheeses, fruits, vegetables, chocolates, breads, mustards
30 and crackers.

31 (d) A micro-rectifier licensee may sell liquor manufactured by the
32 licensee or any other distiller licensed pursuant to this chapter at
33 retail for consumption off the premises at the state fair, at recognized
34 county fairs and at farmers markets operated on a not-for-profit basis,
35 subject to such rules and regulations as the authority may prescribe.

36 (e) A micro-rectifier license shall authorize the holder thereof to
37 manufacture, bottle and sell food condiments and products such as nuts,
38 popcorn, mulling spices and other spirits related food in addition to
39 other such food and crafts on and from the licensed premises. Such
40 license shall authorize the holder thereof to store and sell gift items
41 in a tax-paid room upon the licensed premises incidental to the sale of
42 liquor. These gift items shall be limited to the following categories:

43 (i) non-alcoholic beverages for consumption on or off premises,
44 including but not limited to bottled water, juice and soda beverages;

45 (ii) food items for the purpose of complementing liquor tastings,
46 which shall mean a diversified selection of food that is ordinarily
47 consumed without the use of tableware and can be conveniently consumed
48 while standing or walking. Such food items shall include but not be
49 limited to: cheeses, fruits, vegetables, chocolates, breads, mustards
50 and crackers;

51 (iii) food items, which shall include locally produced farm products
52 and any food or food product not specifically prepared for immediate
53 consumption upon the premises. Such food items may be combined into a
54 package containing liquor related products;

55 (iv) liquor supplies and accessories, which shall include any item
56 utilized for the storage, serving or consumption of liquor or for deco-

1 rative purposes. These supplies may be sold as single items or may be
2 combined into a package containing liquor;

3 (v) liquor-making equipment and supplies including, but not limited
4 to, filters, bottling equipment, and books or other written material to
5 assist spirits makers to produce and bottle liquor; and

6 (vi) souvenir items, which shall include, but not be limited to
7 artwork, crafts, clothing, agricultural products and any other articles
8 which can be construed to propagate tourism within the region.

9 (vii) Notwithstanding any provision of law to the contrary, another
10 business or other businesses may operate on the licensed premises
11 subject to such rules and regulations as the liquor authority may
12 prescribe. Such rules and regulations shall determine which businesses
13 will be compatible with the policy and purposes of this chapter and
14 shall consider the effect of particular businesses on the community and
15 area in the vicinity of the micro distillery premises, provided however
16 that a retailer business licensed under this chapter shall not be
17 permitted to operate at a licensed manufacturing premises.

18 (f) The holder of a license authorized by this subdivision may operate
19 up to five branch offices located away from the licensed premises. Such
20 locations shall be considered part of the licensed premises and all
21 activities allowed at and limited to the micro-distillery may be
22 conducted at the branch offices. Such branch offices shall not be
23 located within, share a common entrance and exit with, or have any inte-
24 rior access to any other business, including premises licensed to sell
25 alcoholic beverages at retail. Prior to commencing operation of any such
26 branch office, the licensee shall notify the authority of the location
27 of such branch office and the authority may issue a permit for the oper-
28 ation of same.

29 § 4. Paragraph (g) of subdivision 2-c of section 61 of the alcoholic
30 beverage control law, as added by chapter 431 of the laws of 2014, is
31 amended to read as follows:

32 (g) The holder of a license issued under this subdivision may operate
33 up to [~~one~~] five branch [~~office~~] offices located away from the licensed
34 farm distillery. Such [~~location~~] locations shall be considered part of
35 the licensed premises and all activities allowed at and limited to the
36 farm distillery may be conducted at the branch [~~office~~] offices. Such
37 branch [~~office~~] offices shall not be located within, share a common
38 entrance and exit with, or have any interior access to any other busi-
39 ness, including premises licensed to sell alcoholic beverages at retail.
40 Prior to commencing operation of any such branch [~~office~~] offices, the
41 licensee shall notify the authority of the location of such branch
42 [~~office~~] offices and the authority may issue a permit for the operation
43 of same.

44 § 5. This act shall take effect immediately.

45 SUBPART J

46 Section 1. Section 104 of the alcoholic beverage control law is
47 amended by adding a new subdivision 12 to read as follows:

48 12. Notwithstanding any provision of law to the contrary, no whole-
49 saler shall assess any fee, including but not limited to fees for stor-
50 age, interest, collections, attorneys, split cases, breakage and deliv-
51 ery, upon any New York state licensed retailer other than the purchase
52 price of alcoholic beverages, provided, however, that the authority may,
53 by rule or regulation, permit the assessment of one or more categories

1 of fees or charges and may impose such limitations, conditions, and
2 record keeping requirements it deems appropriate.

3 § 2. This act shall take effect on the ninetieth day after it shall
4 have become a law. Effective immediately, the addition, amendment and/or
5 repeal of any rule or regulation necessary for the implementation of
6 this act on its effective date are authorized to be made and completed
7 on or before such effective date.

8 SUBPART K

9 Section 1. The opening paragraph of paragraph (a) of subdivision 1 of
10 section 101 of the alcoholic beverage control law, as amended by chapter
11 318 of the laws of 2016, is amended to read as follows:

12 Be interested directly or indirectly in any premises where any alco-
13 holic beverage is sold at retail; or in any business devoted wholly or
14 partially to the sale of any alcoholic beverage at retail by stock
15 ownership, interlocking directors, mortgage or lien or any personal or
16 real property, or by any other means, except that nothing in this
17 section shall prohibit a licensed manufacturer or any owner of any out-
18 of-state premises where liquors, wines, or beer are manufactured from
19 owning up to three licensed retail premises for on-premises consumption
20 where such manufacturer is owned by the same person or corporate entity
21 as such retailer or retailers and where such retailer or retailers
22 utilize a substantially similar corporate name and/or d/b/a as the
23 manufacturer. For purposes of this chapter, said licensed manufacturer
24 or owner of any out-of-state premises where liquors, wines, or beer are
25 manufactured shall be deemed to be owned by the same corporate entity as
26 such retailer or retailers if a majority of each class of stock of each
27 such corporation is owned by the same person. The provisions of this
28 paragraph shall not apply to

29 § 2. Paragraph (e) of subdivision 1 of section 101 of the alcoholic
30 beverage control law, as added by chapter 557 of the laws of 1964, is
31 amended to read as follows:

32 (e) The prohibitions and restrictions contained in paragraphs [~~b, c~~
33 ~~and d above~~] (b), (c) and (d) of this subdivision shall not apply to any
34 contractual arrangements between a licensed manufacturer [~~or wholesaler~~]
35 or any owner of any out-of-state premises where liquors, wines, or beer
36 are manufactured and [a] up to three licensed [retailer] retail premises
37 for on-premises consumption where such manufacturer [~~or wholesaler has~~
38 ~~made a substantial investment, directly or through such retailer, in the~~
39 ~~construction, capitalization or furnishing of any exhibit, facility or~~
40 ~~installation in the area leased by the city of New York to New York~~
41 ~~World's Fair 1964-1965 Corporation, pursuant to chapter four hundred~~
42 ~~twenty-eight of the laws of nineteen hundred sixty, as amended, and such~~
43 ~~retailer is conducting his business as a part of such exhibit or instal-~~
44 ~~lation or is responsible to such corporation for the construction, oper-~~
45 ~~ation or maintenance of such exhibit, facility or installation. This~~
46 ~~modification to the prohibitions and restrictions contained in this~~
47 ~~paragraph shall continue until November first, nineteen hundred sixty-~~
48 ~~five~~] is owned by the same person or corporate entity as such retailer
49 or retailers.

50 § 3. The opening paragraph of paragraph (a) of subdivision 13 of
51 section 106 of the alcoholic beverage control law, as amended by chapter
52 453 of the laws of 2018, is amended to read as follows:

53 No retail licensee for on-premises consumption shall be interested,
54 directly or indirectly, in any premises where liquors, wines or beer are

1 manufactured or sold at wholesale, by stock ownership, interlocking
2 directors, mortgage or lien on any personal or real property or by any
3 other means, except that nothing shall prohibit a licensed manufacturer
4 or any owner of any out-of-state premises where liquors, wines, or beer
5 are manufactured, from holding up to three licensed retail premises for
6 on-premises consumption where such manufacturer is owned by the same
7 person or corporate entity as such retailer or retailers, and except
8 that liquors, wines or beer may be manufactured or sold wholesale by the
9 person licensed as a manufacturer or wholesaler thereof:

10 § 4. This act shall take effect on the ninetieth day after it shall
11 have become a law.

12 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-
13 sion, section or part of this act shall be adjudged by any court of
14 competent jurisdiction to be invalid, such judgment shall not affect,
15 impair, or invalidate the remainder thereof, but shall be confined in
16 its operation to the clause, sentence, paragraph, subdivision, section
17 or part thereof directly involved in the controversy in which such judg-
18 ment shall have been rendered. It is hereby declared to be the intent of
19 the legislature that this act would have been enacted even if such
20 invalid provisions had not been included herein.

21 § 3. This act shall take effect immediately provided, however, that
22 the applicable effective date of Subparts A through K of this part shall
23 be as specifically set forth in the last section of such Subparts.

24 PART P

25 Section 1. This act enacts into law components of legislation relating
26 to alcoholic beverage licensing. Each component is wholly contained
27 within a Part identified as Subparts A through H. The effective date for
28 each particular provision contained within such Subpart is set forth in
29 the last section of such Subpart. Any provision in any section
30 contained within a Subpart, including the effective date of the Subpart,
31 which makes reference to a section "of this act", when used in
32 connection with that particular component, shall be deemed to mean and
33 refer to the corresponding section of the Subpart in which it is found.
34 Section three of this act sets forth the general effective date of this
35 act.

36 SUBPART A

37 Section 1. The alcoholic beverage control law is amended by adding a
38 new section 64-g to read as follows:

39 § 64-g. License to sell liquor on premises at an adult care facility.
40 1. Any adult care facility licensed by the department of health may make
41 an application to the state liquor authority for an adult care facility
42 license.

43 2. Such application shall be in such form and shall contain such
44 information as shall be required by the liquor authority and shall be
45 accompanied by a check or draft in the amount required by this article
46 for such license.

47 3. Section fifty-four of this chapter shall control so far as applica-
48 ble to the procedure in connection with such application.

49 4. Such adult care facility license shall in form and in substance be
50 a license to the adult care facility to operate one or more food and
51 drinking establishments on its premises as defined by article
52 forty-six-B of the public health law. Such license shall also be deemed

1 to include a license to sell liquor, wine, beer, cider, mead and/or
2 braggot at retail for consumption on its premises so licensed exclusive-
3 ly to residents and guests of residents of the adult care facility, and
4 also to sell alcoholic beverages for service on its premises for resi-
5 dents and guests of residents in areas designated by the applicant for
6 alcoholic beverage consumption in the manner prescribed by rule or regu-
7 lation of the authority.

8 5. All of the provisions of this chapter relative to licenses to sell
9 liquor, wine, beer, cider, mead and/or braggot at retail for consumption
10 on the premises shall apply as far as applicable to such application.

11 § 2. Section 66 of the alcoholic beverage control law is amended by
12 adding a new subdivision 11 to read as follows:

13 11. The fee for an original and renewal adult care facility on-premis-
14 es license shall be five hundred dollars. Such license shall run for a
15 period of three years. In addition to the license fees provided for in
16 this subdivision, there shall be paid to the authority with each
17 original application a filing fee of two hundred dollars and with each
18 renewal application a filing fee of one hundred dollars.

19 § 3. This act shall take effect on the one hundred eightieth day after
20 it shall have become a law. Effective immediately, the addition, amend-
21 ment and/or repeal of any rule or regulation necessary for the implemen-
22 tation of this act on its effective date are authorized to be made and
23 completed on or before such effective date.

24 SUBPART B

25 Section 1. Section 3 of the alcoholic beverage control law is amended
26 by adding a new subdivision 2-a to read as follows:

27 2-a. "Airline lounge" means and includes any premises located within
28 an airport and such premises is owned, leased, or operated by a United
29 States certificated airline which regularly and in a bona fide manner
30 furnishes provisions and services therein.

31 § 2. Section 106 of the alcoholic beverage control law is amended by
32 adding a new subdivision 8-a to read as follows:

33 8-a. A license issued for premises being conducted as an airline
34 lounge shall authorize the holder thereof to provide alcoholic beverages
35 for on-premises consumption only to persons with lounge access privi-
36 leges as authorized by the airline. Food shall be made regularly avail-
37 able to such persons for consumption on the premises. The availability
38 of sandwiches, soups or other foods, whether fresh, processed, pre-
39 cooked or frozen, shall be deemed compliance with this requirement. The
40 licensed premises shall comply at all times with all the regulations of
41 the local department of health. Nothing contained in this subdivision,
42 however, shall be construed to require that any food be sold or
43 purchased with any liquor, nor shall any rule, regulation or standard be
44 promulgated or enforced requiring that the sale of food be substantial
45 or that the receipts of the business other than from the sale of liquor
46 equal any set percentage of total receipts from sales made therein.

47 § 3. This act shall take effect on the one hundred eightieth day after
48 it shall have become a law. Effective immediately, the addition, amend-
49 ment and/or repeal of any rule or regulation necessary for the implemen-
50 tation of this act on its effective date are authorized to be made and
51 completed on or before such effective date.

52 SUBPART C

1 Section 1. Section 3 of the alcoholic beverage control law is amended
2 by adding a new subdivision 7-aa to read as follows:

3 7-aa. "Cafe" means a place which is regularly and in a bona fide
4 manner open for the service of light fare but not necessarily full
5 entrees to guests for compensation and featuring adequate food prepara-
6 tion facilities for keeping of food on said premises in compliance with
7 all the regulations of the local department of health, and where food is
8 prepared and served for consumption on the premises in such quantities
9 as to satisfy the liquor authority that the sale of alcoholic beverages
10 intended is incidental to and not the prime source of revenue from the
11 operation of such premises. For the purposes of a cafe, "guests" means
12 persons who, during the hours when meals are regularly served therein,
13 come to a cafe for the purpose of obtaining, and actually order and
14 obtain at such time, in good faith, freshly prepared light fare therein.
15 Nothing contained in this subdivision shall be construed to require that
16 any food be sold or purchased with any beverage.

17 § 2. This act shall take effect on the one hundred eightieth day after
18 it shall have become a law. Effective immediately, the addition, amend-
19 ment and/or repeal of any rule or regulation necessary for the implemen-
20 tation of this act on its effective date are authorized to be made and
21 completed on or before such effective date.

22 SUBPART D

23 Section 1. The alcoholic beverage control law is amended by adding a
24 new section 64-h to read as follows:

25 § 64-h. Higher education on-premises license. 1. Any college, univer-
26 sity, or other institution for higher education authorized to confer
27 degrees by the board of regents or the commissioner of education may
28 make an application to the state liquor authority for a higher education
29 license.

30 2. Such application shall be in such form and shall contain such
31 information as shall be required by the liquor authority and shall be
32 accompanied by a check or draft in the amount required by this section
33 for such license.

34 3. Section fifty-four of this chapter shall control so far as applica-
35 ble to the procedure in connection with such application.

36 4. Such higher education license shall in form and in substance be a
37 license to the college, university, or other institution for higher
38 education to periodically provide food and beverages for events held on
39 its campus as defined by section two of the education law, and to sell
40 liquor, wine, beer and cider at retail for consumption on the premises
41 so licensed. The event spaces so designated need not be contiguous to
42 one another. Upon notice to the authority, a higher education licensee
43 may also host events, meetings, seminars, or conferences where food and
44 alcoholic beverages are served or available to attendees and where the
45 alcoholic beverages are incidental to the event, at locations on its
46 campus other than those designated as food and drinking establishments
47 in the application, such events may be catered by a licensed caterer.
48 All of the provisions of this chapter relative to licenses to sell
49 liquor, wine, beer, cider, mead and/or braggot at retail for consumption
50 on the premises shall apply so far as applicable to such application.

51 5. Such license shall also be deemed to include a license to manufac-
52 ture liquor, wine, beer, cider, mead and/or braggot on the premises
53 specifically licensed, under the same terms and without payment of any
54 additional fee. Provided, however, that no such licensee shall manufac-

1 ture annually in excess of ten thousand barrels of beer, seventy-five
2 thousand gallons of wine, seventy-five thousand gallons of cider, or
3 thirty-seven thousand five hundred gallons of distilled spirits.

4 6. A higher education licensee may conduct tastings of any alcoholic
5 beverages it produces:

6 (a) upon its licensed premises;

7 (b) at the state fair, at recognized county fairs and at farmers
8 markets operated on a not-for-profit basis; and

9 (c) at outdoor or indoor gatherings, functions, occasions or events,
10 within the hours fixed by or pursuant to subdivision fourteen of section
11 one hundred five of this chapter, sponsored by a bona fide charitable
12 organization. For the purposes of this paragraph, a bona fide charitable
13 organization shall mean and include any bona fide religious or charita-
14 ble organization or bona fide educational, fraternal or service organ-
15 ization or bona fide organization of veterans or volunteer firefighters,
16 which by its charter, certificate of incorporation, constitution, or act
17 of the legislature, shall have among its dominant purposes one or more
18 of the lawful purposes as defined in subdivision five of section one
19 hundred eighty-six of the general municipal law.

20 7. Notwithstanding any other provision of law to the contrary, all
21 alcoholic beverages produced by a higher education licensee and sold on
22 the premises of said higher education licensee, or utilized for tastings
23 as otherwise provided for by this section, shall be exempt from the
24 provisions of sections fifty-five-b, one hundred seven-a, one hundred
25 one-aa, and one hundred one-aaa of this chapter.

26 8. A higher education licensee may sell alcoholic beverages produced
27 by the licensee to another retail licensee where such other license is
28 held by the college, university, or other institution for higher educa-
29 tion.

30 9. For purposes of sections one hundred one and one hundred six of
31 this chapter, the licensee under this section shall be considered a
32 "retailer" as that term is defined within section three of this chapter.
33 Provided, however, that the provisions of subdivision one of section one
34 hundred one and subdivision thirteen of section one hundred six of this
35 chapter shall only apply to the licensee's alcoholic beverage officer,
36 as designated pursuant to subdivision four of section one hundred twen-
37 ty-six of this chapter.

38 10. A higher education licensee shall report to the authority no less
39 than five days prior to all events featuring sales or tastings of alco-
40 holic beverages conducted pursuant to their license during the license
41 period in such manner and format as the authority shall direct.

42 § 2. Subdivision 1 of section 101 of the alcoholic beverage control
43 law is amended by adding a new paragraph (g) to read as follows:

44 (g) In the case of a college, university, or other institution for
45 higher education authorized to confer degrees by the board of regents or
46 the commissioner of education holding a retail license under this chap-
47 ter, the provisions and restrictions contained in paragraphs (b) and (d)
48 of this subdivision shall only apply to such licensee's alcoholic bever-
49 age officer, as designated pursuant to subdivision four of section one
50 hundred twenty-six of this article.

51 § 3. Paragraph (a) of subdivision 1 of section 110 of the alcoholic
52 beverage control law is amended by adding a new clause (iv) to read as
53 follows:

54 (iv) If the applicant is a college, university, or other institution
55 for higher education authorized to confer degrees by the board of
56 regents or the commissioner of education, the corporate name of the

applicant, its place of incorporation, its main business address (and if such main business address is not within the state, the address of its main place of business within the state), other names by which it has been known or has conducted business at any time, its telephone number, its federal employer identification number, and the name of its alcoholic beverage officer.

§ 4. Subdivision 4 of section 126 of the alcoholic beverage control law, as amended by chapter 669 of the laws of 2022, is amended to read as follows:

4. A copartnership or a corporation, unless each member of the partnership, or each of the principal officers and directors of the corporation, is a citizen of the United States or a noncitizen lawfully admitted for permanent residence in the United States, not less than twenty-one years of age, and has not been convicted of any felony or any of the misdemeanors, specified in section eleven hundred forty-six of the former penal law as in force and effect immediately prior to September first, nineteen hundred sixty-seven, or of an offense defined in section 230.20 or 230.40 of the penal law, or if so convicted has received, subsequent to such conviction, an executive pardon therefor removing this disability a certificate of good conduct granted by the department of corrections and community supervision, or a certificate of relief from disabilities granted by the department of corrections and community supervision or a court of this state pursuant to the provisions of article twenty-three of the correction law to remove the disability under this section because of such conviction; provided however: that a corporation which otherwise conforms to the requirements of this section and chapter may be licensed if each of its principal officers and more than one-half of its directors are citizens of the United States or noncitizens lawfully admitted for permanent residence in the United States; and provided further that a corporation organized under the not-for-profit corporation law or the education law which otherwise conforms to the requirements of this section and chapter may be licensed if each of its principal officers and more than one-half of its directors are not less than twenty-one years of age and none of its directors are less than eighteen years of age; and provided further that a corporation organized under the not-for-profit corporation law or the education law and located on the premises of a college as defined by section two of the education law which otherwise conforms to the requirements of this section and chapter may be licensed if each of its principal officers and each of its directors are not less than eighteen years of age; and that a college, university, or other institution for higher education authorized to confer degrees by the board of regents or the commissioner of education may be licensed if it appoints an alcoholic beverage officer from among its officers who otherwise conforms to the requirements of this section and chapter and who shall be responsible for filing all applications and other documents required to be submitted to the authority.

§ 5. Section 66 of the alcoholic beverage control law is amended by adding a new subdivision 12 to read as follows:

12. The fee for an original and renewal higher education on-premises license shall be one thousand five hundred dollars. Such license shall run for a period of three years. In addition to the license fees provided for in this subdivision, there shall be paid to the authority with each original application a filing fee of two hundred dollars and with each renewal application a filing fee of one hundred dollars.

§ 6. This act shall take effect on the one hundred eightieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

SUBPART E

Section 1. The alcoholic beverage control law is amended by adding a new section 79-e to read as follows:

§ 79-e. Hotel concessionaire license. 1. Any person may apply to the authority for a license to sell unopened alcoholic beverages to go from a shop or concession stand located within a hotel.

2. (a) Such hotel concessionaire license shall in form and in substance enable the person specifically licensed to sell wine, beer, cider, mead, braggot, and wine products at not more than fifteen percent alcohol by volume and in sealed containers not to exceed seven hundred fifty milliliters.

(b) Any person holding a hotel concessionaire license shall only sell alcoholic beverages described in paragraph (a) of this subdivision above at retail exclusively to registered overnight guests staying at the hotel at the time of the sale.

3. A license issued under this section shall be confined to a clearly defined area within a hotel as disclosed to the authority. Provided, however, that a hotel concessionaire licensee may use space shared with the hotel in which the licensed premises is located to keep and maintain any books and records required by this chapter and to store alcoholic beverages. Such shared space shall be disclosed to and approved by the authority.

4. The holder of a hotel concessionaire license shall take the following actions to prevent the occurrence of prohibited sales as described in section sixty-five of this chapter:

(a) The hotel shop or concession stand licensed under this section must be directly supervised by the licensee, a hired manager, or an employee of the licensee during all hours of operation;

(b) All sales of alcoholic beverages in the licensed hotel shop or concession stand must be made by a person holding a certificate of completion issued by an alcohol training awareness program pursuant to subdivision twelve of section seventeen or subdivision ten of section eighteen of this chapter;

(c) The holder of a hotel concessionaire license must obtain an age verification scanner and keep it in the hotel shop or concession stand licensed under this section;

(d) The persons making the sale of alcohol in the licensed hotel shop or concession stand must use a scanner to verify the age of customers before completing the transaction; and

(e) All other preventative measures as deemed necessary by the authority.

5. Every hotel concessionaire licensee shall regularly keep food available for sale in the shop or concession stand located within the hotel. The availability of sandwiches, soups or other foods, whether fresh, processed, pre-cooked or frozen, shall be deemed compliance with this requirement.

6. (a) Any person receiving a hotel concessionaire license under this section shall be subject to the provisions of sections one hundred five

1 and one hundred five-b of this chapter, unless determined otherwise by
2 the authority pursuant to subdivision ten of this section.

3 (b) Any premises licensed under this section and any space shared with
4 a hotel in which said premises is located shall be subject to inspection
5 by any peace officer described in subdivision four of section 2.10 of
6 the criminal procedure law acting pursuant to their special duties, or
7 police officer or any duly authorized representative of the state liquor
8 authority, during the hours when said premises are open for the trans-
9 action of business.

10 7. Notwithstanding any other provisions of this chapter, any hotel
11 business operator with a license issued under this chapter to sell alco-
12 holic beverages at retail for consumption on the premises at such hotel
13 may apply to the authority for a hotel concessionaire license.

14 8. The fee for a hotel concessionaire license shall be one thousand
15 nine hundred twenty dollars in the counties of New York, Kings, Bronx,
16 and Queens; nine hundred sixty dollars in the county of Richmond and in
17 cities having a population of more than one hundred thousand and less
18 than one million; and four hundred thirty-five dollars elsewhere. Said
19 license shall run for a period of three years. In addition to the
20 license fees provided for in this subdivision, there shall be paid to
21 the authority with each initial application a non-refundable filing fee
22 of one hundred dollars and with each renewal application a non-refunda-
23 ble filing fee of twenty-five dollars.

24 9. Such application shall be in such form and shall contain such
25 information as shall be required by the rules of the authority and shall
26 be accompanied by a check or draft in the amount required by subdivision
27 eight of this section.

28 10. The authority may promulgate such rules and regulations as may be
29 deemed necessary to carry out the provisions of this section.

30 § 2. This act shall take effect on the one hundred eightieth day after
31 it shall have become a law. Effective immediately, the addition, amend-
32 ment and/or repeal of any rule or regulation necessary for the implemen-
33 tation of this act on its effective date are authorized to be made and
34 completed on or before such effective date.

35 SUBPART F

36 Section 1. The alcoholic beverage control law is amended by adding a
37 new section 99-i to read as follows:

38 § 99-i. Early morning sports bar on-premises permit. 1. Notwithstand-
39 ing any provision of law or rule to the contrary, anyone licensed pursu-
40 ant to this chapter with the privilege of selling alcoholic beverages at
41 retail for on-premises consumption may make an application to the
42 authority for an early morning sports bar on-premises permit.

43 2. Such application shall be in such form as the authority shall
44 prescribe and shall contain such information as shall be required by the
45 authority and shall be accompanied by a check or draft in the amount of
46 one thousand dollars for such permit. A filing fee of twenty dollars
47 shall be assessed for permits issued pursuant to this section. If
48 approved, such permit term shall run for the same license period as the
49 underlying on-premises retail license.

50 3. Such permit shall authorize the operation of the underlying
51 licensed premises for on-premises retail sales during the hours of seven
52 o'clock a.m. to eight o'clock a.m. Monday through Saturday, and seven
53 o'clock a.m. to ten o'clock a.m. on Sundays, on days when a live tele-
54 vised major professional or international sporting event is played

1 during those hours in the eastern daylight time/eastern standard time
2 time zone on that date.

3 4. Section fifty-four of this chapter shall control so far as applica-
4 ble to the procedure in connection with such application.

5 5. An applicant for a permit under this section shall provide notice
6 to the local municipality of such application as provided in section one
7 hundred ten-b of this chapter.

8 6. Such permit and the exercise of the privileges granted thereunder
9 shall be subject to such rules that the authority may deem necessary.

10 § 2. Paragraphs (a) and (b) of subdivision 5 of section 106 of the
11 alcoholic beverage control law, paragraph (a) as amended by chapter 160
12 of the laws of 2024 and paragraph (b) as amended by section 1 of part FF
13 of chapter 55 of the laws of 2020, are amended to read as follows:

14 (a) Except as provided in paragraph (c) of this subdivision, on
15 Sunday, from four ante meridiem to ten o'clock a.m., except pursuant to
16 a permit issued under section ninety-nine-h ~~[or]~~, subdivision five of
17 section ninety-seven ~~[of this chapter]~~ or a permit issued under section
18 ninety-nine-i of this chapter.

19 (b) Except as provided in paragraph (c) of this subdivision, on any
20 other day between four ante meridiem and eight ante meridiem, except
21 pursuant to a permit issued under section ninety-nine-i of this chapter.

22 § 3. This act shall take effect on the one hundred eightieth day after
23 it shall have become a law. Effective immediately, the addition, amend-
24 ment and/or repeal of any rule or regulation necessary for the implemen-
25 tation of this act on its effective date are authorized to be made and
26 completed on or before such effective date.

27 SUBPART G

28 Section 1. Section 53 of the alcoholic beverage control law, as
29 amended by chapter 3 of the laws of 2021, is amended to read as follows:

30 § 53. Wholesaler's license. Any person may apply to the liquor author-
31 ity for a license to sell beer at wholesale. Such application shall be
32 in writing and verified and shall contain such information as the liquor
33 authority shall require. Such application shall be accompanied by a
34 check or draft for the amount required by this article for such license.
35 If the liquor authority shall grant the application it shall issue a
36 license in such form as shall be determined by its rules. Such a license
37 shall contain a description of the licensed premises and in form and in
38 substance shall be a license to the person therein specifically desig-
39 nated to sell beer at wholesale in the premises therein specifically
40 licensed to duly licensed wholesalers, retailers and permittees in this
41 state, and to sell or deliver beer to persons outside the state pursuant
42 to the laws of the place of such sale or delivery. A wholesaler's
43 license ~~[issued or renewed prior to July first, nineteen hundred sixty,~~
44 ~~and thereafter renewed or transferred,]~~ shall authorize the holder ther-
45 eof to sell beer at retail ~~[to a person for consumption in his home;~~
46 ~~provided, however, that regardless of the date issued, renewed or trans-~~
47 ~~ferred, a wholesaler's license issued to a brewer or to the wholly-owned~~
48 ~~subsidiary of a brewer, shall authorize the holder thereof to sell beer~~
49 ~~at retail to a person for consumption in his home]~~ for off-premises
50 consumption.

51 § 2. This act shall take effect immediately and shall apply to all
52 applications submitted to the authority on or after such effective date.
53 Effective immediately, the addition, amendment and/or repeal of any rule
54 or regulation necessary for the implementation of this act on its effec-

1 tive date are authorized to be made and completed on or before such
2 effective date.

3 SUBPART H

4 Section 1. Subdivision 3 of section 17 of the alcoholic beverage
5 control law, as separately amended by section 4 of chapter 342 and
6 section 2 of chapter 656 of the laws of 2025, is amended to read as
7 follows:

8 3. To revoke, cancel or suspend for cause any license or permit issued
9 under this chapter and/or to impose a civil penalty for cause against
10 any holder of a license or permit issued pursuant to this chapter. Any
11 civil penalty so imposed shall not exceed the sum of ten thousand
12 dollars as against the holder of any retail permit issued pursuant to
13 sections ninety-five, ninety-seven, ninety-eight, ninety-nine-d, nine-
14 ty-nine-i, and paragraph f of subdivision one of section ninety-nine-b
15 of this chapter, and as against the holder of any retail license issued
16 pursuant to sections fifty-three-a, fifty-four, fifty-four-a, fifty-
17 five, fifty-five-a, sixty-three, sixty-four, sixty-four-a, sixty-four-b,
18 sixty-four-c, sixty-four-d, sixty-four-e, sixty-four-f, sixty-four-g,
19 sixty-four-h, seventy-six-f, seventy-nine, eighty-one and eighty-one-a
20 of this chapter, and the sum of thirty thousand dollars as against the
21 holder of a license issued pursuant to sections thirty, thirty-one,
22 thirty-five, fifty-three, fifty-nine-b, sixty-one-a, sixty-one-b,
23 sixty-one-c, sixty-eight, seventy-six, seventy-six-a, [and]
24 seventy-six-c, seventy-six-d, seventy-six-f, seventy-seven, seventy-
25 eight and seventy-nine-c of this chapter, provided that the civil penal-
26 ty against the holder of a wholesale license issued pursuant to section
27 fifty-three of this chapter shall not exceed the sum of ten thousand
28 dollars where that licensee violates provisions of this chapter during
29 the course of the sale of beer at retail to a person for consumption at
30 home, and the sum of one hundred thousand dollars as against the holder
31 of any license issued pursuant to sections fifty-one, sixty-one, and
32 sixty-two of this chapter. Any civil penalty so imposed shall be in
33 addition to and separate and apart from the terms and provisions of the
34 bond required pursuant to section one hundred twelve of this chapter.
35 Provided that no appeal is pending on the imposition of such civil
36 penalty, in the event such civil penalty imposed by the division remains
37 unpaid, in whole or in part, more than forty-five days after written
38 demand for payment has been sent by first class mail to the address of
39 the licensed premises, a notice of impending default judgment shall be
40 sent by first class mail to the licensed premises and by first class
41 mail to the last known home address of the person who signed the most
42 recent license application. The notice of impending default judgment
43 shall advise the licensee: (a) that a civil penalty was imposed on the
44 licensee; (b) the date the penalty was imposed; (c) the amount of the
45 civil penalty; (d) the amount of the civil penalty that remains unpaid
46 as of the date of the notice; (e) the violations for which the civil
47 penalty was imposed; and (f) that a judgment by default will be entered
48 in the supreme court of the county in which the licensed premises are
49 located, or other court of civil jurisdiction or any other place
50 provided for the entry of civil judgments within the state of New York
51 unless the division receives full payment of all civil penalties due
52 within twenty days of the date of the notice of impending default judg-
53 ment. If full payment shall not have been received by the division with-
54 in thirty days of mailing of the notice of impending default judgment,

1 the division shall proceed to enter with such court a statement of the
2 default judgment containing the amount of the penalty or penalties
3 remaining due and unpaid, along with proof of mailing of the notice of
4 impending default judgment. The filing of such judgment shall have the
5 full force and effect of a default judgment duly docketed with such
6 court pursuant to the civil practice law and rules and shall in all
7 respects be governed by that chapter and may be enforced in the same
8 manner and with the same effect as that provided by law in respect to
9 execution issued against property upon judgments of a court of record. A
10 judgment entered pursuant to this subdivision shall remain in full force
11 and effect for eight years notwithstanding any other provision of law.

12 § 2. Subdivision 6 of section 64-a of the alcoholic beverage control
13 law, as amended by section 2 of part CC of chapter 55 of the laws of
14 2024, is amended to read as follows:

15 6. No special on-premises license shall be granted except for premises
16 in which the principal business shall be (a) the sale of food or beverages
17 at retail for consumption on the premises; (b) an airline lounge;
18 (c) a cafe or [~~(b)~~] (d) the operation of a legitimate theatre, including
19 a motion picture theatre that is a building or facility which is regularly
20 used and kept open primarily for the exhibition of motion pictures
21 for at least five out of seven days a week, or on a regular seasonal
22 basis of no less than six contiguous weeks, to the general public where
23 all auditorium seating is permanently affixed to the floor and at least
24 sixty-five percent of the motion picture theatre's annual gross revenues
25 is the combined result of admission revenue for the showing of motion
26 pictures and the sale of food and non-alcoholic beverages, or such other
27 lawful adult entertainment or recreational facility as the liquor
28 authority, giving due regard to the convenience of the public and the
29 strict avoidance of sales prohibited by this chapter, shall by regulation
30 classify for eligibility.

31 § 3. Subdivision 6 of section 64-a of the alcoholic beverage control
32 law, as amended by chapter 475 of the laws of 2011, is amended to read
33 as follows:

34 6. No special on-premises license shall be granted except for premises
35 in which the principal business shall be (a) the sale of food or beverages
36 at retail for consumption on the premises; (b) an airline lounge;
37 (c) a cafe or [~~(b)~~] (d) the operation of a legitimate theatre or such
38 other lawful adult entertainment or recreational facility as the liquor
39 authority, giving due regard to the convenience of the public and the
40 strict avoidance of sales prohibited by this chapter, shall by regulation
41 classify for eligibility. Nothing contained in this subdivision
42 shall be deemed to authorize the issuance of a license to a motion
43 picture theatre, except those meeting the definition of restaurant and
44 meals, and where all seating is at tables where meals are served.

45 § 4. This act shall take effect on the one hundred eightieth day after
46 it shall have become a law; provided however, that the amendments to
47 subdivision 3 of section 17 of the alcoholic beverage control law made
48 by section one of this act shall be subject to the expiration of such
49 subdivision and shall expire and be deemed repealed therewith; provided
50 further, however, that the amendments to subdivision 6 of section 64-a
51 of the alcoholic beverage control law made by section two of this act
52 shall be subject to the expiration and reversion of such subdivision
53 pursuant to section 5 of part CC of chapter 55 of the laws of 2024, as
54 amended, when upon such date the provisions of section three of this act
55 shall take effect. Effective immediately, the addition, amendment
56 and/or repeal of any rule or regulation necessary for the implementation

1 of this act on its effective date are authorized to be made and
2 completed on or before such effective date.

3 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-
4 sion, section or part of this act shall be adjudged by any court of
5 competent jurisdiction to be invalid, such judgment shall not affect,
6 impair, or invalidate the remainder thereof, but shall be confined in
7 its operation to the clause, sentence, paragraph, subdivision, section
8 or part thereof directly involved in the controversy in which such judg-
9 ment shall have been rendered. It is hereby declared to be the intent of
10 the legislature that this act would have been enacted even if such
11 invalid provisions had not been included herein.

12 § 3. This act shall take effect immediately, provided, however, that
13 the applicable effective date of Subparts A through H of this act shall
14 be as specifically set forth in the last section of such Subparts.

15 PART Q

16 Section 1. The alcoholic beverage control law is amended by adding a
17 new section 64-g to read as follows:

18 § 64-g. Dine and dance license. 1. Any person may make an application
19 to the state liquor authority for a license to sell liquor at retail to
20 be consumed on the premises of a dine and dance licensee. Such licenses
21 shall be issued except for good cause shown and shall in form and in
22 substance be a license to the person specifically licensed to sell
23 liquors at retail, to be consumed upon the premises. Such license shall
24 also be deemed to include a license to sell wine, beer, cider, mead
25 and/or braggot at retail to be consumed under the same terms and condi-
26 tions, without the payment of any additional fee. All of the provisions
27 of this chapter relative to licenses to sell liquor, wine, beer, cider,
28 mead and/or braggot at retail for consumption on the premises shall
29 apply so far as applicable to such application.

30 2. Such application shall be in such form and shall contain such
31 information as shall be required by the liquor authority and shall be
32 accompanied by a check or draft in the amount required by this chapter
33 for such licenses.

34 3. Section fifty-four of this chapter shall control, so far as appli-
35 cable, the procedure in connection with such application.

36 4. Under this section, permissible methods of operation include live
37 and/or recorded and/or DJ music and shall also specifically provide for
38 patron and/or employee dancing, provided that such dancing shall not
39 include exotic dancing. The liquor authority may promulgate such rules
40 and regulations as deemed necessary to carry out the provisions of this
41 section.

42 5. Every dine and dance licensee shall keep food available for sale to
43 its customers for consumption on the premises. The availability of sand-
44 wiches, soups or comparable foods, whether fresh, processed, pre-cooked
45 or frozen, during such hours of operation shall be deemed compliance
46 with this requirement. Nothing contained in this subdivision, however,
47 shall be construed to require that any food be sold or purchased with
48 any liquor.

49 6. The authority may consider any or all of the following in determin-
50 ing whether public convenience and advantage and the public interest
51 will be promoted by the granting of licenses under this section:

52 (a) the number, classes and character of licenses in proximity to the
53 location and in the particular municipality or subdivision thereof;

1 (b) evidence that applicants have secured all necessary licenses and
2 permits from the state and all other governing bodies;

3 (c) the effect that the granting of the license will have on vehicular
4 traffic and parking in the proximity of the location;

5 (d) the existing noise level at the location and any increase in noise
6 level that would be generated by the proposed premises;

7 (e) the history of liquor violations and reported criminal activity at
8 the proposed premises; and

9 (f) any other factors specified by law or regulation that are relevant
10 to determine the public convenience or advantage and necessary to find
11 that the granting of such license shall be in the public interest.

12 7. No restaurant dine and dance license shall be granted for any prem-
13 ises which shall be:

14 (a) on the same street or avenue and within two hundred feet of a
15 building occupied exclusively as a school, church, synagogue or other
16 place of worship; or

17 (b) in a city, town or village having a population of twenty thousand
18 or more within five hundred feet of three or more existing premises
19 licensed and operating pursuant to this section and sections sixty-four,
20 sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d, and/or sixty-
21 four-f of this article;

22 (c) the measurements in paragraphs (a) and (b) of this subdivision are
23 to be taken in straight lines from the center of the nearest entrance of
24 the premises sought to be licensed to the center of the nearest entrance
25 of such school, church, synagogue or other place of worship or to the
26 center of the nearest entrance of each such premises licensed and oper-
27 ating pursuant to this section and sections sixty-four, sixty-four-a,
28 sixty-four-b, sixty-four-c, sixty-four-d, and/or sixty-four-f of this
29 article; except, however, that no renewal license shall be denied
30 because of such restriction to any premises so located which were main-
31 tained as a bona fide hotel, restaurant, catering establishment or club
32 on or prior to December fifth, nineteen hundred thirty-three; and,
33 except that no license shall be denied to any premises at which a
34 license under this chapter has been in existence continuously from a
35 date prior to the date when a building on the same street or avenue and
36 within two hundred feet of said premises has been occupied exclusively
37 as a school, church, synagogue or other place of worship; and except
38 that no license shall be denied to any premises, which is within five
39 hundred feet of three or more existing premises licensed and operating
40 pursuant to this section and sections sixty-four, sixty-four-a, sixty-
41 four-b, sixty-four-c, sixty-four-d, and/or sixty-four-f of this article,
42 at which a license under this chapter has been in existence continuously
43 on or prior to November first, nineteen hundred ninety-three. The liquor
44 authority, in its discretion, may authorize the removal of any such
45 licensed premises to a different location on the same street or avenue,
46 within two hundred feet of said school, church, synagogue or other place
47 of worship, provided that such new location is not within a closer
48 distance to such school, church, synagogue or other place of worship.

49 (d) within the context of this subdivision, the word "entrance" shall
50 mean a door of a school, of a house of worship, or of premises licensed
51 and operating pursuant to this section and sections sixty-four, sixty-
52 four-a, sixty-four-b, sixty-four-c, sixty-four-d, and/or sixty-four-f of
53 this article or of the premises sought to be licensed, regularly used to
54 give ingress to students of the school, to the general public attending
55 the place of worship, and to patrons or guests of the premises licensed
56 and operating pursuant to this section and sections sixty-four, sixty-

four-a, sixty-four-b, sixty-four-c, sixty-four-d and/or sixty-four-f of this article or of the premises sought to be licensed, except that where a school or house of worship or premises licensed and operating pursuant to this section and sections sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d, and/or sixty-four-f of this article or the premises sought to be licensed is set back from a public thoroughfare, the walkway or stairs leading to any such door shall be deemed an entrance; and the measurement shall be taken to the center of the walkway or stairs at the point where it meets the building line or public thoroughfare. A door which has no exterior hardware, or which is used solely as an emergency or fire exit, or for maintenance purposes, or which leads directly to a part of a building not regularly used by the general public or patrons, is not deemed an "entrance".

(d-1) within the context of this subdivision, a building occupied as a place of worship does not cease to be "exclusively" occupied as a place of worship by incidental uses that are not of a nature to detract from the predominant character of the building as a place of worship, such uses which include, but which are not limited to: the conduct of legally authorized games of bingo or other games of chance held as a means of raising funds for the not-for-profit religious organization which conducts services at the place of worship or for other not-for-profit organizations or groups; use of the building for fund-raising performances by or benefitting the not-for-profit religious organization which conducts services at the place of worship or other not-for-profit organizations or groups; the use of the building by other religious organizations or groups for religious services or other purposes; the conduct of social activities by or for the benefit of the congregants; the use of the building for meetings held by organizations or groups providing bereavement counseling to persons having suffered the loss of a loved one, or providing advice or support for conditions or diseases including, but not limited to, alcoholism, drug addiction, cancer, cerebral palsy, Parkinson's disease, or Alzheimer's disease; the use of the building for blood drives, health screenings, health information meetings, yoga classes, exercise classes or other activities intended to promote the health of the congregants or other persons; and use of the building by non-congregant members of the community for private social functions. The building occupied as a place of worship does not cease to be "exclusively" occupied as a place of worship where the not-for-profit religious organization occupying the place of worship accepts the payment of funds to defray costs related to another party's use of the building.

8. Any license issued pursuant to this section shall be subject to 9 NYCRR §48.3.

§ 2. Subdivision 4 of section 66 of the alcoholic beverage control law, as amended by chapter 703 of the laws of 2022, is amended to read as follows:

4. The annual fee for a license, under section sixty-four ~~[of]~~, sixty-four-a, sixty-four-b, sixty-four-d, or sixty-four-g of this article, to sell liquor at retail to be consumed on the premises where sold shall be twenty-one hundred seventy-six dollars in the counties of New York, Kings, Bronx and Queens; fifteen hundred thirty-six dollars in the county of Richmond and in cities having a population of more than one hundred thousand and less than one million; twelve hundred sixteen dollars in cities having a population of more than fifty thousand and less than one hundred thousand; and the sum of eight hundred ninety-six dollars elsewhere; except that the license fees for catering establish-

ments and off-premises catering establishments shall be two-thirds the license fee specified herein and for clubs, except luncheon clubs and golf clubs, shall be seven hundred fifty dollars in counties of New York, Kings, Bronx and Queens; five hundred dollars in the county of Richmond and in cities having a population of more than one hundred thousand and less than one million; three hundred fifty dollars in cities having a population of more than fifty thousand and less than one hundred thousand; and the sum of two hundred fifty dollars elsewhere.

The annual fees for luncheon clubs shall be three hundred seventy-five dollars, and for golf clubs in the counties of New York, Kings, Bronx, Queens, Nassau, Richmond and Westchester, two hundred fifty dollars, and elsewhere one hundred eighty-seven dollars and fifty cents. Notwithstanding any other provision of law to the contrary, there shall be no annual fee for a license, under section sixty-four, to sell liquor at retail to be consumed on the premises where the applicant is an organization organized under section two hundred sixty of the military law and incorporated pursuant to the not-for-profit corporation law. Provided, however, that where any premises for which a license is issued pursuant to section sixty-four ~~[or]~~, sixty-four-a, or sixty-four-g of this article remain open only within the period commencing April first and ending October thirty-first of any one year, or only within the period commencing October first and ending the following April thirtieth, the liquor authority may, in its discretion, grant a summer or winter license effective only for such appropriate period of time, for which a license fee shall be paid to be pro-rated for the period for which such license is effective, at the rate provided for in the city, town or village in which such premises are located, except that no such license fee shall be less than one-half of the regular annual license fee; provided further that where the premises to be licensed are a race track or a golf course or are licensed pursuant to section sixty-four or sixty-four-a of this article, the period of such summer license may commence March first and end November thirtieth.

Where a hotel, restaurant, club, golf course or race track is open prior to April first and/or subsequent to October thirty-first by reason of the issuance of a caterer's permit or permits issued by the authority, such fact alone shall not affect the eligibility of the premises or the person owning or operating such hotel, restaurant, club, golf course or race track for a summer license.

§ 3. Section 67 of the alcoholic beverage control law, as amended by chapter 523 of the laws of 2023, is amended to read as follows:

§ 67. License fees, duration of licenses; fee for part of year. Effective April first, nineteen hundred eighty-three, licenses issued pursuant to sections sixty-one, sixty-two, sixty-three, sixty-four, sixty-four-a, sixty-four-b, sixty-four-c and sixty-four-e of this article shall be effective for three years at three times that annual fee, except that, in implementing the purposes of this section, the liquor authority shall schedule the commencement dates, duration and expiration dates thereof to provide for an equal cycle of license renewals issued under each such section through the course of the fiscal year. Effective December first, nineteen hundred ninety-eight, licenses issued pursuant to sections sixty-four, sixty-four-a ~~[and]~~, sixty-four-b, sixty-four-d, sixty-four-f, and sixty-four-g of this article shall be effective for two years at two times that annual fee, except that, in implementing the purposes of this section, the liquor authority shall schedule the commencement dates, duration and expiration dates thereof to provide for an equal cycle of license renewals issued under each such section

1 through the course of the fiscal year. Notwithstanding the foregoing,
2 commencing on December first, nineteen hundred ninety-eight and conclud-
3 ing on July thirty-first, two thousand two, a licensee issued a license
4 pursuant to section sixty-four, sixty-four-a or sixty-four-b of this
5 article may elect to remit the fee for such license in equal annual
6 installments. Such installments shall be due on dates established by the
7 liquor authority and the failure of a licensee to have remitted such
8 annual installments after a due date shall be a violation of this chap-
9 ter. For licenses issued for less than the three-year licensing period,
10 the license fee shall be levied on a pro-rated basis. The entire license
11 fee shall be due and payable at the time of application. The liquor
12 authority may make such rules as shall be appropriate to carry out the
13 purpose of this section.

14 § 4. Subdivision 1 of section 110-a of the alcoholic beverage control
15 law, as added by chapter 77 of the laws of 1999, is amended to read as
16 follows:

17 1. Every person applying for a license to sell alcoholic beverages
18 pursuant to subdivision four of section fifty-one, or section fifty-
19 five, sixty-four, sixty-four-a, sixty-four-b, sixty-four-c,
20 sixty-four-d, sixty-four-f, sixty-four-g, eighty-one or eighty-one-a of
21 this chapter shall publish notice thereof pursuant to subdivision two of
22 this section.

23 § 5. Subdivision 1 of section 110-b of the alcoholic beverage control
24 law, as amended by chapter 342 of the laws of 2025, is amended to read
25 as follows:

26 1. Not more than two hundred seventy days before filing any of the
27 following applications, an applicant shall notify the municipality in
28 which the premises is located of such applicant's intent to file such an
29 application:

30 (a) for a license issued pursuant to section fifty-five, fifty-five-a,
31 sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d,
32 sixty-four-f, sixty-four-g, eighty-one or eighty-one-a of this chapter;

33 (b) for a renewal under section one hundred nine of this chapter of a
34 license issued pursuant to section fifty-five, fifty-five-a, sixty-four,
35 sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f, sixty-four-g,
36 eighty-one or eighty-one-a of this chapter if the premises is located
37 within the city of New York;

38 (c) for approval of an alteration under section ninety-nine-d of this
39 chapter if the premises is located within the city of New York and
40 licensed pursuant to section fifty-five, fifty-five-a, sixty-four,
41 sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f, sixty-four-g,
42 eighty-one or eighty-one-a of this chapter;

43 (d) for approval of a substantial corporate change under section nine-
44 ty-nine-d of this chapter if the premises is located within the city of
45 New York and licensed pursuant to section fifty-five, fifty-five-a,
46 sixty-four, sixty-four-a, sixty-four-c, sixty-four-d, sixty-four-f,
47 sixty-four-g, eighty-one or eighty-one-a of this chapter; or

48 (e) for a temporary retail permit issued under paragraph (b) of subdivi-
49 sion one of section ninety-seven-a of this chapter where the estab-
50 lishment is to be licensed pursuant to section fifty-five, fifty-five-a,
51 sixty-four, sixty-four-a, sixty-four-b, sixty-four-c, sixty-four-d,
52 sixty-four-f, sixty-four-g, eighty-one or eighty-one-a of this chapter
53 located in a city with a population of one million or more people. If an
54 applicant subject to this paragraph shall, after filing an application
55 for a retail license and providing proper notice for such application
56 pursuant to paragraph (a) of this subdivision, subsequently file an

1 application for a temporary retail permit pursuant to section ninety-
2 seven-a of this chapter at the same premises, such applicant must file
3 additional notice pursuant to this paragraph; provided, however, such
4 notice will be effective at the later of its proper service under this
5 section or thirty days from the date proper notice was served under
6 paragraph (a) of this subdivision for the license at the same premises.

7 § 6. This act shall take effect on the one hundred eightieth day after
8 it shall have become a law and shall apply to all applications received
9 by the authority on or after such effective date; provided, however,
10 that if chapter 342 of the laws of 2025 shall not have taken effect on
11 or before such date then section five of this act shall take effect on
12 the same date and in the same manner as such chapter of the laws of 2025
13 takes effect. Effective immediately, the addition, amendment, and/or
14 repeal of any rule or regulation necessary for the implementation of
15 this act on its effective date are authorized to be made and completed
16 on or before such effective date.

17 PART R

18 Section 1. Subdivisions 2 and 3 of section 17-212 of the election law,
19 as added by chapter 226 of the laws of 2022, are amended to read as
20 follows:

21 2. (a) Any person, political committee, labor organization, corpo-
22 ration, or other entity, whether acting under color of law or otherwise,
23 who knowingly violates subdivision one of this section is guilty of a
24 class A misdemeanor.

25 (b) Any attempt to commit an offense described in subdivision one of
26 this section, in accordance with the applicable provision of the penal
27 law, is a class B misdemeanor.

28 3. Standing. Any aggrieved persons, organization whose membership
29 includes aggrieved persons or members of a protected class, organization
30 whose mission, in whole or in part, is to ensure voting access and such
31 mission would be hindered by a violation of this section, or the attor-
32 ney general may file an action pursuant to this section in the supreme
33 court of the county in which the alleged violation of this section
34 occurred.

35 ~~[3-]~~ 4. Remedies. (a) The provisions of article twenty and article one
36 hundred five of the penal law, relating to criminal liability for
37 conduct of another and conspiracy, shall apply to prosecutions under
38 this section.

39 (b) Notwithstanding any other provision of law, the attorney general
40 shall have concurrent jurisdiction with any district attorney in the
41 prosecution of any offenses under this section relating to deceptive
42 practices as well as any offenses arising out of such prosecution.

43 (c) Upon a finding of a violation of any provision of this section,
44 the court shall implement appropriate remedies that are tailored to
45 remedy the violation, including but not limited to providing for addi-
46 tional time to cast a ballot that may be counted in the election at
47 issue. Any party who shall violate any of the provisions of the forego-
48 ing section or who shall aid the violation of any of said provisions
49 shall be liable to any prevailing plaintiff party for damages, including
50 nominal damages for any violation, and compensatory or punitive damages
51 for any intentional violation.

52 § 2. Section 17-166 of the election law is amended to read as follows:

53 § 17-166. Penalty. Any person convicted of a misdemeanor under this
54 article shall for a first offense be punished by a sentence of imprison-

ment for not more than one year, or by a fine of not less than one hundred dollars nor more than five hundred dollars, or by both such fine and imprisonment, unless otherwise provided by law. Any person who, having been convicted of a misdemeanor under this article, shall thereafter be convicted of another misdemeanor under this article, shall be guilty of a class E felony. For any subsequent conviction under this article, such person shall be guilty of a class D felony.

§ 3. This act shall take effect immediately.

PART S

Section 1. Subdivision 5 of section 14-106 of the election law, as added by section 1 of subpart B of part MM of chapter 58 of the laws of 2024 and paragraph (b) as amended by chapter 169 of the laws of 2024, is amended to read as follows:

5. (a) For purposes of this subdivision:

(i) "Materially deceptive media" means any image, video, audio, text, or any technological representation of speech or conduct fully or partially created or modified that:

(1) exhibits a high level of authenticity or convincing appearance that is visually or audibly indistinguishable from reality to a reasonable person;

(2) depicts a scenario that did not actually occur or that has been altered in a significant way from how ~~they~~ it actually occurred; and

(3) is created by or with software, machine learning, artificial intelligence, or any other computer-generated or technological means, including adapting, modifying, manipulating, or altering a realistic depiction.

(ii) "Information content provider" means any person or entity that is responsible, in whole or in part, for the creation or development of information provided through the Internet or any other interactive computer service.

(iii) "Provenance data" has the same meaning as defined in section fifteen hundred thirty of the general business law except that for the purposes of this section, to the extent it is technically feasible and reasonable, "provenance data" shall include unique device, system, or service information that is reasonably capable of being associated with a particular user who created or modified such digital content.

(b) (i) A person, firm, association, corporation, campaign, committee, or organization that distributes or publishes any political communication that was produced by or includes materially deceptive media and has actual knowledge that it is materially deceptive shall be required to disclose this use. To the extent it is technically feasible and reasonable, such materially deceptive media shall contain provenance data.

(ii) (1) For visual media the disclosure shall be printed or typed in a legible font size easily readable by the average viewer that is no smaller than other text appearing in the visual media and in the same language used on the communication to read as follows: "This (image, video, or audio) has been manipulated".

(2) For communication that is auditory, such as radio or automated telephone calls, clearly speaking the statement at the beginning of the audio, at the end of the audio, and, if the audio is greater than two minutes in length, interspersed within the audio at intervals of not greater than two minutes each and in the same language as the rest of the audio used in the communication, and in a pitch that can be easily

1 heard by the average listener satisfies the requirements of clause one
2 of this subparagraph.

3 (c) A person, firm, association, corporation, campaign, committee, or
4 organization shall not distribute or publish materially deceptive media
5 or enter into a contract or other agreement to distribute or publish
6 materially deceptive media if such person, firm, association, corpo-
7 ration, campaign, committee, or organization knows or reasonably should
8 know that the item being disseminated is materially deceptive media and
9 distribution:

10 (i) takes place within ninety days before an election;

11 (ii) is made without the express written consent of any depicted indi-
12 vidual; and

13 (iii) is made with the intent to influence the result of an election.

14 ~~[(iii) This paragraph]~~ (d) Paragraphs (b) and (c) of this subdivision
15 shall not apply to the following:

16 ~~[(1)]~~ (i) materially deceptive media that constitutes satire or paro-
17 dy;

18 ~~[(2)]~~ (ii) materially deceptive media distributed by a bona fide news
19 reporting entity for the purpose of news reporting or coverage, if the
20 reporting clearly acknowledges through content or a disclosure, in a
21 manner that can be easily read or heard by the average listener or view-
22 er, that there are questions about the authenticity of the materially
23 deceptive media;

24 ~~[(3)]~~ (iii) a radio or television broadcasting station, including a
25 cable television, satellite television or streaming service operator,
26 programmer, producer or other similar entity, that broadcasts a poli-
27 tical communication when the station or streaming service is paid to
28 broadcast the political communication if the station or streaming
29 service can show that it has disclaimer requirements that are consistent
30 with the requirements provided in ~~[this]~~ paragraph (b) of this subdivi-
31 sion and that it provided those disclaimer requirements to each person
32 or entity that purchased the broadcast or streaming of the advertise-
33 ment; or

34 ~~[(4)]~~ (iv) initial dissemination by a platform or service including,
35 but not limited to, a website, regularly published newspaper, or maga-
36 zine, where the content disseminated is materially deceptive media
37 provided by another information content provider.

38 ~~[(iv)]~~ (e) A candidate whose voice or likeness appears in materially
39 deceptive media in violation of this subdivision may seek reasonable
40 court costs and attorneys' fees and injunctive relief prohibiting the
41 distribution, publication or broadcasting of any materially deceptive
42 media in violation of this subdivision against such individual or entity
43 who disseminated or published such media without the consent of the
44 person depicted and who knew or should have known that it was materially
45 deceptive. An action under this paragraph shall be initiated by filing
46 an application for an order to show cause in the supreme court where the
47 materially deceptive media at issue could deceive and influence electors
48 in an upcoming election. Such action shall be entitled to an automatic
49 calendar preference and be subject to expedited pretrial and trial
50 proceedings.

51 ~~[(v)]~~ (f) In any action alleging a violation of this subdivision in
52 which a plaintiff seeks preliminary relief with respect to an upcoming
53 election, the court shall grant relief if it determines that:

54 ~~[(A)]~~ (i) plaintiffs are more likely than not to succeed on the
55 merits; and

1 ~~[(B)]~~ (ii) it is possible to implement an appropriate remedy that
2 would resolve the alleged violation in the upcoming election.
3 ~~[(vi)]~~ (g) In any action commenced under this subdivision, the plain-
4 tiff bears the burden of establishing the use of materially deceptive
5 media by clear and convincing evidence.
6 § 2. This act shall take effect January 1, 2027.

7 PART T

8 Section 1. Section 602 of the financial services law, as added by
9 section 26 of part H of chapter 60 of the laws of 2014, is amended to
10 read as follows:

11 § 602. Applicability. ~~[(a)]~~ This article shall not apply to health
12 care services, including emergency services, where physician fees are
13 subject to schedules or other monetary limitations under any other law,
14 including the workers' compensation law and article fifty-one of the
15 insurance law, and shall not preempt any such law. This article also
16 shall not apply to health care services, including emergency services,
17 subject to medical assistance program coverage provided pursuant to
18 section three hundred sixty-four-j of the social services law.

19 § 2. Subsection (c) of section 603 of the financial services law, as
20 added by section 26 of part H of chapter 60 of the laws of 2014, is
21 amended and two new subsections (j) and (k) are added to read as
22 follows:

23 (c) "Health care plan" means an insurer licensed to write accident and
24 health insurance pursuant to article thirty-two of the insurance law; a
25 corporation organized pursuant to article forty-three of the insurance
26 law; a municipal cooperative health benefit plan certified pursuant to
27 article forty-seven of the insurance law; a health maintenance organiza-
28 tion certified pursuant to article forty-four of the public health law;
29 ~~[or]~~ a student health plan established or maintained pursuant to section
30 one thousand one hundred twenty-four of the insurance law; or a health
31 benefit plan operated pursuant to article eleven of the civil service
32 law.

33 (j) "Allowed benchmark" means the fiftieth percentile of all allowed
34 amounts for the particular health care service performed by a partic-
35 ipating provider in the same or similar specialty and provided in the
36 same geographical area as reported in a benchmarking database maintained
37 by a nonprofit organization specified by the superintendent. The
38 nonprofit organization shall not be affiliated with an insurer, a corpo-
39 ration subject to article forty-three of the insurance law, a municipal
40 cooperative health benefit plan certified pursuant to article forty-sev-
41 en of the insurance law, or a health maintenance organization certified
42 pursuant to article forty-four of the public health law.

43 (k) "Maximum fee" means the eightieth percentile of all allowed
44 amounts for the particular health care service performed by a partic-
45 ipating provider in the same or similar specialty and provided in the
46 same geographical area as reported in a benchmarking database maintained
47 by a nonprofit organization specified by the superintendent. The nonpro-
48 fit organization shall not be affiliated with an insurer, a corporation
49 subject to article forty-three of the insurance law, a municipal cooper-
50 ative health benefit plan certified pursuant to article forty-seven of
51 the insurance law, or a health maintenance organization certified pursu-
52 ant to article forty-four of the public health law.

§ 3. Section 604 of the financial services law, as amended by section 4 of subpart A of part AA of chapter 57 of the laws of 2022, is amended to read as follows:

§ 604. Criteria for determining a reasonable fee. (a) In determining the appropriate amount to pay for a health care service, an independent dispute resolution entity shall ~~[consider all relevant factors, including]~~ select either the health care plan's payment or the non-participating provider's fee depending on which one is closest to the allowed benchmark, provided, however, that the independent dispute resolution entity may choose the health care plan's payment or the non-participating provider's fee if it is not closest to the allowed benchmark if:

~~[(a) whether there is a gross disparity between the fee charged by the provider for services rendered as compared to:]~~

~~(1) [fees paid to the involved provider for the same services rendered by the provider to other patients in health care plans in which the provider is not participating, and~~

~~(2) in the case of a dispute involving a health care plan, fees paid by the health care plan to reimburse similarly qualified providers for the same services in the same region who are not participating with the health care plan;~~

~~(b)] the health care plan's payment or the non-participating provider's fee are equally distant from the allowed benchmark; or~~

~~(2) the independent dispute resolution entity determines that any of the following information submitted by either party clearly demonstrates that the allowed benchmark is not appropriate:~~

~~(A) the level of training, education and experience of the health care professional, and in the case of a hospital, the teaching staff, scope of services and case mix;~~

~~[(c) the provider's usual charge for comparable services with regard to patients in health care plans in which the provider is not participating;~~

~~(d)] (B) the circumstances and complexity of the particular case, including time and place of the service; or~~

~~[(e)] (C) individual patient characteristics[;~~

~~(f) the median of the rate recognized by the health care plan to reimburse similarly qualified providers for the same or similar services in the same region that are participating with the health care plan; and~~

~~(g) with regard to physician services, the usual and customary cost of the service].~~

(b) If the independent dispute resolution entity selects the health care plan's payment or the non-participating provider's fee that is not closest to the allowed benchmark, such decision shall not be on the basis of:

(1) whether there is a gross disparity between the fee charged by the provider for services rendered as compared to:

(A) fees paid to the involved provider for the same services rendered by the provider to other patients in health care plans in which the provider is not participating; or

(B) in the case of a dispute involving a health care plan, fees paid by the health care plan to reimburse similarly qualified providers for the same services in the same region who are not participating with the health care plan;

(2) the provider's usual charge for comparable services with regard to patients in health care plans in which the provider is not participating; or

1 (3) with regard to physician services, the usual and customary cost of
2 the service.

3 (c) If an independent dispute resolution entity makes a determination
4 pursuant to paragraph two of subsection (a) of this section, its written
5 decision shall include an explanation of the factors in paragraph two of
6 subsection (a) of this section that demonstrated the health care plan's
7 payment or non-participating provider's fee closest to the allowed
8 benchmark was materially different from the appropriate payment for the
9 health care service.

10 (d) If the independent dispute resolution entity determines the non-
11 participating provider's fee is a reasonable fee for the services
12 rendered, in no circumstances shall the amount owed by a health care
13 plan exceed the maximum fee.

14 § 4. Subsection (b) of section 608 of the financial services law, as
15 amended by section 26 of part H of chapter 60 of the laws of 2014, is
16 amended to read as follows:

17 (b) (1) A non-participating provider and a health care plan shall
18 submit full payment for the dispute resolution process upon submission
19 of the dispute resolution application or, if the responding party, when
20 responding to the independent dispute resolution entity's request for
21 eligibility information and supporting documents.

22 (2) An independent dispute resolution entity shall not comingle the
23 payments for the dispute resolution process with any other funds held by
24 the entity and shall hold all payments in a separate account.

25 (3) An independent dispute resolution entity shall issue a refund of
26 the dispute resolution process payment to the prevailing party within
27 thirty days of rendering a determination on the dispute or rejecting the
28 dispute as ineligible.

29 (c) For disputes involving a patient that is not an insured, when the
30 independent dispute resolution entity determines the physician's fee is
31 reasonable, payment for the dispute resolution process shall be the
32 responsibility of the patient unless payment for the dispute resolution
33 process would pose a hardship to the patient. The superintendent shall
34 promulgate a regulation to determine payment for the dispute resolution
35 process in cases of hardship. When the independent dispute resolution
36 entity determines the physician's fee is unreasonable, payment for the
37 dispute resolution process shall be the responsibility of the physician.

38 § 5. Paragraph 3 of subsection (a) of section 605 of the financial
39 services law, as amended by section 5 of subpart A of part AA of chapter
40 57 of the laws of 2022, is amended to read as follows:

41 (3) The independent dispute resolution entity shall make a determi-
42 nation within ~~[thirty]~~ forty-five business days of receipt of all infor-
43 mation the independent dispute resolution entity determines that it
44 needs to review the dispute ~~[for review]~~.

45 § 6. Paragraph 5 of subsection (a) of section 607 of the financial
46 services law, as amended by section 8 of subpart A of part AA of chapter
47 57 of the laws of 2022, is amended to read as follows:

48 (5) The independent dispute resolution entity shall make a determi-
49 nation within ~~[thirty]~~ forty-five business days of receipt of all infor-
50 mation the independent dispute resolution entity determines that it
51 needs to review the dispute ~~[for review]~~.

52 § 7. This act shall take effect immediately and shall apply to
53 disputes submitted on or after such effective date; provided, however,
54 that sections two, three, four, five and six of this act shall take
55 effect on the ninetieth day after it shall have become a law and shall
56 apply to disputes submitted on or after such effective date.

1

PART U

2 Section 1. Paragraph (d) of subdivision 8 of section 94 of the execu-
3 tive law, as added by section 2 of part QQ of chapter 56 of the laws of
4 2022, is amended and a new paragraph (d-1) is added to read as follows:

5 (d) The commission shall develop and administer training courses for
6 lobbyists and clients of lobbyists and adopt regulations and procedures
7 related to such training courses including, but not limited to, estab-
8 lishing deadlines for training course completion.

9 (d-1) The commission may impose a fee upon lobbyists and clients of
10 lobbyists for late completion of the training course required by this
11 subdivision, as set forth in section one-d of the legislative law.

12 § 2. Subdivision (h) of section 1-d of the legislative law, as added
13 by section 7 of part A of chapter 399 of the laws of 2011, is amended
14 and a new subdivision (i) is added to read as follows:

15 (h) provide an online ethics training course for ~~[individuals regis-~~
16 ~~tered as]~~ lobbyists and clients listed on a statement of registration
17 submitted pursuant to section one-e of this article. The curriculum for
18 the course shall include, but not be limited to, explanations and
19 discussions of the statutes and regulations of New York concerning
20 ethics in the public officers law, the election law, the legislative
21 law, summaries of advisory opinions, underlying purposes and principles
22 of the relevant laws, and examples of practical application of these
23 laws and principles. The commission shall prepare those methods and
24 materials necessary to implement the curriculum. ~~[Each individual~~
25 ~~registered as a]~~ Through calendar year two thousand twenty-six, each
26 lobbyist ~~[pursuant to section one-e of this article]~~ and client shall
27 complete such training course at least once in any three-year period
28 during which ~~[he or she is registered as a]~~ the lobbyist or client is
29 listed on a statement of registration submitted pursuant to section
30 one-e of this article in accordance with procedures adopted by the
31 commission. Commencing with the two thousand twenty-seven--two thousand
32 twenty-eight biennial period and thereafter, each lobbyist and client
33 shall complete such training course at least once in each biennial peri-
34 od and at least once every two years during which the lobbyist or client
35 is listed on a statement of registration submitted pursuant to section
36 one-e of this article, in accordance with procedures adopted by the
37 commission.

38 (i) impose a fee for failure to complete the online ethics training
39 course in a timely manner as required by this section, not to exceed
40 twenty-five dollars for each day that the lobbyist or client is late, in
41 accordance with procedures adopted by the commission.

42 § 3. This act shall take effect immediately.

43

PART V

44 Section 1. Section 73-a of the public officers law, as amended by
45 section 5 of part A of chapter 399 of the laws of 2011, paragraphs (c),
46 (d) and (d-1) of subdivision 1 as amended by section 5, paragraph (e-1)
47 as added by section 6, subdivision 2 as amended by section 7, subdivi-
48 sion 3 as amended by section 18, subparagraphs (b), (b-2), and (c) of
49 paragraph 8 of subdivision 3 as separately amended by section 8, and
50 subdivisions 4 and 7 as amended by section 9 of part QQ of chapter 56 of
51 the laws of 2022, paragraph (l) of subdivision 1 as amended by chapter
52 643 of the laws of 2023, and paragraph 16-a of subdivision 3 as added by
53 chapter 591 of the laws of 2023, subdivision 6 as added by section 5 of

part A of chapter 399 of the laws of 2011, is amended to read as follows:

§ 73-a. Financial disclosure. 1. As used in this section, terms shall have the same meanings as defined in section seventy-three of this article except:

(a) ~~[The term "statewide elected official" shall mean the governor, lieutenant governor, comptroller, or attorney general.~~

~~(b) The term "state agency" shall mean any state department, or division, board, commission, or bureau of any state department, any public benefit corporation, public authority or commission at least one of whose members is appointed by the governor, or the state university of New York or the city university of New York, including all their constituent units except community colleges of the state university of New York and the independent institutions operating statutory or contract colleges on behalf of the state.~~

~~(c)~~ The term "state officer or employee" shall mean:

(i) heads of state departments and their deputies and assistants;

(ii) officers and employees of statewide elected officials, officers and employees of state departments, boards, bureaus, divisions, commissions, councils or other state agencies, who receive annual compensation in excess of the filing rate established by paragraph (l) of this subdivision or who hold policy-making positions, as annually determined by the appointing authority and set forth in a written instrument which shall be filed with the commission on ethics and lobbying in government established by section ninety-four of the executive law during the month of February, provided, however, that the appointing authority shall amend such written instrument after such date within thirty days after the undertaking of policy-making responsibilities by a new employee or any other employee whose name did not appear on the most recent written instrument; and

(iii) members or directors of public authorities, other than multi-state authorities, public benefit corporations and commissions at least one of whose members is appointed by the governor, and employees of such authorities, corporations and commissions who receive annual compensation in excess of the filing rate established by paragraph (l) of this subdivision or who hold policy-making positions, as determined annually by the appointing authority and set forth in a written instrument which shall be filed with the commission on ethics and lobbying in government established by section ninety-four of the executive law during the month of February, provided, however, that the appointing authority shall amend such written instrument after such date within thirty days after the undertaking of policy-making responsibilities by a new employee or any other employee whose name did not appear on the most recent written instrument.

~~(d)~~ (b) The term "legislative employee" shall mean any officer or employee of the legislature who receives annual compensation in excess of the filing rate established by paragraph (l) below or who is determined to hold a policy-making position by the appointing authority as set forth in a written instrument which shall be filed with the legislative ethics commission and the commission on ethics and lobbying in government.

~~(d-1)~~ (c) The term "relative" shall mean such individual's spouse, child, stepchild, stepparent, or any person who is a direct descendant of the grandparents of the reporting individual or of the reporting individual's spouse.

1-a. In addition, as used in this section:

1 (a) A financial disclosure statement required pursuant to section
2 seventy-three of this article and this section shall be deemed "filed"
3 with the commission on ethics and lobbying in government upon its
4 filing, in accordance with this section, with the legislative ethics
5 commission for all purposes including, but not limited to, section nine-
6 ty-four of the executive law, subdivision nine of section eighty of the
7 legislative law and subdivision four of this section.

8 ~~[(e)]~~ (b) The term "spouse" shall ~~[mean]~~ not include the ~~[husband or~~
9 ~~wife]~~ spouse of the reporting individual ~~[unless]~~ if the spouse is
10 living separate and apart from the reporting individual with the inten-
11 tion of terminating the marriage or providing for permanent separation
12 or unless separated pursuant to: (i) a judicial order, decree or judg-
13 ment, or (ii) a legally binding separation agreement.

14 ~~[(e-1) The term "domestic partner" shall mean a person who, with~~
15 ~~respect to another person, is formally a party in a domestic partnership~~
16 ~~or similar relationship with the other person, entered into pursuant to~~
17 ~~the laws of the United States or any state, local or foreign jurisdic-~~
18 ~~tion, or registered as the domestic partner of the other person with any~~
19 ~~registry maintained by the employer of either party or any state, muni-~~
20 ~~cipality, or foreign jurisdiction.~~

21 ~~(f) The term "relative" shall mean such individual's spouse, child,~~
22 ~~stepchild, stepparent, or any person who is a direct descendant of the~~
23 ~~grandparents of the reporting individual or of the reporting individ-~~
24 ~~ual's spouse.~~

25 ~~[(g)]~~ (c) The term "unemancipated child" shall mean any ~~[son, daughter,~~
26 ~~stepson or stepdaughter]~~ child or stepchild who is under age eighteen,
27 unmarried and living in the household of the reporting individual.

28 ~~[(h) The term "political party chairman" shall have the same meaning~~
29 ~~as ascribed to such term by subdivision one of section seventy-three of~~
30 ~~this article.~~

31 ~~[(i)]~~ (d) The term "local agency" shall mean:

32 (i) any county, city, town, village, school district or district
33 corporation, or any agency, department, division, board, commission or
34 bureau thereof; and

35 (ii) any public benefit corporation or public authority not included
36 in the definition of a state agency.

37 ~~[(j) The term "regulatory agency" shall have the same meaning as~~
38 ~~ascribed to such term by subdivision one of section seventy-three of~~
39 ~~this article.~~

40 ~~[(k) The term "ministerial matter" shall have the same meaning as~~
41 ~~ascribed to such term by subdivision one of section seventy-three of~~
42 ~~this article.~~

43 ~~[(l)]~~ (e) The term "filing rate" shall mean the higher of the job rates
44 of SG-24 as set forth in paragraph a or c of subdivision one of section
45 one hundred thirty of the civil service law as of April first of the
46 year in which an annual financial disclosure statement shall be filed.

47 ~~[(m)]~~ (f) The term "lobbyist" shall have the same meaning as ascribed
48 to such term in subdivision (a) of section one-c of the legislative law.

49 2. (a) Every statewide elected official, state officer or employee,
50 member of the legislature, legislative employee and political party
51 chair and every candidate for statewide elected office or for member of
52 the legislature shall file an annual statement of financial disclosure
53 containing the information and in the form set forth in subdivision
54 three of this section. On or before the fifteenth day of May with
55 respect to the preceding calendar year: (1) every member of the legisla-
56 ture, every candidate for member of the legislature and legislative

1 employee shall file such statement with the legislative ethics commis-
2 sion which shall provide such statement along with any requests for
3 exemptions or deletions to the commission on ethics and lobbying in
4 government for filing and rulings with respect to such requests for
5 exemptions or deletions, on or before the thirtieth day of June; and (2)
6 all other individuals required to file such statement shall file it with
7 the commission on ethics and lobbying in government, except that:

8 (i) a person who is subject to the reporting requirements of this
9 subdivision and who timely filed with the internal revenue service an
10 application for automatic extension of time in which to file [~~his or~~
11 ~~her~~] such individual's individual income tax return for the immediately
12 preceding calendar or fiscal year shall be required to file such finan-
13 cial disclosure statement on or before May fifteenth but may, without
14 being subjected to any civil penalty on account of a deficient state-
15 ment, indicate with respect to any item of the disclosure statement that
16 information with respect thereto is lacking but will be supplied in a
17 supplementary statement of financial disclosure, which shall be filed on
18 or before the seventh day after the expiration of the period of such
19 automatic extension of time within which to file such individual income
20 tax return, provided that failure to file or to timely file such supple-
21 mentary statement of financial disclosure or the filing of an incomplete
22 or deficient supplementary statement of financial disclosure shall be
23 subject to the notice and penalty provisions of this section respecting
24 annual statements of financial disclosure as if such supplementary
25 statement were an annual statement;

26 (ii) a person who is required to file an annual financial disclosure
27 statement with the commission on ethics and lobbying in government, and
28 who is granted an additional period of time within which to file such
29 statement due to justifiable cause or undue hardship, in accordance with
30 required rules and regulations adopted pursuant to section ninety-four
31 of the executive law shall file such statement within the additional
32 period of time granted; and the legislative ethics commission shall
33 notify the commission on ethics and lobbying in government of any exten-
34 sion granted pursuant to this paragraph;

35 (iii) candidates for statewide office who receive a party designation
36 for nomination by a state committee pursuant to section 6-104 of the
37 election law shall file such statement within ten days after the date of
38 the meeting at which they are so designated;

39 (iv) candidates for statewide office who receive twenty-five percent
40 or more of the vote cast at the meeting of the state committee held
41 pursuant to section 6-104 of the election law and who demand to have
42 their names placed on the primary ballot and who do not withdraw within
43 fourteen days after such meeting shall file such statement within ten
44 days after the last day to withdraw their names in accordance with the
45 provisions of such section of the election law;

46 (v) candidates for statewide office and candidates for member of the
47 legislature who file party designating petitions for nomination at a
48 primary election shall file such statement within ten days after the
49 last day allowed by law for the filing of party designating petitions
50 naming them as candidates for the next succeeding primary election;

51 (vi) candidates for independent nomination who have not been desig-
52 nated by a party to receive a nomination shall file such statement with-
53 in ten days after the last day allowed by law for the filing of inde-
54 pendent nominating petitions naming them as candidates in the next
55 succeeding general or special election;

1 (vii) candidates who receive the nomination of a party for a special
2 election shall file such statement within ten days after the date of the
3 meeting of the party committee at which they are nominated;

4 (viii) a candidate substituted for another candidate, who fills a
5 vacancy in a party designation or in an independent nomination, caused
6 by declination, shall file such statement within ten days after the last
7 day allowed by law to file a certificate to fill a vacancy in such party
8 designation or independent nomination;

9 (ix) with respect to all candidates for member of the legislature, the
10 legislative ethics commission shall within five days of receipt provide
11 the commission on ethics and lobbying in government the statement filed
12 pursuant to subparagraphs (v), (vi), (vii) and (viii) of this paragraph.

13 (b) As used in this subdivision, the terms "party", "committee" (when
14 used in conjunction with the term "party"), "designation", "primary",
15 "primary election", "nomination", "independent nomination" and "ballot"
16 shall have the same meanings as those contained in section 1-104 of the
17 election law.

18 (c) If the reporting individual is a senator or member of assembly,
19 candidate for the senate or member of assembly or a legislative employ-
20 ee, such statement shall be filed with both the legislative ethics
21 commission established by section eighty of the legislative law and the
22 commission on ethics and lobbying in government in accordance with para-
23 graph (d-1) of subdivision one of this section. If the reporting indi-
24 vidual is a statewide elected official, candidate for statewide elected
25 office, a state officer or employee or a political party chair, such
26 statement shall be filed with the commission on ethics and lobbying in
27 government established by section ninety-four of the executive law.

28 (d) The commission on ethics and lobbying in government shall obtain
29 from the state board of elections a list of all candidates for statewide
30 office and for member of the legislature, and from such list, shall
31 determine and publish a list of those candidates who have not, within
32 ten days after the required date for filing such statement, filed the
33 statement required by this subdivision.

34 (e) Any person required to file such statement who commences employ-
35 ment after May fifteenth of any year and political party chair shall
36 file such statement within thirty days after commencing employment or of
37 taking the position of political party chair, as the case may be. In the
38 case of members of the legislature and legislative employees, such
39 statements shall be filed with the legislative ethics commission within
40 thirty days after commencing employment, and the legislative ethics
41 commission shall provide such statements to the commission on ethics and
42 lobbying in government within forty-five days of receipt.

43 (f) A person who may otherwise be required to file more than one annu-
44 al financial disclosure statement with both the commission on ethics and
45 lobbying in government and the legislative ethics commission in any one
46 calendar year may satisfy such requirement by filing one such statement
47 with either body and by notifying the other body of such compliance.

48 (g) A person who is employed in more than one employment capacity for
49 one or more employers certain of whose officers and employees are
50 subject to filing a financial disclosure statement with the same ethics
51 commission, as the case may be, and who receives distinctly separate
52 payments of compensation for such employment shall be subject to the
53 filing requirements of this section if the aggregate annual compensation
54 for all such employment capacities is in excess of the filing rate
55 notwithstanding that such person would not otherwise be required to file
56 with respect to any one particular employment capacity. A person not

otherwise required to file a financial disclosure statement hereunder who is employed by an employer certain of whose officers or employees are subject to filing a financial disclosure statement with the commission on ethics and lobbying in government and who is also employed by an employer certain of whose officers or employees are subject to filing a financial disclosure statement with the legislative ethics commission shall not be subject to filing such statement with either such commission on the basis that ~~his~~ such person's aggregate annual compensation from all such employers is in excess of the filing rate.

(h) A statewide elected official or member of the legislature, who is simultaneously a candidate for statewide elected office or member of the legislature, shall satisfy the filing deadline requirements of this subdivision by complying only with the deadline applicable to one who holds a statewide elected office or who holds the office of member of the legislature.

(i) A candidate whose name will appear on both a party designating petition and on an independent nominating petition for the same office or who will be listed on the election ballot for the same office more than once shall satisfy the filing deadline requirements of this subdivision by complying with the earliest applicable deadline only.

(j) A member of the legislature who is elected to such office at a special election prior to May fifteenth in any year shall satisfy the filing requirements of this subdivision in such year by complying with the earliest applicable deadline only.

(k) The commission on ethics and lobbying in government shall post for at least five years beginning for filings made on January first, two thousand thirteen the annual statement of financial disclosure and any amendments filed by each person subject to the reporting requirements of this subdivision who is an elected official on its website for public review within thirty days of its receipt of such statement or within ten days of its receipt of such amendment that reflects any corrections of deficiencies identified by the commission or by the reporting individual after the reporting individual's initial filing. Except upon an individual determination by the commission that certain information may be ~~deleted~~ redacted from a reporting individual's annual statement of financial disclosure, none of the information in the statement posted on the commission's website shall be otherwise ~~deleted~~ redacted.

3. The annual statement of financial disclosure shall contain the information and shall be in the form set forth hereinbelow:

ANNUAL STATEMENT OF FINANCIAL DISCLOSURE - (For calendar year _____)

1. Name _____
2. (a) Title of Position _____
(b) Department, Agency or other Governmental Entity _____
(c) Address of Present Office _____
(d) Office Telephone Number _____
3. (a) Marital Status _____. If married, please give spouse's full name. _____
(b) Full name of domestic partner (if applicable). _____
(c) List the names of all unemancipated children.

1 _____

2 _____

3 _____

4 _____

5 _____

6 Answer each of the following questions completely, with respect to
 7 calendar year _____, unless another period or date is otherwise
 8 specified. If additional space is needed, attach additional pages.

9 Whenever a "value" or "amount" is required to be reported herein, such
 10 value or amount [~~shall~~] may be reported as being within [~~one of the~~
 11 ~~following Categories in Table I or Table II of this subdivision as~~
 12 ~~called for in the question: A reporting individual shall indicate the~~
 13 ~~Category by letter only~~] the letter category as indicated in the cate-
 14 gorical table of values at the end of this form.

15 Whenever "income" is required to be reported herein, the term "income"
 16 shall mean the aggregate net income before taxes from the source identi-
 17 fied.

18 The term "calendar year" shall mean the year ending the December 31st
 19 preceding the date of filing of the annual statement.

20 4. [~~(a)~~] List any [~~office, trusteeship, directorship, partnership, or~~]
 21 position of any nature, including but not limited to any office,
 22 trusteeship, directorship or partnership, whether compensated or
 23 not, you, your spouse, domestic partner, or unemancipated child held
 24 [~~by the reporting individual~~] with any [~~firm, corporation, associ-~~
 25 ~~ation, partnership, or other~~] organization other than the State of
 26 New York. Include positions held for only a portion of the year and
 27 compensated honorary positions[~~;~~ do]. Do NOT list general membership
 28 in an organization, positions with political parties, trusteeships
 29 for a family member, or uncompensated honorary positions. If the
 30 listed entity was licensed or regulated by any state or local agen-
 31 cy[~~, was regulated by any state regulatory agency or local agency,~~]
 32 or, as a regular and significant part of the business or activity of
 33 said entity, did business with, or had matters other than ministerial
 34 matters before, any state or local agency, list the name of any
 35 such agency.

36		State or
37	<u>Self, Spouse, Domestic Partner, or Child</u>	Position
38	Organization	Local Agency

39 _____

40 _____

41 _____

42 _____

43 _____

44 [~~(b)~~] ~~List any office, trusteeship, directorship, partnership, or posi-~~
 45 ~~tion of any nature, whether compensated or not, held by the spouse,~~
 46 ~~domestic partner or unemancipated child of the reporting individual,~~
 47 ~~with any firm, corporation, association, partnership, or other~~
 48 ~~organization other than the State of New York. Include compensated~~
 49 ~~honorary positions; do NOT list membership or uncompensated honorary~~
 50 ~~positions. If the listed entity was licensed by any state or local~~

~~agency, was regulated by any state regulatory agency or local agency, or, as a regular and significant part of the business or activity of said entity, did business with, or had matters other than ministerial matters before, any state or local agency, list the name of any such agency.~~

Position	Organization	State or Local Agency
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5. ~~[(a)]~~ List the name, address and description of any occupation, employment (other than the employment listed under ~~[Item]~~ Question 2 above), trade, business or profession you, your spouse, domestic partner, or unemancipated child engaged in ~~[by the reporting individual]~~. If such activity was licensed or regulated by any state or local agency~~[, was regulated by any state regulatory agency or local agency,]~~ or, as a regular and significant part of the business or activity of said entity, did business with, or had matters other than ministerial matters before, any state or local agency, list the name of any such agency.

Self,
Spouse,
Domestic
Partner,
or Child

Position	Name & Address of Organization	Description	State or Local Agency
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- ~~[(b) If the spouse, domestic partner or unemancipated child of the reporting individual was engaged in any occupation, employment, trade, business or profession which activity was licensed by any state or local agency, was regulated by any state regulatory agency or local agency, or, as a regular and significant part of the business or activity of said entity, did business with, or had matters other than ministerial matters before, any state or local agency, list the name, address and description of such occupation, employment, trade, business or profession and the name of any such agency.~~

Position	Name & Address of Organization	Description	State or Local Agency
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- 1 _____
 2 _____]
- 3 6. List any [~~interest~~] ownership, right, claim or legal share, in
 4 EXCESS of [~~\$1,000~~] \$2,000, held by [~~the reporting individual, such~~
 5 ~~individual's~~] you, your spouse, domestic partner or unemancipated
 6 child, [~~or partnership of which any such person is a member, or~~
 7 ~~corporation, 10% or more of the stock of which is owned or~~
 8 ~~controlled by any such person,~~] whether vested or contingent, in any
 9 contract made or executed by a state or local agency, including any
 10 interest in such a contract in excess of \$2,000 held by a partner-
 11 ship of which any such person is a member, or corporation, 10% or
 12 more of the stock of which is owned or controlled by any such
 13 person, and include the name of the entity which holds such interest
 14 and the relationship of [~~the reporting individual or such individ-~~
 15 ~~ual's~~] you, your spouse, domestic partner or such child to such
 16 entity and the interest in such contract. Do NOT include any inter-
 17 ests in (a) bonds and notes[~~. Do NOT list any interest in~~], (b)
 18 such contract on which final payment has been made and all obli-
 19 gations under the contract except for guarantees and warranties have
 20 been performed, [~~provided, however, that such an interest must be~~
 21 ~~listed if~~] unless there has been an ongoing dispute during the
 22 calendar year for which this statement is filed with respect to any
 23 such guarantees or warranties[~~. Do NOT list any interest in~~], or (c)
 24 a contract made or executed by a local agency after public notice
 25 and pursuant to a process for competitive bidding or a process for
 26 competitive requests for proposals.

Self,	Entity	Relationship	Contracting	Category
Spouse,	Which Held	to Entity	State or	of
Domestic	Interest in	and Interest	Local	Value of
Partner or	Contract	in Contract	Agency	Contract
Child				

[~~(In Table II)~~]

- 33 _____
 34 _____
 35 _____
 36 _____
 37 _____
- 38 7. List any position [~~the reporting individual~~] you held as an officer
 39 of any political party or political organization, as a member of any
 40 political party committee, or as a political party district leader.
 41 The term "party" shall have the same meaning as "party" in the
 42 election law. The term "political organization" means any party or
 43 independent body as defined in the election law or any organization
 44 that is affiliated with or a subsidiary of a party or independent
 45 body.

46 _____
 47 _____
 48 _____
 49 _____
 50 _____

8. (a) If [~~the reporting individual practices~~] you practice law, [~~is~~] are licensed by the department of state as a real estate broker or agent or [~~practices~~] practice a profession licensed by the department of education, or [~~works as~~] are a member or employee of a firm required to register pursuant to section one-e of the legislative law as a lobbyist, describe the services rendered for which compensation was paid including a general description of the principal subject areas of matters [~~under-taken by such individual~~] you undertook and principal duties you performed. Specifically state whether [~~the reporting individual provides~~] you provide services directly to clients. If you are a licensed professional but did not engage in the practice of such profession in the prior calendar year outside of your state employment, report the license and state that you did not engage in such practice. Additionally, if [~~such an individual practices~~] you practice with a firm or corporation and [~~is~~] are a partner or shareholder of the firm or corporation, give a general description of principal subject areas of matters undertaken by such firm or corporation.

(b) [~~APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER JULY FIRST, TWO THOUSAND TWELVE AND BEFORE DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN:~~

~~If the reporting individual personally provides services to any person or entity, or works as a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), then identify each client or customer to whom the reporting individual personally provided services, or who was referred to the firm by the reporting individual, and from whom the reporting individual or his or her firm earned fees in excess of \$10,000 during the reporting period for such services rendered in direct connection with:~~

~~(i) A contract in an amount totaling \$50,000 or more from the state or any state agency for services, materials, or property;~~

~~(ii) A grant of \$25,000 or more from the state or any state agency during the reporting period;~~

~~(iii) A grant obtained through a legislative initiative during the reporting period; or~~

~~(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period.~~

~~For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the reporting individual's firm or knowingly solicit or direct to the reporting individual's firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in subparagraphs (i) through (iv) of this paragraph, as the result of such procurement, solicitation or direction of the reporting individual. A reporting individual need not disclose activities performed while~~

~~lawfully acting pursuant to paragraphs (c), (d), (e) and (f) of subdivi-
sion seven of section seventy three of this article.~~

~~The disclosure requirement in this question shall not require disclosure of clients or customers receiving medical or dental services, mental health services, residential real estate brokering services, or insurance brokering services from the reporting individual or his or her firm. The reporting individual need not identify any client to whom he or she or his or her firm provided legal representation with respect to investigation or prosecution by law enforcement authorities, bankruptcy, or domestic relations matters. With respect to clients represented in other matters, where disclosure of a client's identity is likely to cause harm, the reporting individual shall request an exemption from the commission on ethics and lobbying in government pursuant to section ninety-four of the executive law, provided, however, that a reporting individual who first enters public office after July first, two thousand twelve, need not report clients or customers with respect to matters for which the reporting individual or his or her firm was retained prior to entering public office.~~

Client	Nature of Services Provided
Client A	Service A
Client B	Service B
Client C	Service C
Client D	Service D
Client E	Service E
Client F	Service F
Client G	Service G
Client H	Service H
Client I	Service I
Client J	Service J
Client K	Service K
Client L	Service L
Client M	Service M
Client N	Service N
Client O	Service O
Client P	Service P
Client Q	Service Q
Client R	Service R
Client S	Service S
Client T	Service T
Client U	Service U
Client V	Service V
Client W	Service W
Client X	Service X
Client Y	Service Y
Client Z	Service Z

~~(b-1) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):~~

(i) If ~~[the reporting individual receives]~~ you receive income from a profession, occupation or employment reportable in question 8(a) and personally ~~[provides]~~ provide services to any person or entity, or ~~[works as]~~ are a member or employee of a partnership or corporation that provides such services (referred to hereinafter as a "firm"), ~~[the reporting individual shall]~~ identify each client or customer to whom ~~[the reporting individual]~~ you personally provided services, or ~~[who was]~~ whom you referred to the firm ~~[by the reporting individual]~~, and from whom ~~[the reporting individual]~~ you or ~~[his or her]~~ your firm earned fees in excess of \$10,000 during the reporting period ~~[in direct connection with:]~~

~~(i) A contract in an amount totaling \$10,000 or more from the state or any state agency for services, materials, or property;~~

~~(ii) A grant of \$10,000 or more from the state or any state agency during the reporting period;~~

~~(iii) A grant obtained through a legislative initiative during the reporting period; or~~

~~(iv) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period].~~

For such services you rendered [~~by the reporting individual~~] directly to each such client, describe each matter that was the subject of such representation, the services actually provided, whether such client was referred to you by an individual you knew at the time to be a registered lobbyist, and the payment received. For payments received from clients you referred to the firm [~~by the reporting individual~~], if [~~the report~~]

~~ing individual~~ **you** directly received a referral fee or fees for such referral, identify the client and the payment so received.

For purposes of this question, "referred to the firm" shall mean: having intentionally and knowingly taken a specific act or series of acts to intentionally procure for the ~~[reporting individual's]~~ firm or having knowingly solicited or directed to the ~~[reporting individual's]~~ firm in whole or substantial part, a person or entity that becomes a client of that firm for the purposes of representation for a matter as defined in clauses (i) through (iv) of this subparagraph, as the result of such procurement, solicitation or direction ~~[of the reporting individual]~~. ~~[A reporting individual need]~~ Do not disclose activities performed while lawfully acting in ~~[his or her]~~ your capacity as provided in paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy-three of this article.

Client	Matter	Nature of Services Provided	Category of Amount	<u>Referred by Lobbyist</u>
			(in Table I)	

~~[(b-2) APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN, OR FOR NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY FIRST, TWO THOUSAND FIFTEEN (FOR PURPOSES OF THIS QUESTION, "SERVICES" SHALL MEAN CONSULTATION, REPRESENTATION, ADVICE OR OTHER SERVICES):~~

~~(i) With respect to reporting individuals who receive ten thousand dollars or more from employment or activity reportable under question 8(a), for each client or customer NOT otherwise disclosed or exempted in question 8 or 13, disclose the name of each client or customer known to the reporting individual to whom the reporting individual provided services: (A) who paid the reporting individual in excess of five thousand dollars for such services; or (B) who had been billed with the knowledge of the reporting individual in excess of five thousand dollars by the firm or other entity named in question 8(a) for the reporting individual's services.~~

Client	Services Actually Provided	Category of Amount (in Table I)
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1 * PREPARED CERTIFIED FINANCIAL STATEMENT FOR CLIENT (IDENTIFY CLIENT BY
2 NAME);
3 * REFERRED INDIVIDUAL OR ENTITY (IDENTIFY CLIENT BY NAME) FOR
4 REPRESENTATION OR CONSULTATION;
5 * COMMERCIAL BROKERING SERVICES (IDENTIFY CUSTOMER BY NAME);
6 * PREPARED CERTIFIED ARCHITECTURAL OR ENGINEERING
7 RENDERINGS FOR CLIENT (IDENTIFY CUSTOMER BY NAME);
8 * COURT APPOINTED GUARDIAN OR EVALUATOR (IDENTIFY COURT NOT CLIENT).
9 (ii) [~~With respect to reporting individuals who~~] If you disclosed in
10 question 8(a) that [~~the reporting individual~~] you did not provide
11 services to a client but provided services to a firm or business, iden-
12 tify the category of amount received for providing such services and
13 describe the services rendered.
14 Services Actually Provided Category of Amount [~~(Table I)~~]

15 [~~A reporting individual need~~] Do not disclose activities performed
16 while lawfully acting in [~~his or her~~] your capacity as provided in para-
17 graphs (c), (d), (e) and (f) of subdivision seven of section seventy-
18 three of this article. The disclosure requirement in [~~questions (b-1)~~
19 ~~and (b-2)~~] question (b) shall not require disclosing clients or custom-
20 ers receiving medical, pharmaceutical or dental services, mental health
21 services, or residential real estate brokering services from [~~the~~
22 ~~reporting individual~~] you or [~~his or her~~] your firm or if federal law
23 prohibits or limits disclosure. [~~The reporting individual need~~] Do not
24 identify any client to whom [~~he or she~~] you or [~~his or her~~] your firm
25 provided legal representation with respect to investigation or prose-
26 cution by law enforcement authorities, bankruptcy, family court, estate
27 planning, or domestic relations matters, nor [~~shall the reporting indi-~~
28 ~~vidual identify~~] individuals represented pursuant to an insurance policy
29 but [~~the reporting individual shall~~] in such circumstances only report
30 the entity that provides compensation to [~~the reporting individual~~] you;
31 with respect to matters in which the client's name is required by law to
32 be kept confidential (such as matters governed by the family court act)
33 or in matters in which [~~the reporting individual represents~~] you repre-
34 sent or [~~provides~~] provide services to minors, the client's name may be
35 replaced with initials. To the extent that [~~the reporting individual,~~
36 you or [~~his or her~~] your firm⁷] provided legal representation with
37 respect to an initial public offering, and professional disciplinary
38 rules, federal law or regulations restrict the disclosure of information
39 relating to such work, [~~the reporting individual shall~~] (i) disclose the
40 identity of the client and the services provided relating to the initial
41 public offering to the office of court administration, who will maintain
42 such information confidentially in a locked box; and (ii) include in
43 [~~his or her~~] your response to [~~questions (b-1) and (b-2)~~] question (b)
44 that pursuant to this paragraph, a disclosure to the office of court
45 administration has been made. Upon such time that the disclosure of
46 information maintained in the locked box is no longer restricted by
47 professional disciplinary rules, federal law or regulation, [~~the report-~~
48 ~~ing individual~~] you shall disclose such information in an amended
49 disclosure statement in response to the disclosure requirements in
50 [~~questions (b-1) and (b-2)~~] question (b). The office of court adminis-
51 tration shall develop and maintain a secure portal through which infor-
52 mation submitted to it pursuant to this paragraph can be safely and
53 confidentially stored. With respect to clients represented in other

1 matters not otherwise exempt, [~~the reporting individual~~] you may request
2 an exemption to publicly disclosing the name of that client from the
3 commission on ethics and lobbying in government pursuant to section
4 ninety-four of the executive law, or from the office of court adminis-
5 tration. In such application, [~~the reporting individual shall~~] state the
6 following: "My client is not currently receiving my services or seeking
7 my services in connection with:

8 (i) A proposed bill or resolution in the senate or assembly during the
9 reporting period;

10 (ii) A contract in an amount totaling \$10,000 or more from the state
11 or any state agency for services, materials, or property;

12 (iii) A grant of \$10,000 or more from the state or any state agency
13 during the reporting period;

14 (iv) A grant obtained through a legislative initiative during the
15 reporting period; or

16 (v) A case, proceeding, application or other matter that is not a
17 ministerial matter before a state agency during the reporting period."

18 In reviewing the request for an exemption, the commission on ethics
19 and lobbying in government or the office of court administration may
20 consult with bar or other professional associations and the legislative
21 ethics commission for individuals subject to its jurisdiction and may
22 consider the rules of professional conduct. In making its determination,
23 the commission on ethics and lobbying in government or the office of
24 court administration shall conduct its own inquiry and shall consider
25 factors including, but not limited to: (i) the nature and the size of
26 the client; (ii) whether the client has any business before the state;
27 and if so, how significant the business is; and whether the client has
28 any particularized interest in pending legislation and if so how signif-
29 icant the interest is; (iii) whether disclosure may reveal trade
30 secrets; (iv) whether disclosure could reasonably result in retaliation
31 against the client; (v) whether disclosure may cause undue harm to the
32 client; (vi) whether disclosure may result in undue harm to the attor-
33 ney-client relationship; and (vii) whether disclosure may result in an
34 unnecessary invasion of privacy to the client.

35 The commission on ethics and lobbying in government or, as the case
36 may be, the office of court administration shall promptly make a final
37 determination in response to such request, which shall include an expla-
38 nation for its determination. The office of court administration shall
39 issue its final determination within three days of receiving the
40 request. Notwithstanding any other provision of law or any professional
41 disciplinary rule to the contrary, the disclosure of the identity of any
42 client or customer in response to this question shall not constitute
43 professional misconduct or a ground for disciplinary action of any kind,
44 or form the basis for any civil or criminal cause of action or proceed-
45 ing. A reporting individual who first enters public office after January
46 first, two thousand sixteen, need not report clients or customers with
47 respect to matters for which the reporting individual or [~~his or her~~]
48 such individual's firm was retained prior to entering public office.

49 (~~c) [APPLICABLE ONLY TO NEW CLIENTS OR CUSTOMERS FOR WHOM SERVICES ARE~~
50 ~~PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOUSAND FIFTEEN, OR FOR~~
51 ~~NEW MATTERS FOR EXISTING CLIENTS OR CUSTOMERS WITH RESPECT TO THOSE~~
52 ~~SERVICES THAT ARE PROVIDED ON OR AFTER DECEMBER THIRTY-FIRST, TWO THOU-~~
53 ~~SAND FIFTEEN:~~

54 ~~If the reporting individual receives income of ten thousand dollars or~~
55 ~~greater from any employment or activity reportable under question 8(a),~~
56 ~~identify each registered lobbyist who has directly referred to such~~

~~individual a client who was successfully referred to the reporting individual's business and from whom the reporting individual or firm received a fee for services in excess of five thousand dollars. Report only those referrals that were made to a reporting individual by direct communication from a person known to such reporting individual to be a registered lobbyist at the time the referral is made. With respect to each such referral, the reporting individual shall identify the client, the registered lobbyist who has made the referral, the category of value of the compensation received and a general description of the type of matter so referred. A reporting individual need not disclose activities performed while lawfully acting pursuant to paragraphs (c), (d), (e) and (f) of subdivision seven of section seventy three of this article. The disclosure requirements in this question shall not require disclosing clients or customers receiving medical, pharmaceutical or dental services, mental health services, or residential real estate brokering services from the reporting individual or his or her firm or if federal law prohibits or limits disclosure. The reporting individual need not identify any client to whom he or she or his or her firm provided legal representation with respect to investigation or prosecution by law enforcement authorities, bankruptcy, family court, estate planning, or domestic relations matters, nor shall the reporting individual identify individuals represented pursuant to an insurance policy but the reporting individual shall in such circumstances only report the entity that provides compensation to the reporting individual; with respect to matters in which the client's name is required by law to be kept confidential (such as matters governed by the family court act) or in matters in which the reporting individual represents or provides services to minors, the client's name may be replaced with initials. To the extent that the reporting individual, or his or her firm, provided legal representation with respect to an initial public offering, and federal law or regulations restricts the disclosure of information relating to such work, the reporting individual shall (i) disclose the identity of the client and the services provided relating to the initial public offering to the office of court administration, who will maintain such information confidentially in a locked box; and (ii) include in his or her response a statement that pursuant to this paragraph, a disclosure to the office of court administration has been made. Upon such time that the disclosure of information maintained in the locked box is no longer restricted by federal law or regulation, the reporting individual shall disclose such information in an amended disclosure statement in response to the disclosure requirements of this paragraph. The office of court administration shall develop and maintain a secure portal through which information submitted to it pursuant to this paragraph can be safely and confidentially stored. With respect to clients represented in other matters not otherwise exempt, the reporting individual may request an exemption to publicly disclosing the name of that client from the commission on ethics and lobbying in government pursuant to section ninety four of the executive law, or from the office of court administration. In such application, the reporting individual shall state the following: "My client is not currently receiving my services or seeking my services in connection with:~~

~~(i) A proposed bill or resolution in the senate or assembly during the reporting period;~~

~~(ii) A contract in an amount totaling \$10,000 or more from the state or any state agency for services, materials, or property;~~

~~(iii) A grant of \$10,000 or more from the state or any state agency during the reporting period;~~

~~(iv) A grant obtained through a legislative initiative during the reporting period; or~~

~~(v) A case, proceeding, application or other matter that is not a ministerial matter before a state agency during the reporting period."~~

~~In reviewing the request for an exemption, the commission on ethics and lobbying in government or the office of court administration may consult with bar or other professional associations and the legislative ethics commission for individuals subject to its jurisdiction and may consider the rules of professional conduct. In making its determination, the commission on ethics and lobbying in government or the office of court administration shall conduct its own inquiry and shall consider factors including, but not limited to: (i) the nature and the size of the client; (ii) whether the client has any business before the state; and if so, how significant the business is; and whether the client has any particularized interest in pending legislation and if so how significant the interest is; (iii) whether disclosure may reveal trade secrets; (iv) whether disclosure could reasonably result in retaliation against the client; (v) whether disclosure may cause undue harm to the client; (vi) whether disclosure may result in undue harm to the attorney-client relationship; and (vii) whether disclosure may result in an unnecessary invasion of privacy to the client.~~

~~The commission on ethics and lobbying in government or, as the case may be, the office of court administration shall promptly make a final determination in response to such request, which shall include an explanation for its determination. The office of court administration shall issue its final determination within three days of receiving the request. Notwithstanding any other provision of law or any professional disciplinary rule to the contrary, the disclosure of the identity of any client or customer in response to this question shall not constitute professional misconduct or a ground for disciplinary action of any kind, or form the basis for any civil or criminal cause of action or proceeding. A reporting individual who first enters public office after December thirty-first, two thousand fifteen, need not report clients or customers with respect to matters for which the reporting individual or his or her firm was retained prior to entering public office.~~

Client	Name of Lobbyist	Description of Matter	Category of Amount (in Table 1)
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(d) List the name, principal address and general description or the nature of the business activity of any entity in which ~~the reporting individual~~ you or ~~such individual's~~ your spouse or domestic partner had an investment in excess of ~~\$1,000~~ \$2,000 excluding investments in securities and interests in real property.

9. List each source of gifts, EXCLUDING gifts from a relative, reimbursements as defined in question 10, and campaign contributions, in EXCESS of [~~\$1,000~~] \$2,000, received during the reporting period for which this statement is filed by [~~the reporting individual~~] you or [~~such individual's~~] your spouse, domestic partner or unemancipated child from the same donor[~~, EXCLUDING gifts from a relative~~]. INCLUDE the name and

address of the donor. ~~[The term "gifts" does not include reimbursements, which term is defined in item 10.]~~ Indicate the value and nature of each such gift.

Self, Spouse, Domestic Partner or Child	Name of Donor	Address	Nature of Gift	Category of Value of Gift [(In Table I)]
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10. Identify and briefly describe the source of any reimbursements for expenditures, EXCLUDING campaign expenditures and reimbursements by the state for expenditures in connection with official duties ~~[reimbursed by the state]~~, in EXCESS of ~~[\$1,000]~~ \$2,000 from each such source. For purposes of this ~~[item]~~ question, the term "reimbursements" shall mean any travel-related expenses provided by nongovernmental sources and for activities related to the reporting individual's official duties such as, speaking engagements, conferences, or factfinding events. The term "reimbursements" does NOT include gifts reported under ~~[item]~~ question 9.

Source	Description
--------	-------------

11. List the identity and value, if reasonably ascertainable, of each interest in a retirement plan or deferred compensation plan established in accordance with the internal revenue code (e.g., 401, 403(b), 457, etc.), or other trust, estate or other beneficial interest ~~[, including retirement plans (other than retirement plans of the state of New York or the city of New York), and deferred compensation plans (e.g., 401, 403(b), 457, etc.) established in accordance with the internal revenue code,]~~ in which ~~[the REPORTING INDIVIDUAL]~~ YOU held a beneficial interest in EXCESS of ~~[\$1,000]~~ \$2,000 at any time during the preceding year. Do NOT report interests in (a) a retirement plan, deferred compensation plan, trust, estate or other beneficial interest established by or for ~~[, or the estate of,]~~ a relative or a relative's estate, (b) New York State or New York City defined benefit retirement plans, the Optional Retirement Program of the State University of New York or the City University of New York, (c) a 529 College Savings Plan or an Education IRA, or (d) deferred income in the nature of delayed compensation reportable in question 14, such as deferred or future income from the practice of a profession.

Identity

Category
of Value*

~~[(In Table II)]~~

* The value of such interest shall be reported only if reasonably ascertainable.

12. (a) Describe the terms of, and the parties to, any contract, promise, or other agreement between ~~[the reporting individual]~~ **you** and any person, firm, or corporation with respect to ~~[the]~~ **your** employment ~~[of such individual]~~ after leaving office or position (other than a leave of absence).

(b) Describe the parties to and the terms of any agreement providing for continuation of payments or benefits to ~~[the REPORTING INDIVIDUAL]~~ **YOU** in EXCESS of ~~[\$1,000]~~ **\$2,000** from a prior employer OTHER THAN the State. (This includes interests in or contributions to a pension fund, profit-sharing plan, or life or health insurance; buy-out agreements; severance payments; etc.)

13. List below the nature and amount of any income in EXCESS of ~~[\$1,000]~~ **\$2,000** from EACH SOURCE for ~~[the reporting individual]~~ **you** and ~~[such individual's]~~ **your** spouse or domestic partner for the taxable year last occurring prior to the date of filing. Each such source must be described with particularity. Nature of income includes, but is not limited to, all income (other than that received from the employment listed under ~~[Item]~~ **Question** 2 above) from compensated employment whether public or private, directorships and other fiduciary positions, contractual arrangements, teaching income, partnerships, honorariums, lecture fees, consultant fees, bank and bond interest, dividends, income derived from a trust, real estate rents, and recognized gains from the sale or exchange of real or other property. Income from a business or profession and real estate rents shall be reported with the source identified by the building address in the case of real estate rents and otherwise by the name of the entity and not by the name of the individual customers, clients or tenants, with the aggregate net income before taxes for each building address or entity. The receipt of maintenance

1 received in connection with a matrimonial action, alimony and child
2 support payments shall not be listed.

3	Self/			Category
4	Spouse	Source	Nature	of Amount
5	or Domestic			[(In Table I)]
6	Partner			

7 _____
8 _____
9 _____
10 _____
11 _____

12 14. List the sources of any deferred income (not retirement income) in
13 EXCESS of [~~\$1,000~~] \$2,000 from each source to be paid to [~~the~~
14 ~~reporting individual~~] you following the close of the calendar year
15 for which this disclosure statement is filed, other than deferred
16 compensation reported in [~~item~~] question 11 [~~hereinabove~~] above.
17 Deferred income derived from the practice of a profession shall be
18 listed in the aggregate and shall identify as the source, the name
19 of the firm, corporation, partnership or association through which
20 the income was derived, but shall not identify individual clients.

21		Category
22	Source	of Amount
23		[(In Table I)]

24 _____
25 _____
26 _____
27 _____
28 _____

29 15. List each assignment of income in EXCESS of [~~\$1,000~~] \$2,000, and
30 each transfer other than to a relative during the reporting period
31 for which this statement is filed for less than fair consideration
32 of an interest in a trust, estate or other beneficial interest,
33 securities or real property, by [~~the reporting individual~~] you, in
34 excess of [~~\$1,000~~] \$2,000, which would otherwise be required to be
35 reported herein and is not or has not been so reported.

36	Item Assigned	Assigned or	Category
37	or Transferred	Transferred to	of Value
38			[(In Table I)]

39 _____
40 _____
41 _____
42 _____
43 _____

44 16. List below the type and market value of securities and digital
45 assets held by [~~the reporting individual~~] you or [~~such individual's~~]
46 your spouse or domestic partner, INCLUDING securities and digital
47 assets held in a retirement or deferred compensation account

1 reported in question 11, from each issuing entity in EXCESS of
2 ~~[\$1,000]~~ \$2,000 at the close of the taxable year last occurring
3 prior to the date of filing, including the name or ticker symbol of
4 the issuing entity exclusive of securities held by ~~[the reporting~~
5 ~~individual]~~ you issued by a professional corporation. Whenever an
6 interest in securities exists through a beneficial interest in a
7 trust, the securities held in such trust shall be listed ONLY IF
8 ~~[the reporting individual has]~~ you have knowledge thereof except
9 where ~~[the reporting individual]~~ you or ~~[the reporting individual's]~~
10 your spouse or domestic partner has transferred assets to such trust
11 for ~~[his or her]~~ such spouse or domestic partner's benefit in which
12 event such securities shall be listed unless they are not ascertain-
13 able by ~~[the reporting individual]~~ you because the trustee is under
14 an obligation or has been instructed in writing not to disclose the
15 contents of the trust to ~~[the reporting individual]~~ you. Securities
16 of which ~~[the reporting individual]~~ you or ~~[the reporting individ-~~
17 ~~ual's]~~ your spouse or domestic partner is the owner of record but in
18 which such ~~[individual or the reporting individual's spouse or~~
19 ~~domestic partner]~~ owner has no beneficial interest shall not be
20 listed. Indicate percentage of ownership ONLY if ~~[the reporting~~
21 ~~person]~~ you or ~~[the reporting person's]~~ your spouse or domestic
22 partner holds more than ~~[five percent (5%)]~~ 5% of the total stock of
23 a corporation in which the stock is publicly traded or more than
24 ~~[ten percent (10%)]~~ 10% of the total stock of a corporation in which
25 the stock is NOT publicly traded. Also list securities owned for
26 investment purposes by a corporation more than ~~[fifty percent (50%)]~~
27 50% of the stock of which is owned or controlled by ~~[the reporting~~
28 ~~individual]~~ you or ~~[such individual's]~~ your spouse or domestic part-
29 ner. For the purpose of this ~~[item the term "securities"]~~ question:

30 (a) "Securities" shall mean mutual funds, bonds, mortgages, notes,
31 obligations, warrants and stocks of any class, investment interests
32 in limited or general partnerships and certificates of deposits
33 (CDs) and such other evidences of indebtedness and certificates of
34 interest as are usually referred to as securities. The market value
35 for such securities shall be reported only if reasonably ascertain-
36 able and shall not be reported if the security is an interest in a
37 general partnership that was listed in [item] question 8 (a) or if
38 the security is corporate stock, NOT publicly traded, in a trade or
39 business of a reporting individual or a reporting individual's
40 spouse or domestic partner.

41 (b) "Digital asset" shall mean an asset that is issued, trans-
42 ferred, or both, using distributed ledger or blockchain technology,
43 including, but not limited to, digital currencies, digital coins,
44 digital non-fungible tokens or other similar assets.

45 (c) "Digital currency" shall mean any type of digital unit that is
46 used as a medium of exchange or a form of digitally stored value.
47 Virtual currency shall be broadly construed to include digital units
48 of exchange that: (i) have a centralized repository or administra-
49 tor; (ii) are decentralized and have no centralized repository or
50 administrator; or (iii) may be created or obtained by computing,
51 manufacturing, or other similar effort.

52 (d) "Distributed ledger or blockchain technology" shall mean a
53 ledger or database that stores shared state by maintaining it across
54 a multiplicity of devices belonging to different entities and secur-
55 ing it through a combination of cryptographic and consensus proto-
56 cols, where the shared state serves to authenticate, record, share,

and/or synchronize transactions involving digital assets or virtual currencies.

Self/ Spouse or Domestic Partner	Issuing Entity	Type of Security	Percentage of corporate stock owned or controlled (if more than 5% of pub- licly traded stock, or more than 10% if stock not publicly traded, is held)	Category of Market Value as of the close of the taxable year last occurring prior to the filing of this statement [(In Table II)]

~~[16 a. List below the name and market value of digital assets held by the reporting individual or such individual's spouse or domestic partner in EXCESS of \$1,000 at the close of the taxable year last occurring prior to the date of filing. Whenever an interest in digital assets exists through a beneficial interest in a trust, the digital assets held in such trust shall be listed ONLY IF the reporting individual has knowledge thereof except where the reporting individual or the reporting individual's spouse or domestic partner has transferred assets to such trust for his or her benefit in which event such digital assets shall be listed unless they are not ascertainable by the reporting individual because the trustee is under an obligation or has been instructed in writing not to disclose the contents of the trust to the reporting individual. The digital assets of which the reporting individual or the reporting individual's spouse or domestic partner is the owner of record but in which such individual or the reporting individual's spouse or domestic partner has no beneficial interest shall not be listed. Also list digital assets owned for investment purposes by a corporation more than fifty percent (50%) of the stock of which is owned or controlled by the reporting individual or such individual's spouse or domestic partner. For purposes of this subdivision, the following terms shall have the following meanings:~~

~~(a) "Digital asset" shall mean an asset that is issued, transferred, or both, using distributed ledger or blockchain technology, including, but not limited to, digital currencies, digital coins, digital non-fungible tokens or other similar assets.~~

~~(b) "Digital currency" shall mean any type of digital unit that is used as a medium of exchange or a form of digitally stored value. Virtual currency shall be broadly construed to include digital units of exchange that: (i) have a centralized repository or administrator; (ii) are decentralized and have no centralized repository or administrator;~~

~~or (iii) may be created or obtained by computing, manufacturing, or other similar effort.~~

~~(c) "Distributed ledger or blockchain technology" shall mean a ledger or database that stores shared state by maintaining it across a multiplicity of devices belonging to different entities and securing it through a combination of cryptographic and consensus protocols, where the shared state serves to authenticate, record, share, and/or synchronize transactions involving digital assets or virtual currencies.~~

		Category of
		Market Value
		as of the close
		of the taxable
		year last
		occurring
		prior to
Self/	Type of	the filing of
Spouse or	Digital Asset	this statement
Domestic		(In Table II)
Partner		

17. List below the location, size, general nature, acquisition date, market value and percentage of ownership of any real property, other than your or your spouse's or domestic partner's primary or secondary residence if there is no co-owner other than a relative of such residence, in which any vested or contingent interest in EXCESS of [\$1,000] \$2,000 is held by ~~[the reporting individual]~~ you or ~~[the reporting individual's]~~ your spouse or domestic partner. Also list real property owned for investment purposes by a corporation more than [fifty percent (50%)] 50% of the stock of which is owned or controlled by ~~[the reporting individual]~~ you or ~~[such individual's]~~ your spouse or domestic partner. ~~[Do NOT list any real property which is the primary or secondary personal residence of the reporting individual or the reporting individual's spouse or domestic partner, except where there is a co-owner who is other than a relative.]~~

Self/				Percentage	Category
Spouse/		General	Acquisition	of	of Market
Domestic		Nature	Date	Ownership	Value
Partner					[In
Corporation	Location	Size			Table II)

18. List below all notes and accounts receivable, other than from goods or services sold, held by ~~[the reporting individual]~~ you at the close of the taxable year last occurring prior to the date of filing

and other debts owed to ~~[such individual]~~ you at the close of the taxable year last occurring prior to the date of filing, in EXCESS of ~~[\$1,000]~~ \$2,000, including the name of the debtor, type of obligation, date due and the nature of the collateral securing payment of each, if any, excluding securities reported in ~~[item]~~ question 16 ~~[hereinabove]~~ above. Debts, notes and accounts receivable owed to ~~[the individual]~~ you by a relative shall not be reported.

Name of Debtor	Type of Obligation, Date Due, and Nature of Collateral, if any	Category of Amount [(In Table II)]
----------------	--	--

19. List below all liabilities of ~~[the reporting individual]~~ you and ~~[such individual's]~~ your spouse or domestic partner, in EXCESS of ~~[\$10,000]~~ \$20,000 as of the date of filing of this statement, other than liabilities to a relative, student loans, mortgages or home equity loans on primary or secondary residences, car loans or loans for household furniture and appliances. Do NOT list liabilities incurred by, or guarantees made by, ~~[the reporting individual]~~ you or ~~[such individual's]~~ your spouse or domestic partner or by any proprietorship, partnership or corporation in which ~~[the reporting individual]~~ you or ~~[such individual's]~~ your spouse or domestic partner has an interest, when incurred or made in the ordinary course of the trade, business or professional practice ~~[of the reporting individual or such individual's spouse or domestic partner]~~. Include the name of the creditor and any collateral pledged by such individual to secure payment of any such liability. ~~[A reporting individual shall]~~ Do not list any obligation to pay maintenance in connection with a matrimonial action, alimony or child support payments. Any loan issued in the ordinary course of business by a financial institution to finance educational costs, the cost of home purchase or improvements for a primary or secondary residence, or purchase of a personally owned motor vehicle, household furniture or appliances shall be excluded. If any such reportable liability has been guaranteed by any third person, list the liability and name the guarantor.

Name of Creditor or Guarantor	Type of Liability and Collateral, if any	Category of Amount [(In Table II)]
----------------------------------	---	--

The requirements of law relating to the reporting of financial interests are in the public interest and no adverse inference of

unethical or illegal conduct or behavior will be drawn merely from compliance with these requirements.

(Signature of Reporting Individual)

Date (month/day/year)

TABLE [I] OF VALUES

Category A

[none]

~~Category B \$ 1 to under \$ 1,000~~

~~Category C \$ 1,000] \$ 2,000 to under \$ 5,000~~

Category [D] B \$ 5,000 to under \$ 20,000

Category [E] C \$ 20,000 to under \$ 50,000

Category [F] D \$ 50,000 to under \$ 75,000

Category [G] E \$ 75,000 to under \$ 100,000

Category [H] F \$ 100,000 to under \$ 150,000

Category [I] G \$ 150,000 to under \$ 250,000

~~Category J \$ 250,000 to under \$ 350,000~~

~~Category K \$ 350,000 to under \$ 450,000~~

~~Category L \$ 450,000 to under \$ 550,000~~

~~Category M \$ 550,000 to under \$ 650,000~~

~~Category N \$ 650,000 to under \$ 750,000~~

~~Category O \$ 750,000 to under \$ 850,000~~

~~Category P \$ 850,000 to under \$ 950,000~~

~~Category Q \$ 950,000 to under \$1,050,000~~

~~Category R \$1,050,000 to under \$1,150,000~~

~~Category S \$1,150,000 to under \$1,250,000~~

~~Category T \$1,250,000 to under \$1,350,000~~

~~Category U \$1,350,000 to under \$1,450,000~~

~~Category V \$1,450,000 to under \$1,550,000~~

~~Category W \$1,550,000 to under \$1,650,000~~

~~Category X \$1,650,000 to under \$1,750,000~~

~~Category Y \$1,750,000 to under \$1,850,000~~

~~Category Z \$1,850,000 to under \$1,950,000~~

~~Category AA \$1,950,000 to under \$2,050,000~~

~~Category BB \$2,050,000 to under \$2,150,000~~

~~Category CC \$2,150,000 to under \$2,250,000~~

~~Category DD \$2,250,000 to under \$2,350,000~~

~~Category EE \$2,350,000 to under \$2,450,000~~

~~Category FF \$2,450,000 to under \$2,550,000~~

~~Category GG \$2,550,000 to under \$2,650,000~~

~~Category HH \$2,650,000 to under \$2,750,000~~

~~Category II \$2,750,000 to under \$2,850,000~~

~~Category JJ \$2,850,000 to under \$2,950,000~~

~~Category KK \$2,950,000 to under \$3,050,000~~

~~Category LL \$3,050,000 to under \$3,150,000~~

~~Category MM \$3,150,000 to under \$3,250,000~~

~~Category NN \$3,250,000 to under \$3,350,000~~

~~Category OO \$3,350,000 to under \$3,450,000~~

~~Category PP \$3,450,000 to under \$3,550,000~~

~~Category QQ \$3,550,000 to under \$3,650,000~~

~~Category RR \$3,650,000 to under \$3,750,000~~

~~Category SS \$3,750,000 to under \$3,850,000~~

~~Category TT \$3,850,000 to under \$3,950,000~~

~~Category UU \$3,950,000 to under \$4,050,000~~

~~Category VV \$4,050,000 to under \$4,150,000~~

~~Category WW \$4,150,000 to under \$4,250,000~~

1	Category XX	\$4,250,000 to under \$4,350,000
2	Category YY	\$4,350,000 to under \$4,450,000
3	Category ZZ	\$4,450,000 to under \$4,550,000
4	Category AAA	\$4,550,000 to under \$4,650,000
5	Category BBB	\$4,650,000 to under \$4,750,000
6	Category CCC	\$4,750,000 to under \$4,850,000
7	Category DDD	\$4,850,000 to under \$4,950,000
8	Category EEE	\$4,950,000 to under \$5,050,000
9	Category FFF	\$5,050,000 to under \$5,150,000
10	Category GGG	\$5,150,000 to under \$5,250,000
11	Category HHH	\$5,250,000 to under \$5,350,000
12	Category III	\$5,350,000 to under \$5,450,000
13	Category JJJ	\$5,450,000 to under \$5,550,000
14	Category KKK	\$5,550,000 to under \$5,650,000
15	Category LLL	\$5,650,000 to under \$5,750,000
16	Category MMM	\$5,750,000 to under \$5,850,000
17	Category NNN	\$5,850,000 to under \$5,950,000
18	Category OOO	\$5,950,000 to under \$6,050,000
19	Category PPP	\$6,050,000 to under \$6,150,000
20	Category QQQ	\$6,150,000 to under \$6,250,000
21	Category RRR	\$6,250,000 to under \$6,350,000
22	Category SSS	\$6,350,000 to under \$6,450,000
23	Category TTT	\$6,450,000 to under \$6,550,000
24	Category UUU	\$6,550,000 to under \$6,650,000
25	Category VVV	\$6,650,000 to under \$6,750,000
26	Category WWW	\$6,750,000 to under \$6,850,000
27	Category XXX	\$6,850,000 to under \$6,950,000
28	Category YYY	\$6,950,000 to under \$7,050,000
29	Category ZZZ	\$7,050,000 to under \$7,150,000
30	Category AAAA	\$7,150,000 to under \$7,250,000
31	Category BBBB	\$7,250,000 to under \$7,350,000
32	Category CCCC	\$7,350,000 to under \$7,450,000
33	Category DDDD	\$7,450,000 to under \$7,550,000
34	Category EEEE	\$7,550,000 to under \$7,650,000
35	Category FFFF	\$7,650,000 to under \$7,750,000
36	Category GGGG	\$7,750,000 to under \$7,850,000
37	Category HHHH	\$7,850,000 to under \$7,950,000
38	Category IIII	\$7,950,000 to under \$8,050,000
39	Category JJJJ	\$8,050,000 to under \$8,150,000
40	Category KKKK	\$8,150,000 to under \$8,250,000
41	Category LLLL	\$8,250,000 to under \$8,350,000
42	Category MMMM	\$8,350,000 to under \$8,450,000
43	Category NNNN	\$8,450,000 to under \$8,550,000
44	Category OOOO	\$8,550,000 to under \$8,650,000
45	Category PPPP	\$8,650,000 to under \$8,750,000
46	Category QQQQ	\$8,750,000 to under \$8,850,000
47	Category RRRR	\$8,850,000 to under \$8,950,000
48	Category SSSS	\$8,950,000 to under \$9,050,000
49	Category TTTT	\$9,050,000 to under \$9,150,000
50	Category UUUU	\$9,150,000 to under \$9,250,000
51	Category VVVV	\$9,250,000 to under \$9,350,000
52	Category WWWW	\$9,350,000 to under \$9,450,000
53	Category XXXX	\$9,450,000 to under \$9,550,000
54	Category YYYY	\$9,550,000 to under \$9,650,000
55	Category ZZZZ	\$9,650,000 to under \$9,750,000
56	Category AAAAA	\$9,750,000 to under \$9,850,000

1 ~~Category BBBBBB \$9,850,000 to under \$9,950,000~~
 2 ~~Category CCCCCC \$9,950,000 to under \$10,000,000~~
 3 ~~Category DDDDDD \$10,000,000 or over~~

TABLE II

4
 5 ~~Category A none~~
 6 ~~Category B \$ 1 to under \$ 1,000~~
 7 ~~Category C \$ 1,000 to under \$ 5,000~~
 8 ~~Category D \$ 5,000 to under \$ 20,000~~
 9 ~~Category E \$ 20,000 to under \$ 50,000~~
 10 ~~Category F \$ 50,000 to under \$ 75,000~~
 11 ~~Category G \$ 75,000 to under \$ 100,000~~
 12 ~~Category H \$ 100,000 to under \$ 150,000~~
 13 ~~Category I \$ 150,000 to under \$ 250,000]~~
 14 Category [J] H \$ 250,000 to under \$ 500,000
 15 Category [K] I \$ 500,000 to under \$ 750,000
 16 Category [L] J \$ 750,000 to under \$1,000,000
 17 Category [M] K \$1,000,000 to under \$1,250,000
 18 Category [N] L \$1,250,000 to under \$1,500,000
 19 Category [O] M \$1,500,000 to under \$1,750,000
 20 Category [P] N \$1,750,000 to under \$2,000,000
 21 Category [Q] O \$2,000,000 to under \$2,250,000
 22 Category [R] P \$2,250,000 to under \$2,500,000
 23 Category [S] Q \$2,500,000 to under \$2,750,000
 24 Category [T] R \$2,750,000 to under \$3,000,000
 25 Category [U] S \$3,000,000 to under \$3,250,000
 26 Category [V] T \$3,250,000 to under \$3,500,000
 27 Category [W] U \$3,500,000 to under \$3,750,000
 28 Category [X] V \$3,750,000 to under \$4,000,000
 29 Category [Y] W \$4,000,000 to under \$4,250,000
 30 Category [Z] X \$4,250,000 to under \$4,500,000
 31 Category [AA] Y \$4,500,000 to under \$4,750,000
 32 Category [BB] Z \$4,750,000 to under \$5,000,000
 33 Category [CC] AA \$5,000,000 to under \$5,250,000
 34 Category [DD] BB \$5,250,000 to under \$5,500,000
 35 Category [EE] CC \$5,500,000 to under \$5,750,000
 36 Category [FF] DD \$5,750,000 to under \$6,000,000
 37 Category [GG] EE \$6,000,000 to under \$6,250,000
 38 Category [HH] FF \$6,250,000 to under \$6,500,000
 39 Category [II] GG \$6,500,000 to under \$6,750,000
 40 Category [JJ] HH \$6,750,000 to under \$7,000,000
 41 Category [KK] II \$7,000,000 to under \$7,250,000
 42 Category [LL] JJ \$7,250,000 to under \$7,500,000
 43 Category [MM] KK \$7,500,000 to under \$7,750,000
 44 Category [NN] LL \$7,750,000 to under \$8,000,000
 45 Category [OO] MM \$8,000,000 to under \$8,250,000
 46 Category [PP] NN \$8,250,000 to under \$8,500,000
 47 Category [QQ] OO \$8,500,000 to under \$8,750,000
 48 Category [RR] PP \$8,750,000 to under \$9,000,000
 49 Category [SS] QQ \$9,000,000 to under \$9,250,000
 50 Category [TT] RR \$9,250,000 to under \$9,500,000
 51 Category [UU] SS \$9,500,000 or over

52 4. A reporting individual who knowingly and wilfully fails to file an
 53 annual statement of financial disclosure or who knowingly and wilfully
 54 with intent to deceive makes a false statement or gives information
 55 which such individual knows to be false on such statement of financial

1 disclosure filed pursuant to this section shall be subject to a civil
2 penalty in an amount not to exceed forty thousand dollars. Assessment of
3 a civil penalty hereunder shall be made by the commission on ethics and
4 lobbying in government or by the legislative ethics commission, as the
5 case may be, with respect to persons subject to their respective juris-
6 dictions. The commission on ethics and lobbying in government acting
7 pursuant to subdivision fourteen of section ninety-four of the executive
8 law or the legislative ethics commission acting pursuant to subdivision
9 eleven of section eighty of the legislative law, as the case may be,
10 may, in lieu of or in addition to a civil penalty, refer a violation to
11 the appropriate prosecutor and upon such conviction, but only after such
12 referral, such violation shall be punishable as a class A misdemeanor. A
13 civil penalty for false filing may not be imposed hereunder in the event
14 a category of "value" or "amount" reported hereunder is incorrect unless
15 such reported information is falsely understated. Notwithstanding any
16 other provision of law to the contrary, no other penalty, civil or crim-
17 inal may be imposed for a failure to file, or for a false filing, of
18 such statement, except that the appointing authority may impose disci-
19 plinary action as otherwise provided by law. The commission on ethics
20 and lobbying in government and the legislative ethics commission shall
21 each be deemed to be an agency within the meaning of article three of
22 the state administrative procedure act and shall adopt rules governing
23 the conduct of adjudicatory proceedings and appeals relating to the
24 assessment of the civil penalties herein authorized. Such rules, which
25 shall not be subject to the approval requirements of the state adminis-
26 trative procedure act, shall provide for due process procedural mech-
27 anisms substantially similar to those set forth in such article three
28 but such mechanisms need not be identical in terms or scope. Assessment
29 of a civil penalty shall be final unless modified, suspended or vacated
30 within thirty days of imposition and upon becoming final shall be
31 subject to review at the instance of the affected reporting individual
32 in a proceeding commenced against the commission on ethics and lobbying
33 in government or the legislative ethics commission, pursuant to article
34 seventy-eight of the civil practice law and rules.

35 5. Nothing contained in this section shall be construed as precluding
36 any public authority or public benefit corporation from exercising any
37 authority or power now or hereafter existing to require any of its
38 members, directors, officers or employees to file financial disclosure
39 statements with such public authority or public benefit corporation that
40 are the same as, different from or supplemental to any of the require-
41 ments contained herein and to provide only for internal employment
42 discipline for any violation arising out of such internal filing.

43 6. Notwithstanding any other provision of law or any professional
44 disciplinary rule to the contrary, the disclosure of the identity of any
45 client or customer on a reporting individual's annual statement of
46 financial disclosure shall not constitute professional misconduct or a
47 ground for disciplinary action of any kind, or form the basis for any
48 civil or criminal cause of action or proceeding.

49 7. With respect to an application to either the commission on ethics
50 and lobbying in government or the office of court administration for an
51 exemption to disclosing the name of a client or customer in response to
52 questions 8 [(b-1), 8 (b-2)] (b) and 8 (c), all information which is the
53 subject of or a part of such application shall remain confidential. The
54 name of the client need not be disclosed by the reporting individual
55 unless and until the commission on ethics and lobbying in government or
56 the office of court administration formally advises the reporting indi-

vidual that ~~[he or she]~~ such individual must disclose such names and the reporting individual agrees to represent the client. Any commissioner or person employed by the commission on ethics and lobbying in government or any person employed by the office of court administration who, intentionally and without authorization from a court of competent jurisdiction releases confidential information related to a request for an exemption received by the commission or the office of court administration shall be guilty of a class A misdemeanor.

§ 2. Paragraph (a) of subdivision 6 of section 202 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(a) Notwithstanding the provisions of subdivision one of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year reports specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section [seventy-three-a] seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a member of the state legislature; or a judge or justice of the unified court system; or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity directly or indirectly controlled by any individual listed in this paragraph, whether by contract, through ownership or control of a majority interest in such entity, or otherwise, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity of which any individual listed in this paragraph holds ten percent or more of the voting securities of such entity; provided however that, prior to furnishing any report, the commissioner shall redact any copy of a federal return (or portion thereof) attached to, or any information on a federal return that is reflected on, such report, and any social security numbers, account numbers and residential address information.

§ 3. Paragraph (a) of subdivision 16 of section 211 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(a) Notwithstanding the provisions of subdivision eight of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the

1 chairperson of the joint committee on taxation of the United States
2 Congress, the commissioner shall furnish such committee with any current
3 or prior year reports specified in such request that were filed under
4 this article by the president of the United States, vice-president of
5 the United States, member of the United States Congress representing New
6 York state, or any person who served in or was employed by the executive
7 branch of the government of the United States on the executive staff of
8 the president, in the executive office of the president, or in an acting
9 or confirmed capacity in a position subject to confirmation by the
10 United States senate; or, in New York state: a statewide elected offi-
11 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
12 [~~seventy-three-a~~] seventy-three of the public officers law; a state
13 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
14 ~~subdivision one of such~~] section seventy-three-a of the public officers
15 law; a political party chairperson, as defined in [~~paragraph (h) of~~
16 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
17 public officers law; a local elected official, as defined in subdivi-
18 sions one and two of section eight hundred ten of the general municipal
19 law; a person appointed, pursuant to law, to serve due to vacancy or
20 otherwise in the position of a local elected official, as defined in
21 subdivisions one and two of section eight hundred ten of the general
22 municipal law; a member of the state legislature; or a judge or justice
23 of the unified court system, or filed by a partnership, firm, associ-
24 ation, corporation, joint-stock company, trust or similar entity direct-
25 ly or indirectly controlled by any individual listed in this paragraph,
26 whether by contract, through ownership or control of a majority interest
27 in such entity, or otherwise, or filed by a partnership, firm, associ-
28 ation, corporation, joint-stock company, trust or similar entity of
29 which any individual listed in this paragraph holds ten percent or more
30 of the voting securities of such entity; provided however that, prior to
31 furnishing any report, the commissioner shall redact any copy of a
32 federal return (or portion thereof) attached to, or any information on a
33 federal return that is reflected on, such report, and any social securi-
34 ty numbers, account numbers and residential address information.

35 § 4. Paragraph 1 of subdivision (g) of section 314 of the tax law, as
36 amended by chapter 92 of the laws of 2019, is amended to read as
37 follows:

38 (1) Notwithstanding the provisions of subdivision (a) of this section,
39 upon written request from the chairperson of the committee on ways and
40 means of the United States House of Representatives, the chairperson of
41 the committee on finance of the United States Senate, or the chairperson
42 of the joint committee on taxation of the United States Congress, the
43 commissioner shall furnish such committee with any current or prior year
44 returns specified in such request that were filed under this article by
45 the president of the United States, vice-president of the United States,
46 member of the United States Congress representing New York state, or any
47 person who served in or was employed by the executive branch of the
48 government of the United States on the executive staff of the president,
49 in the executive office of the president, or in an acting or confirmed
50 capacity in a position subject to confirmation by the United States
51 senate; or, in New York state: a statewide elected official, as defined
52 in [~~paragraph (a) of subdivision one of~~] section [~~seventy-three-a~~]
53 seventy-three of the public officers law; a state officer or employee,
54 as defined in [~~subparagraph (i) of paragraph (c) of subdivision one of~~
55 ~~such~~] section seventy-three-a of the public officers law; a political
56 party chairperson, as defined in [~~paragraph (h) of subdivision one of~~

1 ~~such~~] section ~~[seventy-three-a]~~ seventy-three of the public officers
2 law; a local elected official, as defined in subdivisions one and two of
3 section eight hundred ten of the general municipal law; a person
4 appointed, pursuant to law, to serve due to vacancy or otherwise in the
5 position of a local elected official, as defined in subdivisions one and
6 two of section eight hundred ten of the general municipal law; a member
7 of the state legislature; or a judge or justice of the unified court
8 system, or filed by a partnership, firm, association, corporation,
9 joint-stock company, trust or similar entity directly or indirectly
10 controlled by any individual listed in this paragraph, whether by
11 contract, through ownership or control of a majority interest in such
12 entity, or otherwise, or filed by a partnership, firm, association,
13 corporation, joint-stock company, trust or similar entity of which any
14 individual listed in this paragraph holds ten percent or more of the
15 voting securities of such entity; provided however that, prior to
16 furnishing any return, the commissioner shall redact any copy of a
17 federal return (or portion thereof) attached to, or any information on a
18 federal return that is reflected on, such return, and any social securi-
19 ty numbers, account numbers and residential address information.

20 § 5. Paragraph (a) of subdivision 5 of section 437 of the tax law, as
21 amended by chapter 92 of the laws of 2019, is amended to read as
22 follows:

23 (a) Notwithstanding the provisions of subdivision one of this section,
24 upon written request from the chairperson of the committee on ways and
25 means of the United States House of Representatives, the chairperson of
26 the committee on finance of the United States Senate, or the chairperson
27 of the joint committee on taxation of the United States Congress, the
28 commissioner shall furnish such committee with any current or prior year
29 returns or reports specified in such request that were filed under this
30 article by the president of the United States, vice-president of the
31 United States, member of the United States Congress representing New
32 York state, or any person who served in or was employed by the executive
33 branch of the government of the United States on the executive staff of
34 the president, in the executive office of the president, or in an acting
35 or confirmed capacity in a position subject to confirmation by the
36 United States senate; or, in New York state: a statewide elected offi-
37 cial, as defined in ~~[paragraph (a) of subdivision one of]~~ section
38 ~~[seventy-three-a]~~ seventy-three of the public officers law; a state
39 officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of~~
40 ~~subdivision one of such]~~ section seventy-three-a of the public officers
41 law; a political party chairperson, as defined in ~~[paragraph (h) of~~
42 ~~subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the
43 public officers law; a local elected official, as defined in subdivi-
44 sions one and two of section eight hundred ten of the general municipal
45 law; a person appointed, pursuant to law, to serve due to vacancy or
46 otherwise in the position of a local elected official, as defined in
47 subdivisions one and two of section eight hundred ten of the general
48 municipal law; a member of the state legislature; or a judge or justice
49 of the unified court system, or filed by a partnership, firm, associ-
50 ation, corporation, joint-stock company, trust or similar entity direct-
51 ly or indirectly controlled by any individual listed in this paragraph,
52 whether by contract, through ownership or control of a majority interest
53 in such entity, or otherwise, or filed by a partnership, firm, associ-
54 ation, corporation, joint-stock company, trust or similar entity of
55 which any individual listed in this paragraph holds ten percent or more
56 of the voting securities of such entity; provided however that, prior to

1 furnishing any return or report, the commissioner shall redact any copy
2 of a federal return (or portion thereof) attached to, or any information
3 on a federal return that is reflected on, such return or report, and any
4 social security numbers, account numbers and residential address infor-
5 mation.

6 § 6. Paragraph 1 of subdivision (a-1) of section 499 of the tax law,
7 as amended by chapter 92 of the laws of 2019, is amended to read as
8 follows:

9 (1) Notwithstanding the provisions of subdivision (a) of this section,
10 upon written request from the chairperson of the committee on ways and
11 means of the United States House of Representatives, the chairperson of
12 the committee on finance of the United States Senate, or the chairperson
13 of the joint committee on taxation of the United States Congress, the
14 commissioner shall furnish such committee with any current or prior year
15 returns or reports specified in such request that were filed under this
16 article by the president of the United States, vice-president of the
17 United States, member of the United States Congress representing New
18 York state, or any person who served in or was employed by the executive
19 branch of the government of the United States on the executive staff of
20 the president, in the executive office of the president, or in an acting
21 or confirmed capacity in a position subject to confirmation by the
22 United States senate; or, in New York state: a statewide elected offi-
23 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
24 [~~seventy-three-a~~] seventy-three of the public officers law; a state
25 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
26 ~~subdivision one of such~~] section seventy-three-a of the public officers
27 law; a political party chairperson, as defined in [~~paragraph (h) of~~
28 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
29 public officers law; a local elected official, as defined in subdivi-
30 sions one and two of section eight hundred ten of the general municipal
31 law; a person appointed, pursuant to law, to serve due to vacancy or
32 otherwise in the position of a local elected official, as defined in
33 subdivisions one and two of section eight hundred ten of the general
34 municipal law; a member of the state legislature; or a judge or justice
35 of the unified court system, or filed by a partnership, firm, associ-
36 ation, corporation, joint-stock company, trust or similar entity direct-
37 ly or indirectly controlled by any individual listed in this paragraph,
38 whether by contract, through ownership or control of a majority interest
39 in such entity, or otherwise, or filed by a partnership, firm, associ-
40 ation, corporation, joint-stock company, trust or similar entity of
41 which any individual listed in this paragraph holds ten percent or more
42 of the voting securities of such entity; provided however that, prior to
43 furnishing any return or report, the commissioner shall redact any copy
44 of a federal return (or portion thereof) attached to, or any information
45 on a federal return that is reflected on, such return or report, and any
46 social security numbers, account numbers and residential address infor-
47 mation.

48 § 7. Paragraph (a) of subdivision 6 of section 514 of the tax law, as
49 amended by chapter 92 of the laws of 2019, is amended to read as
50 follows:

51 (a) Notwithstanding the provisions of subdivision one of this section,
52 upon written request from the chairperson of the committee on ways and
53 means of the United States House of Representatives, the chairperson of
54 the committee on finance of the United States Senate, or the chairperson
55 of the joint committee on taxation of the United States Congress, the
56 commissioner shall furnish such committee with any current or prior year

1 returns or reports specified in such request that were filed under this
2 article by the president of the United States, vice-president of the
3 United States, member of the United States Congress representing New
4 York state, or any person who served in or was employed by the executive
5 branch of the government of the United States on the executive staff of
6 the president, in the executive office of the president, or in an acting
7 or confirmed capacity in a position subject to confirmation by the
8 United States senate; or, in New York state: a statewide elected offi-
9 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
10 [~~seventy-three-a~~] seventy-three of the public officers law; a state
11 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
12 ~~subdivision one of such~~] section seventy-three-a of the public officers
13 law; a political party chairperson, as defined in [~~paragraph (h) of~~
14 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the
15 public officers law; a local elected official, as defined in subdivi-
16 sions one and two of section eight hundred ten of the general municipal
17 law; a person appointed, pursuant to law, to serve due to vacancy or
18 otherwise in the position of a local elected official, as defined in
19 subdivisions one and two of section eight hundred ten of the general
20 municipal law; a member of the state legislature; or a judge or justice
21 of the unified court system; or filed by a partnership, firm, associ-
22 ation, corporation, joint-stock company, trust or similar entity direct-
23 ly or indirectly controlled by any individual listed in this paragraph,
24 whether by contract, through ownership or control of a majority interest
25 in such entity, or otherwise, or filed by a partnership, firm, associ-
26 ation, corporation, joint-stock company, trust or similar entity of
27 which any individual listed in this paragraph holds ten percent or more
28 of the voting securities of such entity; provided however that, prior to
29 furnishing any return or report, the commissioner shall redact any copy
30 of a federal return (or portion thereof) attached to, or any information
31 on a federal return that is reflected on, such return or report, and any
32 social security numbers, account numbers and residential address infor-
33 mation.

34 § 8. Paragraph 1 of subdivision (f-1) of section 697 of the tax law,
35 as amended by chapter 92 of the laws of 2019, is amended to read as
36 follows:

37 (1) Notwithstanding the provisions of subsection (e) of this section,
38 upon written request from the chairperson of the committee on ways and
39 means of the United States House of Representatives, the chairperson of
40 the committee on finance of the United States Senate, or the chairperson
41 of the joint committee on taxation of the United States Congress, the
42 commissioner shall furnish such committee with any current or prior year
43 reports or returns specified in such request that were filed under this
44 article by the president of the United States, vice-president of the
45 United States, member of the United States Congress representing New
46 York state, or any person who served in or was employed by the executive
47 branch of the government of the United States on the executive staff of
48 the president, in the executive office of the president, or in an acting
49 or confirmed capacity in a position subject to confirmation by the
50 United States senate; or, in New York state: a statewide elected offi-
51 cial, as defined in [~~paragraph (a) of subdivision one of~~] section
52 [~~seventy-three-a~~] seventy-three of the public officers law; a state
53 officer or employee, as defined in [~~subparagraph (i) of paragraph (c) of~~
54 ~~subdivision one of such~~] section seventy-three-a of the public officers
55 law; a political party chairperson, as defined in [~~paragraph (h) of~~
56 ~~subdivision one of such~~] section [~~seventy-three-a~~] seventy-three of the

1 public officers law; a local elected official, as defined in subdivi-
2 sions one and two of section eight hundred ten of the general municipal
3 law; a person appointed, pursuant to law, to serve due to vacancy or
4 otherwise in the position of a local elected official, as defined in
5 subdivisions one and two of section eight hundred ten of the general
6 municipal law; a member of the state legislature; or a judge or justice
7 of the unified court system; provided however that, prior to furnishing
8 any report or return, the commissioner shall redact any copy of a feder-
9 al return (or portion thereof) attached to, or any information on a
10 federal return that is reflected on, such report or return, and any
11 social security numbers, account numbers and residential address infor-
12 mation.

13 § 9. Paragraph 1 of subsection (b-1) of section 994 of the tax law, as
14 amended by chapter 92 of the laws of 2019, is amended to read as
15 follows:

16 (1) Notwithstanding the provisions of subsection (a) of this section,
17 upon written request from the chairperson of the committee on ways and
18 means of the United States House of Representatives, the chairperson of
19 the committee on finance of the United States Senate, or the chairperson
20 of the joint committee on taxation of the United States Congress, the
21 commissioner shall furnish such committee with any current or prior year
22 reports or returns specified in such request that were filed under this
23 article by the president of the United States, vice-president of the
24 United States, member of the United States Congress representing New
25 York state, or any person who served in or was employed by the executive
26 branch of the government of the United States on the executive staff of
27 the president, in the executive office of the president, or in an acting
28 or confirmed capacity in a position subject to confirmation by the
29 United States senate; or, in New York state: a statewide elected offi-
30 cial, as defined in ~~[paragraph (a) of subdivision one of]~~ section
31 ~~[seventy-three-a]~~ seventy-three of the public officers law; a state
32 officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of~~
33 ~~subdivision one of such]~~ section seventy-three-a of the public officers
34 law; a political party chairperson, as defined in ~~[paragraph (h) of~~
35 ~~subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the
36 public officers law; a local elected official, as defined in subdivi-
37 sions one and two of section eight hundred ten of the general municipal
38 law; a person appointed, pursuant to law, to serve due to vacancy or
39 otherwise in the position of a local elected official, as defined in
40 subdivisions one and two of section eight hundred ten of the general
41 municipal law; a member of the state legislature; or a judge or justice
42 of the unified court system; or filed by a partnership, firm, associ-
43 ation, corporation, joint-stock company, trust or similar entity direct-
44 ly or indirectly controlled by any individual listed in this paragraph,
45 whether by contract, through ownership or control of a majority interest
46 in such entity, or otherwise, or filed by a partnership, firm, associ-
47 ation, corporation, joint-stock company, trust or similar entity of
48 which any individual listed in this paragraph holds ten percent or more
49 of the voting securities of such entity; provided however that, prior to
50 furnishing any report or return, the commissioner shall redact any copy
51 of a federal return (or portion thereof) attached to, or any information
52 on a federal return that is reflected on, such report or return, and any
53 social security numbers, account numbers and residential address infor-
54 mation.

§ 10. Paragraph 1 of subdivision (h) of section 1146 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(1) Notwithstanding the provisions of subdivision (a) of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns or reports specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three-a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a member of the state legislature, or a judge or justice of the unified court system; or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity directly or indirectly controlled by any individual listed in this paragraph, whether by contract, through ownership or control of a majority interest in such entity, or otherwise, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity of which any individual listed in this paragraph holds ten percent or more of the voting securities of such entity; provided however that, prior to furnishing any return or report, the commissioner shall redact any copy of a federal return (or portion thereof) attached to, or any information on a federal return that is reflected on, such report or return, and any social security numbers, account numbers and residential address information.

§ 11. Paragraph 1 of subdivision (g) of section 1287 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(1) Notwithstanding the provisions of subdivision (a) of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns specified in such request that were filed under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president,

1 in the executive office of the president, or in an acting or confirmed
2 capacity in a position subject to confirmation by the United States
3 senate; or, in New York state: a statewide elected official, as defined
4 in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~
5 seventy-three of the public officers law; a state officer or employee,
6 as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of]~~
7 ~~such~~ section seventy-three-a of the public officers law; a political
8 party chairperson, as defined in ~~[paragraph (h) of subdivision one of]~~
9 ~~such~~ section ~~[seventy-three-a]~~ seventy-three of the public officers
10 law; a local elected official, as defined in subdivisions one and two of
11 section eight hundred ten of the general municipal law; a person
12 appointed, pursuant to law, to serve due to vacancy or otherwise in the
13 position of a local elected official, as defined in subdivisions one and
14 two of section eight hundred ten of the general municipal law; a member
15 of the state legislature; or a judge or justice of the unified court
16 system; or filed by a partnership, firm, association, corporation,
17 joint-stock company, trust or similar entity directly or indirectly
18 controlled by any individual listed in this paragraph, whether by
19 contract, through ownership or control of a majority interest in such
20 entity, or otherwise, or filed by a partnership, firm, association,
21 corporation, joint-stock company, trust or similar entity of which any
22 individual listed in this paragraph holds ten percent or more of the
23 voting securities of such entity; provided however that, prior to
24 furnishing any return, the commissioner shall redact any copy of a
25 federal return (or portion thereof) attached to, or any information on a
26 federal return that is reflected on, such return, and any social securi-
27 ty numbers, account numbers and residential address information.

28 § 12. Paragraph 1 of subdivision (f) of section 1296 of the tax law,
29 as amended by chapter 92 of the laws of 2019, is amended to read as
30 follows:

31 (1) Notwithstanding the provisions of subdivision (a) of this section,
32 upon written request from the chairperson of the committee on ways and
33 means of the United States House of Representatives, the chairperson of
34 the committee on finance of the United States Senate, or the chairperson
35 of the joint committee on taxation of the United States Congress, the
36 commissioner shall furnish such committee with any current or prior year
37 returns or reports specified in such request that were filed under this
38 article by the president of the United States, vice-president of the
39 United States, member of the United States Congress representing New
40 York state, or any person who served in or was employed by the executive
41 branch of the government of the United States on the executive staff of
42 the president, in the executive office of the president, or in an acting
43 or confirmed capacity in a position subject to confirmation by the
44 United States senate; or, in New York state: a statewide elected offi-
45 cial, as defined in ~~[paragraph (a) of subdivision one of]~~ section
46 ~~[seventy-three-a]~~ seventy-three of the public officers law; a state
47 officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of]~~
48 ~~subdivision one of such~~ section seventy-three-a of the public officers
49 law; a political party chairperson, as defined in ~~[paragraph (h) of]~~
50 ~~subdivision one of such~~ section ~~[seventy-three-a]~~ seventy-three of the
51 public officers law; a local elected official, as defined in subdivi-
52 sions one and two of section eight hundred ten of the general municipal
53 law; a person appointed, pursuant to law, to serve due to vacancy or
54 otherwise in the position of a local elected official, as defined in
55 subdivisions one and two of section eight hundred ten of the general
56 municipal law; a member of the state legislature; or a judge or justice

1 of the unified court system; or filed by a partnership, firm, associ-
2 ation, corporation, joint-stock company, trust or similar entity direct-
3 ly or indirectly controlled by any individual listed in this paragraph,
4 whether by contract, through ownership or control of a majority interest
5 in such entity, or otherwise, or filed by a partnership, firm, associ-
6 ation, corporation, joint-stock company, trust or similar entity of
7 which any individual listed in this paragraph holds ten percent or more
8 of the voting securities of such entity; provided however that, prior to
9 furnishing any return or report, the commissioner shall redact any copy
10 of a federal return (or portion thereof) attached to, or any information
11 on a federal return that is reflected on, such return or report, and any
12 social security numbers, account numbers and residential address infor-
13 mation.

14 § 13. Paragraph 1 of subdivision (d) of section 1299-f of the tax law,
15 as amended by chapter 92 of the laws of 2019, is amended to read as
16 follows:

17 (1) Notwithstanding the provisions of subdivision (a) of this section,
18 upon written request from the chairperson of the committee on ways and
19 means of the United States House of Representatives, the chairperson of
20 the committee on finance of the United States Senate, or the chairperson
21 of the joint committee on taxation of the United States Congress, the
22 commissioner shall furnish such committee with any current or prior year
23 returns specified in such request that were filed under this article by
24 the president of the United States, vice-president of the United States,
25 member of the United States Congress representing New York state, or any
26 person who served in or was employed by the executive branch of the
27 government of the United States on the executive staff of the president,
28 in the executive office of the president, or in an acting or confirmed
29 capacity in a position subject to confirmation by the United States
30 senate; or, in New York state: a statewide elected official, as defined
31 in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three-a]~~
32 seventy-three of the public officers law; a state officer or employee,
33 as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of]~~
34 ~~such~~ section seventy-three-a of the public officers law; a political
35 party chairperson, as defined in ~~[paragraph (h) of subdivision one of]~~
36 ~~such~~ section ~~[seventy-three-a]~~ seventy-three of the public officers
37 law; a local elected official, as defined in subdivisions one and two of
38 section eight hundred ten of the general municipal law; a person
39 appointed, pursuant to law, to serve due to vacancy or otherwise in the
40 position of a local elected official, as defined in subdivisions one and
41 two of section eight hundred ten of the general municipal law; a member
42 of the state legislature; or a judge or justice of the unified court
43 system; or filed by a partnership, firm, association, corporation,
44 joint-stock company, trust or similar entity directly or indirectly
45 controlled by any individual listed in this paragraph, whether by
46 contract, through ownership or control of a majority interest in such
47 entity, or otherwise, or filed by a partnership, firm, association,
48 corporation, joint-stock company, trust or similar entity of which any
49 individual listed in this paragraph holds ten percent or more of the
50 voting securities of such entity; provided however that, prior to
51 furnishing any return, the commissioner shall redact any copy of a
52 federal return (or portion thereof) attached to, or any information on a
53 federal return that is reflected on, such return, and any social securi-
54 ty numbers, account numbers and residential address information.

§ 14. Paragraph 1 of subdivision (i) of section 1418 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(1) Notwithstanding the provisions of subdivision (a) of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns filed specified in such request that were under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed capacity in a position subject to confirmation by the United States senate; or, in New York state: a statewide elected official, as defined in ~~[paragraph (a) of subdivision one of]~~ section ~~[seventy-three a]~~ seventy-three of the public officers law; a state officer or employee, as defined in ~~[subparagraph (i) of paragraph (c) of subdivision one of such]~~ section seventy-three-a of the public officers law; a political party chairperson, as defined in ~~[paragraph (h) of subdivision one of such]~~ section ~~[seventy-three a]~~ seventy-three of the public officers law; a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a person appointed, pursuant to law, to serve due to vacancy or otherwise in the position of a local elected official, as defined in subdivisions one and two of section eight hundred ten of the general municipal law; a member of the state legislature; or a judge or justice of the unified court system; or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity directly or indirectly controlled by any individual listed in this paragraph, whether by contract, through ownership or control of a majority interest in such entity, or otherwise, or filed by a partnership, firm, association, corporation, joint-stock company, trust or similar entity of which any individual listed in this paragraph holds ten percent or more of the voting securities of such entity; provided however that, prior to furnishing any return, the commissioner shall redact any copy of a federal return (or portion thereof) attached to, or any information on a federal return that is reflected on, such return, and any social security numbers, account numbers and residential address information.

§ 15. Paragraph 1 of subdivision (h) of section 1518 of the tax law, as amended by chapter 92 of the laws of 2019, is amended to read as follows:

(1) Notwithstanding the provisions of subdivision (a) of this section, upon written request from the chairperson of the committee on ways and means of the United States House of Representatives, the chairperson of the committee on finance of the United States Senate, or the chairperson of the joint committee on taxation of the United States Congress, the commissioner shall furnish such committee with any current or prior year returns filed specified in such request that were under this article by the president of the United States, vice-president of the United States, member of the United States Congress representing New York state, or any person who served in or was employed by the executive branch of the government of the United States on the executive staff of the president, in the executive office of the president, or in an acting or confirmed

1 capacity in a position subject to confirmation by the United States
2 senate; or, in New York state: a statewide elected official, as defined
3 in [~~paragraph (a) of subdivision one of~~] section [~~seventy-three-a~~]
4 seventy-three of the public officers law; a state officer or employee,
5 as defined in [~~subparagraph (i) of paragraph (c) of subdivision one of~~
6 ~~such~~] section seventy-three-a of the public officers law; a political
7 party chairperson, as defined in [~~paragraph (h) of subdivision one of~~
8 ~~such~~] section [~~seventy-three-a~~] seventy-three of the public officers
9 law; a local elected official, as defined in subdivisions one and two of
10 section eight hundred ten of the general municipal law; a person
11 appointed, pursuant to law, to serve due to vacancy or otherwise in the
12 position of a local elected official, as defined in subdivisions one and
13 two of section eight hundred ten of the general municipal law; a member
14 of the state legislature; or a judge or justice of the unified court
15 system, or filed by a partnership, firm, association, corporation,
16 joint-stock company, trust or similar entity directly or indirectly
17 controlled by any individual listed in this paragraph, whether by
18 contract, through ownership or control of a majority interest in such
19 entity, or otherwise, or filed by a partnership, firm, association,
20 corporation, joint-stock company, trust or similar entity of which any
21 individual listed in this paragraph holds ten percent or more of the
22 voting securities of such entity; provided however that, prior to
23 furnishing any return, the commissioner shall redact any copy of a
24 federal return (or portion thereof) attached to, or any information on a
25 federal return that is reflected on, such return, and any social securi-
26 ty numbers, account numbers and residential address information.

27 § 16. Paragraph 1 of subdivision (f) of section 1555 of the tax law,
28 as amended by chapter 92 of the laws of 2019, is amended to read as
29 follows:

30 (1) Notwithstanding the provisions of subdivision (a) of this section,
31 upon written request from the chairperson of the committee on ways and
32 means of the United States House of Representatives, the chairperson of
33 the committee on finance of the United States Senate, or the chairperson
34 of the joint committee on taxation of the United States Congress, the
35 commissioner shall furnish such committee with any current or prior year
36 returns filed specified in such request that were under this article by
37 the president of the United States, vice-president of the United States,
38 member of the United States Congress representing New York state, or any
39 person who served in or was employed by the executive branch of the
40 government of the United States on the executive staff of the president,
41 in the executive office of the president, or in an acting or confirmed
42 capacity in a position subject to confirmation by the United States
43 senate; or, in New York state: a statewide elected official, as defined
44 in [~~paragraph (a) of subdivision one of~~] section [~~seventy-three-a~~]
45 seventy-three of the public officers law; a state officer or employee,
46 as defined in [~~subparagraph (i) of paragraph (c) of subdivision one of~~
47 ~~such~~] section seventy-three-a of the public officers law; a political
48 party chairperson, as defined in [~~paragraph (h) of subdivision one of~~
49 ~~such~~] section [~~seventy-three-a~~] seventy-three of the public officers
50 law; a local elected official, as defined in subdivisions one and two of
51 section eight hundred ten of the general municipal law; a person
52 appointed, pursuant to law, to serve due to vacancy or otherwise in the
53 position of a local elected official, as defined in subdivisions one and
54 two of section eight hundred ten of the general municipal law; a member
55 of the state legislature; or a judge or justice of the unified court
56 system; or filed by a partnership, firm, association, corporation,

1 joint-stock company, trust or similar entity directly or indirectly
2 controlled by any individual listed in this paragraph, whether by
3 contract, through ownership or control of a majority interest in such
4 entity, or otherwise, or filed by a partnership, firm, association,
5 corporation, joint-stock company, trust or similar entity of which any
6 individual listed in this paragraph holds ten percent or more of the
7 voting securities of such entity; provided however that, prior to
8 furnishing any return, the commissioner shall redact any copy of a
9 federal return (or portion thereof) attached to, or any information on a
10 federal return that is reflected on, such return, and any social security
11 numbers, account numbers and residential address information.

12 § 17. Paragraph 1 of subdivision (m) of section 11-1797 of the admin-
13 istrative code of the city of New York, as amended by chapter 92 of the
14 laws of 2019, is amended to read as follows:

15 (1) Notwithstanding the provisions of subdivision (e) of this section,
16 upon written request from the chairperson of the committee on ways and
17 means of the United States House of Representatives, the chairperson of
18 the committee on finance of the United States Senate, or the chairperson
19 of the joint committee on taxation of the United States Congress, the
20 commissioner of taxation and finance shall furnish such committee with
21 any current or prior year returns specified in such request that were
22 filed under this article by the president of the United States, vice-
23 president of the United States, member of the United States Congress
24 representing New York state, or any person who served in or was employed
25 by the executive branch of the government of the United States on the
26 executive staff of the president, in the executive office of the presi-
27 dent, or in an acting or confirmed capacity in a position subject to
28 confirmation by the United States senate; or, in New York state: a
29 statewide elected official, as defined in [~~paragraph (a) of subdivision~~
30 ~~one of~~] section [~~seventy-three-a~~] seventy-three of the public officers
31 law; a state officer or employee, as defined in [~~subparagraph (i) of~~
32 ~~paragraph (c) of subdivision one of such~~] section seventy-three-a of the
33 public officers law; a political party chairperson, as defined in [~~para-~~
34 ~~graph (h) of subdivision one of such~~] section [~~seventy-three-a~~] seven-
35 ty-three of the public officers law; a local elected official, as
36 defined in subdivisions one and two of section eight hundred ten of the
37 general municipal law; a person appointed, pursuant to law, to serve due
38 to vacancy or otherwise in the position of a local elected official, as
39 defined in subdivisions one and two of section eight hundred ten of the
40 general municipal law; a member of the state legislature; or a judge or
41 justice of the unified court system; provided however that, prior to
42 furnishing any return, the commissioner shall redact any copy of a
43 federal return (or portion thereof) attached to, or any information on a
44 federal return that is reflected on, such return, and any social security
45 numbers, account numbers and residential address information.

46 § 18. This act shall take effect on the first of January next succeed-
47 ing the date on which it shall have become a law. Effective immediate-
48 ly, the addition, amendment and/or repeal of any rule or regulation
49 necessary for the implementation of this act on its effective date are
50 authorized to be made and completed on or before such effective date.

51 PART W

52 Section 1. Subdivision 1 of section 151 of the workers' compensation
53 law, as added by section 22 of part GG of chapter 57 of the laws of
54 2013, is amended to read as follows:

1 1. The annual expenses necessary for the board to administer the
2 provisions of this chapter, the volunteer ambulance workers' benefit
3 law, the volunteer firefighters' benefit law, the disability benefits
4 law, and the workmen's compensation act for civil defense volunteers
5 shall be borne by affected employers securing compensation for their
6 employees pursuant to section fifty of this chapter. The board shall
7 collect such annual expenses from affected employers through assessments
8 as provided by the provisions of this section, including for purposes of
9 this subdivision: (a) the aggregate assessment amount described in
10 subparagraph four of paragraph (h) of subdivision eight of section
11 fifteen of this chapter for the special disability fund in accordance
12 with each financing agreement described in such subparagraph, (b) the
13 aggregate assessment amount described in section fifty-c of this chapter
14 for the self-insurer offset fund in accordance with each financing
15 agreement described in such section, (c) the assessment amount described
16 in subdivision three of section twenty-five-a of this chapter for the
17 fund for reopened cases ~~[and]~~, (d) the assessment amount described in
18 section two hundred fourteen of this chapter for the special fund for
19 disability benefits and (e) a sum sufficient as determined by the chair
20 to cover the establishment and maintenance of dedicated workers' compen-
21 sation fraud units within New York state district attorneys' offices;
22 provided, that the foregoing and any other provision of this chapter to
23 the contrary notwithstanding, assessment receipts shall be applied first
24 to fully fund the amount described in subparagraph four of paragraph (h)
25 of subdivision eight of section fifteen of this chapter and then to
26 fully fund the amount described in section fifty-c of this chapter in
27 accordance with each then applicable financing agreement pursuant to
28 such provisions prior to application to any other purpose other than to
29 pay any actual costs of collecting such assessment that are not other-
30 wise funded. For purposes of this section, affected employer means all
31 employers required to obtain workers' compensation coverage pursuant to
32 this chapter.

33 § 2. This act shall take effect immediately.

34 PART X

35 Section 1. Section 13-a of the workers' compensation law, as added by
36 chapter 258 of the laws of 1935, subdivision 1 as amended by chapter 363
37 of the laws of 1989, subdivision 2 as amended by chapter 113 of the laws
38 of 1946, subdivision 4 as amended by chapter 473 of the laws of 2000,
39 subdivisions 5 and 6 as amended by section 8 of part CC of chapter 55 of
40 the laws of 2019, and subdivision 7 as added by chapter 6 of the laws of
41 2007, is amended to read as follows:

42 § 13-a. Selection of authorized ~~[physician]~~ provider by employee. (1)
43 An injured employee may, when care is required, select to treat ~~[him or~~
44 ~~her]~~ with any ~~[physician]~~ provider authorized by the chair to render
45 medical care or treatment, as hereafter provided. If for any reason
46 during the period when medical care or treatment ~~[and care]~~ is required,
47 the employee wishes to transfer ~~[his or her]~~ their medical care or
48 treatment ~~[and care]~~ to another authorized ~~[physician]~~ provider, ~~[he or~~
49 ~~she]~~ they may do so, in accordance with rules prescribed by the chair.
50 In such instance the remuneration of the ~~[physician]~~ provider whose
51 services are being dispensed with shall be limited to the value of
52 treatment rendered at fees as established in the schedule for ~~[his or~~
53 ~~her]~~ their location, unless payment in higher amounts has been approved
54 as authorized in ~~[section thirteen, paragraph]~~ subdivision a of section

1 thirteen of this article. If a claimant shall receive treatment in any
2 hospital or other institution operated in whole or in part by the state
3 of New York, the employer shall be liable for food, clothing and mainte-
4 nance furnished by the hospital or other institution to such employee.
5 If the employee is unable due to the nature of the injury to select such
6 authorized [physician] provider and the emergency nature of the injury
7 requires immediate medical treatment and care, or if ~~[he or she does]~~
8 they do not desire to select a [physician] provider, and in writing so
9 advises the employer, the employer shall promptly provide ~~[him or her]~~
10 the employee with the necessary medical care or treatment, provided
11 however, that nothing herein contained shall operate to prevent such
12 employee, when subsequently able to do so, from selecting for contin-
13 uance of any medical ~~[treatment or]~~ care or treatment required, any
14 [physician] provider authorized by the chair to render medical care or
15 treatment as hereinafter provided.

16 (2) The ~~[chairman]~~ chair shall prescribe the form of a notice inform-
17 ing employees of their privilege under this chapter, and such notice
18 shall be posted and maintained by the employer in a conspicuous place or
19 places in and about ~~[his]~~ their place or places of business.

20 (3) The employer shall have the right to transfer the care of an
21 injured employee from the attending physician, whether chosen originally
22 by the employee or by the employer, to another authorized physician (1)
23 if the interest of the injured employee necessitates the transfer or (2)
24 if the physician has not been authorized to treat injured employees
25 under this act or (3) if ~~[he]~~ the physician has not been authorized
26 under this act to treat the particular injury or condition as provided
27 by section thirteen-b (2). An authorized physician from whom the case
28 has been transferred shall have the right of appeal to an arbitration
29 committee as provided in subdivision two of section thirteen-g of this
30 article and if said arbitration committee finds that the transfer was
31 not authorized by this section, said employer shall pay to the physician
32 a sum equal to the total fee earned by the physician to whom the care of
33 the injured employee has been transferred, or such proportion of said
34 fee as the arbitration committee shall deem adequate.

35 (4) (a) No claim for medical or surgical treatment shall be valid and
36 enforceable, as against such employer, or employee, unless within
37 forty-eight hours following the first treatment the [physician] provider
38 giving such treatment furnishes to the employer and directly to the
39 chair a preliminary notice of such injury and treatment, within fifteen
40 days thereafter a more complete report and subsequent thereto progress
41 reports if requested in writing by the chair, board, employer or insur-
42 ance carrier at intervals of not less than three weeks apart or at less
43 frequent intervals if requested on forms prescribed by the chair. The
44 board may excuse failure to give such notices within the designated
45 periods when it finds it to be in the interest of justice to do so.

46 (b) Upon receipt of the notice provided for by paragraph (a) of this
47 subdivision, the employer, the carrier, and the claimant each shall be
48 entitled to have the claimant examined by a [physician] provider author-
49 ized by the chair to perform independent medical examinations in accord-
50 ance with sections thirteen-b and one hundred thirty-seven of this chap-
51 ter, at a medical facility convenient to the claimant and in the
52 presence of the claimant's [physician] provider, and refusal by the
53 claimant to submit to such independent medical examination at such time
54 or times as may reasonably be necessary in the opinion of the board,
55 shall bar the claimant from recovering compensation for any period
56 during which ~~[he or she has]~~ they have refused to submit to such exam-

1 ination. No hospital shall be required to produce the records of any
2 claimant without receiving its customary fees or charges for repro-
3 duction of such records.

4 (c) Where it would place an unreasonable burden upon the employer or
5 carrier to arrange for, or for the claimant to attend, an independent
6 medical examination by an authorized [physician] provider, the employer
7 or carrier shall arrange for such examination to be performed by a qual-
8 ified [physician] provider in a medical facility convenient to the
9 claimant.

10 (d) The independent medical examiner shall provide such reports and
11 shall submit to investigation as required by the chair.

12 (e) In order to qualify as admissible medical evidence, for purposes
13 of adjudicating any claim under this chapter, any report submitted to
14 the board by an independent medical examiner licensed by the state of
15 New York shall include the following:

16 (i) a signed statement certifying that the report is a full and truth-
17 ful representation of the independent medical examiner's professional
18 opinion with respect to the claimant's condition:

19 (ii) such examiner's board issued authorization number;

20 (iii) the name of the individual or entity requesting the examination;

21 (iv) if applicable, the registration number as required by section
22 thirteen-n of this article; and

23 (v) such other information as the chair may require by regulation.

24 Any report by an independent medical examiner who is not authorized,
25 and who performs an independent medical examination in accordance with
26 paragraph (c) of this subdivision, which is to be used as medical
27 evidence under this chapter, shall include in the report such informa-
28 tion as the chair may require by regulation.

29 (5) No claim for specialist consultations, surgical operations,
30 physiotherapeutic or occupational therapy procedures, x-ray examinations
31 or special diagnostic laboratory tests costing more than one thousand
32 dollars shall be valid and enforceable, as against such employer, unless
33 such special services shall have been authorized by the employer or by
34 the board, or unless such authorization has been unreasonably withheld,
35 or withheld for a period of more than thirty calendar days from receipt
36 of a request for authorization, or unless such special services are
37 required in an emergency, provided, however, that the basis for a denial
38 of such authorization by the employer must be based on a conflicting
39 second opinion rendered by a physician authorized by the board. The
40 board, with the approval of the superintendent of financial services,
41 shall issue and maintain a list of pre-authorized procedures under this
42 section. Such list of pre-authorized procedures shall be issued and
43 maintained for the purpose of expediting authorization of treatment of
44 injured workers. Such list of pre-authorized procedures shall not
45 prohibit varied treatment when the treating provider demonstrates the
46 appropriateness and medical necessity of such treatment.

47 (6) (a) Any interference by any person with the selection by an
48 injured employee of an authorized [physician] provider to treat [him]
49 such employee, except when the selection is made pursuant to article
50 ten-A of this chapter, and the improper influencing or attempt by any
51 person improperly to influence the medical opinion of any [physician]
52 provider who has treated or examined an injured employee, shall be a
53 misdemeanor; provided, however, that it shall not constitute interfer-
54 ence or improper influence if, in the presence of such injured employ-
55 ee's [physician] provider, an employer, [his] carrier or agent should
56 recommend or provide information concerning rehabilitation services or

1 the availability thereof to an injured employee or [~~his~~] the employee's
2 family.

3 (b) Except as otherwise permitted by law, an employer, carrier, or
4 third-party administrator shall not interfere or attempt to interfere
5 with the selection by an injured employee of, or treatment by, an
6 authorized [~~medical~~] provider, including by directing or attempting to
7 direct that the injured employee seek treatment from a specific provider
8 or type of provider selected by the employer, carrier, or third-party
9 administrator. It shall not constitute improper interference under this
10 paragraph if the direction or attempt to direct the injured employee to
11 receive treatment from a specific provider or type of provider origi-
12 nates from the employee's authorized [~~medical~~] provider while in the
13 course of providing treatment to the injured employee.

14 (i) Notwithstanding any other provision in this chapter, the chair
15 shall by regulation establish a performance standard concerning the
16 subject of any penalty imposed under this paragraph against an employer,
17 carrier or third-party administrator. The performance standard estab-
18 lished by the chair shall be used to measure compliance with this para-
19 graph by employers, carriers and third-party administrators. The chair
20 shall apply the performance standard based on multiple factors, includ-
21 ing but not limited to, findings of improper interference submitted as
22 complaints to the board's monitoring unit, unreasonable objections to
23 medical care or treatment, unwarranted objections to variances, medical
24 billing disputes, case delays brought about by employers, carriers and
25 third-party administrators, and the unreasonable denial of medical care
26 or treatment.

27 (ii) Upon validating an allegation that the employer, carrier or
28 third-party administrator has failed to meet the promulgated performance
29 standard, a penalty shall be assessed by the board upon notice to the
30 employer, carrier or third-party administrator. The board shall impose
31 such penalty against the carrier, employer or third-party administrator
32 in the amount of fifty dollars per violation identified in subparagraph
33 (i) of this paragraph. The penalties for violations identified in
34 subparagraph (i) of this paragraph, may be aggregated into a single
35 penalty upon a finding that an employer, carrier or third-party adminis-
36 trator has interfered with an injured employee's necessary medical care
37 or treatment [~~and care~~]. Such aggregate penalty or assessment shall be
38 based upon the number of violations as multiplied against the applicable
39 penalty or assessment, but may be negotiated by the chair's designee in
40 full satisfaction of the penalty or assessment. Any aggregate penalty or
41 assessment issued under this paragraph shall be issued administratively,
42 and the chair shall, by regulation, specify the method of review or
43 redetermination, and the presentation of evidence and objections shall
44 occur solely upon the documentation. Any final determination shall be
45 subject to review under section twenty-three of this article but penal-
46 ties may not be subject to a stay. A final determination that an employ-
47 er, carrier or third-party administrator has engaged in a pattern of
48 interference with an injured worker's access to medically necessary
49 medical care or treatment shall result in the imposition of an aggregate
50 penalty and publication of notice of such finding on the board's web
51 page.

52 (7)(a) Notwithstanding any other provision of this chapter to the
53 contrary, any insurance carrier authorized to transact the business of
54 workers' compensation insurance in this state, self-insurer or the state
55 insurance fund may contract with a network or networks, legally and
56 properly organized, to perform diagnostic tests, x-ray examinations,

1 magnetic resonance imaging, or other radiological examinations or tests
2 of claimants and may require claimant to obtain or undergo such diagnos-
3 tic test, x-ray examinations, magnetic resonance imaging or other radio-
4 logical examinations or tests with a provider or at a facility that is
5 affiliated with the network or networks with which the carrier
6 contracts, except if a medical emergency occurs requiring an immediate
7 diagnostic test, x-ray examination, magnetic resonance imaging or other
8 radiological examination or test or if the network with which the insur-
9 ance carrier, self-insurer or the state insurance fund contracts does
10 not have a provider or facility able to perform the examination or test
11 within a reasonable distance from the claimant's residence or place of
12 employment, as defined by regulation of the board.

13 (b) Any insurance carrier, self-insurer or the state insurance fund
14 which requires claimants to obtain or undergo diagnostic tests, x-ray
15 examinations, magnetic resonance imaging or other radiological examina-
16 tions or tests with a provider or at a facility affiliated with a
17 network or networks with which it contracts, must notify the claimant of
18 the name and contact information for the network or networks at the same
19 time the written statement of the claimant's rights as required by
20 subdivision two of section one hundred ten of this chapter or immediate-
21 ly after imposing such requirement if the time period within which the
22 written statement of the claimant's rights as required by subdivision
23 two of section one hundred ten of this chapter has expired.

24 (c) At the time a request for authorization for special diagnostic
25 tests, x-ray examinations, magnetic resonance imaging or other radiolog-
26 ical examinations or tests costing more than one thousand dollars as
27 required by subdivision five of this section is approved, the insurance
28 carrier, self-insurer or state insurance fund, or if so delegated the
29 network with which the insurance carrier, self-insurer or state insur-
30 ance fund has contracted, shall notify the ~~physician~~ provider request-
31 ing authorization of the requirement that the claimant obtain or undergo
32 the special diagnostic test, x-ray examination, magnetic resonance imag-
33 ing or other radiological examination or test with a provider or at a
34 facility affiliated with the network or networks with which it has
35 contracted, the contact information for the network and a list of the
36 providers and facilities within the claimant's geographic location, as
37 defined by regulation of the board. The claimant, in consultation with
38 the provider who requested the special diagnostic test, x-ray examina-
39 tion, magnetic resonance imaging or other radiological test or exam,
40 will determine the provider or facility from within the network which
41 will perform such diagnostic test, x-ray examination, magnetic resonance
42 imaging or other radiological examination or test.

43 (d) The results of the special diagnostic test, x-ray examination,
44 magnetic resonance imaging or other radiological test or exam must be
45 sent to the ~~physician~~ provider who requested the test or exam imme-
46 diately upon completion of the report detailing the results.

47 § 2. Section 13-b of the workers' compensation law, as amended by
48 section 1 of part CC of chapter 55 of the laws of 2019, paragraphs (p)
49 and (q) of subdivision 1 and paragraph (b-1) of subdivision 2 as added
50 by chapter 335 of the laws of 2024, and paragraph (b-2) of subdivision 2
51 as added by section 1 of part AA of chapter 55 of the laws of 2025, is
52 amended to read as follows:

53 § 13-b. Authorization of providers, medical bureaus and laboratories
54 by the chair. 1. ~~[No person shall render medical care or conduct inde-~~
55 ~~pendent medical examinations under this chapter without such authori-~~
56 ~~zation by the chair.]~~ Any provider as defined in paragraph (m) of this

subdivision shall be authorized to render medical care or treatment under this chapter. Independent medical examinations may only be performed by a physician, podiatrist, chiropractor, or psychologist authorized to perform such examinations by the chair, or as specified in regulations. No provider may conduct independent medical examinations unless performed in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter. As used in this ~~title~~ chapter, the following definitions shall

have the following meanings unless their context requires otherwise:

(a) "Acupuncturist" shall mean licensed as having completed a formal course of study and having passed an examination in accordance with the education law, the regulations of the commissioner of education, and the requirements of the board of regents. Acupuncturists are required by the education law to advise, in writing, each patient of the importance of consulting with a physician for the condition or conditions necessitating acupuncture care, as prescribed by the education law.

(b) "Chair" of the board shall mean either the chair or the chair's designee.

(c) "Chiropractor" shall mean licensed and having completed two years of preprofessional college study and a four-year resident program in chiropractic in accordance with the education law, and consistent with the licensing requirements of the commissioner of education.

(d) "Dentist" shall mean licensed and having completed a four-year course of study leading to a D.D.S. or D.D.M. degree, or an equivalent degree, in accordance with the education law and the licensing requirements of the commissioner of education.

(e) "Employer" shall mean a self-insured employer or, if insured, the insurance carrier.

(f) "Independent medical examination" shall mean an examination performed by a physician, podiatrist, chiropractor or psychologist, authorized under this section to perform such examination, for the purpose of examining or evaluating injury or illness ~~pursuant to~~ in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter and as more fully set forth in regulation.

(g) "Nurse practitioner" shall mean a licensed registered professional nurse certified pursuant to section sixty-nine hundred ten of the education law acting within their lawful scope of practice.

(h) "Occupational therapist" shall mean licensed as having at least a bachelor's or master's degree in occupational therapy from a registered program with the education department or receipt of a diploma or degree resulting from completion of not less than four years of postsecondary study, which includes the professional study of occupational therapy in accordance with the education law and the regulations of the commissioner of education.

(i) "Physical therapist" shall mean licensed in accordance with the education law and the licensing requirements of the commissioner of education.

(j) "Physician" shall mean licensed with a degree of doctor of medicine, M.D., or doctor of osteopathic medicine, D.O., or an equivalent degree in accordance with the education law and the licensing requirements of the state board of medicine and the regulations of the commissioner of education.

(k) "Physician assistant" shall mean a licensed provider who is licensed as a physician assistant pursuant to section sixty-five hundred forty-one of the education law.

(l) "Podiatrist" shall mean a doctor of podiatric medicine licensed as having received a doctoral degree in podiatric medicine in accordance with the regulations of the commissioner of education and the education law, and must satisfactorily meet all other requirements of the state board for podiatric medicine.

(m) ~~["Provider"]~~ "Authorized provider" or "provider" shall mean a duly licensed acupuncturist, chiropractor, nurse practitioner, occupational therapist, physical therapist, physician, physician assistant, podiatrist, psychologist, or social worker ~~[authorized by the chair]~~ as defined in this section who is not currently on the exclusion list pursuant to section thirteen-d of this article.

(n) "Psychologist" shall mean licensed as having received a doctoral degree in psychology from a program of psychology registered with the state education department or the substantial equivalent thereof in accordance with the education law, the requirements of the state board for psychology, and the regulations of the commissioner of education.

(o) "Social worker" shall mean a licensed clinical social worker. A licensed clinical social worker has completed a master's degree of social work that includes completion of a core curriculum of at least twelve credit hours of clinical courses or the equivalent post-graduate clinical coursework, in accordance with the education law and the regulations of the commissioner of education.

(p) "Physical therapist assistant" shall mean licensed in accordance with the education law and the licensing requirements of the commissioner of education.

(q) "Occupational therapy assistant" shall mean licensed in accordance with the education law and the licensing requirements of the commissioner of education.

(r) "Exclusion list" shall mean the list published and maintained by the chair in accordance with section thirteen-d of this article listing providers who are currently disqualified from rendering care or from performing independent medical examinations under this chapter.

2. Any provider ~~[licensed pursuant to the education law to provide medical care and treatment in the state of New York may render emergency care and treatment in an emergency hospital or urgent care setting providing emergency treatment under this chapter without authorization by the chair under this section;]~~ rendering medical care or treatment under this chapter must comply with all applicable laws, regulations and guidance, including any applicable New York Medical Treatment Guidelines and the Official New York Medical Fee Schedule(s).

(a) Such ~~[licensed]~~ provider as identified in this subdivision who is on staff at any hospital or urgent care center providing emergency treatment may continue such medical care or treatment under this chapter while an injured employee remains a patient in such hospital or urgent care setting~~[-and].~~

(b) Under the direct supervision of an authorized provider, medical care may be rendered by a registered nurse or other person trained in laboratory or diagnostic techniques within the scope of such person's specialized training and qualifications. This supervision shall be evidenced by signed records of instructions for treatment and signed records of the patient's condition and progress. Reports of such treatment and supervision shall be made by such provider to the chair in the format prescribed by the chair at such times as the chair may require.

(b-1) Under the direction and supervision of an authorized occupational therapist, occupational therapy services may be rendered by an occupational therapy assistant. Under the direction and supervision of

1 an authorized physical therapist, physical therapy services may be
2 rendered by a physical therapist assistant. Where any such care or
3 treatment is rendered, records of the patient's condition and progress,
4 together with records of instruction for treatment, if any, shall be
5 maintained by the physical therapist or occupational therapist and by
6 the referring physician, physician assistant, podiatrist, or nurse prac-
7 titioner. Said records shall be submitted to the chair on forms and at
8 such times as the chair may require.

9 (b-2) Under the supervision of any authorized provider, any resident
10 or fellow who may practice medicine as an exempt person as provided for
11 in title eight of the education law, may render medical care or treat-
12 ment under this chapter so long as the supervisory requirements of the
13 education law are met and neither the supervising provider nor resident
14 or fellow have been prohibited from treating workers' compensation
15 claimants pursuant to section thirteen-d of this article.

16 (c) Where it would place an unreasonable burden upon the employer or
17 carrier to arrange for, or for the claimant to attend, an independent
18 medical examination by [~~an authorized~~] a provider[, authorized to
19 perform independent medical examinations in accordance with paragraph
20 (b) of subdivision four of section thirteen-a of this article and
21 section one hundred thirty-seven of this chapter, the employer or carri-
22 er shall arrange for such examination to be performed by a qualified
23 provider in a medical facility convenient to the claimant.

24 (d) Upon the prescription or referral of [~~an authorized~~] a physician,
25 physician assistant, podiatrist, or nurse practitioner who is not
26 currently on the exclusion list pursuant to section thirteen-d of this
27 article acting within the scope of [~~his or her~~] their practice, medical
28 care or treatment may be rendered to an injured employee by [~~an author-~~
29 ~~ized~~] a physical therapist, occupational therapist or acupuncturist who
30 is not currently on the exclusion list pursuant to section thirteen-d of
31 this article provided the conditions and the treatment performed are
32 among the conditions that the physical therapist, occupational therapist
33 or acupuncturist is authorized to treat pursuant to the education law or
34 the regulations of the commissioner of education. Where any such medical
35 care or treatment is rendered, records of the patient's condition and
36 progress, together with records of instruction for treatment, if any,
37 shall be maintained by the physical therapist, occupational therapist or
38 acupuncturist rendering treatment and by the referring physician, physi-
39 cian assistant, podiatrist, or nurse practitioner. Said records shall be
40 submitted to the chair on forms and at such times as the chair may
41 require.

42 (e) A record, report or opinion of a physical therapist, occupational
43 therapist, acupuncturist or physician assistant shall not be considered
44 as evidence of the causal relationship of any condition to a work
45 related accident or occupational disease under this chapter. Nor may a
46 record, report or opinion of a physical therapist, occupational thera-
47 pist or acupuncturist be considered evidence of disability. Nor may a
48 record, report or opinion of a physician assistant be considered
49 evidence of the presence of a permanent or initial disability or the
50 degree thereof.

51 (f) An independent medical examination performed in accordance with
52 section one hundred thirty-seven of this chapter, may only be performed
53 by a physician, podiatrist, chiropractor or psychologist authorized to
54 perform such examinations by the chair, or as specified in regulation,
55 when qualified by the board.

3. ~~[A provider]~~ In order to perform independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter, a physician, podiatrist, chiropractor, or psychologist properly licensed or certified pursuant to the regulations of the commissioner of education and the requirements of the education law ~~[desirous of being authorized to render medical care under this chapter and/or to conduct independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter]~~ shall file an application for authorization under this chapter with the chair or chair's designee in the format prescribed by the chair. ~~[Prior to receiving authorization, a physician must, together with submission of an application to the chair, submit such application to the medical society of the county in which the physician's office is located or of a board designated by such county society or of a board representing duly licensed physicians of any other school of medical practice in such county, and such medical society shall submit the recommendation to the board. In the event such county society or board fails to take action upon a physician's completed and signed application within forty-five days, the chair may complete review of the application without such approval. Upon approval of the application by the chair or the chair's designee, the applicant shall further agree to refrain from subsequently treating for remuneration, as a private patient, any person seeking medical treatment, or submitting to an independent medical examination, in connection with, or as a result of, any injury compensable under this chapter, if he or she has been removed from the list of providers authorized to render medical care or to conduct independent medical examinations under this chapter, or if the person seeking such treatment, or submitting to an independent medical examination, has been transferred from his or her care in accordance with the provisions of this chapter. This agreement shall run to the benefit of the injured person so treated or examined, and shall be available to him or her as a defense in any action by such provider for payment for treatment rendered by a provider after he or she has been removed from the list of providers authorized to render medical care or to conduct independent medical examinations under this chapter, or after the injured person was transferred from his or her care in accordance with the provisions of this chapter.]~~

4. Laboratories and bureaus engaged in x-ray diagnosis or treatment or in physiotherapy or other therapeutic procedures and which participate in the diagnosis or treatment of injured workers under this chapter shall be operated or supervised by providers authorized under this chapter and shall be subject to the provisions of section thirteen-c of this article. The person in charge of diagnostic clinical laboratories duly authorized under this chapter shall possess the qualifications established by the public health and health planning council for approval by the state commissioner of health or, in the city of New York, the qualifications approved by the board of health of said city and shall maintain the standards of work required for such approval.

§ 3. Section 13-d of the workers' compensation law, as amended by section 2 of part CC of chapter 55 of the laws of 2019, is amended to read as follows:

§ 13-d. ~~[Removal of providers from lists of those authorized to render medical care or to conduct independent medical examinations]~~ Placement of providers on the exclusion list. 1. ~~[The medical society of the county in which the physician's office is located at the time or a board~~

~~designated by such county society or a board representing duly licensed physicians of any other school of medical practice in such county shall investigate, hear and make findings with respect to all charges as to professional or other misconduct of any authorized physician as herein provided under rules and procedure to be prescribed by the medical appeals unit, and shall report evidence of such misconduct, with their findings and recommendation with respect thereto, to the chair. Failure to commence such investigation within sixty days from the date the charges are referred to the society by the chair or submit findings and recommendations relating to the charges within one hundred eighty days from the date the charges are referred shall empower the chair to appoint, as a hearing officer, a member of the board, employee, or other qualified hearing officer to hear and report on the charges to the chair. A qualified hearing officer, who is neither a member of the board, or employee thereof shall be paid at a reasonable per diem rate to be fixed by the chair.~~

~~Such investigation, hearing, findings, recommendation and report may be made by the society or board of an adjoining county upon the request of the medical society of the county in which the alleged misconduct or infraction of this chapter occurred, subject to the time limit and conditions set forth herein. The medical appeals unit shall review the findings and recommendation of such medical society or board, or hearing officer appointed by the chair upon application of the accused physician and may reopen the matter and receive further evidence. The findings, decision and recommendation of such society, board or hearing officer appointed by the chair or medical appeals unit shall be advisory to the chair only, and shall not be binding or conclusive upon him or her.] In accordance with this section, the chair shall publish and maintain an exclusion list of providers currently disqualified from rendering medical care or treatment under this chapter or disqualified from conducting independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a and section one hundred thirty-seven of this chapter.~~

2. ~~[The chair shall remove from the list of providers authorized to render medical care under this chapter, or to conduct independent medical examinations in accordance with paragraph (b) of subdivision four of section thirteen-a of this article,] The exclusion list shall include~~ the name of any provider who ~~[he or she shall find]~~ is found after reasonable investigation ~~[is]~~ to be disqualified because such provider:

(a) has been guilty of professional or other misconduct or incompetency in connection with rendering medical services under the law; or

(b) has exceeded the limits of ~~[his or her]~~ their professional competence in rendering medical care or treatment or in conducting independent medical examinations under the law, or has, as applicable, made materially false statements regarding ~~[his or her]~~ their qualifications in ~~[his or her]~~ their application ~~[for the recommendation of the medical society or board as provided in section thirteen-b of this article];~~ or

(c) has failed to transmit copies of medical reports to claimant's attorney or licensed representative as provided in subdivision (f) of section thirteen of this article; or has failed to submit full and truthful medical reports of all ~~[his or her]~~ their findings to the employer, and directly to the chair or the board within the time limits provided in subdivision four of section thirteen-a of this article with the exception of injuries which do not require (1) more than ordinary first aid or more than two treatments by a provider or person rendering

1 first aid, or (2) loss of time from regular duties of one day beyond the
2 working day or shift; or

3 (d) knowingly made a false statement or representation as to a materi-
4 al fact in any medical report, or in any submission to the board, made
5 pursuant to this chapter or in testifying or otherwise providing infor-
6 mation for the purposes of this chapter; or

7 (e) has solicited, or has employed another to solicit for [~~himself or~~
8 ~~herself~~] either the provider's own benefit themselves or for another,
9 professional treatment, examination or care of an injured employee in
10 connection with any claim under this chapter; or

11 (f) has refused to appear before, to testify, to submit to a deposi-
12 tion, or to answer upon request of, the chair, board, [~~medical appeals~~
13 ~~unit~~] or any duly authorized officer of the state, any legal question,
14 or to produce any relevant book or paper concerning [~~his or her~~] their
15 conduct [~~under any authorization granted to him or her~~] in rendering
16 medical care or treatment or in the performance of an independent
17 medical examination under this chapter, including when a provider has
18 accepted payments from both the health insurer and employer or carrier
19 and failed to reimburse the health insurer after they are given notice;
20 or

21 (g) has directly or indirectly requested, received or participated in
22 the division, transference, assignment, rebating, splitting or refunding
23 of a fee for, or has directly or indirectly requested, received or prof-
24 ited by means of a credit or other valuable consideration as a commis-
25 sion, discount or gratuity in connection with the furnishing of medical
26 or surgical care, an independent medical examination, diagnosis or
27 treatment or service, including X-ray examination and treatment, or for
28 or in connection with the sale, rental, supplying or furnishing of clin-
29 ical laboratory services or supplies, X-ray laboratory services or
30 supplies, inhalation therapy service or equipment, ambulance service,
31 hospital or medical supplies, physiotherapy or other therapeutic service
32 or equipment, artificial limbs, teeth or eyes, orthopedic or surgical
33 appliances or supplies, optical appliances, supplies or equipment,
34 devices for aid of hearing, drugs, medication or medical supplies, or
35 any other goods, services or supplies prescribed for medical diagnosis,
36 care or treatment, under this chapter; except that reasonable payment,
37 not exceeding the technical component fee permitted in the medical fee
38 schedule, established under this chapter for X-ray examinations, diagno-
39 sis or treatment, may be made by a provider duly authorized as a roent-
40 genologist to any hospital furnishing facilities and equipment for such
41 examination, diagnosis or treatment, provided such hospital does not
42 also submit a charge for the same services. Nothing contained in this
43 paragraph shall prohibit such providers who practice as partners, in
44 groups or as a professional corporation or as a university faculty prac-
45 tice corporation from pooling fees and moneys received, either by the
46 partnership, professional corporation, university faculty practice
47 corporation or group by the individual members thereof, for professional
48 services furnished by any individual professional member, or employee of
49 such partnership, corporation or group, nor shall the professionals
50 constituting the partnerships, corporations, or groups be prohibited
51 from sharing, dividing or apportioning the fees and moneys received by
52 them or by the partnership, corporation or group in accordance with a
53 partnership or other agreement[-]; or

54 (h) has demonstrated a repeated failure to follow the laws of this
55 chapter and applicable laws, regulations, and guidance, including any

applicable New York medical treatment guidelines and the official New York medical fee schedule(s); or
(i) has misrepresented their credentials; or
(j) has failed to timely complete any trainings required by the chair;
or
(k) had previously lost the privilege to treat injured workers by being suspended, removed, denied authorization, or by voluntarily resigning their authorization under this chapter prior to January first, two thousand twenty-eight, and whose authorization had not been restored prior to January first, two thousand twenty-eight.

3. Any person who violates or attempts to violate, and any person who aids another to violate or attempts to induce ~~him or her~~ them to violate the provisions of paragraph (g) of subdivision two of this section shall be guilty of a misdemeanor.

4. Nothing in this section shall be construed as limiting in any respect the power or duty of the chair to investigate instances of misconduct, either before or after investigation by a medical society or board as herein provided, or to ~~temporarily suspend the authorization of~~ add any provider to the exclusion list that ~~he or she~~ the chair or the chair's designee may believe to be guilty of such misconduct.

5. Whenever the department of health or the department of education shall conduct an investigation with respect to charges of professional or other misconduct by a provider which results in a report, determination or consent order that includes a finding of professional or other misconduct or incompetency by such provider, the chair shall have full power and authority to ~~temporarily suspend, revoke or otherwise limit the authorization under this chapter of~~ add any provider to the exclusion list upon such finding by the department of health or the department of education that the provider has been guilty of professional or other misconduct. The recommendations of the department of health or the department of education shall be advisory to the chair only and shall not be binding or conclusive upon the chair.

6. The chair may promulgate regulations to effectuate the publication and maintenance of the exclusion list. Providers on the exclusion list may petition the board to be taken off the exclusion list in a format prescribed by the chair.

§ 4. Section 13-f of the workers' compensation law, as amended by chapter 113 of the laws of 1946, subdivision 1 as amended by chapter 353 of the laws of 1990, subdivision 2 as amended by chapter 539 of the laws of 1964, is amended to read as follows:

§ 13-f. Payment of medical fees. (1) Fees for medical services shall be payable only to a ~~physician or other qualified person~~ provider permitted by ~~sections~~ section thirteen-b~~, thirteen-k, thirteen-l and thirteen-m~~ of this ~~chapter~~ article or other authorized provider of health care under the education law or the public health law permitted to render medical care or treatment under this chapter, or to the agent, executor or administrator of the estate of such ~~physician~~ provider or such other qualified person. Except as provided in section thirteen-d of this ~~chapter~~ article, no provider of health care rendering medical care or treatment to a compensation claimant, shall collect or receive a fee from such claimant within this state, but shall have recourse for payment of services rendered only to the employer under the provisions of this chapter. Any compensation claimant who pays a fee to a provider of health care for medical care or treatment under this chapter shall have a cause of action against such provider of health care for the recovery of the money paid, which cause of action may be assigned to the

1 chair in trust for the assigning claimant. All such assignments shall
2 run to the chair. The chair may sue the physician, or other authorized
3 provider of health care as herein described on the assigned cause of
4 action with the benefits and subject to the provisions of existing law
5 applying to such actions by the claimant [~~himself or herself~~]. Hospi-
6 tals shall not be entitled to receive the remuneration paid to [~~physi-~~
7 ~~cians~~] providers on their staff for medical and surgical services.

8 (2) Whenever [~~his~~] their attendance at a hearing is required, the
9 [~~physician~~] provider of the injured employee shall be entitled to
10 receive a fee from the employer, or carrier, in an amount to be fixed by
11 the board in addition to any fee payable under section eight thousand
12 one of the civil practice law and rules.

13 § 5. Section 13-k of the workers' compensation law is REPEALED.

14 § 6. Section 13-l of the workers' compensation law is REPEALED.

15 § 7. Section 13-m of the workers' compensation law is REPEALED.

16 § 8. Subdivision 1 of section 13-n of the workers' compensation law,
17 as added by chapter 473 of the laws of 2000, is amended to read as
18 follows:

19 1. Any entity which derives income from independent medical examina-
20 tions performed in accordance with subdivision four of section thir-
21 teen-a[~~, subdivision three of section thirteen k, subdivision three of~~
22 ~~section thirteen 1 and subdivision four of section thirteen m~~] of this
23 article and section one hundred thirty-seven of this chapter, whether by
24 employing or contracting with independent examiners to conduct such
25 independent medical examinations or by acting as a referral service or
26 otherwise facilitating such examinations, shall register with the chair
27 by filing a statement of registration containing such information
28 prescribed by the chair in regulation. A fee may be imposed in accord-
29 ance with regulations promulgated by the chair. Any such fees collected
30 shall be used for the purpose of administering this section.

31 § 9. Section 141 of the workers' compensation law, as amended by chap-
32 ter 6 of the laws of 2007, is amended to read as follows:

33 § 141. General powers and duties of the chair. The chair shall be the
34 administrative head of the workers' compensation board and shall exer-
35 cise the powers and perform the duties in relation to the administration
36 of this chapter heretofore vested in the commissioner of labor by chap-
37 ter fifty of the laws of nineteen hundred twenty-one, and acts amendato-
38 ry thereof, and by this chapter excepting article six thereof, and
39 except in so far as such powers and duties are vested by this chapter in
40 the workers' compensation board. The chair shall preside at all meetings
41 of the board and shall appoint all committees and panels of the board;
42 shall designate the times and places for the hearing of claims under
43 this chapter and shall perform all administrative functions of the board
44 as in this chapter set forth. The chair, in the name of the board, shall
45 enforce all the provisions of this chapter, and may make administrative
46 regulations and orders providing for the receipt, indexing and examining
47 of all notices, claims and reports, for the giving of notice of hearings
48 and of decisions, for certifying of records, for the fixing of the times
49 and places for the hearing of claims, and for providing for the conduct
50 of hearings and establishing of calendar practice to the extent not
51 inconsistent with the rules of the board. The chair shall issue and may
52 revoke certificates of authorization of physicians, chiropractors [~~and~~],
53 podiatrists [~~as provided in sections thirteen a, thirteen k and thir-~~
54 ~~teen 1 of this chapter, and licenses for medical bureaus and x-ray and~~
55 ~~other laboratories under the provisions of section thirteen c of this~~
56 ~~chapter~~], and psychologists to perform independent medical examinations

1 in accordance with paragraph (b) of subdivision four of section thir-
2 teen-a and section one hundred thirty-seven of this chapter, and
3 licenses for medical bureaus and x-ray and other laboratories under the
4 provisions of section thirteen-c of this chapter, shall publish and
5 maintain an exclusion list, in accordance with section thirteen-d of
6 this chapter, for providers as defined in section thirteen-b of this
7 chapter currently disqualified from providing medical care or from
8 performing independent medical examinations in accordance with paragraph
9 (b) of subdivision four of section thirteen-a and section one hundred
10 thirty-seven of this chapter, may develop and require trainings for
11 providers as defined in section thirteen-b of this chapter, issue stop
12 work orders as provided in section one hundred forty-one-a of this arti-
13 cle, and shall have and exercise all powers not otherwise provided for
14 herein in relation to the administration of this chapter heretofore
15 expressly conferred upon the commissioner of labor by any of the
16 provisions of this chapter, or of the labor law. The chair, on behalf of
17 the workers' compensation board, shall enter into the agreement provided
18 for in section one hundred seventy-one-h of the tax law, and shall take
19 such other actions as may be necessary to carry out the agreement
20 provided for in such section for matching beneficiary records of work-
21 ers' compensation with information provided by employers to the state
22 directory of new hires for the purposes of verifying eligibility for
23 such benefits and for administering workers' compensation.

24 § 10. Subdivision 5 of section 220 of the workers' compensation law,
25 as amended by section 18 of part SS of chapter 54 of the laws of 2016,
26 is amended to read as follows:

27 5. In addition to other penalties herein provided, the chair or designee shall ~~[remove from the list of physicians authorized to render~~
28 ~~medical care under the provisions of articles one to eight, inclusive,~~
29 ~~of this chapter and from the list of podiatrists authorized to render~~
30 ~~podiatric care under section thirteen-k of this chapter, and from the~~
31 ~~list of chiropractors authorized to render chiropractic care under~~
32 ~~section thirteen-l of this chapter]~~ place on the exclusion list pursuant
33 to section thirteen-d of this chapter the name of any physician or
34 podiatrist or chiropractor whom the chair or designee, pursuant to
35 section two hundred twenty-one of this article, shall find, after
36 reasonable investigation, has submitted to the employer or carrier or
37 chair in connection with any claim for disability benefits under this
38 article, a statement of disability that is not truthful and complete.

40 § 11. Section 232 of the workers' compensation law, as amended by
41 section 27 of part SS of chapter 54 of the laws of 2016, is amended to
42 read as follows:

43 § 232. Fees for testimony of physicians, podiatrists, chiropractors,
44 dentists, psychologists and health care providers. Whenever ~~[his or her]~~
45 their attendance at a hearing, deposition or arbitration before the
46 board or the chair's designee, pursuant to section two hundred twenty-
47 one of this article, is required, the attending physician or attending
48 podiatrist or attending chiropractor or attending dentist or attending
49 psychologist or attending certified nurse midwife of the disabled
50 employee, ~~[except such physicians as are disqualified from testifying~~
51 ~~pursuant to subdivision one of section thirteen-b, or section nineteen-a~~
52 ~~of this chapter, and except such podiatrists as are disqualified from~~
53 ~~testifying under the provisions of section thirteen-k, and except such~~
54 ~~chiropractors as are disqualified from testifying under the provisions~~
55 ~~of section thirteen-l, and except such psychologists as are disqualified~~
56 ~~from testifying under the provisions of section thirteen-m,]~~ or health

1 care provider shall be entitled to receive a fee in accordance with
2 regulations of the chair.
3 § 12. This act shall take effect January 1, 2028.

4 PART Y

5 Section 1. Subparagraph (i) of paragraph (a) of subdivision 2 of
6 section 112 of the state finance law, as amended by chapter 17 of the
7 laws of 2023, is amended to read as follows:

8 (i) Before any contract: (1) made for or by any state agency, depart-
9 ment, board, officer, commission, or institution, except the office of
10 general services or its customer agencies serviced by the office of
11 general services business services center, shall be executed or become
12 effective, whenever such contract exceeds [~~fifty~~] three hundred thousand
13 dollars in amount, it shall first be approved by the office of the comp-
14 troller and filed in [~~his or her~~] such comptroller's office; (2) made
15 for or by the office of general services, whether for itself or for its
16 customer agencies serviced by the office of general services business
17 services center, shall be executed or become effective, whenever such
18 contract exceeds [~~eighty-five~~] three hundred thousand dollars in amount,
19 it shall first be approved by the comptroller and filed in [~~his or her~~]
20 such comptroller's office; or (3) established as a centralized contract
21 through the office of general services shall be executed or become
22 effective, whenever such contract exceeds [~~one~~] three hundred [~~twenty-~~
23 ~~five~~] thousand dollars in amount, it shall first be approved by the
24 comptroller and filed in [~~his or her~~] such comptroller's office;
25 provided, however, [~~before~~] any purchase order or other procurement
26 transaction issued under such centralized contract[, ~~which exceeds two~~
27 ~~hundred thousand dollars in amount shall be executed or become effec-~~
28 ~~tive, it~~] shall [~~first~~] not need to be approved by the comptroller [~~and~~
29 ~~filed in his or her office~~]. Provided, further, however, that with the
30 exception of contracts identified in subparagraph (ii) of this paragraph
31 the comptroller shall make a final written determination with respect to
32 approval of such contract within ninety days of the submission of such
33 contract to [~~his or her~~] such comptroller's office unless the comp-
34 troller shall notify, in writing, the state agency, department, board,
35 officer, commission, or institution, prior to the expiration of the
36 ninety day period, and for good cause, of the need for an extension of
37 not more than fifteen days, or a reasonable period of time agreed to by
38 such state agency, department, board, officer, commission, or institu-
39 tion and provided, further, that such written determination or extension
40 shall be made part of the procurement record pursuant to paragraph f of
41 subdivision one of section one hundred sixty-three of this chapter.

42 § 2. Subdivision 6 of section 163 of the state finance law, as amended
43 by chapter 110 of the laws of 2024, paragraph (d) as amended by section
44 1 of part MM of chapter 58 of the laws of 2025, is amended to read as
45 follows:

46 6. Discretionary buying thresholds. Pursuant to guidelines established
47 by the state procurement council:

48 (a) the commissioner may purchase services and commodities for the
49 office of general services or its customer agencies serviced by the
50 office of general services business services center in an amount not
51 exceeding [~~eighty-five~~] three hundred thousand dollars without a formal
52 competitive process;

(b) state agencies may purchase services and commodities in an amount not exceeding [~~fifty~~] three hundred thousand dollars without a formal competitive process;

(c) state agencies may purchase commodities or services from small business concerns, or commodities or technology that are recycled or remanufactured in an amount not exceeding five hundred thousand dollars without a formal competitive process;

(d) state agencies may purchase commodities or services from those certified pursuant to article fifteen-A of the executive law and article three of the veterans' services law in an amount not exceeding one million five hundred thousand dollars without a formal competitive process; and

(e) state agencies may purchase commodities that are food, including milk and milk products, or animal or plant fiber products, grown, produced, harvested, or processed in New York state or textile products manufactured from animal or plant fiber grown or produced predominantly in New York state in an amount not to exceed [~~two~~] three hundred thousand dollars without a formal competitive process.

§ 3. Subdivision 6-a of section 163 of the state finance law, as amended by chapter 257 of the laws of 2021, is amended to read as follows:

6-a. Discretionary purchases. Notwithstanding the provisions of subdivision two of section one hundred twelve of this chapter relating to the dollar threshold requiring the state comptroller's approval of contracts, the commissioner of general services may make purchases or enter into contracts for the acquisition of commodities and services for the office of general services or its customer agencies serviced by the office of general services business services center having a value not exceeding [~~eighty-five~~] three hundred thousand dollars without prior approval by any other state officer or agency in accordance with procedures and requirements set forth in this article.

§ 4. Subdivision 6-c of section 163 of the state finance law, as amended by chapter 572 of the laws of 2022, is amended to read as follows:

6-c. Pursuant to the authority provided in subdivision six of this section, for the purchase of commodities that are food, including milk and milk products, or animal or plant fiber products, grown, produced, harvested, or processed in New York state or textile products manufactured from animal or plant fiber grown or produced predominantly in New York state, where such commodities exceed [~~fifty~~] three hundred thousand dollars in value, state agencies must advertise the discretionary purchase on the state agency website for a reasonable period of time and make the discretionary purchase based on the lowest price that meets the state agency's form, function and utility.

§ 5. Subdivision 8 of section 163 of the state finance law, as amended by section 12 of part L of chapter 55 of the laws of 2012, is amended to read as follows:

8. Public notice. All procurements by state agencies, including, without limitation, the state university of New York and the city university of New York, in excess of [~~fifty~~] three hundred thousand dollars shall be advertised in the state's procurement opportunities newsletter in accordance with article four-C of the economic development law.

§ 6. Subdivision 3 of section 141 of the economic development law, as amended by section 14 of part L of chapter 55 of the laws of 2012, is amended to read as follows:

1 3. "Procurement contract" shall mean any written agreement entered
2 into by an agency for the acquisition of goods, services, or
3 construction of any kind in the actual or estimated amount of [~~fifty~~]
4 three hundred thousand dollars or more. The term does not include an
5 agreement for employment in the civil service.

6 § 7. Section 146 of the economic development law, as amended by chap-
7 ter 173 of the laws of 2014, is amended to read as follows:

8 § 146. Approval of comptroller. The comptroller shall not approve or
9 file any procurement contract for the acquisition of goods or services
10 in the amount of [~~fifty~~] three hundred thousand dollars or more unless
11 notice as provided in section one hundred forty-two of this article
12 shall first have been published in the procurement opportunities news-
13 letter at least fifteen business days prior to the date on which a bid
14 or proposal was due. Provided, however, such requirement of publication
15 of advance notice shall not apply to contracts exempt from such require-
16 ment under section one hundred forty-four of this article; provided
17 further, that the comptroller shall not be required to disapprove a
18 contract if [~~he or she~~] such comptroller determines that there has been
19 substantial compliance with the requirements of section one hundred
20 forty-two and section one hundred forty-three of this article. The fore-
21 going provisions of this section shall not be construed to limit, in any
22 manner, the right of the comptroller to demand evidence of adequate
23 competition or such other proofs as [~~he or she~~] such comptroller may
24 require in the discharge of [~~his or her~~] such comptroller's responsibil-
25 ities pursuant to section one hundred twelve of the state finance law or
26 any other provision of law.

27 § 8. Paragraph b of subdivision 16 of section 355 of New York State
28 Education Law, as amended by section 3 of chapter 17 of the laws of
29 2023, is amended to read as follows:

30 b. (i) Notwithstanding the provisions of subdivision two of section
31 one hundred twelve of the state finance law relating to the dollar
32 threshold requiring the comptroller's approval of contracts and subdivi-
33 sion six of section one hundred sixty-three of the state finance law,
34 authorize contracts for the purchase of goods and services for state
35 university health care facilities:

36 (A) for any contract which does not exceed [~~one hundred fifty~~] three
37 hundred thousand dollars; or

38 (B) for joint or group purchasing arrangements which do not exceed
39 [~~one hundred fifty~~] three hundred thousand dollars without prior
40 approval by any other state officer or agency in accordance with proce-
41 dures and requirements found in paragraph a of subdivision five of this
42 section.

43 § 9. Subdivision 8 of section 376 of the New York State Education Law,
44 as amended by Chapter 56 of the laws of 2021 is amended to read as
45 follows:

46 All contracts which are to be awarded pursuant to this subdivision
47 shall be awarded by public letting in accordance with the following
48 provisions, notwithstanding any contrary provision of section one
49 hundred thirty-five, one hundred thirty-six, one hundred thirty-nine or
50 one hundred forty of the state finance law or any other law, provided,
51 however, that where the estimated expense of any contract which may be
52 awarded pursuant to this subdivision is less than [~~two hundred fifty~~]
53 three hundred thousand dollars, a performance bond and a bond for the
54 payment of labor and material may, in the discretion of the fund, not be
55 required, and except that in the discretion of the fund, a contract may
56 be entered into for such purposes without public letting where the esti-

1 mated expense thereof is less than [~~twenty thousand~~] three hundred thou-
2 sand dollars, or where in the judgment of the fund an emergency condi-
3 tion exists as a result of damage to an existing academic building,
4 dormitory or other facility which has been caused by an act of God, fire
5 or other casualty, or any other unanticipated, sudden and unexpected
6 occurrence, that has resulted in damage to or a malfunction in an exist-
7 ing academic building, dormitory or other facility and involves a press-
8 ing necessity for immediate repair, reconstruction or maintenance in
9 order to permit the safe continuation of the use or function of such
10 facility, or to protect the facility or the life, health or safety of
11 any person, and the nature of the work is such that in the judgment of
12 the fund it would be impractical and against the public interest to have
13 public letting; provided, however, that the fund, prior to awarding a
14 contract hereunder because of an emergency condition notify the comp-
15 troller of its intent to award such a contract:

16 § 10. Paragraph a of subdivision 8 of section 376 of New York State
17 Education Law, as amended by section 2 of chapter 877 of the laws of
18 1990, is amended to read as follows:

19 a. If contracts are to be publicly let, the letting agency shall
20 advertise the invitation to bid in a newspaper published in the city of
21 Albany and in such other newspapers as will be most likely in its opin-
22 ion to give adequate notice to contractors of the work required and of
23 the invitation to bid provided, however, that where the estimated
24 expense of any contract which may be awarded pursuant to this subdivi-
25 sion is less than [~~fifty~~] three hundred thousand dollars, the letting
26 agency may advertise the invitation to bid solely through the procure-
27 ment opportunities newsletter published pursuant to section one hundred
28 forty-two of the economic development law. The invitation to bid shall
29 contain such information as the letting agency shall deem appropriate
30 and a statement of the time and place where all bids received pursuant
31 to such notice will be publicly opened and read.

32 § 11. Subdivision a of section 6218 of the New York State Education
33 Law, as amended by chapter 17 of the laws of 2023, is amended to read as
34 follows:

35 a. (i) purchase materials; proprietary electronic information
36 resources, including, but not limited to, academic, professional and
37 industry journals, reference handbooks and manuals, research tracking
38 tools, indexes and abstracts; and equipment and supplies, including
39 computer equipment and motor vehicles, where the amount for a single
40 purchase does not exceed [~~seventy-five thousand dollars~~] three hundred
41 thousand dollars, (ii) execute contracts for services and construction
42 contracts to an amount not exceeding [~~seventy-five thousand dollars~~]
43 three hundred thousand dollars, and (iii) contract for printing to an
44 amount not exceeding [~~seventy-five thousand dollars~~] three hundred thou-
45 sand dollars, without prior approval by any other state officer or agen-
46 cy, but subject to rules and regulations of the state comptroller not
47 otherwise inconsistent with the provisions of this section and in
48 accordance with the guidelines promulgated by the city university board
49 of trustees after consultation with the state comptroller. In addition,
50 the trustees are authorized to annually negotiate with the state comp-
51 troller increases in the aforementioned dollar limits and the exemption
52 of any articles, categories of articles, services, or commodities from
53 these limits. Guidelines promulgated by the city university board of
54 trustees shall, to the extent practicable, require that competitive
55 proposals be solicited for purchases, and shall include requirements

1 that purchases and contracts authorized under this section be at the
2 lowest available price.

3 § 12. Subdivision 9 of section 6275 of New York State Education Law,
4 as amended by chapter 17 of the laws of 2023, is amended to read as
5 follows:

6 (9) to make and execute contracts, leases, subleases and all other
7 instruments or agreements necessary or convenient for the exercise of
8 its corporate powers and purposes to an amount not exceeding [~~seventy-~~
9 ~~five thousand dollars~~] three hundred thousand dollars without prior
10 approval by any other state officer or agency; notwithstanding the fore-
11 going, all contracts, leases, subleases, and all other instruments or
12 agreements exceeding [~~seventy five thousand dollars~~] three hundred thou-
13 sand dollars in amount shall be subject to section one hundred twelve of
14 the state finance law;

15 § 13. This act shall take effect immediately; provided, however, that
16 the amendments to section 163 of the state finance law, made by sections
17 two, three, four and five of this act, shall not affect the repeal of
18 such section and shall be deemed repealed therewith.

19 PART Z

20 Section 1. Subdivision (e) of section 1-e of the legislative law, as
21 amended by section 1 of part S of chapter 62 of the laws of 2003, is
22 amended to read as follows:

23 (e) (i) The first statement of registration filed annually by each
24 lobbyist for calendar years through two thousand three shall be accompa-
25 nied by a registration fee of fifty dollars except that no registration
26 fee shall be required of a public corporation. A fee of fifty dollars
27 shall be required for any subsequent statement of registration filed by
28 a lobbyist during the same calendar year; (ii) The first statement of
29 registration filed annually by each lobbyist for calendar year two thou-
30 sand four shall be accompanied by a registration fee of one hundred
31 dollars except that no registration fee shall be required from any
32 lobbyist who in any year does not expend, incur or receive an amount in
33 excess of five thousand dollars of reportable compensation and expenses,
34 as provided in paragraph five of subdivision (b) of section one-h of
35 this article, for the purposes of lobbying or of a public corporation. A
36 fee of one hundred dollars shall be required for any subsequent state-
37 ment of registration filed by a lobbyist during the same calendar year;
38 (iii) The first statement of registration filed biennially by each
39 lobbyist for the first biennial registration requirements for calendar
40 years two thousand five and two thousand six [~~and thereafter,~~] through
41 the thirty-first day of March two thousand twenty-six shall be accompa-
42 nied by a registration fee of two hundred dollars except that no regis-
43 tration fee shall be required from any lobbyist who in any year does not
44 expend, incur or receive an amount in excess of five thousand dollars of
45 reportable compensation and expenses, as provided in paragraph five of
46 subdivision (b) of section one-h of this article, for the purposes of
47 lobbying or of a public corporation. A fee of two hundred dollars shall
48 be required for any subsequent statement of registration filed by a
49 lobbyist during the same biennial period through the thirty-first day of
50 March two thousand twenty-six; (iv) The statement of registration filed
51 after the due date of a biennial registration for calendar years two
52 thousand five and two thousand six through the thirty-first day of March
53 two thousand twenty-six shall be accompanied by a registration fee that
54 is prorated to one hundred dollars for any such registration filed after

January first of the second calendar year covered by the biennial reporting requirement~~[-]~~; (v) Beginning with the first statement of registration filed by each lobbyist on or after the first day of April two thousand twenty-six and thereafter, there shall be an annual registration fee of two hundred and fifty dollars for each calendar year in which such registration remains in effect, except that no registration fee shall be required from any lobbyist who in any year does not expend, incur or receive an amount in excess of five thousand dollars of reportable compensation and expenses, as provided in paragraph five of subdivision (b) of section one-h of this article, for the purposes of lobbying or of a public corporation. An annual registration fee of two hundred fifty hundred dollars shall be required for any subsequent statement of registration filed by a lobbyist during the same biennial period and for each calendar year in which such registration remains in effect; (vi) In addition to the fees authorized by this section, the commission may impose a fee for late filing of a registration statement required by this section not to exceed twenty-five dollars for each day that the statement required to be filed is late, except that if the lobbyist making a late filing has not previously been required by statute to file such a statement, the fee for late filing shall not exceed ten dollars for each day that the statement required to be filed is late.

§ 2. This act shall take effect immediately.

PART AA

Section 1. The executive law is amended by adding a new section 214-j to read as follows:

§ 214-j. Critical incident policy. 1. As used in this section, the following terms shall have the following meanings:

(a) "Critical incident" shall mean the following actions when performed by a member or experienced by a member in the course of official duties: (i) an action that directly causes serious physical injury or death to another person or member; (ii) a discharge of a firearm by a member directed at another person; (iii) a traffic accident or incident involving a division vehicle, aircraft, or vessel that results in serious physical injury or death; or (iv) any other incident deemed appropriate by the superintendent or their designee.

(b) "Serious physical injury" shall mean an injury that, based on the facts and circumstances reasonably known at the time of the incident, appears to involve a substantial risk of death or an obvious and severe impairment of a major bodily function, such that a reasonable person would conclude the injury is life-threatening or significantly life-altering, without regard to later medical findings, prognosis, or outcome. The determination of a "serious physical injury" shall be made by the superintendent or their designee based on the observable conditions and available information at the time the supervisor arrives at the scene of the critical incident, and shall not be affected by subsequent medical evaluation or recovery. "Serious physical injury" shall include, but not be limited to, suspected spinal cord injury or paralysis, severe penetrating head injury, massive blood loss, or loss of limb.

(c) "Directly involved" shall mean any member who was physically present within the immediate proximity of a critical incident at the time it occurred and whose direct exposure to the incident placed the member within the immediate zone of operational engagement, regardless of whether the member discharged a weapon or otherwise used force.

(d) "Primary member" means any directly involved member who justifiably used deadly physical force during the critical incident, or whose actions during the critical incident appear to be the most immediate and substantial cause of death or serious physical injury to a person.

2. The superintendent shall develop, maintain, and disseminate to all members of the division of state police a critical incident paid leave policy that provides for paid critical incident leave in accordance with this section.

3. Such critical incident paid leave policy shall guarantee: (a) paid critical incident leave of at least twenty calendar days for any primary member whose official actions were the direct and proximate cause of the death of another person; (b) paid critical incident leave of at least ten calendar days for any other member directly involved in the critical incident; and (c) paid critical incident leave under such other circumstances the superintendent or their designee determines appropriate. Such leave shall constitute a separate category of leave and shall not count against vacation, sick, or personal leave accruals. Such leave, where appropriate, shall be designated as family and medical leave act and/or count against a member's workers compensation leave entitlement.

4. Critical incident paid leave shall begin as soon as possible after the critical incident, provided that initial supervisory inquiries of the involved members shall occur before leave commences. Critical incident leave may only be delayed to ensure minimum necessary staffing levels or protect community safety. Delays shall only be as long as necessary to address such concerns. Upon agreement of the member and the superintendent or their designee, the member shall be allowed to return to duty prior to the completion of the period of critical incident leave.

5. In any case where critical incident paid leave has been made to a member, and it is thereafter determined that a critical incident did not occur or that the member's actions that resulted in the serious physical injury or death of another person were not justified, the superintendent or their designee may order the deduction of equivalent vacation or personal leave days and/or the withholding of future paid leave to such member, provided that the amount of days deducted and/or withheld shall not be more than the critical incident paid leave days that were originally provided.

6. The superintendent shall be prohibited from taking any punitive administrative action against any member granted critical incident leave under this section solely on the basis of the provision of such leave unless the leave was provided, at least in part, based upon the member's fraud, deceit, or misrepresentation.

7. The superintendent is authorized to promulgate rules and regulations to implement, administer, and enforce the provisions of this section.

§ 2. This act shall take effect on the one hundred twentieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.

PART BB

Section 1. Section 16 of chapter 1 of the laws of 2005 amending the state finance law relating to restricting contacts in the procurement process and the recording of contacts relating thereto, as amended by

1 section 1 of part SS of chapter 55 of the laws of 2021, is amended to
2 read as follows:

3 § 16. This act shall take effect immediately; provided, however, that
4 sections one, six, eight, nine, ten, eleven and fifteen of this act
5 shall take effect January 1, 2006; and provided, however, the amendments
6 to paragraph f of subdivision 9 of section 163 of the state finance law
7 made by section fifteen of this act shall not affect the repeal of such
8 section and shall be deemed repealed therewith; provided, further, that
9 the amendments to article 1-A of the legislative law, made by this act,
10 shall not affect the repeal of such article pursuant to chapter 2 of the
11 laws of 1999, as amended, and shall be deemed repealed therewith;
12 provided, further, that sections thirteen and fourteen of this act shall
13 take effect January 1, 2006 and shall be deemed repealed July 31, [2026]
14 2031; provided, further, that effective immediately, the advisory coun-
15 cil on procurement lobbying created pursuant to section twelve of this
16 act shall be constituted no later than sixty days following the effec-
17 tive date of this act, provided that effective sixty days following the
18 effective date of this act, the advisory council on procurement lobbying
19 shall be authorized to establish model guidelines and to add, amend
20 and/or repeal any rules or regulations necessary for the implementation
21 of its duties under sections twelve and thirteen of this act, and the
22 advisory council authorized to make and complete such model guidelines
23 on or before the effective date of section thirteen of this act;
24 provided, further, that procurement contracts for which bid solicita-
25 tions have been issued prior to the effective date of this act shall be
26 awarded pursuant to the provisions of law in effect at the time of issu-
27 ance.

28 § 2. Paragraph g of subdivision 1 of section 139-j of the state
29 finance law, as amended by chapter 4 of the laws of 2010, is amended to
30 read as follows:

31 g. "Procurement contract" shall mean any contract or other agreement,
32 including an amendment, extension, renewal or change order to an exist-
33 ing contract (other than amendments, extensions, renewals, or change
34 orders that are authorized and payable under the terms of the contract
35 as it was finally awarded or approved by the comptroller, as applica-
36 ble), for an article of procurement involving an estimated annualized
37 expenditure in excess of [fifteen] fifty thousand dollars. Grants, arti-
38 cle eleven-B state finance law contracts, program contracts between
39 not-for-profit organizations, as defined in article eleven-B of this
40 chapter, and the unified court system, intergovernmental agreements,
41 railroad and utility force accounts, utility relocation project agree-
42 ments or orders, contracts governing organ transplants, contracts allow-
43 ing for state participation in trade shows, and eminent domain trans-
44 actions shall not be deemed procurement contracts.

45 § 3. Paragraph g of subdivision 1 of section 139-k of the state
46 finance law, as amended by chapter 4 of the laws of 2010, is amended to
47 read as follows:

48 g. "Procurement contract" shall mean any contract or other agreement,
49 including an amendment, extension, renewal, or change order to an exist-
50 ing contract (other than amendments, extensions, renewals, or change
51 orders that are authorized and payable under the terms of the contract
52 as it was finally awarded or approved by the comptroller, as applica-
53 ble), for an article of procurement involving an estimated annualized
54 expenditure in excess of [fifteen] fifty thousand dollars. Grants, arti-
55 cle eleven-B state finance law contracts, program contracts between
56 not-for-profit organizations, as defined in article eleven-B of this

chapter, and the unified court system, intergovernmental agreements, railroad and utility force accounts, utility relocation project agreements or orders, contracts governing organ transplants, contracts allowing for state participation in a trade show, and eminent domain transactions shall not be deemed procurement contracts.

§ 4. This act shall take effect immediately; provided, however that the amendments to sections 139-j and 139-k of the state finance law made by sections two and three of this act shall not affect the repeal of such sections and shall expire and be deemed repealed therewith.

10

PART CC

Section 1. Subdivision 5 of section 362 of chapter 83 of the laws of 1995 amending the state finance law and other laws relating to bonds, notes and revenues, as amended by section 1 of part RR of chapter 55 of the laws of 2021, is amended to read as follows:

5. Sections thirty-one through forty-two of this act shall take effect on the thirtieth day after it shall have become a law and shall be deemed to have been in full force and effect on and after April 1, 1995; provided that section 163 of the state finance law, as added by section thirty-three of this act shall remain in full force and effect until June 30, ~~2026~~ 2031 at which time it shall expire and be deemed repealed. Contracts executed prior to the expiration of such section 163 shall remain in full force and effect until the expiration of any such contract notwithstanding the expiration of certain provisions of this act.

§ 2. This act shall take effect immediately.

26

PART DD

Section 1. Subdivision (a) of section 5004 of the civil practice law and rules, as amended by chapter 831 of the laws of 2021, is amended to read as follows:

(a) ~~[Interest shall be at the rate of nine per centum per annum, except where otherwise provided by statute; provided]~~ Notwithstanding any other provision of law or regulation to the contrary, including any law or regulation that limits the annual rate of interest to be paid on a judgment or accrued claim, the annual rate of interest to be paid on a judgment or accrued claim shall be calculated at the one-year United States treasury bill rate. For purposes of this section, the "one-year United States treasury bill rate" means the weekly average one-year constant maturity treasury yield, as published by the board of governors of the federal reserve system, for the calendar week preceding the date of the entry of the judgment awarding damages; provided however, that this section shall not apply to any provision of the tax law which provides for the annual rate of interest to be paid on a judgment or accrued claim. Provided, however, the annual rate of interest to be paid in an action arising out of a consumer debt where a natural person is a defendant shall be two per centum per annum (i) on a judgment or accrued claim for judgments entered on or after the effective date of ~~[the]~~ chapter eight hundred thirty-one of the laws of two thousand twenty-one ~~[which amended this section]~~, and (ii) for interest upon a judgment pursuant to section five thousand three of this article from the date of the entry of judgment on any part of a judgment entered before the effective date of ~~[the]~~ chapter eight hundred thirty-one of the laws of

1 two thousand twenty-one [~~which amended this section~~] that is unpaid as
2 of such effective date.

3 § 2. Section 16 of the state finance law, as amended by chapter 681 of
4 the laws of 1982, is amended to read as follows:

5 § 16. Rate of interest on judgments and accrued claims against the
6 state. The rate of interest to be paid by the state upon any judgment
7 or accrued claim against the state shall [~~not exceed nine per centum per~~
8 ~~annum~~] be calculated at the one-year United States treasury bill rate.
9 For the purposes of this section, the "one-year United States treasury
10 bill rate" means the weekly average one-year constant maturity treasury
11 yield, as published by the board of governors of the federal reserve
12 system, for the calendar week preceding the date of the entry of the
13 judgment awarding damages. Provided however, that this section shall not
14 apply to any provision of the tax law which provides for the annual rate
15 of interest to be paid on a judgment or accrued claim.

16 § 3. This act shall take effect immediately, and shall be deemed to
17 have been in full force and effect on and after April 1, 2026.

18 PART EE

19 Section 1. Section 167-a of the civil service law, as amended by
20 section 1 of part I of chapter 55 of the laws of 2012, is amended to
21 read as follows:

22 § 167-a. Reimbursement for medicare premium charges. 1. Upon exclusion
23 from the coverage of the health benefit plan of supplementary medical
24 insurance benefits for which an active or retired employee or a depend-
25 ent covered by the health benefit plan is or would be eligible under the
26 federal old-age, survivors and disability insurance program, an amount
27 equal to the standard medicare premium charge for such supplementary
28 medical insurance benefits for such active or retired employee and [~~his~~
29 ~~or her~~] such employee's dependents, if any, shall be paid monthly or at
30 other intervals to such active or retired employee from the health
31 insurance fund. There shall be no payment for the income related monthly
32 adjustment amount incurred on or after January first, two thousand twen-
33 ty-six to any active or retired employee and such employee's dependents,
34 if any. Where appropriate, such standard medicare premium amount may be
35 deducted from contributions payable by the employee or retired employee;
36 or where appropriate in the case of a retired employee receiving a
37 retirement allowance, such standard medicare premium amount may be
38 included with payments of [~~his or her~~] such employee's retirement allow-
39 ance. All state employer, employee, retired employee and dependent
40 contributions to the health insurance fund, including contributions from
41 public authorities, public benefit corporations or other quasi-public
42 organizations of the state eligible for participation in the health
43 benefit plan as authorized by subdivision two of section one hundred
44 sixty-three of this article, shall be adjusted as necessary to cover the
45 cost of reimbursing federal old-age, survivors and disability insurance
46 program premium charges under this section. This cost shall be included
47 in the calculation of premium or subscription charges for health cover-
48 age provided to employees and retired employees of the state, public
49 authorities, public benefit corporations or other quasi-public organiza-
50 tions of the state; provided, however, the state, public authorities,
51 public benefit corporations or other quasi-public organizations of the
52 state shall remain obligated to pay no less than its share of such
53 increased cost consistent with its share of premium or subscription
54 charges provided for by this article. All other employer contributions

1 to the health insurance fund shall be adjusted as necessary to provide
2 for such payments.

3 2. (a) On December first, two thousand twenty-seven, the department
4 shall provide a premium refund to eligible state retirees. For the
5 purposes of this section, "eligible state retirees" shall be defined as
6 retirees who retired:

7 (i) on or after January first, nineteen hundred eighty-three but prior
8 to January first, two thousand twelve; and

9 (ii) on or after January first, two thousand twelve from a title allo-
10 cated or equated to salary grade nine or below. The amount of the annual
11 premium refund shall be fifty per centum of the amount reimbursed by the
12 department to enrollees for income related monthly adjustment amounts
13 for supplementary medical insurance for calendar year two thousand twen-
14 ty-five divided by the number of eligible state retirees.

15 (b) On December first, two thousand twenty-eight and December first of
16 each year thereafter, the department shall provide an annual premium
17 refund to eligible state retirees. The amount of the refund shall be the
18 premium refund provided in the prior year increased by the rate of
19 change for the most recent twelve-month period ending in September of
20 that year in the consumer price index for all urban consumers on a
21 national and seasonally unadjusted basis (CPI-U), or a successor index
22 as calculated by the United States department of labor.

23 § 2. This act shall take effect immediately and shall apply on January
24 1, 2026 for the income related monthly adjustment amount incurred on or
25 after January 1, 2026.

26 PART FF

27 Section 1. The state comptroller is hereby authorized and directed to
28 loan money in accordance with the provisions set forth in subdivision 5
29 of section 4 of the state finance law to the following funds and/or
30 accounts:

- 31 1. Local government records management account (20501).
- 32 2. Child health plus program account (20810).
- 33 3. EPIC premium account (20818).
- 34 4. Transit authorities account (20851).
- 35 5. Railroad account (20852).
- 36 6. Non-MTA capital account (20853).
- 37 7. Education - New (20901).
- 38 8. VLT - Sound basic education fund (20904).
- 39 9. Sewage treatment program management and administration fund
40 (21000).
- 41 10. Utility environmental regulatory account (21064).
- 42 11. Federal grants indirect cost recovery account (21065).
- 43 12. Low level radioactive waste account (21066).
- 44 13. Environmental regulatory account (21081).
- 45 14. Natural resource account (21082).
- 46 15. Environmental protection and oil spill compensation fund (21200).
- 47 16. Public transportation systems account (21401).
- 48 17. Metropolitan mass transportation (21402).
- 49 18. Operating permit program account (21451).
- 50 19. Mobile source account (21452).
- 51 20. New York state thruway authority account (21905).
- 52 21. Financial control board account (21911).
- 53 22. Regulation of racing account (21912).
- 54 23. State university dormitory income reimbursable account (21937).

- 1 24. Training, management and evaluation account (21961).
- 2 25. Clinical laboratory reference system assessment account (21962).
- 3 26. Indirect cost recovery account (21978).
- 4 27. Multi-agency training account (21989).
- 5 28. Bell jar collection account (22003).
- 6 29. Real property disposition account (22006).
- 7 30. Parking account (22007).
- 8 31. Courts special grants (22008).
- 9 32. Batavia school for the blind account (22032).
- 10 33. Financial oversight account (22039).
- 11 34. Regulation of Indian gaming account (22046).
- 12 35. Rome school for the deaf account (22053).
- 13 36. Administrative adjudication account (22055).
- 14 37. Cultural education account (22063).
- 15 38. DHCR mortgage servicing account (22085).
- 16 39. Voting Machine Examinations account (22099).
- 17 40. DHCR-HCA application fee account (22100).
- 18 41. Restitution account (22134).
- 19 42. New York State Home for Veterans in the Lower-Hudson Valley
- 20 account (22144).
- 21 43. Deferred compensation administration account (22151).
- 22 44. Transportation aviation account (22165).
- 23 45. New York State Campaign Finance Fund account (22211).
- 24 46. New York state medical indemnity fund account (22240).
- 25 47. Behavioral health parity compliance fund (22246).
- 26 48. Pharmacy benefit manager regulatory fund (22255).
- 27 49. Virtual currency assessments account (22262).
- 28 50. Employers assessment account (22269).
- 29 51. State university general income offset account (22654).
- 30 52. Highway safety program account (23001).
- 31 53. NYCCC operating offset account (23151).
- 32 54. Commercial gaming revenue account (23701).
- 33 55. Commercial gaming regulation account (23702).
- 34 56. New York state secure choice administrative account (23806).
- 35 57. New York state cannabis revenue fund (24800).
- 36 58. Fantasy sports administration account (24951).
- 37 59. Mobile sports wagering fund (24955).
- 38 60. Highway and bridge capital account (30051).
- 39 61. State university residence hall rehabilitation fund (30100).
- 40 62. State parks infrastructure account (30351).
- 41 63. Hazardous waste cleanup account (31506).
- 42 64. Youth facilities improvement account (31701).
- 43 65. Housing assistance fund (31800).
- 44 66. Housing program fund (31850).
- 45 67. Highway facility purpose account (31951).
- 46 68. New York racing account (32213).
- 47 69. Information technology capital financing account (32215).
- 48 70. New York environmental protection and spill remediation account
- 49 (32219).
- 50 71. Department of financial services IT modernization capital account
- 51 (32230).
- 52 72. Grants Reimbursement from Non-Federal Entity Account (32231).
- 53 73. Fire Island project account (32232).
- 54 74. Mental hygiene facilities capital improvement fund (32300).
- 55 75. Correctional facilities capital improvement fund (32350).
- 56 76. OGS convention center account (50318).

1 77. Empire Plaza Gift Shop (50327).
2 78. Unemployment Insurance Benefit Fund, Interest Assessment Account
3 (50651).
4 79. Centralized services fund (55000).
5 80. Archives records management account (55052).
6 81. Federal single audit account (55053).
7 82. Civil service administration account (55055).
8 83. Banking services account (55057).
9 84. Cultural resources survey account (55058).
10 85. Neighborhood work project account (55059).
11 86. Automation & printing chargeback account (55060).
12 87. Data center account (55062).
13 88. Intrusion detection account (55066).
14 89. Domestic violence grant account (55067).
15 90. Centralized technology services account (55069).
16 91. Labor contact center account (55071).
17 92. Human services contact center account (55072).
18 93. Department of law civil recoveries account (55074).
19 94. Executive direction internal audit account (55251).
20 95. CIO Information technology centralized services account (55252).
21 96. Health insurance internal service account (55300).
22 97. Civil service employee benefits division administrative account
23 (55301).
24 98. Correctional industries revolving fund (55350).
25 99. Employees health insurance account (60201).
26 100. Medicaid management information system escrow fund (60900).
27 101. Animal shelter regulation account.
28 102. Climate initiative account.
29 103. Responsible AI Safety and Education account.
30 104. Data broker account.

31 § 2. The state comptroller is hereby authorized and directed to loan
32 money in accordance with the provisions set forth in subdivision 5 of
33 section 4 of the state finance law to any account within the following
34 federal funds, provided the comptroller has made a determination that
35 sufficient federal grant award authority is available to reimburse such
36 loans:

37 1. Federal USDA-food and nutrition services fund (25000).
38 2. Federal health and human services fund (25100).
39 3. Federal education fund (25200).
40 4. Federal block grant fund (25250).
41 5. Federal miscellaneous operating grants fund (25300).
42 6. Federal unemployment insurance administration fund (25900).
43 7. Federal unemployment insurance occupational training fund (25950).
44 8. Federal emergency employment act fund (26000).
45 9. Federal capital projects fund (31350).

46 § 3. Notwithstanding any law to the contrary, and in accordance with
47 section 4 of the state finance law, the comptroller is hereby authorized
48 and directed to transfer, upon request of the director of the budget, on
49 or before March 31, 2027, up to the unencumbered balance or the follow-
50 ing amounts:

51 Economic Development and Public Authorities:

52 1. An amount up to the unencumbered balance from the miscellaneous
53 special revenue fund, business and licensing services account (21977),
54 to the general fund.
55 2. \$19,810,000 from the miscellaneous special revenue fund, code
56 enforcement account (21904), to the general fund.

1 3. \$3,000,000 from the general fund to the miscellaneous special
2 revenue fund, tax revenue arrearage account (22168).

3 Education:

4 1. \$2,455,000,000 from the general fund to the state lottery fund,
5 education account (20901), as reimbursement for disbursements made from
6 such fund for supplemental aid to education pursuant to section 92-c of
7 the state finance law that are in excess of the amounts deposited in
8 such fund for such purposes pursuant to section 1612 of the tax law.

9 2. \$1,106,000,000 from the general fund to the state lottery fund, VLT
10 education account (20904), as reimbursement for disbursements made from
11 such fund for supplemental aid to education pursuant to section 92-c of
12 the state finance law that are in excess of the amounts deposited in
13 such fund for such purposes pursuant to section 1612 of the tax law.

14 3. \$137,600,000 from the general fund to the New York state commercial
15 gaming fund, commercial gaming revenue account (23701), as reimbursement
16 for disbursements made from such fund for supplemental aid to education
17 pursuant to section 97-nnnn of the state finance law that are in excess
18 of the amounts deposited in such fund for purposes pursuant to section
19 1352 of the racing, pari-mutuel wagering and breeding law.

20 4. \$1,456,000,000 from the general fund to the mobile sports wagering
21 fund, education account (24955), as reimbursement for disbursements made
22 from such fund for supplemental aid to education pursuant to section
23 92-c of the state finance law that are in excess of the amounts deposit-
24 ed in such fund for such purposes pursuant to section 1367 of the
25 racing, pari-mutuel wagering and breeding law.

26 5. \$16,000,000 from the interactive fantasy sports fund, fantasy
27 sports education account (24950), to the state lottery fund, education
28 account (20901), as reimbursement for disbursements made from such fund
29 for supplemental aid to education pursuant to section 92-c of the state
30 finance law.

31 6. \$50,000,000 from the cannabis revenue fund cannabis education
32 account (24801), to the state lottery fund, education account (20901),
33 as reimbursement for disbursements made from such fund for supplemental
34 aid to education pursuant to section 99-ii of the state finance law.

35 7. An amount up to the unencumbered balance in the fund on March 31,
36 2026 from the charitable gifts trust fund, elementary and secondary
37 education account (24901), to the general fund, for payment of general
38 support for public schools pursuant to section 3609-a of the education
39 law.

40 8. Moneys from the state lottery fund (20900) up to an amount deposit-
41 ed in such fund pursuant to section 1612 of the tax law in excess of the
42 current year appropriation for supplemental aid to education pursuant to
43 section 92-c of the state finance law.

44 9. \$300,000 from the New York state local government records manage-
45 ment improvement fund, local government records management account
46 (20501), to the New York state archives partnership trust fund, archives
47 partnership trust maintenance account (20351).

48 10. \$900,000 from the general fund to the miscellaneous special reven-
49 ue fund, Batavia school for the blind account (22032).

50 11. \$900,000 from the general fund to the miscellaneous special reven-
51 ue fund, Rome school for the deaf account (22053).

52 12. \$80,000,000 from the state university income fund, state universi-
53 ty hospitals income reimbursable account (22656) to the general fund for
54 hospital debt service.

1 13. \$343,400,000 from the state university dormitory income fund
2 (40350) to the miscellaneous special revenue fund, state university
3 dormitory income reimbursable account (21937).

4 14. \$24,000,000 from any of the state education department's special
5 revenue and internal service funds to the miscellaneous special revenue
6 fund, indirect cost recovery account (21978).

7 15. \$4,200,000 from any of the state education department's special
8 revenue or internal service funds to the capital projects fund (30000).

9 16. \$8,000,000 from the general fund to the miscellaneous special
10 revenue fund, HESC-insurance premium payments account (21960).

11 17. \$358,000,000 from the state university income fund, state univer-
12 sity hospitals income reimbursable account (22656), and the state
13 university income fund, state university-wide hospital reimbursable
14 account (22658) to the General Fund for the payment of SUNY Hospitals
15 Health Insurance premiums on or before March 31, 2027.

16 18. \$5,000,000 from the general fund to the miscellaneous capital
17 projects fund, state university of New York green energy loan fund.

18 19. \$12,000,000 from the miscellaneous special revenue fund office of
19 professions account (22051) to the miscellaneous special revenue fund
20 cultural education account (22063).

21 20. \$150,000 from the dedicated miscellaneous special revenue fund,
22 gifts for the state library system account (23821) to the miscellaneous
23 special revenue fund, love your library account (22119).

24 Environmental Affairs:

25 1. \$16,000,000 from any of the department of environmental conserva-
26 tion's special revenue federal funds, and/or federal capital funds, to
27 the environmental conservation special revenue fund, federal indirect
28 recovery account (21065).

29 2. \$5,000,000 from any of the department of environmental conserva-
30 tion's special revenue federal funds, and/or federal capital funds, to
31 the conservation fund (21150) or Marine Resources Account (21151) as
32 necessary to avoid diversion of conservation funds.

33 3. \$3,000,000 from any of the office of parks, recreation and historic
34 preservation capital projects federal funds and special revenue federal
35 funds to the miscellaneous special revenue fund, federal grant indirect
36 cost recovery account (22188).

37 4. \$125,000,000 from the general fund to the environmental protection
38 fund, environmental protection fund transfer account (30451).

39 5. \$10,000,000 from the general fund to the hazardous waste remedial
40 fund, hazardous waste cleanup account (31506).

41 6. An amount up to or equal to the cash balance within the special
42 revenue-other waste management & cleanup account (21053) to the capital
43 projects fund (30000) for services and capital expenses related to the
44 management and cleanup program as put forth in section 27-1915 of the
45 environmental conservation law.

46 7. \$7,000,000 from the general fund to the enterprise fund, state fair
47 account (50051).

48 8. \$3,000,000 from the waste management & cleanup account (21053) to
49 the environmental protection fund transfer account (30451).

50 9. \$14,000,000 from the general fund to the miscellaneous special
51 revenue fund, patron services account (22163).

52 10. \$15,000,000 from the enterprise fund, golf account (50332) to the
53 state park infrastructure fund, state park infrastructure account
54 (30351).

55 11. \$10,000,000 from the general fund to the environmental protection
56 and oil spill compensation fund (21203).

12. \$250,000 from the general fund to the Lake George park account (22751).

Family Assistance:

1. \$7,000,000 from any of the office of children and family services, office of temporary and disability assistance, or department of health special revenue federal funds and the general fund, in accordance with agreements with social services districts, to the miscellaneous special revenue fund, office of human resources development state match account (21967).

2. \$4,000,000 from any of the office of children and family services or office of temporary and disability assistance special revenue federal funds to the miscellaneous special revenue fund, family preservation and support services and family violence services account (22082).

3. \$18,670,000 from any of the office of children and family services, office of temporary and disability assistance, or department of health special revenue federal funds and any other miscellaneous revenues generated from the operation of office of children and family services programs to the general fund.

4. \$225,300,000 from any of the office of temporary and disability assistance or department of health special revenue funds to the general fund.

5. \$2,500,000 from any of the office of temporary and disability assistance special revenue funds to the miscellaneous special revenue fund, office of temporary and disability assistance program account (21980).

6. \$35,000,000 from any of the office of children and family services, office of temporary and disability assistance, department of labor, and department of health special revenue federal funds to the office of children and family services miscellaneous special revenue fund, multi-agency training contract account (21989).

7. \$205,000,000 from the miscellaneous special revenue fund, youth facility per diem account (22186), to the general fund.

8. \$788,000 from the general fund to the combined gifts, grants, and bequests fund, WB Hoyt Memorial account (20128).

9. \$5,000,000 from the miscellaneous special revenue fund, state central registry (22028), to the general fund.

10. \$900,000 from the general fund to the Veterans' Remembrance and Cemetery Maintenance and Operation account (20201).

11. \$7,000,000 from the general fund to the housing program fund (31850).

12. \$15,000,000 from any of the office of children and family services special revenue federal funds to the office of court administration special revenue other federal iv-e funds account.

13. \$10,000,000 from any of the office of children and family services special revenue federal funds to the office of indigent legal services special revenue other federal iv-e funds account.

General Government:

1. \$12,000,000 from the general fund to the health insurance revolving fund (55300).

2. \$292,400,000 from the health insurance reserve receipts fund (60550) to the general fund.

3. \$150,000 from the general fund to the not-for-profit revolving loan fund (20650).

4. \$150,000 from the not-for-profit revolving loan fund (20650) to the general fund.

1 5. \$3,000,000 from the miscellaneous special revenue fund, surplus
2 property account (22036), to the general fund.
3 6. \$19,000,000 from the miscellaneous special revenue fund, revenue
4 arrearage account (22024), to the general fund.
5 7. \$3,828,000 from the miscellaneous special revenue fund, revenue
6 arrearage account (22024), to the miscellaneous special revenue fund,
7 authority budget office account (22138).
8 8. \$1,000,000 from the miscellaneous special revenue fund, parking
9 account (22007), to the general fund, for the purpose of reimbursing the
10 costs of debt service related to state parking facilities.
11 9. \$11,460,000 from the general fund to the agencies internal service
12 fund, central technology services account (55069), for the purpose of
13 enterprise technology projects.
14 10. \$10,000,000 from the general fund to the agencies internal service
15 fund, state data center account (55062).
16 11. \$12,000,000 from the miscellaneous special revenue fund, parking
17 account (22007), to the centralized services, building support services
18 account (55018).
19 12. \$36,000,000 from the general fund to the internal service fund,
20 business services center account (55022).
21 13. \$9,500,000 from the general fund to the internal service fund,
22 building support services account (55018).
23 14. \$1,500,000 from the combined expendable trust fund, plaza special
24 events account (20120), to the general fund.
25 15. A transfer from the general fund to the miscellaneous special
26 revenue fund, New York State Campaign Finance Fund Account (22211), up
27 to an amount equal to total reimbursements due to qualified candidates.
28 16. \$6,000,000 from the miscellaneous special revenue fund, standards
29 and purchasing account (22019), to the general fund.
30 17. \$12,400,000 from the banking department special revenue fund
31 (21970) funded by the assessment to defray operating expenses authorized
32 by section 206 of the financial services law to the IT Modernization
33 Capital Fund.
34 18. \$17,000,000 from the miscellaneous special revenue fund, New York
35 State cannabis revenue fund (24800), to the miscellaneous capital
36 projects fund, Cannabis IT subfund.
37 19. \$12,400,000 from the insurance department special revenue fund
38 (21994) funded by the assessment to defray operating expenses authorized
39 by section 206 of the financial services law to the IT Modernization
40 Capital Fund.
41 20. \$1,550,000 from the pharmacy benefits bureau special revenue fund
42 (22255) funded by the assessment to defray operating expenses authorized
43 by section 206 of the financial services law, to the IT Modernization
44 Capital Fund.
45 21. \$4,650,000 from the virtual currency special revenue fund (22262)
46 funded by the assessment to defray operating expenses authorized by
47 section 206 of the financial services law, to the IT Modernization Capi-
48 tal Fund.
49 22. \$30,000,000 from the miscellaneous special revenue fund, workers'
50 compensation account (21995), to the miscellaneous capital projects
51 fund, workers' compensation board IT business process design fund
52 (32218).
53 Health:
54 1. A transfer from the general fund to the combined gifts, grants and
55 bequests fund, breast cancer research and education account (20155), up

1 to an amount equal to the monies collected and deposited into that
2 account in the previous fiscal year.

3 2. A transfer from the general fund to the combined gifts, grants and
4 bequests fund, prostate cancer research, detection, and education
5 account (20183), up to an amount equal to the moneys collected and
6 deposited into that account in the previous fiscal year.

7 3. A transfer from the general fund to the combined gifts, grants and
8 bequests fund, Alzheimer's disease research and assistance account
9 (20143), up to an amount equal to the moneys collected and deposited
10 into that account in the previous fiscal year.

11 4. \$3,600,000 from the miscellaneous special revenue fund, certificate
12 of need account (21920), to the miscellaneous capital projects fund,
13 healthcare IT capital subfund (32216).

14 5. \$4,000,000 from the miscellaneous special revenue fund, vital
15 health records account (22103), to the miscellaneous capital projects
16 fund, healthcare IT capital subfund (32216).

17 6. \$6,000,000 from the miscellaneous special revenue fund, profes-
18 sional medical conduct account (22088), to the miscellaneous capital
19 projects fund, healthcare IT capital subfund (32216).

20 7. \$126,000,000 from the HCRA resources fund (20800) to the capital
21 projects fund (30000).

22 8. \$6,550,000 from the general fund to the medical cannabis trust
23 fund, health operation and oversight account (23755).

24 9. An amount up to the unencumbered balance from the charitable gifts
25 trust fund, health charitable account (24900), to the general fund, for
26 payment of general support for primary, preventive, and inpatient health
27 care, dental and vision care, hunger prevention and nutritional assist-
28 ance, and other services for New York state residents with the overall
29 goal of ensuring that New York state residents have access to quality
30 health care and other related services.

31 10. \$500,000 from the miscellaneous special revenue fund, New York
32 State cannabis revenue fund (24800), to the miscellaneous special reven-
33 ue fund, environmental laboratory fee account (21959).

34 11. An amount up to the unencumbered balance from the public health
35 emergency charitable gifts trust fund (23816), to the general fund, for
36 payment of goods and services necessary to respond to a public health
37 disaster emergency or to assist or aid in responding to such a disaster.

38 12. \$1,000,000,000 from the general fund to the health care transfor-
39 mation fund (24850).

40 13. \$2,590,000 from the miscellaneous special revenue fund, patient
41 safety center account (22139), to the general fund.

42 14. \$1,000,000 from the miscellaneous special revenue fund, nursing
43 home receivership account (21925), to the general fund.

44 15. \$130,000 from the miscellaneous special revenue fund, quality of
45 care account (21915), to the general fund.

46 16. \$2,200,000 from the miscellaneous special revenue fund, adult home
47 quality enhancement account (22091), to the general fund.

48 17. \$8,467,000 from the general fund, to the miscellaneous special
49 revenue fund, helen hayes hospital account (22140).

50 18. \$1,303,000 from the general fund, to the miscellaneous special
51 revenue fund, New York city veterans' home account (22141).

52 19. \$606,000 from the general fund, to the miscellaneous special
53 revenue fund, New York state home for veterans' and their dependents at
54 oxford account (22142).

55 20. \$334,000 from the general fund, to the miscellaneous special
56 revenue fund, western New York veterans' home account (22143).

1 21. \$1,636,000 from the general fund, to the miscellaneous special
2 revenue fund, New York state for veterans in the lower-hudson valley
3 account (22144).
4 22. \$750,000,000 from the general fund, to the miscellaneous special
5 revenue fund, healthcare stability fund account (22267).
6 23. \$5,000,000 from the general fund to the occupational health clin-
7 ics account (22177).
8 24. \$13,000 from the miscellaneous special revenue fund, veterans home
9 assistance account (20208), to the miscellaneous special revenue fund,
10 New York city veterans' home account (22141).
11 25. \$13,000 from the miscellaneous special revenue fund, veterans home
12 assistance account (20208), to the miscellaneous special revenue fund,
13 New York state home for veterans' and their dependents at oxford account
14 (22142).
15 26. \$13,000 from the miscellaneous special revenue fund, veterans
16 assistance account (20208), to the miscellaneous special revenue fund,
17 western New York veterans' home account (22143).
18 27. \$13,000 from the miscellaneous special revenue fund, veterans
19 assistance account (20208), to the miscellaneous special revenue fund,
20 New York state for veterans in the lower-Hudson valley account (22144).
21 28. \$13,000 from the miscellaneous special revenue fund, veterans
22 assistance account (20208), to the state university income fund, Long
23 Island Veterans' Home Account (22652).
24 29. \$159,000,000 from the miscellaneous special revenue fund, health-
25 care stability fund account (22267) to the HCRA resources fund, HCRA
26 program account (20807).
27 Labor:
28 1. \$600,000 from the miscellaneous special revenue fund, DOL fee and
29 penalty account (21923), to the child performer's protection fund, child
30 performer protection account (20401).
31 2. \$11,700,000 from the unemployment insurance interest and penalty
32 fund, unemployment insurance special interest and penalty account
33 (23601), to the general fund.
34 3. \$50,000,000 from the DOL fee and penalty account (21923), unemploy-
35 ment insurance special interest and penalty account (23601), and public
36 work enforcement account (21998), to the general fund.
37 4. \$850,000 from the miscellaneous special revenue fund, DOL elevator
38 safety program fund (22252) to the miscellaneous special revenue fund,
39 DOL fee and penalty account (21923).
40 5. \$22,000,000 from the miscellaneous special revenue fund, Interest
41 and Penalty Account (23601), to the Training and Education Program on
42 Occupation Safety and Health Fund, OSHA Training and Education Account
43 (21251).
44 6. \$1,000,000 from the miscellaneous special revenue fund, Public Work
45 Enforcement account (21998), to the Training and Education Program on
46 Occupation Safety and Health Fund, OSHA Training and Education Account
47 (21251).
48 7. \$4,000,000 from the miscellaneous special revenue fund, Public Work
49 Enforcement account (21998), to the Training and Education Program on
50 Occupational Safety and Health Fund, OSHA Inspection Account (21252).
51 Mental Hygiene:
52 1. \$60,000,000 from the general fund, to the mental hygiene facilities
53 capital improvement fund (32300).
54 2. \$20,000,000 from the opioid settlement fund (23817) to the miscel-
55 laneous capital projects fund, opioid settlement capital account
56 (32200).

1 3. \$20,000,000 from the miscellaneous capital projects fund, opioid
2 settlement capital account (32200) to the opioid settlement fund
3 (23817).

4 Public Protection:

5 1. \$2,587,000 from the general fund to the miscellaneous special
6 revenue fund, recruitment incentive account (22171).

7 2. \$23,773,000 from the general fund to the correctional industries
8 revolving fund, correctional industries internal service account
9 (55350).

10 3. \$2,000,000,000 from any of the division of homeland security and
11 emergency services special revenue federal funds to the general fund.

12 4. \$115,420,000 from the state police motor vehicle law enforcement
13 and motor vehicle theft and insurance fraud prevention fund, state
14 police motor vehicle enforcement account (22802), to the general fund
15 for state operation expenses of the division of state police.

16 5. \$138,272,000 from the general fund to the correctional facilities
17 capital improvement fund (32350).

18 6. \$5,000,000 from the general fund to the dedicated highway and
19 bridge trust fund (30050) for the purpose of work zone safety activities
20 provided by the division of state police for the department of transpor-
21 tation.

22 7. \$10,000,000 from the miscellaneous special revenue fund, statewide
23 public safety communications account (22123), to the capital projects
24 fund (30000).

25 8. \$9,830,000 from the miscellaneous special revenue fund, legal
26 services assistance account (22096), to the general fund.

27 9. \$1,000,000 from the general fund to the agencies internal service
28 fund, neighborhood work project account (55059).

29 10. \$7,980,000 from the miscellaneous special revenue fund, finger-
30 print identification & technology account (21950), to the general fund.

31 11. \$1,100,000 from the state police motor vehicle law enforcement and
32 motor vehicle theft and insurance fraud prevention fund, motor vehicle
33 theft and insurance fraud account (22801), to the general fund.

34 12. \$38,938,000 from the general fund to the miscellaneous special
35 revenue fund, criminal justice improvement account (21945).

36 13. \$6,000,000 from the general fund to the miscellaneous special
37 revenue fund, hazard mitigation revolving loan account (22266).

38 14. \$234,000,000 from the indigent legal services fund, indigent legal
39 services account (23551) to the general fund.

40 Transportation:

41 1. \$20,000,000 from the general fund to the mass transportation oper-
42 ating assistance fund, public transportation systems operating assist-
43 ance account (21401), of which \$12,000,000 constitutes the base need for
44 operations.

45 2. \$727,500,000 from the general fund to the dedicated highway and
46 bridge trust fund (30050).

47 3. \$243,250,000 from the general fund to the MTA financial assistance
48 fund, mobility tax trust account (23651).

49 4. \$477,000 from the miscellaneous special revenue fund, traffic adju-
50 dication account (22055), to the general fund.

51 5. \$5,000,000 from the miscellaneous special revenue fund, transporta-
52 tion regulation account (22067) to the general fund, for disbursements
53 made from such fund for motor carrier safety that are in excess of the
54 amounts deposited in the general fund for such purpose pursuant to
55 section 94 of the transportation law.

56 Miscellaneous:

1 1. \$250,000,000 from the general fund to any funds or accounts for the
2 purpose of reimbursing certain outstanding accounts receivable balances.

3 2. \$500,000,000 from the general fund to the debt reduction reserve
4 fund (40000).

5 3. \$15,500,000 from the general fund, community projects account GG
6 (10256), to the general fund, state purposes account (10050).

7 4. \$100,000,000 from any special revenue federal fund to the general
8 fund, state purposes account (10050).

9 5. An amount up to the unencumbered balance from the special revenue
10 federal fund, ARPA-Fiscal Recovery Fund (25546) to the general fund.

11 6. \$1,500,000,000 from the general fund to the hazardous waste remedi-
12 al fund, hazardous waste cleanup account (31506), State parks infras-
13 tructure account (30351), environmental protection fund transfer account
14 (30451), the correctional facilities capital improvement fund (32350),
15 housing program fund (31850), or the Mental hygiene facilities capital
16 improvement fund (32300), up to an amount equal to certain outstanding
17 accounts receivable balances.

18 § 4. Notwithstanding any law to the contrary, and in accordance with
19 section 4 of the state finance law, the comptroller is hereby authorized
20 and directed to transfer, on or before March 31, 2027:

21 1. Upon request of the commissioner of environmental conservation, up
22 to \$12,745,400 from revenues credited to any of the department of envi-
23 ronmental conservation special revenue funds, including \$4,000,000 from
24 the environmental protection and oil spill compensation fund (21200),
25 and \$1,834,600 from the conservation fund (21150), to the environmental
26 conservation special revenue fund, indirect charges account (21060).

27 2. Upon request of the commissioner of agriculture and markets, up to
28 \$3,000,000 from any special revenue fund or enterprise fund within the
29 department of agriculture and markets to the general fund, to pay appro-
30 priate administrative expenses.

31 3. Upon request of the commissioner of the division of housing and
32 community renewal, up to \$6,221,000 from revenues credited to any divi-
33 sion of housing and community renewal federal or miscellaneous special
34 revenue fund to the miscellaneous special revenue fund, housing indirect
35 cost recovery account (22090).

36 4. Upon request of the commissioner of the division of housing and
37 community renewal, up to \$5,500,000 may be transferred from any miscel-
38 laneous special revenue fund account, to any miscellaneous special
39 revenue fund.

40 5. Upon request of the commissioner of health up to \$13,694,000 from
41 revenues credited to any of the department of health's special revenue
42 funds, to the miscellaneous special revenue fund, administration account
43 (21982).

44 6. Upon the request of the attorney general, up to \$5,000,000 from
45 revenues credited to the federal health and human services fund, federal
46 health and human services account (25117) or the miscellaneous special
47 revenue fund, recoveries and revenue account (22041), to the miscella-
48 neous special revenue fund, litigation settlement and civil recovery
49 account (22117).

50 § 5. On or before March 31, 2027, the comptroller is hereby authorized
51 and directed to deposit earnings that would otherwise accrue to the
52 general fund that are attributable to the operation of section 98-a of
53 the state finance law, to the agencies internal service fund, banking
54 services account (55057), for the purpose of meeting direct payments
55 from such account.

§ 6. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget and upon consultation with the state university chancellor or their designee, on or before March 31, 2027, up to \$16,000,000 from the state university income fund general revenue account (22653) to the state general fund for debt service costs related to campus supported capital project costs for the NY-SUNY 2020 challenge grant program at the University at Buffalo.

§ 7. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget and upon consultation with the state university chancellor or their designee, on or before March 31, 2027, up to \$6,500,000 from the state university income fund general revenue account (22653) to the state general fund for debt service costs related to campus supported capital project costs for the NY-SUNY 2020 challenge grant program at the University at Albany.

§ 8. Notwithstanding any law to the contrary, the state university chancellor or their designee is authorized and directed to transfer estimated tuition revenue balances from the state university collection fund (61000) to the state university income fund, state university general revenue offset account (22655) on or before March 31, 2027.

§ 9. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, a total of up to \$100,000,000 from the general fund to the state university income fund, state university general revenue offset account (22655) and/or the state university income fund, state university hospitals income reimbursable account (22656) during the period July 1, 2026 through June 30, 2027 to pay costs attributable to the state university health science center at Brooklyn and/or the state university of New York hospital at Brooklyn, respectively, pursuant to a plan approved by the director of the budget.

§ 10. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$1,590,638,500 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of July 1, 2026 through June 30, 2027 to support operations at the state university.

§ 11. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$25,000,000 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of April 1, 2026 through June 30, 2026 to support operations at the state university.

§ 12. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, up to \$51,120,000 from the general fund to the state university income fund, state university general revenue offset account (22655) during the period of July 1, 2026 to June 30, 2027 for general fund operating support pursuant to subparagraph (4-b) of paragraph h of subdivision 2 of section three hundred fifty-five of the education law.

§ 13. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, upon request of the state university chancellor or their designee, up to \$55,000,000 from the state university income fund, state university hospitals income reimbursable account (22656), for services and expenses of hospital operations and capital expenditures at the state university hospitals; and the state university income fund, Long Island veterans' home account (22652) to the state university capital projects fund (32400) on or before June 30, 2027.

§ 14. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller, after consultation with the state university chancellor or their designee, is hereby authorized and directed to transfer moneys, in the first instance, from the state university collection fund, Stony Brook hospital collection account (61006), Brooklyn hospital collection account (61007), and Syracuse hospital collection account (61008) to the state university income fund, state university hospitals income reimbursable account (22656) in the event insufficient funds are available in the state university income fund, state university hospitals income reimbursable account (22656) to permit the full transfer of moneys authorized for transfer, to the general fund for payment of debt service related to the SUNY hospitals. Notwithstanding any law to the contrary, the comptroller is also hereby authorized and directed, after consultation with the state university chancellor or their designee, to transfer moneys from the state university income fund to the state university income fund, state university hospitals income reimbursable account (22656) in the event insufficient funds are available in the state university income fund, state university hospitals income reimbursable account (22656) to pay hospital operating costs or to permit the full transfer of moneys authorized for transfer, to the general fund for payment of debt service related to the SUNY hospitals on or before March 31, 2027.

§ 15. Notwithstanding any law to the contrary, upon the direction of the director of the budget and the chancellor of the state university of New York or their designee, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer monies from the state university dormitory income fund (40350) to the state university residence hall rehabilitation fund (30100), and from the state university residence hall rehabilitation fund (30100) to the state university dormitory income fund (40350), in an amount not to exceed \$125 million from each fund.

§ 16. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized and directed to transfer, at the request of the director of the budget, up to \$1,000,000,000 from the unencumbered balance of any special revenue fund or account, agency fund or account, internal service fund or account, enterprise fund or account, or any combination of such funds and accounts, to the general fund. The amounts transferred pursuant to this authorization shall be in addition to any other transfers expressly authorized in the 2026-27 budget. Transfers from federal funds, debt service funds, capital projects funds, the community projects fund, or funds that would result in the loss of eligibility for federal benefits or federal funds pursuant to federal law, rule, or regulation as assented to in chapter 683 of the laws of 1938 and chapter 700 of the laws of 1951 are not permitted pursuant to this authorization.

§ 17. Notwithstanding any law to the contrary, and in accordance with section 4 of the state finance law, the comptroller is hereby authorized

1 and directed to transfer, at the request of the director of the budget,
2 up to \$100 million from any non-general fund or account, or combination
3 of funds and accounts, to the miscellaneous special revenue fund, tech-
4 nology financing account (22207), the miscellaneous capital projects
5 fund, the federal capital projects account (31350), information technol-
6 ogy capital financing account (32215), or the centralized technology
7 services account (55069), for the purpose of consolidating technology
8 procurement and services. The amounts transferred to the miscellaneous
9 special revenue fund, technology financing account (22207) pursuant to
10 this authorization shall be equal to or less than the amount of such
11 monies intended to support information technology costs which are
12 attributable, according to a plan, to such account made in pursuance to
13 an appropriation by law. Transfers to the technology financing account
14 shall be completed from amounts collected by non-general funds or
15 accounts pursuant to a fund deposit schedule or permanent statute, and
16 shall be transferred to the technology financing account pursuant to a
17 schedule agreed upon by the affected agency commissioner. Transfers from
18 funds that would result in the loss of eligibility for federal benefits
19 or federal funds pursuant to federal law, rule, or regulation as assent-
20 ed to in chapter 683 of the laws of 1938 and chapter 700 of the laws of
21 1951 are not permitted pursuant to this authorization.

22 § 18. Notwithstanding any law to the contrary, and in accordance with
23 section 4 of the state finance law, the comptroller is hereby authorized
24 and directed to transfer, at the request of the director of the budget,
25 up to \$400 million from any non-general fund or account, or combination
26 of funds and accounts, to the general fund for the purpose of consol-
27 idating technology procurement and services. The amounts transferred
28 pursuant to this authorization shall be equal to or less than the amount
29 of such monies intended to support information technology costs which
30 are attributable, according to a plan, to such account made in pursuance
31 to an appropriation by law. Transfers to the general fund shall be
32 completed from amounts collected by non-general funds or accounts pursu-
33 ant to a fund deposit schedule. Transfers from funds that would result
34 in the loss of eligibility for federal benefits or federal funds pursu-
35 ant to federal law, rule, or regulation as assented to in chapter 683 of
36 the laws of 1938 and chapter 700 of the laws of 1951 are not permitted
37 pursuant to this authorization.

38 § 19. Notwithstanding any provision of law to the contrary, as deemed
39 feasible and advisable by its trustees, the power authority of the state
40 of New York is authorized and directed to transfer to the state treasury
41 to the credit of the general fund up to \$10,000,000 for the state fiscal
42 year commencing April 1, 2026, the proceeds of which will be utilized to
43 support energy-related state activities.

44 § 20. Notwithstanding any provision of law to the contrary, as deemed
45 feasible and advisable by its trustees, the power authority of the state
46 of New York is authorized to transfer to the state treasury to the cred-
47 it of the general fund up to \$25,000,000 for the state fiscal year
48 commencing April 1, 2026, the proceeds of which will be utilized to
49 support programs established or implemented by or within the department
50 of labor, including but not limited to the office of just energy transi-
51 tion and programs for workforce training and retraining, to prepare
52 workers for employment for work in the renewable energy field.

53 § 21. Notwithstanding any provision of law, rule or regulation to the
54 contrary, the New York state energy research and development authority
55 is authorized and directed to contribute \$913,000 to the state treasury
56 to the credit of the general fund on or before March 31, 2027.

§ 22. Notwithstanding any provision of law, rule or regulation to the contrary, the New York state energy research and development authority is authorized and directed to transfer five million dollars to the credit of the Environmental Protection Fund on or before March 31, 2027 from proceeds collected by the authority from the auction or sale of carbon dioxide emission allowances allocated by the department of environmental conservation.

§ 23. Subdivision 5 of section 97-rrr of the state finance law, as amended by section 23 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

5. Notwithstanding the provisions of section one hundred seventy-one-a of the tax law, as separately amended by chapters four hundred eighty-one and four hundred eighty-four of the laws of nineteen hundred eighty-one, and notwithstanding the provisions of chapter ninety-four of the laws of two thousand eleven, or any other provisions of law to the contrary, during the fiscal year beginning April first, two thousand ~~[twenty-five]~~ twenty-six, the state comptroller is hereby authorized and directed to deposit to the fund created pursuant to this section from amounts collected pursuant to article twenty-two of the tax law and pursuant to a schedule submitted by the director of the budget, up to ~~[\$1,306,011,000]~~ \$1,294,911,000 as may be certified in such schedule as necessary to meet the purposes of such fund for the fiscal year beginning April first, two thousand ~~[twenty-five]~~ twenty-six.

§ 24. Notwithstanding any law to the contrary, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, on or before March 31, 2027, the following amounts from the following special revenue accounts to the capital projects fund (30000), for the purposes of reimbursement to such fund for expenses related to the maintenance and preservation of state assets:

1. \$43,000 from the miscellaneous special revenue fund, administrative program account (21982).

2. \$1,690,000 from the miscellaneous special revenue fund, helen hayes hospital account (22140).

3. \$219,000 from the miscellaneous special revenue fund, New York city veterans' home account (22141).

4. \$840,000 from the miscellaneous special revenue fund, New York state home for veterans' and their dependents at oxford account (22142).

5. \$176,000 from the miscellaneous special revenue fund, western New York veterans' home account (22143).

6. \$492,000 from the miscellaneous special revenue fund, New York state for veterans in the lower-hudson valley account (22144).

7. \$2,550,000 from the miscellaneous special revenue fund, patron services account (22163).

8. \$5,000,000 from the miscellaneous special revenue fund, state university general income reimbursable account (22653).

9. \$110,000,000 from the miscellaneous special revenue fund, state university revenue offset account (22655).

10. \$35,000,000 from the state university dormitory income fund, state university dormitory income fund (40350).

11. \$1,000,000 from the miscellaneous special revenue fund, litigation settlement and civil recovery account (22117).

§ 25. Notwithstanding any law to the contrary, the comptroller is hereby authorized and directed to transfer, upon request of the director of the budget, on or before March 31, 2027 the following amounts from the following special revenue accounts or enterprise funds to the general fund, for the purposes of offsetting principal and interest costs,

1 incurred by the state pursuant to section 53 of part PP of chapter 56 of
2 the laws of 2023, provided that the annual amount of the transfer shall
3 be no more than the principal and interest that would have otherwise
4 been due to the power authority of the state of New York, from any state
5 agency, in a given state fiscal year. Amounts pertaining to special
6 revenue accounts assigned to the state university of New York shall be
7 considered interchangeable between the designated special revenue
8 accounts as to meet the requirements of this section and section 52 of
9 part RR of chapter 56 of the laws of 2023:

10 1. \$15,000,000 from the miscellaneous special revenue fund, state
11 university general income reimbursable account (22653).

12 2. \$5,000,000 from state university dormitory income fund, state
13 university dormitory income fund (40350).

14 3. \$5,000,000 from the enterprise fund, city university senior college
15 operating fund (60851).

16 § 26. Paragraph (a) of subdivision 2 of section 47-e of the private
17 housing finance law, as amended by section 32 of part MM of chapter 56
18 of the laws of 2025, is amended to read as follows:

19 (a) Subject to the provisions of chapter fifty-nine of the laws of two
20 thousand, in order to enhance and encourage the promotion of housing
21 programs and thereby achieve the stated purposes and objectives of such
22 housing programs, the agency shall have the power and is hereby author-
23 ized from time to time to issue negotiable housing program bonds and
24 notes in such principal amount as shall be necessary to provide suffi-
25 cient funds for the repayment of amounts disbursed (and not previously
26 reimbursed) pursuant to law or any prior year making capital appropri-
27 ations or reappropriations for the purposes of the housing program;
28 provided, however, that the agency may issue such bonds and notes in an
29 aggregate principal amount not exceeding [~~sixteen billion seven hundred~~
30 ~~seventy-seven million nine hundred sixty-four thousand dollars~~
31 ~~\$16,777,964,000~~] seventeen billion six hundred thirty-seven million one
32 hundred sixty-four thousand dollars \$17,637,164,000, excluding bonds
33 issued after April first, two thousand twenty-five to (i) fund one or
34 more debt service reserve funds, (ii) pay costs of issuance of such
35 bonds, and (iii) refund or otherwise repay such bonds or notes previous-
36 ly issued, provided that nothing herein shall affect the exclusion of
37 refunding debt issued prior to such date. No reserve fund securing the
38 housing program bonds shall be entitled or eligible to receive state
39 funds apportioned or appropriated to maintain or restore such reserve
40 fund at or to a particular level, except to the extent of any deficiency
41 resulting directly or indirectly from a failure of the state to appro-
42 priate or pay the agreed amount under any of the contracts provided for
43 in subdivision four of this section.

44 § 27. Subdivision 1 of section 16 of part D of chapter 389 of the laws
45 of 1997, relating to the financing of the correctional facilities
46 improvement fund and the youth facility improvement fund, as amended by
47 section 53 of part MM of chapter 56 of the laws of 2025, is amended to
48 read as follows:

49 1. Subject to the provisions of chapter 59 of the laws of 2000, but
50 notwithstanding the provisions of section 18 of section 1 of chapter 174
51 of the laws of 1968, the New York state urban development corporation is
52 hereby authorized to issue bonds, notes and other obligations in an
53 aggregate principal amount not to exceed [~~eleven billion one hundred~~
54 ~~seventeen million three hundred fifty-nine thousand dollars~~
55 ~~\$11,117,359,000~~] eleven billion five hundred thirty-six million five
56 hundred fifty-nine thousand dollars \$11,536,559,000, excluding bonds

1 issued after April first, two thousand twenty-five to (i) fund one or
2 more debt service reserve funds, (ii) pay costs of issuance of such
3 bonds, and (iii) refund or otherwise repay such bonds or notes previous-
4 ly issued, provided that nothing herein shall affect the exclusion of
5 refunding debt issued prior to such date.

6 § 28. Paragraph (c) of subdivision 14 of section 1680 of the public
7 authorities law, as amended by section 34 of part MM of chapter 56 of
8 the laws of 2025, is amended to read as follows:

9 (c) Subject to the provisions of chapter fifty-nine of the laws of two
10 thousand, (i) the dormitory authority shall not deliver a series of
11 bonds for city university community college facilities, except to refund
12 or to be substituted for or in lieu of other bonds in relation to city
13 university community college facilities pursuant to a resolution of the
14 dormitory authority adopted before July first, nineteen hundred eighty-
15 five or any resolution supplemental thereto, if the principal amount of
16 bonds so to be issued when added to all principal amounts of bonds
17 previously issued by the dormitory authority for city university commu-
18 nity college facilities, except to refund or to be substituted in lieu
19 of other bonds in relation to city university community college facili-
20 ties will exceed the sum of four hundred twenty-five million dollars and
21 (ii) the dormitory authority shall not deliver a series of bonds issued
22 for city university facilities, including community college facilities,
23 pursuant to a resolution of the dormitory authority adopted on or after
24 July first, nineteen hundred eighty-five, except to refund or to be
25 substituted for or in lieu of other bonds in relation to city university
26 facilities and except for bonds issued pursuant to a resolution supple-
27 mental to a resolution of the dormitory authority adopted prior to July
28 first, nineteen hundred eighty-five, if the principal amount of bonds so
29 to be issued when added to the principal amount of bonds previously
30 issued pursuant to any such resolution, except bonds issued to refund or
31 to be substituted for or in lieu of other bonds in relation to city
32 university facilities, will exceed ~~[twelve billion three hundred million~~
33 ~~three hundred sixty eight thousand dollars \$12,300,368,000]~~ twelve
34 billion six hundred seventy-one million nine hundred four thousand
35 dollars \$12,671,904,000, excluding bonds issued after April first, two
36 thousand twenty-five to (i) fund one or more debt service reserve funds,
37 (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise
38 repay such bonds or notes previously issued, provided that nothing here-
39 in shall affect the exclusion of refunding debt issued prior to such
40 date. The legislature reserves the right to amend or repeal such limit,
41 and the state of New York, the dormitory authority, the city university,
42 and the fund are prohibited from covenanting or making any other agree-
43 ments with or for the benefit of bondholders which might in any way
44 affect such right.

45 § 29. Subdivision 1 of section 1689-i of the public authorities law,
46 as amended by section 35 of part MM of chapter 56 of the laws of 2025,
47 is amended to read as follows:

48 1. The dormitory authority is authorized to issue bonds, at the
49 request of the commissioner of education, to finance eligible library
50 construction projects pursuant to section two hundred seventy-three-a of
51 the education law, in amounts certified by such commissioner not to
52 exceed a total principal amount of ~~[four hundred fifty five million~~
53 ~~dollars \$455,000,000]~~ four hundred eighty-nine million dollars
54 \$489,000,000.

§ 30. Paragraph (c) of subdivision 19 of section 1680 of the public authorities law, as amended by section 36 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

(c) Subject to the provisions of chapter fifty-nine of the laws of two thousand, the dormitory authority shall not issue any bonds for state university educational facilities purposes if the principal amount of bonds to be issued when added to the aggregate principal amount of bonds issued by the dormitory authority on and after July first, nineteen hundred eighty-eight for state university educational facilities will exceed ~~[twenty billion nine hundred forty-eight million one hundred sixty-four thousand dollars \$20,948,164,000]~~ twenty-one billion six hundred ninety-three million one hundred sixty-four thousand dollars \$21,693,164,000, excluding bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. The legislature reserves the right to amend or repeal such limit, and the state of New York, the dormitory authority, the state university of New York, and the state university construction fund are prohibited from covenanting or making any other agreements with or for the benefit of bondholders which might in any way affect such right.

§ 31. Subdivision 10-a of section 1680 of the public authorities law, as amended by section 37 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

10-a. Subject to the provisions of chapter fifty-nine of the laws of two thousand, but notwithstanding any other provision of the law to the contrary, the maximum amount of bonds and notes to be issued after March thirty-first, two thousand two, on behalf of the state, in relation to any locally sponsored community college, shall be ~~[one billion four hundred ninety-five million seven hundred seventy-four thousand dollars \$1,495,774,000]~~ one billion six hundred twenty-three million eight hundred eighty-four thousand dollars \$1,623,884,000. Such amount shall be exclusive of bonds and notes issued to fund any reserve fund or funds, costs of issuance and to refund any outstanding bonds and notes, issued on behalf of the state, relating to a locally sponsored community college.

§ 32. Paragraph b of subdivision 2 of section 9-a of section 1 of chapter 392 of the laws of 1973, constituting the New York state medical care facilities finance agency act, as amended by section 38 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

b. The agency shall have power and is hereby authorized from time to time to issue negotiable bonds and notes in conformity with applicable provisions of the uniform commercial code in such principal amount as, in the opinion of the agency, shall be necessary, after taking into account other moneys which may be available for the purpose, to provide sufficient funds to the facilities development corporation, or any successor agency, for the financing or refinancing of or for the design, construction, acquisition, reconstruction, rehabilitation or improvement of mental health services facilities pursuant to paragraph a of this subdivision, the payment of interest on mental health services improvement bonds and mental health services improvement notes issued for such purposes, the establishment of reserves to secure such bonds and notes, the cost or premium of bond insurance or the costs of any financial mechanisms which may be used to reduce the debt service that would be payable by the agency on its mental health services facilities improve-

1 ment bonds and notes and all other expenditures of the agency incident
2 to and necessary or convenient to providing the facilities development
3 corporation, or any successor agency, with funds for the financing or
4 refinancing of or for any such design, construction, acquisition, recon-
5 struction, rehabilitation or improvement and for the refunding of mental
6 hygiene improvement bonds issued pursuant to section 47-b of the private
7 housing finance law; provided, however, that the agency shall not issue
8 mental health services facilities improvement bonds and mental health
9 services facilities improvement notes in an aggregate principal amount
10 exceeding [~~thirteen billion six hundred thirty-nine million five hundred~~
11 ~~fifty-four thousand dollars \$13,639,554,000~~] fourteen billion two
12 hundred ninety-nine million four hundred fifty-two thousand dollars
13 \$14,299,452,000, excluding bonds issued after April first, two thousand
14 twenty-five to (i) fund one or more debt service reserve funds, (ii) pay
15 costs of issuance of such bonds, and (iii) refund or otherwise repay
16 such bonds or notes previously issued, provided that nothing herein
17 shall affect the exclusion of refunding debt issued prior to such date.
18 The director of the budget shall allocate the aggregate principal
19 authorized to be issued by the agency among the office of mental health,
20 office for people with developmental disabilities, and the office of
21 addiction services and supports, in consultation with their respective
22 commissioners to finance bondable appropriations previously approved by
23 the legislature.

24 § 33. Subdivision (a) of section 48 of part K of chapter 81 of the
25 laws of 2002, relating to providing for the administration of certain
26 funds and accounts related to the 2002-2003 budget, as amended by
27 section 39 of part MM of chapter 56 of the laws of 2025, is amended to
28 read as follows:

29 (a) Subject to the provisions of chapter 59 of the laws of 2000 but
30 notwithstanding the provisions of section 18 of the urban development
31 corporation act, the corporation is hereby authorized to issue bonds or
32 notes in one or more series in an aggregate principal amount not to
33 exceed [~~five hundred fifty million five hundred thousand dollars~~
34 ~~\$550,500,000~~] seven hundred eight million one hundred thousand dollars
35 \$708,100,000, excluding bonds issued to fund one or more debt service
36 reserve funds, to pay costs of issuance of such bonds, and bonds or
37 notes issued to refund or otherwise repay such bonds or notes previously
38 issued, for the purpose of financing capital costs related to homeland
39 security and training facilities for the division of state police, the
40 division of military and naval affairs, and any other state agency,
41 including the reimbursement of any disbursements made from the state
42 capital projects fund, and is hereby authorized to issue bonds or notes
43 in one or more series in an aggregate principal amount not to exceed
44 [~~two billion one hundred sixty-eight million three hundred thirty-one~~
45 ~~thousand dollars \$2,168,331,000~~] two billion five hundred twenty million
46 eight hundred six thousand dollars \$2,520,806,000, excluding bonds
47 issued to fund one or more debt service reserve funds, to pay costs of
48 issuance of such bonds, and bonds or notes issued to refund or otherwise
49 repay such bonds or notes previously issued, for the purpose of financ-
50 ing improvements to State office buildings and other facilities located
51 statewide, including the reimbursement of any disbursements made from
52 the state capital projects fund. Such bonds and notes of the corporation
53 shall not be a debt of the state, and the state shall not be liable
54 thereon, nor shall they be payable out of any funds other than those
55 appropriated by the state to the corporation for debt service and
56 related expenses pursuant to any service contracts executed pursuant to

subdivision (b) of this section, and such bonds and notes shall contain on the face thereof a statement to such effect.

§ 34. Subdivision 1 of section 47 of section 1 of chapter 174 of the laws of 1968, constituting the New York state urban development corporation act, as amended by section 40 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

1. Notwithstanding the provisions of any other law to the contrary, the dormitory authority and the corporation are hereby authorized to issue bonds or notes in one or more series for the purpose of funding project costs for the office of information technology services, department of law, and other state costs associated with such capital projects. The aggregate principal amount of bonds authorized to be issued pursuant to this section shall not exceed [~~one billion eight hundred seventy-three million four hundred twelve thousand dollars \$1,873,412,000~~] two billion four million one hundred twelve thousand dollars \$2,004,112,000, excluding bonds issued to fund one or more debt service reserve funds, to pay costs of issuance of such bonds, and bonds or notes issued to refund or otherwise repay such bonds or notes previously issued. Such bonds and notes of the dormitory authority and the corporation shall not be a debt of the state, and the state shall not be liable thereon, nor shall they be payable out of any funds other than those appropriated by the state to the dormitory authority and the corporation for principal, interest, and related expenses pursuant to a service contract and such bonds and notes shall contain on the face thereof a statement to such effect. Except for purposes of complying with the internal revenue code, any interest income earned on bond proceeds shall only be used to pay debt service on such bonds.

§ 35. Subdivision (b) of section 11 of chapter 329 of the laws of 1991, amending the state finance law and other laws relating to the establishment of the dedicated highway and bridge trust fund, as amended by section 41 of part MM of chapter 56 of the laws of 2025, is amended to read as follows:

(b) Any service contract or contracts for projects authorized pursuant to sections 10-c, 10-f, 10-g and 80-b of the highway law and section 14-k of the transportation law, and entered into pursuant to subdivision (a) of this section, shall provide for state commitments to provide annually to the thruway authority a sum or sums, upon such terms and conditions as shall be deemed appropriate by the director of the budget, to fund, or fund the debt service requirements of any bonds or any obligations of the thruway authority issued to fund or to reimburse the state for funding such projects having a cost not in excess of [~~fifteen billion eight hundred twenty-two million three hundred eighty-four thousand dollars \$15,822,384,000~~] sixteen billion seven hundred fifty million one hundred eighty-one thousand dollars \$16,750,181,000. Such limit shall exclude bonds issued after April first, two thousand twenty-five to (i) fund one or more debt service reserve funds, (ii) pay costs of issuance of such bonds, and (iii) refund or otherwise repay such bonds or notes previously issued, provided that nothing herein shall affect the exclusion of refunding debt issued prior to such date. For purposes of this subdivision, such projects shall be deemed to include capital grants to cities, towns and villages for the reimbursement of eligible capital costs of local highway and bridge projects within such municipality, where allocations to cities, towns and villages are based on the total number of New York or United States or interstate signed touring route miles for which such municipality has capital maintenance responsibility, and where such eligible capital

1 costs include the costs of construction and repair of highways, bridges,
2 highway-railroad crossings, and other transportation facilities for
3 projects with a service life of ten years or more.

4 § 36. Subdivision 1 of section 53 of section 1 of chapter 174 of the
5 laws of 1968, constituting the New York state urban development corpo-
6 ration act, as amended by section 42 of part MM of chapter 56 of the
7 laws of 2025, is amended to read as follows:

8 1. Notwithstanding the provisions of any other law to the contrary,
9 the dormitory authority and the urban development corporation are hereby
10 authorized to issue bonds or notes in one or more series for the purpose
11 of funding project costs for the acquisition of equipment, including but
12 not limited to the creation or modernization of information technology
13 systems and related research and development equipment, health and safe-
14 ty equipment, heavy equipment and machinery, the creation or improvement
15 of security systems, and laboratory equipment and other state costs
16 associated with such capital projects. The aggregate principal amount
17 of bonds authorized to be issued pursuant to this section shall not
18 exceed [~~six hundred ninety-three million dollars \$693,000,000~~] seven
19 hundred ninety-three million dollars \$793,000,000, excluding bonds
20 issued to fund one or more debt service reserve funds, to pay costs of
21 issuance of such bonds, and bonds or notes issued to refund or otherwise
22 repay such bonds or notes previously issued. Such bonds and notes of the
23 dormitory authority and the urban development corporation shall not be a
24 debt of the state, and the state shall not be liable thereon, nor shall
25 they be payable out of any funds other than those appropriated by the
26 state to the dormitory authority and the urban development corporation
27 for principal, interest, and related expenses pursuant to a service
28 contract and such bonds and notes shall contain on the face thereof a
29 statement to such effect. Except for purposes of complying with the
30 internal revenue code, any interest income earned on bond proceeds shall
31 only be used to pay debt service on such bonds.

32 § 37. Subdivision 3 of section 1285-p of the public authorities law,
33 as amended by section 43 of part MM of chapter 56 of the laws of 2025,
34 is amended to read as follows:

35 3. The maximum amount of bonds that may be issued for the purpose of
36 financing environmental infrastructure projects authorized by this
37 section shall be [~~fourteen billion four hundred eighty million eight~~
38 ~~hundred sixty thousand dollars \$14,480,860,000~~] sixteen billion six
39 hundred forty million six hundred sixty thousand dollars
40 \$16,640,660,000, exclusive of bonds issued to fund any debt service
41 reserve funds, pay costs of issuance of such bonds, and bonds or notes
42 issued to refund or otherwise repay bonds or notes previously issued.
43 Such bonds and notes of the corporation shall not be a debt of the
44 state, and the state shall not be liable thereon, nor shall they be
45 payable out of any funds other than those appropriated by the state to
46 the corporation for debt service and related expenses pursuant to any
47 service contracts executed pursuant to subdivision one of this section,
48 and such bonds and notes shall contain on the face thereof a statement
49 to such effect.

50 § 38. Subdivision 1 of section 17 of part D of chapter 389 of the laws
51 of 1997, relating to the financing of the correctional facilities
52 improvement fund and the youth facility improvement fund, as amended by
53 section 44 of part MM of chapter 56 of the laws of 2025, is amended to
54 read as follows:

55 1. Subject to the provisions of chapter 59 of the laws of 2000, but
56 notwithstanding the provisions of section 18 of section 1 of chapter 174

1 of the laws of 1968, the New York state urban development corporation is
2 hereby authorized to issue bonds, notes and other obligations in an
3 aggregate principal amount not to exceed [~~one billion two hundred seven~~
4 ~~teen million seven hundred fifty-five thousand dollars \$1,217,755,000~~]
5 one billion two hundred seventy million five hundred eighty thousand
6 dollars \$1,270,580,000, excluding bonds issued after April first, two
7 thousand twenty-five to (a) fund one or more debt service reserve funds,
8 (b) to pay costs of issuance of such bonds, and (c) refund or otherwise
9 repay such bonds or notes previously issued, provided that nothing here-
10 in shall affect the exclusion of refunding debt issued prior to such
11 date. Which authorization increases the aggregate principal amount of
12 bonds, notes and other obligations authorized by section 40 of chapter
13 309 of the laws of 1996, and shall include all bonds, notes and other
14 obligations issued pursuant to chapter 211 of the laws of 1990, as
15 amended or supplemented. The proceeds of such bonds, notes or other
16 obligations shall be paid to the state, for deposit in the youth facili-
17 ties improvement fund or the capital projects fund, to pay for all or
18 any portion of the amount or amounts paid by the state from appropri-
19 ations or reappropriations made to the office of children and family
20 services from the youth facilities improvement fund or the capital
21 projects fund for capital projects.

22 § 39. Subdivision 1 of section 386-b of the public authorities law, as
23 amended by section 45 of part MM of chapter 56 of the laws of 2025, is
24 amended to read as follows:

25 1. Notwithstanding any other provision of law to the contrary, the
26 authority, the dormitory authority and the urban development corporation
27 are hereby authorized to issue bonds or notes in one or more series for
28 the purpose of financing peace bridge projects and capital costs of
29 state and local highways, parkways, bridges, the New York state thruway,
30 Indian reservation roads, and facilities, and transportation infrastruc-
31 ture projects including aviation projects, non-MTA mass transit
32 projects, and rail service preservation projects, including work appur-
33 tenant and ancillary thereto. The aggregate principal amount of bonds
34 authorized to be issued pursuant to this section shall not exceed
35 [~~seventeen billion thirty million twenty-seven thousand dollars~~
36 ~~\$17,030,027,000~~] eighteen billion five hundred thirty-two million three
37 hundred eighty-five thousand dollars \$18,532,385,000, excluding bonds
38 issued to fund one or more debt service reserve funds, to pay costs of
39 issuance of such bonds, and to refund or otherwise repay such bonds or
40 notes previously issued. Such bonds and notes of the authority, the
41 dormitory authority and the urban development corporation shall not be a
42 debt of the state, and the state shall not be liable thereon, nor shall
43 they be payable out of any funds other than those appropriated by the
44 state to the authority, the dormitory authority and the urban develop-
45 ment corporation for principal, interest, and related expenses pursuant
46 to a service contract and such bonds and notes shall contain on the face
47 thereof a statement to such effect. Except for purposes of complying
48 with the internal revenue code, any interest income earned on bond
49 proceeds shall only be used to pay debt service on such bonds.

50 § 40. Subdivision 1 of section 44 of section 1 of chapter 174 of the
51 laws of 1968, constituting the New York state urban development corpo-
52 ration act, as amended by section 46 of part MM of chapter 56 of the
53 laws of 2025, is amended to read as follows:

54 1. Notwithstanding the provisions of any other law to the contrary,
55 the dormitory authority and the corporation are hereby authorized to
56 issue bonds or notes in one or more series for the purpose of funding

1 project costs for the regional economic development council initiative,
2 the economic transformation program, state university of New York
3 college for nanoscale and science engineering, projects within the city
4 of Buffalo or surrounding environs, the New York works economic develop-
5 ment fund, projects for the retention of professional football in west-
6 ern New York, the empire state economic development fund, the clarkson-
7 trudeau partnership, the New York genome center, the Cornell university
8 college of veterinary medicine, the olympic regional development author-
9 ity, projects at nano Utica, Onondaga county revitalization projects,
10 Binghamton university school of pharmacy, New York power electronics
11 manufacturing consortium, regional infrastructure projects, high tech
12 innovation and economic development infrastructure program, high tech-
13 nology manufacturing projects in Chautauqua and Erie county, an indus-
14 trial scale research and development facility in Clinton county, upstate
15 revitalization initiative projects, downstate revitalization initiative,
16 market New York projects, fairground buildings, equipment or facilities
17 used to house and promote agriculture, the state fair, the empire state
18 trail, the moynihan station development project, the Kingsbridge armory
19 project, strategic economic development projects, the cultural, arts and
20 public spaces fund, water infrastructure in the city of Auburn and town
21 of Owasco, a life sciences laboratory public health initiative, not-for-
22 profit pounds, shelters and humane societies, arts and cultural facili-
23 ties improvement program, restore New York's communities initiative,
24 heavy equipment, economic development and infrastructure projects,
25 Roosevelt Island operating corporation capital projects, Lake Ontario
26 regional projects, Pennsylvania station and other transit projects,
27 athletic facilities for professional football in Orchard Park, New York,
28 Rush - NY, New York AI Consortium, New York Creates UEV Tool, and other
29 state costs associated with such projects. The aggregate principal
30 amount of bonds authorized to be issued pursuant to this section shall
31 not exceed [~~twenty-three billion seven hundred five million two hundred~~
32 ~~fifty-three thousand dollars \$23,705,253,000~~] twenty-five billion two
33 hundred fifty-eight million four hundred fifty-three thousand dollars
34 \$25,258,453,000, excluding bonds issued to fund one or more debt service
35 reserve funds, to pay costs of issuance of such bonds, and bonds or
36 notes issued to refund or otherwise repay such bonds or notes previously
37 issued. Such bonds and notes of the dormitory authority and the corpo-
38 ration shall not be a debt of the state, and the state shall not be
39 liable thereon, nor shall they be payable out of any funds other than
40 those appropriated by the state to the dormitory authority and the
41 corporation for principal, interest, and related expenses pursuant to a
42 service contract and such bonds and notes shall contain on the face
43 thereof a statement to such effect. Except for purposes of complying
44 with the internal revenue code, any interest income earned on bond
45 proceeds shall only be used to pay debt service on such bonds.

46 § 41. Subdivision (a) of section 28 of part Y of chapter 61 of the
47 laws of 2005, relating to providing for the administration of certain
48 funds and accounts related to the 2005-2006 budget, as amended by
49 section 47 of part MM of chapter 56 of the laws of 2025, is amended to
50 read as follows:

51 (a) Subject to the provisions of chapter 59 of the laws of 2000, but
52 notwithstanding any provisions of law to the contrary, one or more
53 authorized issuers as defined by section 68-a of the state finance law
54 are hereby authorized to issue bonds or notes in one or more series in
55 an aggregate principal amount not to exceed [~~three hundred ninety-seven~~
56 ~~million dollars \$397,000,000~~] four hundred forty-two million dollars

1 \$442,000,000, excluding bonds issued to finance one or more debt service
2 reserve funds, to pay costs of issuance of such bonds, and bonds or
3 notes issued to refund or otherwise repay such bonds or notes previously
4 issued, for the purpose of financing capital projects for public
5 protection facilities in the Division of Military and Naval Affairs,
6 debt service and leases; and to reimburse the state general fund for
7 disbursements made therefor. Such bonds and notes of such authorized
8 issuer shall not be a debt of the state, and the state shall not be
9 liable thereon, nor shall they be payable out of any funds other than
10 those appropriated by the state to such authorized issuer for debt
11 service and related expenses pursuant to any service contract executed
12 pursuant to subdivision (b) of this section and such bonds and notes
13 shall contain on the face thereof a statement to such effect. Except for
14 purposes of complying with the internal revenue code, any interest
15 income earned on bond proceeds shall only be used to pay debt service on
16 such bonds.

17 § 42. Subdivision 1 of section 50 of section 1 of chapter 174 of the
18 laws of 1968, constituting the New York state urban development corpo-
19 ration act, as amended by section 48 of part MM of chapter 56 of the
20 laws of 2025, is amended to read as follows:

21 1. Notwithstanding the provisions of any other law to the contrary,
22 the dormitory authority and the urban development corporation are hereby
23 authorized to issue bonds or notes in one or more series for the purpose
24 of funding project costs undertaken by or on behalf of the state educa-
25 tion department, special act school districts, state-supported schools
26 for the blind and deaf, approved private special education schools,
27 non-public schools, community centers, day care facilities, residential
28 camps, day camps, Native American Indian Nation schools, and other state
29 costs associated with such capital projects. The aggregate principal
30 amount of bonds authorized to be issued pursuant to this section shall
31 not exceed ~~[four hundred forty million three hundred ninety seven thou-~~
32 ~~sand dollars \$440,397,000]~~ four hundred eighty-five million nine hundred
33 sixty thousand dollars \$485,960,000, excluding bonds issued to fund one
34 or more debt service reserve funds, to pay costs of issuance of such
35 bonds, and bonds or notes issued to refund or otherwise repay such bonds
36 or notes previously issued. Such bonds and notes of the dormitory
37 authority and the urban development corporation shall not be a debt of
38 the state, and the state shall not be liable thereon, nor shall they be
39 payable out of any funds other than those appropriated by the state to
40 the dormitory authority and the urban development corporation for prin-
41 cipal, interest, and related expenses pursuant to a service contract and
42 such bonds and notes shall contain on the face thereof a statement to
43 such effect. Except for purposes of complying with the internal revenue
44 code, any interest income earned on bond proceeds shall only be used to
45 pay debt service on such bonds.

46 § 43. Subdivision 1 of section 1680-k of the public authorities law,
47 as amended by section 49 of part MM of chapter 56 of the laws of 2025,
48 is amended to read as follows:

49 1. Subject to the provisions of chapter fifty-nine of the laws of two
50 thousand, but notwithstanding any provisions of law to the contrary, the
51 dormitory authority is hereby authorized to issue bonds or notes in one
52 or more series in an aggregate principal amount not to exceed ~~[forty one~~
53 ~~million one hundred seventy five thousand dollars \$41,175,000]~~ forty one
54 million two hundred ninety thousand dollars \$41,290,000, excluding bonds
55 issued to finance one or more debt service reserve funds, to pay costs
56 of issuance of such bonds, and bonds or notes issued to refund or other-

1 wise repay such bonds or notes previously issued, for the purpose of
2 financing the construction of the New York state agriculture and markets
3 food laboratory. Eligible project costs may include, but not be limited
4 to the cost of design, financing, site investigations, site acquisition
5 and preparation, demolition, construction, rehabilitation, acquisition
6 of machinery and equipment, and infrastructure improvements. Such bonds
7 and notes of such authorized issuers shall not be a debt of the state,
8 and the state shall not be liable thereon, nor shall they be payable out
9 of any funds other than those appropriated by the state to such author-
10 ized issuers for debt service and related expenses pursuant to any
11 service contract executed pursuant to subdivision two of this section
12 and such bonds and notes shall contain on the face thereof a statement
13 to such effect. Except for purposes of complying with the internal
14 revenue code, any interest income earned on bond proceeds shall only be
15 used to pay debt service on such bonds.

16 § 44. Subdivision 1 of section 1680-r of the public authorities law,
17 as amended by section 50 of part MM of chapter 56 of the laws of 2025,
18 is amended to read as follows:

19 1. Notwithstanding the provisions of any other law to the contrary,
20 the dormitory authority and the urban development corporation are hereby
21 authorized to issue bonds or notes in one or more series for the purpose
22 of funding project costs for the capital restructuring financing program
23 for health care and related facilities licensed pursuant to the public
24 health law or the mental hygiene law and other state costs associated
25 with such capital projects, the health care facility transformation
26 programs, the essential health care provider program, and other health
27 care capital project costs. The aggregate principal amount of bonds
28 authorized to be issued pursuant to this section shall not exceed [~~six~~
29 ~~billion one hundred sixty-eight million dollars \$6,168,000,000~~] seven
30 billion one hundred seventy-eight million dollars \$7,178,000,000,
31 excluding bonds issued to fund one or more debt service reserve funds,
32 to pay costs of issuance of such bonds, and bonds or notes issued to
33 refund or otherwise repay such bonds or notes previously issued. Such
34 bonds and notes of the dormitory authority and the urban development
35 corporation shall not be a debt of the state, and the state shall not be
36 liable thereon, nor shall they be payable out of any funds other than
37 those appropriated by the state to the dormitory authority and the urban
38 development corporation for principal, interest, and related expenses
39 pursuant to a service contract and such bonds and notes shall contain on
40 the face thereof a statement to such effect. Except for purposes of
41 complying with the internal revenue code, any interest income earned on
42 bond proceeds shall only be used to pay debt service on such bonds.

43 § 45. Subdivision (a) of section 27 of part Y of chapter 61 of the
44 laws of 2005, relating to providing for the administration of certain
45 funds and accounts related to the 2005-2006 budget, as amended by
46 section 52 of part MM of chapter 56 of the laws of 2025, is amended to
47 read as follows:

48 (a) Subject to the provisions of chapter 59 of the laws of 2000, but
49 notwithstanding any provisions of law to the contrary, the urban devel-
50 opment corporation is hereby authorized to issue bonds or notes in one
51 or more series in an aggregate principal amount not to exceed [~~five~~
52 ~~hundred fifty million one hundred thousand dollars \$550,100,000~~] five
53 hundred sixty-two million one hundred thousand dollars \$562,100,000,
54 excluding bonds issued to finance one or more debt service reserve
55 funds, to pay costs of issuance of such bonds, and bonds or notes issued
56 to refund or otherwise repay such bonds or notes previously issued, for

1 the purpose of financing capital projects including IT initiatives for
2 the division of state police, debt service and leases; and to reimburse
3 the state general fund for disbursements made therefor. Such bonds and
4 notes of such authorized issuer shall not be a debt of the state, and
5 the state shall not be liable thereon, nor shall they be payable out of
6 any funds other than those appropriated by the state to such authorized
7 issuer for debt service and related expenses pursuant to any service
8 contract executed pursuant to subdivision (b) of this section and such
9 bonds and notes shall contain on the face thereof a statement to such
10 effect. Except for purposes of complying with the internal revenue code,
11 any interest income earned on bond proceeds shall only be used to pay
12 debt service on such bonds.

13 § 46. Paragraph (b) of subdivision 1 of section 54-b of section 1 of
14 chapter 174 of the laws of 1968 constituting the urban development
15 corporation act, as amended by section 56 of part MM of chapter 56 of
16 the laws of 2025, is amended to read as follows:

17 (b) Notwithstanding any other provision of law to the contrary,
18 including, specifically, the provisions of chapter 59 of the laws of
19 2000 and section sixty-seven-b of the state finance law, the dormitory
20 authority of the state of New York and the corporation are hereby
21 authorized to issue personal income tax revenue anticipation notes with
22 a maturity no later than March 31[~~2026~~] of the state fiscal year in
23 which such notes are issued, in one or more series in an aggregate prin-
24 cipal amount for each fiscal year not to exceed three billion dollars,
25 and to pay costs of issuance of such notes, for the purpose of temporar-
26 ily financing budgetary needs of the state. Such purpose shall consti-
27 tute an authorized purpose under subdivision two of section
28 sixty-eight-a of the state finance law for all purposes of article
29 five-C of the state finance law with respect to the notes authorized by
30 this paragraph. Such notes shall not be renewed, extended or refunded.
31 For so long as any notes authorized by this paragraph shall be outstand-
32 ing, the restrictions, limitations and requirements contained in article
33 five-B of the state finance law shall not apply.

34 § 47. Paragraph (b) of subdivision 1 and subdivision 2 of section 67-b
35 of the state finance law, as amended by section 34 of part P2 of chapter
36 62 of the laws of 2003, are amended to read as follows:

37 (b) If state-supported debt is issued to refund or otherwise affect
38 the refunding, retirement or defeasance of state-supported debt
39 originally issued on and after April first, two thousand, provided such
40 refundings are conducted in accordance with section thirteen of article
41 VII of the state constitution, the calculation of the total outstanding
42 principal amount of debt shall [~~exclude~~] include such refunding debt,
43 and shall [~~only include~~] exclude the amount of prior refunded debt, [~~as~~
44 ~~if it were still outstanding,~~] in each year until such refunding debt is
45 finally retired. Notwithstanding the foregoing, the provisions of such
46 section thirteen of article VII of the state constitution relating to
47 the maintenance or management of escrow funds and sinking funds shall
48 only be applicable to state-supported debt issued by the state comp-
49 troller. If state-supported debt is issued to refund or otherwise affect
50 the refunding, retirement or defeasance of state-supported debt issued
51 prior to April first, two thousand, then the amount of such refunding
52 debt shall be [~~excluded from~~] included in the calculation of the total
53 outstanding principal amount of debt in each year until such refunding
54 debt is finally retired. In addition, if state-supported debt is retired
55 or defeased with payments in any fiscal year made by the state that are
56 not required by mandatory payments, such debt shall be excluded from the

1 calculation of the total outstanding principal amount of debt, including
2 retirements or defeasances accomplished on an economic basis.

3 2. State-supported debt may not be contracted for unless, as of Octo-
4 ber thirty-first, two thousand one and as of each October thirty-first
5 thereafter, the total amount of interest, installments of principal,
6 contributions to sinking funds, and related payments on a cash basis of
7 accounting for state-supported debt in the immediately preceding fiscal
8 year is less than the designated percentage of total governmental funds
9 receipts for such fiscal year. Nothing shall preclude the contracting of
10 state-supported debt prior to October thirty-first of each year if, in
11 the immediately preceding fiscal year, the total amount of interest,
12 installments of principal, contributions to sinking funds, and related
13 payments was less than the designated percentage of total governmental
14 funds receipts. This shall include the total amount of payments on such
15 debt issued on and after April first, two thousand, but shall not
16 include payments in any fiscal year made by the state to defease or
17 retire debt not required by mandatory payments nor payments made by the
18 state for debt issued to refund debt that was issued prior to April
19 first, two thousand. In addition, if state-supported debt is issued to
20 refund or otherwise affect the refunding, retirement or defeasance of
21 state-supported debt originally issued on and after April first, two
22 thousand, provided such refundings are conducted in accordance with
23 section thirteen of article VII of the state constitution, the calcu-
24 lation of the total amount of interest, installments of principal,
25 contributions to sinking funds, and related payments shall ~~[exclude]~~
26 include payments made on such refunding debt, and shall ~~[only include]~~
27 exclude the payments on the prior refunded debt, ~~[as if it were still~~
28 ~~outstanding,~~] in each year until such refunding debt is finally retired.
29 Such designated percentage shall be seven and one-half-tenths of one
30 percent for fiscal year two thousand--two thousand one, and shall
31 increase by five-tenths of one percent in fiscal year two thousand one-
32 -two thousand two, by an additional four-tenths of one percent in fiscal
33 year two thousand two--two thousand three, and by an additional one-
34 third of one percent in each of the ten subsequent fiscal years. The
35 designated percentage for fiscal year two thousand thirteen--two thou-
36 sand fourteen and for each fiscal year thereafter shall be five percent.

37 § 48. This act shall take effect immediately and shall be deemed to
38 have been in full force and effect on and after April 1, 2026; provided,
39 however, that the provisions of sections one, two, three, four, five,
40 six, seven, eight, fourteen, fifteen, sixteen, seventeen, eighteen,
41 nineteen, twenty, twenty-one and twenty-two of this act shall expire
42 March 31, 2027.

43 § 2. Severability clause. If any clause, sentence, paragraph, subdivi-
44 sion, section or part of this act shall be adjudged by any court of
45 competent jurisdiction to be invalid, such judgment shall not affect,
46 impair, or invalidate the remainder thereof, but shall be confined in
47 its operation to the clause, sentence, paragraph, subdivision, section
48 or part thereof directly involved in the controversy in which such judg-
49 ment shall have been rendered. It is hereby declared to be the intent of
50 the legislature that this act would have been enacted even if such
51 invalid provisions had not been included herein.

52 § 3. This act shall take effect immediately provided, however, that
53 the applicable effective date of Parts A through FF of this act shall be
54 as specifically set forth in the last section of such Parts.